



**GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.**



GAIL (India) Limited

(A GOVT. OF INDIA UNDERTAKING - A MAHARATNA COMPANY)

REGIONAL PIPELINE NETWORK HEADQUARTERS-GUJARAT
GAIL COMPLEX, PLOT NO. 549/1, AJIT NAGAR, AKOTA,
VADODARA – 390020

DOMESTIC COMPETITIVE BIDDING “UNDER TWO BID SYSTEM” (CUSTOM BID - THRU GeM PORTAL ONLY)

FOR

**PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG
WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY
BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED,
VAGHODIA.**

**PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF
BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.**

➤ **BID SUBMISSION (ONLY THROUGH GeM PORTAL)
(<https://gem.gov.in>).**

विजन

प्राकृतिक गैस मूल्य श्रृंखला और इतर क्षेत्रों में
वैश्विक उपस्थिति, स्टैकहोल्डर्स के लिए मूल्य सृजन
और पर्यावरण उत्तरदायित्व के साथ अग्रणी बनना।

मिशन

स्वच्छ ऊर्जा और इतर के माध्यम से जीवन
की गुणवत्ता को बेहतर बनाना।

DISCLAIMER: “Revision, clarification, addendum, corrigendum, time extension, etc. to this tender will be hosted on
The website <https://gem.gov.in> and <https://www.GAILtenders.in> only and no separate notification shall be
Issued in the press. Bidders are requested to visit the website regularly to keep themselves updated.”

REGD. OFFICE: 16, BHIKAJI CAMA PLACE R. K PURAM, NEW DELHI-110 066

Website: www.GAILOnline.com, GAIL tender portal <https://www.GAILtenders.in>

SECTION-I





GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

“INVITATION FOR BID (IFB)”

Ref No: GEM/2026/B/7786440 (GAIL/VAG/C&P/KK/26/P-28)

DATE: 20.07.2026

To,

PROSPECTIVE BIDDERS

SUB: TENDER DOCUMENT FOR PROCUREMENT OF PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL(INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL ON OPEN DOMESTIC COMPETITIVE BIDDING BASIS.

Dear Sir/Madam,

1.0 GAIL (India) Limited, New Delhi [having Registered Office at ‘GAIL Bhawan’, 16, Bhikaiji Cama Place, R.K. Puram, New Delhi, India CIN L40200DL1984GOI018976] the largest state-owned natural gas processing and distribution company) and a Maharatna, invites bids from bidders for the subject supply/job, in complete accordance with the following details and enclosed Tender Documents.

2.0 The brief details of the tender are as under:

(A)	SCOPE OF SUPPLY/ PROCUREMENT	<i>PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL(INDIA) LIMITED, VAGHODIA.</i> <i>PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.</i>
(B)	TENDER NO. & DATE	This Document shall form integral part of Government e-Marketplace <u>(GeM) Bid No. GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28)</u> <u>DT: 20.07.2026)</u>
(C)	TYPE OF BIDDING SYSTEM	Through Government e-Marketplace <u>(GeM) Only</u>
(D)	CONTRACTUAL DELIVERY DATE	PART A: - The Vendor shall complete the supply of all materials as per the Schedule of Rates within six (06) months from the date of issuance of LOA/Work Order. The date of Lorry Receipt (LR) shall be considered as the date of delivery. - The total completion period for supply, installation, testing, commissioning, and handing over of the complete Battery Charger System and Battery Bank, along with buyback of the existing battery charger and battery bank, shall be Twelve (12) months from the date



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		of issuance of LOA/Work Order/GeM Contract PART B: - Supply of battery banks as mentioned in SOR shall be completed within 04 months from date of intimation from GAIL. Date of LR shall be considered as delivery date. - The contract period for Supply, Installation & Commissioning of Lead Acid battery bank shall be of 12 months from the date of issue of FOA or LOA, whichever is earlier.								
(E)	BID SECURITY / EARNEST MONEY DEPOSIT (EMD)	Applicable as below: <table><tr><th>PART</th><th>EMD Value in Rs.</th></tr><tr><td>A</td><td>96,130.00</td></tr><tr><td>B</td><td>Not Applicable</td></tr><tr><td>For Both A&B</td><td>1,14,163.00</td></tr></table> NOTE: Bidder quoting for part A only shall submit the EMD Rs: 96,130.00 Bidder quoting for PART B only shall not submit any EMD. However, if a bidder is quoting for both PART(A&B) then total Rs: 1,14,163.00 shall be submitted as EMD.	PART	EMD Value in Rs.	A	96,130.00	B	Not Applicable	For Both A&B	1,14,163.00
PART	EMD Value in Rs.									
A	96,130.00									
B	Not Applicable									
For Both A&B	1,14,163.00									
(E1)	DECLARATION FOR BID SECURITY	Bidders who are allowed for exemption as per clause no.16.9 are required to submit Declaration for Bid Security in bid as per proforma at Form F-2A.								
(F)	DATE, TIME & VENUE OF PRE-BID MEETING	DATE: 29.07.2026 AT: 11:00 HRS. Through MS Teams as per link given below: Join: https://teams.microsoft.com/meet/49585009230081?p=iV3aYr3nhN6h7GgxgF Meeting ID: 495 850 092 300 81 Passcode: 8xF3X5RR								
(G)	CONTACT DETAILS OF TENDER DEALING OFFICER	Name: K Kartheek Designation: Sr. Officer (C&P) Mob: 74-383 e-mail : k.kartheek@gail.co.in								



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(H)	DEALING GAIL'S OFFICE ADDRESS	<u>GAIL (India) Limited, Vadodara</u> Regional Pipeline Network Head Quarters-Gujarat, GAIL Complex, Plot No. 549/1, Ajit Nagar, Akota, Vadodara-390020 (Gujarat) (India)
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In case the days specified above happens to be a holiday in GAIL, the next working day shall be implied w.r.t. bid opening (mentioned in GeM bid) and pre-bid meeting, etc.

3.0 Bids must be submitted strictly in accordance with Clause No. 11 of ITB (Section-III). The IFB is an integral and inseparable part of the Tender Document.

4.0 Bid must be submitted only on GeM Portal (<https://gem.gov.in/>). *Further, the following documents in addition to uploading in the bid on GAIL's e-Portal shall also be submitted in Original (in physical form) within 7 (seven) days from the Bid Due Date provided the scanned copies of the same have been uploaded in GeM Portal by the bidder along with e-bid within the Bid Due Date & Time, to the address mentioned in Bidding Data Sheet (BDS) [Annexure-I to Section-III]:*

(i) EMD/Bid Security / Declaration for Bid Security

5.0 Bidder(s) are advised to submit their bid strictly as per terms and conditions of the Tender Documents and not to stipulate any deviations/exceptions.

6.0 Any bidder, who meets the Bid Evaluation Criteria (BEC) and wishes to quote against this Tender Document, may download the complete Tender Document along with its amendment(s) if any from GeM Portal and submit their Bid complete in all respect as per terms & conditions of Tender Document on or before the Bid Due Date & Time.

7.0 Bid(s) received from bidders to whom tender/information regarding this Tender Document has been issued as well as offers received from the bidder(s) by downloading Tender Document from GeM Portal shall be taken into consideration for evaluation & award provided that the Bid is found responsive subject to provisions contained in Clause No. 2 of ITB (Section-III).

The Tender Document calls for offers on single point "Sole Bidder" responsibility basis (except where Consortium bid is allowed pursuant to clause no. 3.0 of ITB) and in total compliance of Scope of Supply/Specification(s) as specified in Tender Document.

8.0 Any revision, clarification, corrigendum, time extension, etc. to this Tender Document will be hosted on the GeM Portal only. Bidders are requested to visit the GeM Portal regularly to keep themselves updated.

9.0 All the bidders including those who are not willing to submit their bid, are required to submit F-6 (Acknowledgement cum Consent letter) duly filled within 7 days from the date of receipt of tender information.

10.0 SAP generated Request for Quotation (RFQ), if any shall also form an integral part of the Tender Document.

11.0 Bidders are required to update their GST registration details on GeM portal to enable evaluation of bids after considering ITC of GST, wherever applicable. However, evaluation bids will be based on the confirmations &



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documents submitted by the bidder in their bid irrespective of the status/ evaluation on GeM portal. GAIL's decision in this regard shall be final.

- 12.0 Bidders are required to update their GST registration details on GeM portal to enable evaluation of bids after considering ITC of GST, wherever applicable. However, evaluation bids will be based on the confirmations & documents submitted by the bidder in their bid irrespective of the status/evaluation on GeM portal. GAIL's decision in this regard shall be final.
- 13.0 As per GEM policy/guidelines, MSE bidders have to update their status in their Profile and declare whether they are participating as MSE on GeM Portal (including updating their status in Profile) while submitting the bid on GeM tender. Further, MSE are required to upload relevant documents in bid as per provision of tender. However, evaluation and applicability of EMD exemption and purchase preference policy will be based on the confirmations & documents submitted by the bidder in their bid irrespective of selection/option made on GeM portal.

14.0 VENDOR INVOICE MANAGEMENT (VIM)

GAIL is implementing Vendor Invoice Management (VIM) system titled as 'SARATHI' for automation, digitization & centralization of Account Payable process w.e.f. 01.04.2023.

After implementation, Supplier/Contractor/Service Provide/ Consultant is required to upload digital invoice on 'Sparsh' portal. The system optimizes and simplifies the process of receiving, managing, monitoring and forwarding invoices for payment process. The link of 'Sparsh' portal is as under:

<https://sparsh.GAIL.co.in/flipper/#/login>

The 'Help Manual' hyperlink to access the detailed User Manual, Demo Videos, FAQ's and other relevant information is available on 'Sparsh' portal.

Only digital invoice is to be uploaded on 'Sparsh' portal and all other supporting documents along with copy of invoice are to be submitted to concerned as defined in Purchase Order (PO)/ Letter of Acceptance (LoA).

This is not an Order.

For & on behalf of
GAIL (India) Limited
(Authorized Signatory)

-----S/D-----

Name: K Kartheek
Designation: Sr. Officer (C&P)
Mob: 74-383
e-mail : k.kartheek@gail.co.in



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DO NOT OPEN - THIS IS A QUOTATION

GEM BID NO.	GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28)
DESCRIPTION	“PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA. PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL”
DUE DATE & TIME	

FROM:

TO:

M/s.	<u>GM / HoD [C&P]</u> GAIL (India) Limited, Vadodara Regional Pipeline Network Head Quarters-Gujarat, GAIL Complex, Plot No. 549/1, Ajit Nagar, Akota, Vadodara-390020 (Gujarat)(India)
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(To be pasted on the envelope containing Physical documents)

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SECTION-II

BID EVALUATION

CRITERIA

&

EVALUATION

METHODOLOGY



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SECTION-II

❖ BID EVALUATION CRITERIA & EVALUATION METHODOLOGY

A. तकनीकी मापदंड / TECHNICAL CRITERIA :

NOTE: Bidders may participate in Part-A or Part-B or in both parts as per their choice. However, in case of participation in both parts, the bidder shall independently fulfill the Bid Evaluation Criteria (BEC) requirements for each part separately

PART A:

S.N	Technical BEC Criteria	Required Document(S) to qualify eligibility criteria
1	The bidder must be Manufacturer or Authorized Distributor / Dealer / Channel Partner of Manufacture of Battery Charger .	(i) In case bidder is a Manufacturer: Bidder must submit a valid documentary evidence for being a Manufacturer (i.e Copy of ISO Certificate/ NSIC certificate or any other statutory certificate/ document – evidencing bidder as the Manufacturer of Battery Charger. (ii) In case bidder is an Authorized Distributor/ Dealer/Channel Partner of Manufacturer: Bidder must submit a copy of valid Authorized Distributorship / Authorized Dealership /Authorized Channel Partner Certificate issued by the respective Manufacturer along with proof of their principal being a Manufacturer as stated at (i) above.



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2	Bidder should have successfully completed/executed at least one (01) number order for Supply, Installation, testing& commissioning of 12-Pulse DSP Technology based Rectifier battery Charger of rating not less than 110V,50 A in a single Purchase order in India in any Govt. / Semi Govt. / PSU / MNC / Public Ltd. Company / Pvt Ltd. Company in previous seven (07) years (reckoned from bid due date)	(i) Invoice/delivery challan along with payment receipts for proof of delivery. (ii) Copy of Completion/Execution certificate issued by end user / owner (or their consultant who has been duly authorized by them to issue such certificate), indicating completion of the job in all respect with reference no. of work order, executed value, date of issuance & completion date of job.
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PART B:

S.N	Technical BEC Criteria	Required Document(S) to qualify eligibility criteria
1	Bidder should be manufacturer of Lead Acid batteries OR an Authorized Distributor/dealer of Lead Acid batteries.	(i) In case bidder is a Manufacturer: Any one of the following valid documents clearly establishing that the bidder is a manufacturer of lead Acid batteries • Factory License; or • Pollution Control Board Certificate; or • NSIC Certificate; or • ISO Certification; or • Any other statutory document evidencing the bidder's status as a manufacturer of Lead acid batteries. (ii) In case bidder is an Authorized Distributor/Dealer of Manufacturer: The bidder has to submit proof of being "Authorized Dealer/Distributor" from the Manufacturer & Manufacturer's Certificate as per Sr No -a.
2	Bidder must have successfully executed at least single order of value	(i) Invoice/delivery challan along with payment receipts for proof of delivery.



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not less than Rs. 5.31 Lakhs for supply, Installation & Commissioning of Lead Acid Batteries in the name of firm (who participated in the bidding process) in the previous seven (07) years [reckoned from the Bid Due Date of this Tender] to any Department under State Govt. or Central Govt. of India / Indian PSU / Government Organization / Private Limited Company / Public Limited Company	(ii) Copy of Completion/Execution certificate issued by end user / owner (or their consultant who has been duly authorized by them to issue such certificate), indicating completion of the job in all respect with reference no. of work order, executed value, date of issuance & completion date of job
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Note to above BEC-Technical:

- (i) A Job executed by a Bidder for its own plant/ project cannot be considered as experience for the purpose of meeting BEC of this Tender Document. However, jobs executed for Subsidiary/Fellow subsidiary/Holding company will be considered as experience for the purpose of meeting BEC subject to submission of tax paid invoice (s) duly certified by Statutory Auditor of the Bidder towards payments of statutory tax in support of the job executed for Subsidiary/Fellow subsidiary/Holding company. Such Bidders to submit these documents in addition to the documents specified to meet BEC.
- (ii) The completion certificate/Execution Certificate should clearly mention: -
- Full Address of Client, officer-issuing certificate.
 - Reference of relevant work order.
 - Actual value of awarded work.
 - Actual value of executed work.

B. वित्तीय मापदंड / BEC-FINANCIAL: NOT APPLICABLE

C. RELAXATION OF PRIOR TURNOVER AND PRIOR EXPERIENCE FOR STARTUPS (AS DEFINED IN GAZETTE NOTIFICATION NO. D.L-33004/99 DATED 18.02.2016 AND 23.05.2017 OF MINISTRY OF COMMERCE AND INDUSTRY), AS AMENDMED TIME TO TIME: NOT APPLICABLE

D. DOCUMENTS TO BE SUBMITTED FOR COMPLIANCE TO BEC:

(i) Technical Criteria of BEC:

As mentioned in the para (A) of BEC-Technical.

(ii) Financial Criteria of BEC:

As mentioned in the para (B) of BEC-Financial.



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Bidder shall furnish the duly filled and signed Checklist for submission of documents for qualification for Bid Evaluation Criteria (BEC) as per format F-8 (B).

E. AUTHENTICATION OF DOCUMENTS TO BE SUBMITTED IN SUPPORT OF BEC:

(i) Technical Criteria of BEC:

All documents in support of Technical Criteria of BEC to be furnished by the Bidder shall necessarily be duly self-certified /attested by authorized signatory with legible stamp.

(ii) Financial Criteria of BEC: NOT APPLICABLE

Bidder shall submit “Details of financial capability of Bidder” in prescribed format (F-10) duly signed and stamped by a chartered accountant/ Certified Public Accountant (CPA).

Further, copy of audited annual financial statements submitted in bid shall be duly certified/ attested by Notary Public with legible stamp.

F. Eligibility criteria in case bid is submitted on the basis of technical experience of FOREIGN BASED ANOTHER COMPANY (SUPPORTING COMPANY) which holds more than fifty percent of the paid-up share capital of the bidder company or vice versa:

Offers of those bidders (not under consortium arrangement) who themselves do not meet the technical experience criteria as stipulated in the BEC and are quoting based on the experience of Foreign based another company (Supporting Company) can also be considered. In such case the supporting company should hold more than fifty percent of the paid-up share capital of the bidding company or vice versa.

However, the supporting company should on its own meet the technical experience as stipulated in the BEC and should not rely on any other company or through any other arrangement like Technical collaboration agreement.

In that case as the bidding company is dependent upon the technical experience of another company with a view to ensure commitment and involvement of the companies involved for successful execution of the contract, the participating bidder should enclose the following Agreements/ Guarantees/ Undertakings along with the techno-commercial bid:

- (i) An Agreement (as per format enclosed at Appendix- A1 to Section II) between the bidder and the supporting company.
- (ii) Guarantee (as per format enclosed at Appendix- A2 to Section II) by the supporting company to GAIL for fulfilling the obligation under the Agreement along with certificate issued by Company Secretary as per Appendix- A2A to Section II.
- (iii) Undertaking by Supporting Company to provide a Performance Bank Guarantee (as per format and instructions enclosed at Appendix- A3 to Section II), equivalent to 50% of the value of the PBG which is to be submitted by the bidding company, in case of being the successful bidder.



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In cases where foreign based supporting company does not have Permanent Establishment in India as per Indian Income Tax Act, the bidding company can furnish Performance Bank Guarantee for an amount which is sum of PBG amount to be submitted by the bidder and additional PBG amount required to be submitted by the supporting company subject to the condition that supporting company have 100% paid up equity share capital of the bidder either directly or through intermediate subsidiaries or vice versa.

In such case bidding company shall furnish an undertaking that their foreign based supporting company is not having any Permanent Establishment in India in terms of Income Tax Act of India.

- (iv) Undertaking from the supporting company to the effect that in addition to invoking the PBG submitted by the bidding company, the PBG provided by supporting company shall be invoked by GAIL due to non-performance of the bidding company.

Note:

- 1.0 In case Supporting Company fails to submit Bank Guarantee as per (iii) above, EMD/SD submitted by the bidder shall be forfeited.
- 2.0 The Financial BEC of tender is to be met by bidder on their own.
- 3.0 The Supporting Company shall meet conditions of 'Eligible Bidder', as per clause no. 2 of Section-III (ITB).
- 4.0 The clause J as below shall be applicable to above supporting company also.

- G.** Apart from above, Bidder must submit all other relevant documents/ information as specified in the Scope of Work/SCC for Technical Evaluation of bid or specified elsewhere in the Tender Document, towards proof of its responsiveness.

Bidder not meeting any of the above-mentioned BEC shall be rejected without assigning any reason whatsoever. GAIL's decision in this regard shall be final and binding on the bidder.

H. PROCUREMENT FROM A BIDDER WHICH SHARES A LAND BORDER WITH INDIA

1. OM no. 7/10/2021-PPD (1) dated 23.02.2023, Department of Expenditure, Ministry of Finance, Govt. of India refers. The same are available at website <https://doe.gov.in/procurement-policy-divisions>.
2. Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. For details of competent authority refer to Annexure I of Order (Public Procurement no. 4) dated 23.02.2023.

Further, any bidder (including bidder from India) having specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India, shall also require to be registered with the same competent authority.

Further the above will not apply to bidders from those countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in which the Government of India is engaged in development projects. Updated lists of countries to which lines of credit have been



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extended or in which development projects are undertaken are given in the website of the Ministry of External Affairs, Govt. of India

3. **"Bidder"** (including the term 'tenderer', 'consultant' 'vendor' or 'service provider' in certain contexts) **for purpose of this provision** means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency, branch or office controlled by such person, participating in a procurement process.
4. **"Bidder from a country which shares a land border with India"** for the purpose of this:
- An entity incorporated, established or registered in such a country; or
 - A subsidiary of an entity incorporated, established or registered in such a country; or
 - An entity substantially controlled through entities incorporated, established or registered in such a country; or
 - An entity whose beneficial owner is situated in such a country; or
 - An Indian (or other) agent of such an entity; or
 - A natural person who is a citizen of such a country; or
 - A consortium or joint venture where any member of the consortium or joint venture falls under any of the above
5. **"Beneficial owner"** for the purpose of above (4) will be as under:
- In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person(s), has a controlling ownership interest or who exercises control through other means.

Explanation—

- "Controlling ownership interest" means ownership of, or entitlement to, more than twenty-five per cent of shares or capital or profits of the company;
 - "Control" shall include the right to appoint the majority of the directors or to control the management or policy decisions, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;
- In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;
 - In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

- iv) Where no natural person is identified under (i) or (ii) or (iii) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;
- v) In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

6. **“Agent”** for the purpose of this Order is a person employed to do any act for another, or to represent another in dealings with third persons

Note:

- (i) A person who procures and supplies finished goods from an entity from a country which shares a land border with India will, regardless of the nature of his legal or commercial relationship with the producer of the goods, be deemed to be an Agent for the purpose of this Order.
- (ii) However, a bidder who only procures raw material, components etc. from an entity from a country, which shares a land border with India and then manufactures or converts them into other goods, will not be treated as an Agent.]

7. **“Transfer of Technology”** means dissemination and transfer of all forms of commercially usable knowledge such as transfer of know-how, skills, technical expertise, designs, processes and procedures, trade secrets, which enables the acquirer of such technology to perform activities using the transferred technology independently. (Matters of interpretation of this term shall be referred to the Registration Committee constituted by the Department for Promotion of Industry and Internal Trade, and the interpretation of the Committee shall be final.)

8. **"Specified Transfer of Technology"** means a transfer of technology in the sectors and/ or technologies, specified at Schedule-I, II & 3 of this order.

9. **SUBMISSION OF CERTIFICATE IN BIDS:**

Bidder shall submit a certificate in this regard as Form-I-A.

For cases falling under the category of Transfer of Technology, Bidder shall submit a certificate in this regard as Form-I-B.

If such certificate given by a bidder whose bid is accepted is found to be false, this would be a ground for immediate rejection of the bid/termination and further action as per “Procedure for Action in case of Corrupt/Fraudulent/ Collusive / Coercive Practices” of tender document.

10. The registration, wherever applicable, should be valid at the time of submission of bids and at the time of acceptance of bids. In respect of supply otherwise than by tender, registration should be valid at the time of placement of order. If the bidder was validly registered at the time of acceptance / placement of order, registration shall not be a relevant consideration during contract execution.

11. ***PROVISION TO BE IN WORKS CONTRACTS, INCLUDING TURNKEY CONTRACTS:***



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The successful bidder shall not be allowed to sub-contract works to any contractor from a country, which shares a land border with India unless such contractor is registered with the Competent Authority. The definition of "contractor from a country which shares a land border with India" shall be as in Para 4 herein above. A Certificate to this regard is to be submitted by bidder is placed at Form-II.

[Note: Procurement of raw material, components, etc. Does not constitute sub contracting]

I. EVALUATION METHODOLOGY AND COMPARISON OF PRICE BIDS:

1. The Price Bids of only techno-commercially-qualified bidders shall be opened and will be considered for evaluation for the qualified SOR.
2. The Quoted price of all the bidders shall be evaluated on SOR-Partwise basis, i.e. separately for SOR-Part-A & SOR-Part-B to arrive at the lowest offer in individual PART. Each Tendered SOR-part is non-splitable / not divisible.
3. Evaluation and comparison of bids shall be done based on prices quoted by the bidders inclusive of GST. The Contract(s) will be awarded to the lowest techno-commercially-acceptable bidder(s) on Partwise basis.
4. In case of tie in price bid, L1 shall be decided as per GeM. Presently provisions are made available for the tiebreaker on GeM portal shall be activated after opening of price bid and GeM System will automatically decide and recommend L1 bidder for ordering purpose.
5. FOR MSE Bidders: Purchase preference will be given to MSE defined in Public Procurement Policy for Micro & Small enterprises (MSEs) order, 2012 DT. 23.03.2012 issued by Ministry of Micro, Small and Medium enterprises and subsequent Orders/Notifications issued by concerned ministry.



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CHECKLIST FOR BID SUBMISSION

Sl. No.	Particulars	Bidder's Compliance (Yes/No)
1.	Bid Evaluation Criteria	
i.	Technical-BEC documents duly self <i>certified/Attested as stated in BEC criteria.</i>	
ii.	Financial-BEC Not Applicable	
2.	EMD & Declaration for Bid Security in bid as per proforma at Form F-2A. Documents related to EMD (refer clause no: 16 of SEC III) to be submitted.	
3.	Udyam certificate to be submitted duly certified by <i>Chartered Accountant and Notary Public for availing MSE benefits as per policy.</i> Note: Applicability in tender shall be ensured by the bidder before submission of their bid.	
4.	Start-up certificate (if any) to be submitted duly certified by <i>Chartered Accountant and Notary Public for availing Start-up benefits as per policy.</i> Note: Applicability in tender shall be ensured by the bidder before submission of their bid.	
5.	All forms and format as specified in tender documents to be submitted	
6.	Power of attorney (PoA) to be submitted as stipulated in (ITB-Clause-2.7 of Section-III) and Original of the same to be sent to buyer address (courier tracking details must be uploaded)	
7.	Complete Tender document duly signed by authorized signatory for token acceptance.	
i.	SOR	
ii.	SOW	
iii.	SCC, GCC / GPC & Other terms & conditions of tender	
8.	One bid per bidder details as per clause no: 4.1 of SEC III duly notarized copy to be submitted (refer form-F-1A)	
9.	Integrity pact (if applicable) to be submitted and Original of the same to be sent to buyer address (courier tracking details must be uploaded)	
10.	Any other documents as requested in the tender.	

Bidders are advised to go through the tender document completely and carefully before submission of their bid response in e-procurement portal.



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Form-I-A

UNDERTAKING ON LETTERHEAD

To,

M/s GAIL (INDIA) LIMITED
VADODARA

SUB: GEM BID NO. GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28) FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL(INDIA) LIMITED, VAGHODIA.
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Dear Sir

REF: OM No. 7/10/2021-PPD(I) dated 23.02.2023 of Dept of Expenditure, Ministry of Finance, Government of India (<https://doe.gov.in/procurement-policy-divisions>).

Dear Sir

We, M/s _____ (Name of Bidder) is: have read the clause regarding restrictions on Procurement from a Bidder of a country which shares a land border with India as mentioned in the tender document in line with the above referred guidelines dated 23.02.2023 for Procurement from a bidder which shares a land border with India and We certify that

- (i) Bidder is not from such a country []
- (ii) If the Bidder is from such a country which shares a land border with India, has been registered with the Competent Authority. []

(Evidence of valid registration by the Competent Authority shall be attached)

(Bidder is to tick appropriate option (✓ or X) above).

We hereby certify that we fulfil all requirements in this regard and is eligible to be considered against the subject tender.

Place:
Date:

[Signature of Authorized Signatory of Bidder]
Name:
Designation:
Seal:



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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Appendix-A1 to Section-II

FORMAT OF AGREEMENT TO BE EXECUTED BETWEEN BIDDER AND THEIR FOREIGN BASED SUPPORTING COMPANY ON INDIAN STAMP PAPER OF REQUISITE VALUE DULY NOTARIZED.

This agreement made this ____ day of ____ month ____ year by and between M/s. _____ (Fill in Bidder's full name, constitution and registered office address) _____ hereinafter referred to as bidder on the first part and M/s. _____ (Fill in full name, constitution and registered office address company which hold more than fifty percent of the paid up share capital of the bidding company or vice versa) hereinafter referred to as "Supporting Company" of the second part.

Whereas

M/s. GAIL (India) Limited (hereinafter referred to as GAIL) has invited offers vide their tender No. _____ for _____ and M/s. _____ (Bidder) intends to bid against the said tender and desires to have technical support of M/s. _____ [Supporting Company]

And whereas Supporting Company represents that they have gone through and understood the requirements of the subject tender and are capable and committed to provide the services as required by the bidder for successful execution of the contract, if awarded to the bidder.

Now, it is hereby agreed to by and between the parties as follows:

- a) M/s. _____ (Bidder) will submit an offer to GAIL for the full scope of work as envisaged in the tender document as a main bidder and liaise GAIL directly for any clarifications etc. in this context.
- b) M/s. _____ [Supporting Company] undertakes to provide technical support and expertise, expert manpower and project management including financial support, if so required, to the bidder to discharge its obligations as per the Scope of Work of the tender / Contract for which offer has been made by the bidder and accepted the GAIL.
- c) The Bidder/ Supporting Company holds more than 50% paid up equity capital of the Supporting Company/ Bidder.
- d) This agreement will remain valid till validity of bidder's offer to GAIL including extension if any and till satisfactory performance of the contract, the same is awarded by GAIL to the bidder.
- e) Supporting Company undertakes that this agreement shall remain enforceable even if their stake in Bidder is diminished during the execution of works under the contract between the Bidder and GAIL.
- f) The bidder shall have the overall responsibility of satisfactory execution of the contract awarded by GAIL, however without prejudice to any rights that GAIL might have against the Supporting Company
- g) It is further agreed that, if contract pursuant to Supporting Company shall be jointly and severely responsible to GAIL for the performance of works during contract period and for the satisfactory execution of the contract, and for all the consequences for non-performance thereof.

In witness whereof the parties hereto have executed this agreement on the date mentioned above.

For and on behalf of
(Bidder)
M/s.

For and on behalf of
(Supporting Company)
M/s.

Witness:

- 1)
- 2)

Witness:

- 1)
- 2)



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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Appendix-A2 to Section-II

GUARANTEE BY THE FOREIGN BASED SUPPORTING COMPANY/ GUARANTOR

THIS DEED OF GUARANTEE executed at this day of by M/s (mention complete name) a company duly established and existing under the laws of (insert country), having its Registered Office at hereinafter called “the Guarantor and/ or the Supporting Company” which expression shall, unless excluded by or repugnant to the subject or context thereof, be deemed to include its successors and permitted assignees.

FOR

M/s (bidder) a company duly established and existing under the laws of (insert country), having its Registered Office at hereinafter called the “Bidder” which expression shall, unless excluded by or repugnant to the subject or context thereof, be deemed to include its successors and permitted assignees.

TOWARDS

M/s GAIL(India) Limited, a company duly registered under the law of India having its Registered Office at 16, Bhikaiji Cama Place, R. K. Puram, New Delhi-110066, India, and having Purchase center at hereinafter called “GAIL” which expression shall unless excluded by or repugnant to the context thereof, be deemed to include its successor and assignees

WHEREAS GAIL has invited tender number for on, and the bidder has submitted it bid number..... in response to the above mentioned tender invited by GAIL.

AND WHEREAS the bidder/ Guarantor Company holds more than 50% paid up equity capital of the Supporting Company/ Bidder.

AND WHEREAS one of the condition for acceptance of Bidder’s bid against said tender is that in case the bidder is seeking to qualify upon the technical credentials of its Guarantor Company, then the bidder shall arrange a guarantee from its Guarantor Company guaranteeing due and satisfactory performance of the work covered under the said tender including any change therein as may be deemed appropriate by the GAIL at any stage.

The Guarantor represents that they have gone through and understood the requirement of the above said tender and are capable of and committed to provide technical and such other supports as may be required by the Bidder for successful execution of the same.

The Bidder and the Guarantor have entered into an agreement dated as per which the Guarantor shall be providing technical, financial and such other supports as may be necessary for performance of the work under the tender, if the contract is awarded to the Bidder.

Accordingly, at the request of the Bidder and in consideration of and as a requirement for the GAIL to enter into agreement(s) with the Bidder, the Guarantor hereby guarantees and undertakes that upon award of Contract to Bidder against bid number, made by the Bidder under tender number.....:

1. The Guarantor unconditionally agrees that in case of non-performance by the Bidder of any of its obligations in any respect, the Guarantor shall, immediately on receipt of notice of demand by the GAIL, take up the job without any demur or objection, in continuation and without loss of time and without any cost to the GAIL and duly perform the obligations of the Bidder to the satisfaction of the GAIL.
2. The Guarantor agrees that the Guarantee contained herein shall remain valid till the satisfactory execution and completion of the work (including discharge of the warranty obligations) awarded to the Bidder.
3. The Guarantor shall be jointly and severally responsible to GAIL for satisfactory performance of works during contract period and for the satisfactory execution of the contract, and for all consequences for non-performance thereof.
4. The liability of the Guarantor, under the Guarantee, is limited of the Bidder for non- performance under the contract entered between GAIL and the Bidder. This will, however, be in addition to the forfeiture of the Performance and Advance Guarantees furnished by the Bidder.
5. The Guarantor agrees to execute a Corporate Guarantee in favour of GAIL, guaranteeing the performance of obligations by the Bidder, in case the Contract is awarded to the Bidder by GAIL.
6. The Guarantor represents that this Guarantee has been issued after due observance of the appropriate laws in force in India. The Guarantor hereby undertakes that the Guarantor shall obtain and maintain in full force and effect all the governmental



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and other approvals and consents that are necessary and do all other acts and things necessary or desirable in connection therewith or for the due performance of the Guarantor's obligations towards GAIL.

7. Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration. It is further agreed that Claims by and against the Guarantor, the Bidder and GAIL under the different contract to be entered pursuant to their relationship can be brought under a single reference and there shall be no bar on the consolidation of such proceedings before the same arbitral tribunal. The governing law shall be the laws of India and seat of arbitration shall be New Delhi, India. The language of arbitration shall be English.
8. The Guarantor hereby declares and represents that this Guarantee has been given without any undue influence or coercion, and that the Guarantor has fully understood the implications of the same.
9. In case of award of contract to the bidder, the Guarantor shall provide Performance Bank Security to GAIL, equivalent to 50% of the value of Performance Bank Security to be submitted by the bidding company, in the prescribed format within 15 days from the date of Fax of Acceptance, as guarantee for performance by the bidder/contractor. The Guarantor hereby expressly agrees that if in the opinion of GAIL, the Bidder / Contractor has failed to perform its obligations under the contract in any manner, GAIL shall have unfettered right to invoke the said Bank guarantee. The guarantor hereby agrees that decision of GAIL about performance of the bidder / contractor shall be final and shall not be questioned by the Guarantor. Guarantor shall have no objection to invocation of the Performance Bank Guarantee submitted by the Guarantor

OR

(applicable, subject to meeting the conditions stipulated in BEC in respect of additional Performance Bank Security)

In case of award of contract to the bidder, the bidder on behalf of the Guarantor shall provide additional Performance Bank Security to GAIL, equivalent to 50% of the value of Performance bank Security to be submitted by the bidding company, in the prescribed format within 15 days from the date of Fax of Acceptance, as guarantee for performance by the bidder/contractor. The Guarantor hereby expressly agrees that if in the opinion of GAIL, the Bidder / Contractor has failed to perform its obligations under the contract in any manner, GAIL shall have unfettered right to invoke the said Bank guarantee. The Guarantor hereby agrees that decision of GAIL about performance of the bidder / contractor shall be final and shall not be questioned by the Guarantor. Guarantor shall have no objection to invocation of the Performance Bank Security submitted by the Bidder on behalf The Guarantor represents and confirms that the Guarantor has the legal capacity, power and authority to issue this Guarantee and that giving of this Guarantee and the performance and observations of the obligations hereunder do not contravene any existing laws.

(Strike through the clause whichever is not applicable)

10. The Guarantor represents and confirms that the Guarantor has the legal capacity, power and authority to issue this Guarantee and that giving of this Guarantee and the performance and observations of the obligations hereunder do not contravene any existing laws.

For & on behalf of (Supporting Company)

M/s _____

Signature _____

Name _____

Designation _____

official seal _____

Witness:

1. Signature _____

Full Name _____

Address _____

2. Signature _____

Full Name _____

Address _____

INSTRUCTIONS FOR FURNISHING GUARANTEE

“हिन्दी मे पत्राचार करके देश का गौरव बढ़ाएं”





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1. The official(s) executing the guarantee should affix full signature(s) on each page.
2. Resolution passed by Board of Directors of the guarantor company authorizing the signatory(ies) to execute the guarantee, duly certified by Company Secretary should be furnished along with Guarantee.

Appendix-A2A to Section-II

CERTIFICATE ISSUED BY COMPANY SECRETARY OF THE GUARANTOR COMPANY

“Obligations contained in deed of guarantee No. _____ furnished against tender No. _____ are enforceable against the Guarantor Company and the same do not, in any way, contravene any law of the country of which the Guarantor Company is the subject.”

The above certificate should be enclosed along with the Guarantee.



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Appendix-A3 to Section-II

PROFORMA OF "BANK GUARANTEE" TOWARDS PERFORMANCE SECURITY BY FOREIGN BASED SUPPORTING COMPANY OF THE BIDDING COMPANY

CONTRACT PERFORMANCE SECURITY / SECURITY DEPOSIT
(ON NON-JUDICIAL STAMP PAPER OF APPROPRIATE VALUE)

To,

To, M/s GAIL (India) Limited _____	Bank Guarantee No.	
	Date of BG	
	BG Valid up to (Expiry date)	
	Claim period up to (indicate date of expiry of claim period which includes minimum three months from the expiry date)	
	Stamp Sl. No./e-Stamp Certificate No.	

Dear Sir(s),

M/s. _____ having registered office at _____
 (herein after called the "CONTRACTOR/ SUPPLIER" which expression shall wherever the context so require include its successors and assignees) have been placed/ awarded the job/work of _____ vide PO/LOA /FOA No. _____ dated _____ (herein after called CONTRACT/ ORDER) for GAIL (India) Limited having registered office at 16, Bhikaiji Cama Place, R.K. Puram, New Delhi (herein after called the "GAIL" which expression shall wherever the context so require include its successors and assignees).

Further, M/s _____ (Name of the Supporting company) having its registered/head office at _____ based on whose experience/technical strength, the CONTRACTOR/SUPPLIER has qualified for award of contract (hereinafter referred to as the 'SUPPORTING COMPANY') which expression shall, unless repugnant to the context or meaning thereof include all its successors, administrators, executors and assignees) has agreed to provide complete technical and other support to the CONTRACTOR/SUPPLIER for successful completion of the contract/order as mentioned above, entered between GAIL and the CONTRACTOR/SUPPLIER and GAIL having agreed that the 'SUPPORTING COMPANY' shall furnish to GAIL a performance guarantee for Indian Rupees/US\$ towards providing complete financial and other support to the CONTRACTOR/SUPPLIER for successful completion of the contract/order as mentioned above, The said M/s. _____ (Supporting Company) has approached us and at their request and in consideration of the premises we having our office at _____ have agreed to give such guarantee as hereinafter mentioned.

1. We (name of the bank) _____ registered under the laws of _____ having head/registered office at _____ (hereinafter referred to as "the Bank", which expression shall, unless repugnant to the context or meaning thereof, include all its successors, administrators, executors and permitted assignees) do hereby guarantee and undertake to pay immediately on first demand in writing any/all moneys to the extent of Indian Rs./US\$ (in figures) _____ (Indian Rupees/US Dollars (in words) _____) without any demur, reservation, contest or protest and/or without any reference to the 'SUPPORTING COMPANY'. Any such demand made by GAIL on the Bank by serving a written notice shall be conclusive and binding, without any proof, on the bank as regards the amount due and payable, notwithstanding any dispute(s) pending before any Court, Tribunal, Arbitrator or any other authority and/or any other matter or thing whatsoever, as liability under these presents being absolute and unequivocal. We agree that the guarantee herein contained shall be irrevocable and shall continue to be enforceable until it is discharged by GAIL in writing. This guarantee shall not be determined, discharged or affected by the liquidation, winding up, dissolution or insolvency of the 'SUPPORTING COMPANY' and shall remain valid, binding and operative against the bank.
2. The Bank also agrees that GAIL at its option shall be entitled to enforce this Guarantee against the Bank as a principal debtor, in the first instance, without proceeding against the 'SUPPORTING COMPANY' and notwithstanding any security or other guarantee that GAIL may have in relation to the 'SUPPORTING COMPANY's liabilities.



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3. The Bank further agrees that GAIL shall have the fullest liberty without our consent and without affecting in any manner our obligations hereunder to vary any of the terms and conditions of the said CONTRACT/ORDER or to extend time of performance by the said CONTRACTOR/SUPPLIER from time to time or to postpone for any time or from time to time exercise of any of the powers vested in GAIL against the said CONTRACTOR/SUPPLIER and to forbear or enforce any of the terms and conditions relating to the said agreement and we shall not be relieved from our liability by reason of any such variation, or extension being granted to the said CONTRACTOR/SUPPLIER or for any forbearance, act or omission on the part of GAIL or any indulgence by GAIL to the said CONTRACTOR(s) or any such matter or thing whatsoever which under the law relating to sureties would, but for this provision, have effect of so relieving us.
4. The Bank further agrees that the Guarantee herein contained shall remain in full force during the period that is taken for the performance of the CONTRACT/ORDER and all dues of GAIL under or by virtue of this CONTRACT/ORDER have been fully paid and its claim satisfied or discharged or till GAIL discharges this guarantee in writing, whichever is earlier.
5. This Guarantee shall not be discharged by any change in our constitution, in the constitution of GAIL or that of the 'SUPPORTING COMPANY'.
6. The Bank confirms that this guarantee has been issued with observance of appropriate laws of the country of issue.
7. The Bank also agrees that this guarantee shall be governed and construed in accordance with Indian Laws and subject to the exclusive jurisdiction of Indian Courts of the place from where the purchase CONTRACT/ORDER has been placed.
8. Notwithstanding anything contained hereinabove, our liability under this Guarantee is limited to Indian Rs./US\$ (in figures) _____ (Indian Rupees/US Dollars (in words) _____ only) and our guarantee shall remain in force until (indicate the date of expiry of bank guarantee) _____.
9. We have power to issue this guarantee in your favor under Memorandum and Articles of Association and the undersigned has full power to do under the Power of Attorney, dated _____ granted to him by the Bank.
10. Notwithstanding anything contained herein:
 - a) The Bank's liability under this Guarantee shall not exceed (currency in figures) (currency in words only)
 - b) This Guarantee shall remain in force upto _____ (this date should be expiry date of defect liability period of the Contract) and any extension(s) thereof; and
 - c) The Bank shall be released and discharged from all liability under this Guarantee unless a written claim or demand is issued to the Bank on or before the midnight of (indicate date of expiry of claim period which includes minimum three months from the expiry of this Bank Guarantee) and if extended, the date of expiry of the last extension of this Guarantee. If a claim has been received by us within the said date, all the rights of GAIL under this Guarantee shall be valid and shall not cease until we have satisfied that claim.

Details of next Higher Authority of the Officials who have issued the Bank Guarantee:

Name

Designation

Yours faithfully,

Bank by its Constituted Attorney



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Signature of a person duly
Authorized to sign on behalf of the Bank
E-mail:
Telephone/Mobile No.:

INSTRUCTIONS FOR FURNISHING
"CONTRACT PERFORMANCE SECURITY / SECURITY DEPOSIT" BY "BANK GUARANTEE"

1. The Bank Guarantee by successful Bidder(s) will be given on non-judicial stamp paper as per 'stamp duty' applicable. The non-judicial stamp paper should be in name of the issuing bank. In case of foreign bank, the said Bank Guarantee to be issued by its correspondent bank in India on requisite non-judicial stamp paper and place of Bid to be considered as Delhi.
2. A letter from the issuing bank of the requisite Bank Guarantee confirming that said Bank Guarantee and all future communication relating to the Bank Guarantee shall be forwarded to Purchaser as per format appended below.
3. The Bank Guarantee shall be from any Indian scheduled bank (excluding Co-operative banks and Regional Rural bank) or a branch of an International bank situated in India and registered with Reserve bank of India as scheduled foreign bank. However, in case of bank guarantees from banks other than the Nationalised Indian banks, the bank must be a commercial bank having net worth in excess of Rs 100 crores and a declaration to this effect shall be made by such commercial bank either in the Bank Guarantee itself or separately on its letterhead.
4. In case BG is issued directly by a bank outside India (if allowed), it should be executed on Letter Head of the Bank and should be advised and made payable through their Indian Branch/Corresponding Bank in India.

MATTER TO BE MENTIONED IN COVERING LETTER TO BE SUBMITTED BY VENDOR ALONG WITH BANK GUARANTEE

1	BANK GUARANTEE NO	:				
2	VENDOR NAME / VENDOR CODE	:	NAME			
			VENDOR CODE			
3	BANK GUARANTEE AMOUNT	:				
4	PURCHASE ORDER/ LOA NO	:				
5	NATURE OF BANK GUARANTEE	:				
	(Please Tick (✓) Whichever is Applicable		PERFORMANCE BANK GUARANTEE	SECURITY DEPOSIT	EMD	ADVANCE
6	BG ISSUED BANK DETAILS					
(A)		EMAIL ID:				
(B)		ADDRESS:				
(C)		PHONE NO:				



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SECTION-III

INSTRUCTION **TO** **BIDDERS**

(TO BE READ IN CONJUNCTION WITH
BIDDING DATA SHEET (BDS)



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SECTION-III

INSTRUCTION TO BIDDERS

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INSTRUCTIONS TO BIDDERS [ITB]

[A] – GENERAL

1 SCOPE OF BID

- 1.1 The Purchaser as defined in the "General Conditions of Contract-Goods [GCC-Goods]", wishes to receive bids as described in this Invitation for Bid (the “**Tender Document /Bid Document**”) issued by the Purchaser. Purchaser/Owner occurring herein under shall be considered synonymous.
- 1.2 SCOPE OF BID: The scope of Supply shall be as defined in the Tender Document.
- 1.3 The successful Bidder (the “**Supplier**”) shall complete delivery of goods along with its incidental services (if any) as per Specification, Scope of Supply/Job within the period stated in Special Conditions of Contract.
- 1.4 Throughout the Tender Documents, the terms 'Bid', 'Tender', 'Offer' & 'proposal' and their derivatives [Bidder/Tenderer, Bid/Tender/Offer etc.] are synonymous. Further, 'Day' means 'Calendar Day' and 'Singular' also means 'Plural'.

2 ELIGIBLE BIDDERS

- 2.1 The Bidder shall not be under a declaration of ineligibility by Purchaser for Corrupt/ Fraudulent/ Collusive/ Coercive practices, as defined in ITB, Clause No. 39” (Action in case Corrupt/ Fraudulent/ Collusive/ Coercive Practices).
- 2.2 The Bidder is not put on ‘Holiday’ by GAIL or Public Sector Project Management Consultant (like EIL, Mecon etc. only due to “poor performance” or “corrupt and fraudulent practices”) or banned/blacklisted by Government department/ Public Sector on due date of submission of bid. Further, neither bidder nor their allied agency/(ies) (as defined in the Annexure-I, Procedure for Action in case of Corrupt/ Fraudulent/ Collusive/ Coercive Practices) are on banning list of GAIL or the Ministry of Petroleum and Natural Gas.

Bidders marked “Suspended” on GeM (but eligible as per GAIL’s Tender Document) will be evaluated as per terms & conditions of the Tender Document.

If the Tender Document is/was issued inadvertently / downloaded from, then Bid submitted by such Bidder shall not be considered for opening/ evaluation/ award.

In case there is any change in status of the declaration prior to award of Contract, the same has to be promptly informed to GAIL by the Bidder.

It shall be the sole responsibility of the bidder to inform about their status regarding para 1 of clause 2.2 herein above on due date of submission of bid and during the course of finalization of the tender. Concealment of the facts shall tantamount to misrepresentation of facts and shall lead to action against such Bidders as per clause 39 of ITB.



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- 2.3 Bidder shall not be affiliated with a firm or entity:
- (i) that has provided consulting services related to the work to the Purchaser during the preparatory stages of the work or of the project of which the works/services forms a part of or
 - (ii) that has been hired (proposed to be hired) by the Purchaser as an Engineer/ Consultant for the Contract.
- 2.4 Neither the firm/entity appointed as the Project Management Consultant (PMC) for a Project (except feasibility report) nor its affiliates shall be allowed to participate in the tendering process unless it is the sole Licensor/Licensor nominated agent/ vendor.
- 2.5 Pursuant to qualification criteria set forth in the Tender Document, the Bidder shall furnish all necessary supporting documentary evidence to establish Bidder's claim of meeting qualification criteria.
- 2.6 Power of Attorney:

Power of Attorney (POA) to be issued by the bidder in favour of the authorised employee(s), in respect of the particular tender, for purpose of signing the documents including bid, all subsequent communications, agreements, documents etc. pertaining to the tender and act and take any and all decision on behalf of the bidder. Any consequence resulting due to such signing shall be binding on the Bidder.

The Power of Attorney shall be issued as per the constitution of the bidder as below:

- a) **In case of Proprietorship:** by Proprietor
- b) **In case of Partnership:** by all Partners or Managing Partner
- c) **In case of Limited Liability Partnership:** by any bidder's employee authorized in terms of Deed of LLP
- d) **In case of Public/Limited Company:** PoA in favour of authorized employee(s) by Board of Directors through Board Resolution or by the designated officer authorized by Board to do so. Such Board Resolution should be duly countersigned by Company Secretary/MD/CMD/CEO.

The Power of Attorney should be valid till award of contract / order to successful bidder.

- 2.7 In case of change of constitution of bidder after submission of bid, the same shall be informed by the bidder to GAIL promptly. Failure to same shall be considered as misrepresentation by the bidder.

3 BID FROM "CONSORTIUM" – NOT APPLICABLE

4 ONE BID PER BIDDER

- 4.1 A Bidder shall submit only 'one [01] Bid' in the same Bidding Process either as single entity or as a member of any consortium (wherever consortium bid is allowed). A Bidder who submits or participates in more than 'one [01] Bid' will cause all the proposals in which the Bidder has participated to be disqualified.

Bidders are required to provide complete details of all Directors/Partners/Proprietors etc. including Father's name, Residential address, AADHAR, PAN Card details & DIN Nos. in Form F-1 of ITB and corresponding documents duly notarized by Notary Public.



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It is the responsibility of the participating Bidder(s) to assess the relationship as mentioned above. In case any undertaking/declaration given by a Bidder(s) in this regard is found to be false, this would be a sufficient ground for rejection of Bid(s) /termination of contract and also initiation of further action as per "Procedure for Action in case of Corrupt/Fraudulent/ Collusive / Coercive Practices" of tender document.

- 4.2 A bidder shall not have conflict of interest with other bidders. Such conflict of interest can lead to anti-competitive practices. The bidder found to have a conflict of interest shall be disqualified. A bidder shall be considered to have a conflict of interest with one or more bidders in this bidding process, if:
- a) they have controlling partner (s) in common; or
 - b) they receive or have received any direct or indirect subsidy/ financial stake from any of them; or
 - c) they have the same legal representative/authorized signatory/agent for purposes of this bid; or
 - d) they have relationship with each other, directly or through common third parties, that puts them in a position to have access to information about or influence on the bid of another Bidder; or
 - e) Bidder participates in more than one bid in bidding process. Participation by a Bidder in more than one Bid will result in the disqualification of all bids in which the parties are involved. However, this does not limit the inclusion of the components/ sub-assembly/ Assemblies from one bidding manufacturer in more than one bid.
 - f) a Bidder or any of its affiliates participated as a consultant in the preparation of the design or technical specifications of the contract that is the subject of the Bid;
 - g) In case of a holding company having more than one independently manufacturing units, or more than one unit having common business ownership/management, only one unit should quote. Similar restrictions would apply to closely related sister companies. Bidders must proactively declare such sister/ common business/ management units in same/ similar line of business.

Bidders are required to submit a confirmation for no conflict of interest with other bidders in Format F-5.

- 4.3 Alternative Bids shall not be considered.
- 4.4 The provisions mentioned at sl. no. 4.1 and 4.2 shall not be applicable wherein bidders are quoting for different Items/Sections/Parts/Groups/SOR items of the same tender, which specifies evaluation on Items/Sections/Parts/Groups/SOR items basis.

5 COST OF BIDDING

- 5.1 The Bidder shall bear all costs associated with the preparation and submission of the Bid including but not limited to Documentation Charges, Bank charges, all courier charges, translation charges, authentication charges and any associated charges including taxes & duties thereon. Further, GAIL will in no case, be responsible or liable for these costs, regardless of the outcome of the bidding process.

6 SITE VISIT

- 6.1 The Bidder is advised to visit and examine the site and its surroundings and obtain for itself on its own responsibility all information that may be necessary for preparing the Bid and entering into a Contract for the required supply/job. The costs of visiting the site shall be borne by the Bidder.



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- 6.2 The Bidder or any of its personnel or agents shall be granted permission by the Purchaser to enter upon its premises and land for the purpose of such visits, but only upon the express conditions that the Bidder, its personnel and agents will release and indemnify the Purchaser and its personnel, agents from and against all liabilities in respect thereof, and will be responsible for death or injury, loss or damage to property, and any other loss, damage, costs, and expenses incurred as a result of inspection.
- 6.3 The Bidder shall not be entitled to hold any claim against GAIL for non-compliance due to lack of any kind of pre-requisite information as it is the sole responsibility of the Bidder to obtain all the necessary information with regard to site, surrounding, working conditions, weather etc. on its own before submission of the Bid.

[B] – TENDER DOCUMENT

7 CONTENTS OF TENDER DOCUMENT

- 7.1 The contents of Bidding Documents / Tender Documents are those stated below shall be '**Bid specific Additional Terms and Conditions (ATC)**' of GeM bid, and should be read in conjunction with any 'Addendum / Corrigendum and Clarification(s)' issued in accordance with "ITB: Clause-8 & 9":

- GeM Bid
- Section-I : Invitation for Bid [IFB]*
- Section-II : Bid Evaluation Criteria [BEC] & Evaluation Methodology
- Section-III : Instructions to Bidders [ITB], Annexures & Forms & Format **
- Section-IV : General Conditions of Contract [GCC]-Goods (Rev.1) ***
- Section-V : Special Conditions of Contract [SCC], Technical Specifications, Drawing (Wherever applicable) and scope for incidental services (wherever applicable)
- Section-VI : Schedule of Rates [SOR]
- Section-VII : Health, Safety Environment [HSE] Specifications

GeM bid document generated or available on GeM portal shall also be part of Bidding Document / Tender Document.

*Request for Quotation', wherever applicable, shall also form part of the Bidding Document.

** The subject tender is based on standard formats and applicability of some specific clauses may be seen in Annexure-IV to Section-III i.e. BDS (Bidding Data Sheet).

*** General Conditions of Contract – Goods (Rev.1) is attached in Section-IV. Further, Hindi version of GCC is available on GAIL's tender website (www.GAILtenders.in) for reference. However, in case of any discrepancy in English & its Hindi translation, for interpretation and legal aspects, the English version shall prevail.

- 7.2 The Bidder is expected to examine all instructions, forms, terms & conditions of the Tender Document. The RFQ & IFB together with all its attachments thereto, shall be considered to be read, understood and accepted by the Bidders. Failure to furnish all information required by the Tender Document or submission of a Bid not substantially responsive to the Tender Document in every respect will be at Bidder's risk and may result in the rejection of his Bid.



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8 CLARIFICATION OF TENDER DOCUMENT

- 8.1 A prospective Bidder requiring any clarification(s) of the Tender Document may notify GAIL in writing or by email in the format "F-11" at GAIL's mailing address indicated in the IFB/BDS or on GeM portal no later than 02 (two) days prior to pre-bid meeting (in cases where pre-bid meeting is scheduled) or 05 (five) days prior to the bid closing date in cases where pre-bid meeting is not scheduled. GAIL reserves the right to ignore the bidders request for clarification if received after the aforesaid period. GAIL may respond in writing to the request for clarification. GAIL's response including an explanation of the query, but without identifying the source of the query will be uploaded GeM portal.
- 8.2 Any clarification or information required by the Bidder but same not received by the Purchaser as per instructions at clause 8.1 above is liable to be considered as "no clarification / information required".

9 AMENDMENT OF TENDER DOCUMENT

- 9.1 At any time prior to the 'Due Date & Time of Bid Submission', Purchaser may, for any reason, whether at its own initiative or in response to a clarification requested by a prospective Bidder(s), modify the Tender Document by addenda/ corrigendum.
- 9.2 Any addendum/ corrigendum thus issued shall be integral part of the Tender Document and shall be uploaded on GeM Portal. Bidders have to take into account all such addendum/ corrigendum before submitting their Bid.
- 9.3 The Purchaser, if consider necessary, may extend the bid due date in order to allow the Bidders a reasonable time to furnish their most competitive bid taking into account the addenda/ corrigendum issued thereof.

[C] – PREPARATION OF BID

10 LANGUAGE OF BID:

The bid prepared by the Bidder and all correspondence, drawing(s), document(s), certificate(s) etc. relating to the Bid exchanged by Bidder and GAIL shall be written in English language only. In case a document, certificate, printed literature etc. furnished by the Bidder in a language other than English, the same should be accompanied by an English translation duly authenticated by the Indian Chamber of Commerce, in which case, for the purpose of interpretation of the Bid, the English translation shall govern.

11. DOCUMENTS COMPRISING THE BID

- 11.1 All pages of the Bid must be signed by the "authorized signatory" of the Bidder holding Power of Attorney. The Bid must be submitted on GeM-portal (<https://gem.gov.in>) as follows:
- 11.1.1 **PART-I: "TECHNO-COMMERCIAL / UN-PRICED BID"**
- 'Covering Letter' on Bidder's 'Letter head' clearly specifying the enclosed contents with index.
 - 'Bidder's General Information', as per 'Form F-1'.
 - 'Letter of Authority' on the Letter Head, as per 'Form F-3'



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- d. 'Agreed Terms and Conditions', as per 'Form F-5'
- e. Duly certified / attested documents in accordance with the "Bid Evaluation Criteria [BEC]", Section II of Tender Document.
- f. Copy of Power of Attorney in favour of the authorized signatory of the Bid, as per clause no. 2.6 of ITB.
- g. Any other information/details required as per Tender Document
- h. Copy of EMD / Declaration for Bid Security, as per Clause 16 of ITB
- i. Copy of Integrity Pact as per Form F-13
- j. Undertaking as per Form-1 to Annexure-II to Section-III by MSE bidders and Class-I Local Suppliers bidders seeking preference under policy to provide purchase preference as per public procurement (preference to make in India), Order 2017 (PPP-MII), if applicable.
- k. Undertaking as per Form-2 to Annexure-II to Section-III and Certification from the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of other than companies) as per Form-3 to Annexure-II to Section-III (Applicable for all bidders including MSEs bidder irrespective of seeking purchase preference or not).
- l. Undertaking as per Form-I to Section-II regarding Provisions for Procurement from a Bidder which shares a land border with India
- m. All other forms and Formats including Annexures.
- n. Tender Document, its Corrigendum/Amendment/Clarification(s) duly signed by the Authorized Signatory holding POA.
- o. Additional document specified in BDS, SCC, Scope of Supply or mentioned elsewhere in the Tender Document.

Note: All the pages of the Bid must be signed by the "Authorized Signatory" of the Bidder holding POA.

Further, Bidders must submit the original "Bid Security / EMD", Power of Attorney, Integrity Pact and any other documents specified in the Tender Document to the address mentioned in IFB, in a sealed envelope, superscribing the details of Tender Document (i.e. tender number & tender for) within 7 days from the Bid Due Date.

Bidders are required to submit the EMD in original by Bid Due Date and Time or upload a scanned copy of the same in the Part-I of the Bid. If the Bidder is unable to submit EMD in original by Bid Due Date and Time, the Bidder is required to upload a scanned copy of the EMD in Part-I of Bid, provided the original EMD, copy of which has been uploaded, is received within 7 days from the Bid Due Date, failing which the Bid will be rejected irrespective of their status/ranking in tendering process and notwithstanding the fact that a copy of EMD was earlier uploaded by the Bidder.

Further, Bidders must submit the original "EMD, Power of Attorney, Integrity Pact (wherever applicable) and any other documents specified in the Tender Document to the address mentioned in IFB, in a sealed envelope, superscribing the details of Tender Document (i.e. tender number & tender for) within 7 days from the date of un-priced bid opening.

11.1.2 PART-II: Price Bid

- i) The Prices are to be submitted strictly as per the Price bid / Schedule of Rate (SOR) on GeM portal. GAIL shall not be responsible for any failure on the part of the bidder to follow the instructions.



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- ii) Bidders are advised NOT to mention Rebate/Discount separately, either in the SOR or anywhere else in the offer. In case Bidder(s) intend to offer any Rebate/Discount, they should include the same in the item rate(s) itself under the SOR and indicate the discounted unit rate(s) only.
- iii) If any unconditional rebate has been offered in the quoted rate the same shall be considered in arriving at evaluated price. However, no cognizance shall be taken for any conditional discount for the purpose of evaluation of the bids.
- iv) In the event as a result of techno-commercial discussions or pursuant to seeking clarifications / confirmations from bidders, while evaluating the un-priced part of the bid, any of the bidders submits a sealed envelope stating that it contains revised prices; such bidder(s) will be requested to withdraw the revised prices failing which the bid will not be considered for further evaluation.

12 BID PRICES

- 12.1 If required, the break-up of various components as included in the quoted price shall be obtained from successful bidders before placement of order/contract on them.

The material is required to be delivered through a registered common carrier as per section 3 of Carriage by the Road Act 2007.

Also, GAIL reserves the right to transport the material with its own transporter.

- 12.2 As stated elsewhere in tender, bidder is required to quote all components. In case, it is found that some of components are not considered, the same shall be considered inclusive in total quoted price for evaluation and ordering. No confirmation from the bidder shall be sought in this regard and no representation from the bidder shall be entertained in this regard.
- 12.4 The delivery basis of the goods is mentioned in BDS. If the Goods are dispatched through dedicated full truck load, date of receipt of Goods by Purchaser at its designated site(s) /Store shall be considered as the date of delivery. Similarly, in case of break-bulk dispatches, the date of LR/GR shall be considered as date of delivery. The delivery terms [other than those mentioned in BDS] shall be interpreted as per INCOTERMS®2020 or its latest version.
- 12.5 All duties, taxes and other levies (if any) payable by the Seller under the Contract or for any other cause, including GST (CGST & SGST/UTGST or IGST) on finished product & on the incidental services, shall be included in the rates / prices and the total bid-price submitted by the Bidder. Bidders are required to quote the prices after carefully reading the provisions mentioned in tender document including SCC, GCC, Scope of Work, etc.
- 12.6 Prices quoted by the Bidder, shall remain firm and fixed and valid till completion of the Contract and will not be subject to variation on any account, whatsoever; unless any price escalation/variation is allowed elsewhere in the Tender Document.

13 GST (CGST & SGST/ UTGST or IGST)



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- 13.1 Within the contractual delivery period, the statutory variation in applicable GST (CGST & SGST/UTGST or IGST) on supply and on incidental services, shall be to GAIL's account.

Beyond the contractual delivery period, in case GAIL is not entitled for input tax credit of GST (CGST & SGST/UTGST or IGST), then any increase in the rate of GST (CGST & SGST/UTGST or IGST) beyond the contractual delivery period shall be to Supplier's account whereas any decrease in the rate GST (CGST & SGST/UTGST or IGST) shall be passed on to the Purchaser.

Beyond the contractual delivery period, in case GAIL is entitled for input tax credit of GST (CGST & SGST/UTGST or IGST), then statutory variation in applicable GST (CGST & SGST/UTGST or IGST) on supply and on incidental services, shall be to GAIL's account.

The base date for the purpose of applying statutory variation shall be the Bid Due Date.

- 13.2 In case of statutory variation(s) in the taxes & duties mentioned at clause no. 13.1 above, the Supplier shall submit a copy of the 'Government Notification' to evidence the rate as applicable on the Bid Due Date and on the date of revision. Claim for payment of Statutory variation should be raised preferably along with the e-Invoice/Invoice. Any claim for arrears on account of statutory variation shall be submitted to Purchaser within two [02] months from the date of issue of such 'Government Notification', otherwise such claim may not be entertained.

- 13.3 Where GAIL is entitled to avail the input tax credit of **GST (CGST & SGST/UTGST or IGST)**: -

- 13.3.1 Owner/GAIL will reimburse the **GST (CGST & SGST/UTGST or IGST)** to the Supplier at actuals against submission of E-Invoices/Invoices as per format specified in rules/ regulation of GST to enable Owner/GAIL to claim input tax credit of **GST (CGST & SGST/UTGST or IGST)** paid. In case of any variation in the executed quantities, the amount on which the **GST (CGST & SGST/UTGST or IGST)** is applicable shall be modified in same proportion. Returns and details required to be filled under GST laws & rules should be timely filed by supplier with requisite details.

- 13.3.2 The input tax credit of quoted GST (CGST & SGST/UTGST or IGST) shall be considered for evaluation of bids, as per evaluation criteria of tender document.

- 13.4 Where GAIL is not entitled to avail/take the full input tax credit of **GST (CGST & SGST/UTGST or IGST)**: -

- 13.4.1 Owner/GAIL will reimburse **GST (CGST & SGST/UTGST or IGST)** to the Supplier at actuals against submission of E-Invoices/Invoices as per format specified in rules/ regulation of GST subject to the ceiling amount of **GST (CGST & SGST/UTGST or IGST)** as quoted by the bidder, subject to any statutory variations, except variations arising due to change in turnover. In case of any variation in the executed quantities (If directed and/or certified by the Engineer-In-Charge) the ceiling amount on which **GST (CGST & SGST/UTGST or IGST)** is applicable will be modified on pro-rata basis.

- 13.4.2 The bids will be evaluated based on total price including quoted **GST (CGST & SGST/UTGST or IGST)**.



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13.5 **New Taxes & duties:** Any new taxes & duties, if imposed by the State/ Central Govt. of India on the finished goods after the due date of bid submission but before the Contractual Delivery/Completion Date, shall be reimbursed to the Supplier on submission of copy of notification(s) issued from State/ Central Govt. Authorities along with documentary evidence for proof of payment of such taxes & duties, but only after ascertaining it's applicability with respect to the Contract.

13.6 Deemed Export benefits are not applicable and Bidder should furnish prices without considering the same.

13.7 Regarding Reconciliation between GSTR 2A and Input Tax Credit

Supplier shall ensure timely submission of correct e-invoice /invoice(s), as per GST rules/ regulation, with all required supporting document(s) within a period specified in Contract to enable GAIL to avail input credit of GST (CGST & SGST/UTGST or IGST). Further, returns and details required to be filled under GST laws & rules should be timely filed by Supplier of Goods / Services with requisite details.

If input tax credit is not available to GAIL for any reason not attributable to GAIL, then GAIL shall not be obligated or liable to pay or reimburse GST (CGST & SGST/UTGST or IGST) claimed in the e-invoice/invoice(s) and shall be entitled to deduct / setoff / recover such GST amount (CGST & SGST/UTGST or IGST) or Input Tax Credit amount together with penalties and interest, if any, against any amounts paid or becomes payable by GAIL in future to the Supplier/Contractor under this contract or under any other contract.

In case CBIC (Central Board of Indirect Taxes and Customs)/ any tax authority / any equivalent government agency brings to the notice of GAIL that the Supplier has not remitted the amount towards GST (CGST & SGST/UTGST or IGST) collected from GAIL to the government exchequer, then, that Supplier shall be put under Holiday list of GAIL for period of six months after following the due procedure. This action will be in addition to the right of recovery of financial implication arising on GAIL.

13.8 The supplier shall mention the particulars of GAIL (India) Limited, (place specified in BDS) on the e-Invoice/ Invoice. Besides, if any other particulars of GAIL are required to be mentioned, under GST rules/ regulations on the date of dispatch, the same shall also be mentioned on the e-Invoice/Invoice.

13.9 GAIL will prefer to deal with registered supplier of goods/ services under GST. Therefore, bidders are requested to get themselves registered under GST, if not registered yet.

However, in case any unregistered bidder is submitting their bid, Bids will be evaluated as per quoted prices without loading of GST (CGST & SGST/UTGST or IGST), if not quoted Further, an unregistered bidder is required to mention its Income Tax PAN in bid document.

13.10 In case the GST rating of vendor on the GST portal / Govt. official website is negative / black listed, then the bids may be rejected by GAIL. Further, in case rating of bidder is negative / black listed after award of work for supply of goods/services, then GAIL shall not be obligated or liable to pay or reimburse GST (CGST & SGST/UTGST or IGST) to such vendor and shall also be entitled to deduct / recover such GST (CGST & SGST/UTGST or IGST) along with all penalties / interest, if any, incurred by GAIL.

13.11 Anti-profiteering clause



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As per Clause 171 of GST Act, it is mandatory to pass on the benefit due to reduction in rate of tax or from input tax credit to the consumer by way of commensurate reduction in prices. The Service Provider may note the above and quote their prices accordingly.

13.12 GST (CGST & SGST/UTGST or IGST) is implemented w.e.f. 01.07.2017 which subsumed various indirect taxes and duties applicable before 01.07.2017. Accordingly, the provisions of General Condition of Contract relating to taxes and duties which are subsumed in GST are modified to aforesaid provisions mentioned in clause no. 12 and 13 of ITB.

13.13 GST, as included by the bidder, shall be deemed as final and binding for the purpose of bid evaluation (applicable for tenders where bidder quotes the GST rates). In case a bidder enters “zero/blank” GST or an erroneous GST, the bid evaluation for finalizing the L1 bidder will be done considering the quoted GST rate. No request for change in GST will be entertained after submission of bids.

In cases where the successful bidder quotes a wrong GST rate, for releasing the order, the following methodology will be followed:

- In case the actual GST rate applicable is lower than the quoted GST rate, the actual GST rate will be added to the quoted basic prices. The final cash outflow will be based on actual GST rate.
- In case the actual GST rate applicable is more than the quoted GST rate, the basic prices quoted will be reduced proportionately, keeping the final cash outflow the same as the overall quoted amount.

Based on the Total Cash Outflow calculated as above, GAIL shall place orders.

13.14 Wherever TDS under GST Laws has been deducted from the e-Invoices/invoices raised / payments made to the vendors, as per the provisions of the GST law / Rules, Vendors should accept the corresponding GST-TDS amount populated in the relevant screen on GST common portal (www.gst.gov.in). Further, Vendors should also download the GST TDS certificate from GST common portal (reference path: Services > User Services > View/Download Certificates option).

13.15 Provision w.r.t. E- Invoicing requirement as per GST laws:

Supplier who is required to comply with the requirements of E-invoice for B2B transactions as per the requirement of GST Law will ensure the compliance of requirement of E Invoicing under GST law. If the invoice issued without following this process, such invoice can-not be processed for payment by GAIL as no ITC is allowed on such invoices.

Therefore, all the payments to such supplier who is liable to comply with e-invoice as per GST Laws shall be made against the proper e-invoice(s) only. Further, returns and details required to be filled under GST laws & rules against such e-invoices should be timely filed by Supplier of Goods with requisite details.

If input tax credit is not available to GAIL for any reason attributable to supplier (both for E-invoicing cases and non-E-invoicing cases), then GAIL shall not be obligated or liable to pay or reimburse GST (CGST & SGST/UTGST or IGST) claimed in the invoice(s) and shall be entitled to deduct / setoff / recover such GST amount (CGST & SGST/UTGST or IGST) or Input Tax Credit amount together with



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penalties and interest, if any, by adjusting against any amounts paid or becomes payable in future to the supplier under this contract or under any other contract.

To ensure compliance, undertaking in requisite format is to be submitted by supplier as per format F-15 along with documents for release of payment.

- 13.16 Full payment including GST will be released at the time of processing of invoice for payment, where the GST amount reflects in Form GSTR-2A of GAIL. However, in case where the GST amount doesn't reflect in Form GSTR-2A of GAIL, the amount of GST will be released after reflection of GST amount of corresponding invoice in Form GSTR-2A of GAIL.

14 BID CURRENCIES:

Bidders must submit Bid in Indian Rupees only.

15 BID VALIDITY:

- 15.1 Bid shall be kept valid for period specified in GeM bid from the final 'Bid Due Date'. A Bid valid for a shorter period may be rejected by GAIL as 'non-responsive'.

- 15.2 In exceptional circumstances, prior to expiry of the original 'Bid Validity Period', the Employer may request the Bidders to extend the 'Period of Bid Validity' for a specified additional period on GeM portal. The request and the responses thereto shall also be made in writing or by email (outside GeM, if required). After opening of price bids in GeM, the extension (outside GeM, if any) will be regularized through GeM with L-1 bidder. Bidder may refuse the request without forfeiture of his EMD/Bid Security. A Bidder agreeing to the request will not be required or permitted to modify his Bid, but will be required to extend the validity of its 'EMD' for the period of the extension and in accordance with "ITB: Clause-16" in all respects.

16 EARNEST MONEY DEPOSIT (EMD)

- 16.1 Bid must be accompanied with earnest money deposit (i.e. Earnest Money Deposit (EMD) also known as Bid Security) in the form of '**Demand Draft**' / '**Banker's Cheque**' / '**Insurance Surety Bond**' / '**Fixed Deposit Receipt**' / '**online banking transaction**' / '**Receipt or a letter of credit**' [in favour of GAIL (India) Limited payable at place mentioned in BDS] or '**Bank Guarantee (Including E-Bank Guarantee)**' strictly as per the format given in form F-2B of the Tender Document. Bidder shall ensure that EMD submitted in the form of 'Bank Guarantee' should have a validity of at least 'two [02] months' beyond the validity of the Bid. EMD submitted in the form of 'Demand Draft' or 'Banker's Cheque' should be valid for three months.

Bid not accompanied with EMD, or EMD not in requisite format shall be liable for rejection. The EMD shall be submitted in Indian Rupees only.

- 16.2 The bidder can also submit the EMD through online banking transaction i.e. IMPS/NEFT/RTGS etc. For this purpose, the details of GAIL's Bank Account are mentioned under BDS. While remitting, the bidder



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must indicate EMD and tender/E-tender no. under remarks. Bidders shall be required to submit/ upload the successful transaction details along-with their bid/e-bid in addition to forwarding the details to dealing officer through email/letter with tender reference number immediately after remittance of EMD. In absence of submitting/ uploading the remittance details, the bid is likely to be considered as bid not accompanied with EMD. Further, in case of the online transaction, submission of EMD in original is not applicable.

- 16.3 GAIL shall not be liable to pay any documentation charges, Bank charges, commission, interest etc. on the amount of EMD. In case EMD is in the form of a 'Bank Guarantee', the same shall be from any Indian scheduled Bank (excluding Co-operative banks and Regional Rural bank) or a branch of an International Bank situated in India and registered with 'Reserve Bank of India' as Scheduled Foreign Bank. However, in case of 'Bank Guarantee' from Banks other than the Nationalized Indian Banks, the Bank must be commercial Bank having net worth in excess of Rs. 100 Crores [Rupees One Hundred Crores] and a declaration to this effect should be made by such commercial Bank either in the 'Bank Guarantee' itself or separately on its letterhead. Purchaser will verify the BG from issuing bank
- 16.4 Any Bid not secured in accordance with "ITB: Clause-16.1, 16.2 & Clause-16.3" may be rejected by GAIL as non-responsive.
- 16.5 Unsuccessful Bidder's EMD will be discharged/ returned as promptly as possible, but not later than 'thirty [30] days' after finalization of tendering process.
- 16.6 The successful Bidder's EMD will be discharged upon the Bidder's acknowledging the 'Award' and signing the 'Agreement' (if applicable) and furnishing the 'Contract Performance Security (CPS)/ Security Deposit' pursuant to clause no. 38 of ITB.
- 16.7 Notwithstanding anything contained herein, the EMD may also be forfeited in any of the following cases:
- (a) If a Bidder withdraws his Bid during the 'Bid Validity' period
 - (b) If a Bidder has indulged in corrupt/fraudulent /collusive/coercive practice
 - (c) If the Bidder modifies Bid during the period of bid validity (after Due Date and Time for Bid Submission).
 - (d) Violates any other condition, mentioned elsewhere in the Tender Document, which may lead to forfeiture of EMD.
 - (e) In the case of a successful Bidder, if the Bidder fails to:
 - (i) acknowledge receipt of the "Notification of Award" / Fax of Acceptance [FoA]",
 - (ii) furnish "Contract Performance Security/Security Deposit", in accordance with "ITB: Clause-38"
 - (iii) accept 'arithmetical corrections' as per provision of the clause 30 of ITB.
- 16.8 In case EMD is in the form of 'Bank Guarantee' the same must indicate the Tender Document No. and the name of Tender Document for which the Bidder is quoting. This is essential to have proper correlation at a later date.
- 16.9 MSEs (Micro & Small Enterprises) are exempted from submission of EMD in accordance with the provisions of PPP-2012 and Clause 40 of ITB. However, Traders/Dealers/ Distributors/Stockiest/



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Wholesaler are not entitled for exemption of EMD. The Government Departments/PSUs/ Startups are exempted from the payment of EMD.

In addition to above, following categories of Sellers/Service Providers are also exempted from furnishing Earnest Money / Bid Bond:

- (i) Micro and Small Enterprises who are manufacturer of the Primary Product Category or Service Provider of the Primary Service Category and give specific confirmation to this effect at the time of bid submission and whose credentials are validated online through Udyam Registration/Udyog Aadhaar (as validated by Government from time to time) and through uploaded supporting documents.
- (ii) Start-ups as recognized by Department of Industrial Policy and Promotion (DIPP).
- (iii) KVIC, ACASH, WDO, Coir Board, TRIFED and Kendriya Bhandar.
- (iv) Sellers who have got their credentials verified through the process of Vendor Assessment by Vendor Assessment Agencies for the Primary Product / Primary Service for which Bid / RA has been invited.
- (v) Sellers/ Service Provider having annual turnover of INR 500 Crore or more, at least in one of the past three completed financial year(s)
- (vi) Sellers / Service Providers holding BIS License for the Primary Product Category whose credentials are validated through BIS database and through uploaded supporting documents.
- (vii) Central/State PSUs.
- (viii) Seller / Service Provider registered with designated Agency / Authority as specified in the bid document by the Buyer - such bidder shall have to upload scanned copy of relevant registration document in place of Bid Security document while bidding.

Bidders are required to submit relevant document for exemption from furnishing Earnest Money/Bid Bond.

16.10 In case of forfeiture of EMD/ Bid Security, the forfeited amount will be considered inclusive of tax and tax invoice will be issued by GAIL. The forfeiture amount will be subject to final decision of GAIL based on other terms and conditions of order.

16.11 EMD/Bid Bond will not be accepted in case the same has reference of 'remitter'/'financer' other than bidder on the aforementioned financial instrument of EMD/ Bid Bond submitted by the bidder and bid of such bidder will be summarily rejected.

16A DECLARATION FOR BID SECURITY

Bidder to whom exemption is allowed as per Clause no. 16.9 above are required to submit Declaration for Bid Security as per proforma at Form F-2A.

17 PRE-BID MEETING

17.1 The Bidder(s) or his designated representative are invited to attend a "Pre-Bid Meeting" which will be held at Date, Time & Venue as specified in IFB. It is expected that a Bidder shall not depute more than 02 representatives for the meeting.



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- 17.2 Purpose of the meeting will be to clarify issues and to answer questions on any matter that may be raised at that stage. The Bidder must submit their queries / clarifications to GAIL in the format “F-11”, as mentioned at clause no. 8.0 of ITB.
- 17.3 The text of the questions raised and the responses that may become necessary as a result of the Pre-Bid Meeting, will be prepared in the form of Addendum / Corrigendum /Clarification to the Tender Document and will be uploaded on GeM Portal and not through the minutes of the Pre-Bid Meeting.
- 17.4 Non-attendance of the Pre-Bid Meeting will not be a cause for disqualification of Bidder.

18 FORMAT AND SIGNING OF BID

- 18.1 The Bid shall be typed or written in indelible ink [in the case of copies, photocopies are also acceptable] and shall be signed by a person(s) duly authorized to sign on behalf of the Bidder (as per POA). The name and position held by person signing, must be typed or printed below the signature. All pages of the Bid except for unamendable printed literature where entry(s) or amendment(s) has been made, shall be initialed by the person or persons signing the Bid.
- 18.2 The Bid shall contain no alterations, omissions, or additions, unless such corrections are initialed by the person(s) signing the Bid.

19 ZERO DEVIATION AND REJECTION CRITERIA

- 19.1 ZERO DEVIATION: Deviation to terms and conditions of Tender Document may lead to rejection of Bid. GAIL will accept Bid based on terms & conditions of Tender Document only. Bidder may note, GAIL will determine the substantial responsiveness of each bid to the Tender Document pursuant to provision contained in clause 29 of ITB. For purpose of this, a substantially responsive bid is one which conforms to all terms and conditions of the Tender Document without deviation(s) or exception n(s). GAIL’s determination of a Bid’s responsiveness is based on the content of the Bid itself without recourse to extrinsic evidence.

Bidder is requested not to take any deviation(s)/exception(s) to the terms & conditions of Tender Document, and submit all requisite documents as mentioned in this Tender Document, failing which their Bid will be liable for rejection. If a Bidder does not reply to the queries in the permitted time frame then its Bid shall be evaluated based on the documents available in the Bid.

As a principle, clarifications from bidders after opening of tenders will not be sought. However, where clarifications / documents from the bidders on important aspects are absolutely necessary for finalization of tender, clarifications from bidder can be asked. The request for clarification shall be given in email/portal, asking the bidder to respond by a specified date, and also mentioning therein that, if the bidder does not comply or respond by the date, his tender will be liable to be rejected. Depending on the outcome, such tenders are to be ignored or considered further. No change in prices or substance of the bid including specifications, shall be offered or permitted. No post-bid clarification at the initiative of the bidder shall be entertained. The shortfall information/ documents should be sought only in case of historical documents which pre-existed bids and which have not undergone change since then.



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19.2 **REJECTION CRITERIA:** Notwithstanding the above, deviation to the following clauses of Tender Document shall lead to summarily rejection of Bid:

- (a) Firm Price
- (b) Earnest Money Deposit / Bid Bond / Bid Security declaration
- (c) Specifications
- (d) Schedule of Rates / Price Schedule / Price Basis
- (e) Delivery Period / Period of Contract/ Completion schedule
- (f) Period of Validity of Bid
- (g) Price Reduction Schedule
- (h) Contract Performance Security / Security Deposit
- (i) Warranty/ Guarantee
- (j) Arbitration / Resolution of Dispute/Jurisdiction of Court
- (k) Force Majeure & Applicable Laws
- (l) Integrity Pact
- (m) Any other condition specifically mentioned in the Tender Document elsewhere that non-compliance of the clause lead to rejection of Bid

Note: Further, it is once again reminded not to mention any condition in the Bid, which is contradictory to the terms & conditions of Tender Document.

20 E-PAYMENT

GAIL (India) Limited has initiated payments electronically to Suppliers / Contractors electronically through 'e-banking'.

ID – SUBMISSION OF BIDS

21 SUBMISSION, SEALING AND MARKING OF BID

21.1 Bid shall be submitted through GeM Portal only in the manner specified in Tender Document. No Manual/ Hard Copy (Original) / E-mail Bid shall be acceptable.

21.2 EMD /Physical documents shall be addressed to the owner at address specified in IFB.

21.3 Bids submitted under the name of AGENT/ REPRESENTATIVE /RETAINER/ ASSOCIATE etc. on behalf of a Bidder /Affiliate shall not be accepted.

22 DEADLINE FOR SUBMISSION OF BID

22.1 The Bid must be uploaded on GeM Portal only not later than the Bid Due Date & Time specified in IFB of the Tender Documents.

22.2 GAIL may, in exceptional circumstances and at its discretion, extend the Due Date & Time for Bid submission through a Corrigendum as per clause no. 8.0 and/or 9.0 of ITB. In that case all rights and obligations of GAIL and the Bidder, previously subject to the original Due Date & Time will thereafter be subject to the Due Date & Time as extended. Such Corrigendum for extension of Due Date & Time of Bid submission will be uploaded on the GeM Portal.



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23 LATE BID

23.1 GeM portal shall close immediately after the due date and time for submission of bid and no bids can be submitted thereafter.

In case the EMD /physical documents have been received but the Bid is not submitted by the bidder in the GeM Portal, such EMD/-physical documents shall be returned immediately.

23.2 EMD/physical documents received to address other than one specifically stipulated in the Tender Document will not be considered for evaluation/opening/award if not received to the specified destination within stipulated date & time.

24 MODIFICATION AND WITHDRAWAL OF BID

24.1 The Bidder may withdraw or modify its Bid after bid submission but before the Bid Due Date & Time.

24.2 No bid shall be modified/ withdrawn after the Bid Due Date & Time.

24.3 Any withdrawal/ modification/substitution of Bid in the interval between the Bid Due Date & Time and the expiration of the period of bid validity specified by the Bidder in their Bid shall result in the Bidder's forfeiture of EMD pursuant to clause 16 of ITB /-invocation of action as per Bid Security declaration and rejection of Bid.

24.4 The latest Bid submitted by the Bidder before Bid Due Date & Time shall be considered for evaluation and all other Bid(s) shall be considered to be unconditionally withdrawn.

[E] BID OPENING AND EVALUATION:

25 PURCHASER'S RIGHT TO ACCEPT ANY BID AND TO REJECT ANY OR ALL BIDS

25.1 GAIL reserves the right to accept or reject any Bid, and to annul the Bidding process and reject all Bids, at any time prior to award of Contract, without thereby incurring any liability to the affected Bidder(s) or any obligations to inform the affected Bidder(s) of the ground for GAIL's action.

25.2 In GeM, there is provision for representation against disqualification of bidder within the specified period after disqualifying the bidder against GeM Bid. Disqualified bidders should not upload new/additional documents against representation on GeM as the same shall not be evaluated.

Further, following decisions of GAIL shall not be subject to review:

- a) Determination of the need for procurement;
- b) Selection of the mode of procurement or bidding system;
- c) Choice of selection procedure;
- d) Provisions limiting participation of bidders in the procurement process;
- e) The decision to enter into negotiations with the L1 bidder;



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- f) Cancellation of the procurement process except where it is intended to subsequently re-tender the same requirements;
- g) Issues related to ambiguity in contract terms may not be taken up after a contract has been signed, all such issues should be highlighted before consummation of the contract by the vendor/ contractor; and
- h) Complaints against specifications except under the premise that they are either vague or too specific so as to limit competition may be permissible.

26 BID OPENING

26.1 Unpriced Bid Opening:

GAIL will open bids, at date, time and location stipulated in the BDS.

26.2 Priced Bid Opening:

26.2.1 GAIL will open the price bids of those Bidders who meet the qualification requirement and whose bid is determined to be technically and commercially responsive. Techno-commercial bid evaluation status will be informed to all bidders (including techno-commercially not qualified Bidders).

26.2.2 The price bids of those Bidders who were not found to be techno-commercially responsive shall not be opened.

26.2.3 As tender is processed on GeM portal, public opening of bids is not applicable.

27 CONFIDENTIALITY

Information relating to the examination, clarification, evaluation and comparison of bids, and recommendations for the award of a contract, shall not be disclosed to bidders or any other person not officially concerned with such a process until the award to the successful bidder.

28 CONTACTING THE PURCHASER

28.1 From the time of bid opening to the time of contract award, no bidder shall contact GAIL on any matter related to the bid, except on request and prior written permission.

28.2 Any effort by the bidder to influence GAIL in bid evaluation, bid comparison or contract award decisions will vitiate the process and will result in the rejection of the bidder's bid and action shall be initiated as per the GAIL's procedure for action in case Corrupt / Fraudulent / Collusive / Coercive practices in this regard apart from forfeiture of EMD/ Bid Security, if any.

29 EXAMINATION OF BIDS AND DETERMINATION OF RESPONSIVENESS

29.1 The purchaser's determination of a bid's responsiveness is based on the content of the bid only. Prior to the detailed evaluation of Bids, the Purchaser will determine whether each Bid:-

- (a) meets the "Bid Evaluation Criteria" of the Tender Document;
- (b) has been properly signed;
- (c) is accompanied by the required EMD / Bid Security/ Bid Security Declaration
- (d) is substantially responsive to the requirements of the Tender Document; and



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- (e) provides any clarification and/or substantiation that the Purchaser may require to determine responsiveness pursuant to “ITB: Clause-29.2”

29.2 A substantially responsive Bid is one which conforms to all the terms & conditions, specifications etc. of the Tender Document without any material deviation or reservation or omission, for this purpose Purchaser defines the foregoing terms below:

- a) “Deviation” is departure from the requirement specified in the Tender Documents.
- b) “Reservation” is the setting of limiting condition(s) or withholding from complete acceptance of the requirement in the Tender Documents.
- c) “Omission” is the failure to submit part or all of the information or documentation required in the Tender Document for evaluation of bid.

29.3 A material deviation, reservation or omission is one that,

- a) If accepted would,
 - i) affect in any substantial way the scope, quality or performance of the job as specified in Tender Document.
 - ii) limit, in any substantial way, inconsistent with the Tender Document, the Purchaser’s rights or the Bidder’s obligation under the proposed Contract.
- b) If rectified, would unfairly affect the competitive position of other bidders presenting substantially responsive bids.

29.4 The Purchaser shall examine all aspects of the Bid to confirm that all requirements have been met without any material deviation, reservation or omission.

29.5 Tenders that do not meet the basic requirements specified in the bid documents are to be treated as unresponsive {both during Techno-commercial evaluation and Financial Evaluation in case of Two Bid System) and will be ignored. All tenders received will first be scrutinized to see whether the tenders meet the basic requirements as incorporated in the Bid document and to identify unresponsive tenders, if any. Unresponsive offers may not subsequently be made responsive by correction or withdrawal of the non- conforming stipulation. Some important points on the basis of which a tender may be declared as unresponsive and be ignored during the initial scrutiny are:

- i) The tender is not in the prescribed format or is unsigned or not signed as per the stipulations in the bid document;
- ii) The required EMD has not been provided or exemption from EMD is claimed without acceptable proof of exemption;
- iii) The bidder is not eligible to participate in the bid as per laid down eligibility criteria
- iv) The bid departs from the essential requirements specified in the bidding document (for example, the tenderer has not agreed to give the required contract performance security); or
- v) Against a schedule in the list of requirements in the tender enquiry, the tenderer has not quoted for the entire requirement as specified in that schedule (example: in a schedule, it has been stipulated



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that the tenderer will supply the equipment, install and commission it and also train the GAIL's personnel for operating the equipment. The tenderer has, however, quoted only for supply of the equipment).

30 CORRECTION OF ERRORS

Not Applicable

31 CONVERSION TO SINGLE CURRENCY FOR COMPARISON OF BIDS

Not Applicable. All bids submitted must be in the currency specified at clause 14 of ITB.

32 EVALUATION AND COMPARISON OF BIDS

Bid shall be evaluated as per Evaluation Methodology mentioned in Section-II of Tender Document on lowest bid basis.

In case of a tie at the lowest bid (L1) position between two or more bidders, the order/LOA will be placed based on the Reverse Auction as per GeM.

33 QUANTITY VARIATION

33.1 Where nature of items is such that the items cannot be supplied in exact quantity of the Purchase Order as in case of cables/ steel/ chemicals etc., quantity tolerance upto $\pm 5\%$ may be allowed, if there is no specific quantity variation/tolerance criteria in SCC. For such tolerance, separate amendment to Purchase Order would not be necessary.

33.2 The Purchaser reserves the right to delete the requirement of any one or more items of Tender Document without assigning any reason.

34 PURCHASE PREFERENCE

Purchase preference to Micro & Small Enterprises (MSEs), Domestically Manufactured Electronic Products/Telecom Products or Policy to Provide Purchase Preference as per Public Procurement (Preference to Make in India), Order 2017 etc. shall be allowed as per Government instructions in vogue, as applicable from time to time.

As per GEM policy/guidelines, MSE bidders have to update their status in their Profile and declare whether they are participating as MSE on GeM Portal (including updating their status in Profile) while submitting the bid on GeM tender. Further, MSE are required to upload relevant documents in bid as per provision of tender. However, evaluation and applicability of EMD exemption and purchase preference policy will be based on the confirmations & documents submitted by the bidder in their bid irrespective of selection/option made on GeM portal.

Bidders are required to select the applicable purchase preference (i.e. preference category) option while submitting the bid on GeM portal. However, evaluation and applicability of purchase preference policy will be based on the confirmations & documents submitted by the bidder in their bid irrespective of selection/option made on GeM portal.

Bidders are advised to update their status on GeM Portal to avoid any complexity in evaluation.



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[F] – AWARD OF CONTRACT

35 AWARD

Subject to “ITB: Clause-29.0”, GAIL will place order to the successful Bidder whose Bid has been determined to be substantially responsive and has been determined as the lowest provided that Bidder, is determined to be qualified to satisfactorily perform the Contract.

“GAIL intent to place the SAP order/contract directly on the address from where Goods are produced/ dispatched OR Services are rendered. In case, bidder wants order/ contract at some other address or supply of Goods/ Services from multiple locations, bidder is required to provide in their bid, the address on which order is to be placed”.

GAIL will place the Purchase Order/Contract directly on the successful bidder from whom the bid has been received & evaluated and will not place order on other entities such as subsidiary, business associate or partner, dealer/distributor etc. of the Bidder.

36 NOTIFICATION OF AWARD / FAX OF ACCEPTANCE [FOA]

- 36.1 Prior to the expiry of ‘Period of Bid Validity’, Notification of Award for acceptance of the Bid will be intimated to the successful Bidder by GAIL either by E - mail /Letter or like means defined as the “Fax of Acceptance (FOA)”. The Contract shall enter into force on the date of FOA and the same shall be binding on GAIL and successful Bidder (i.e. Supplier/Seller). The Notification of Award/FOA will constitute the formation of a Contract. The detailed Purchase Order /Contract shall be issued thereafter incorporating terms & conditions of Tender Document, Corrigendum, Clarification(s), Bid and agreed variation(s)/acceptable deviation(s), if any. GAIL may choose to issue Notification of Award in form of detailed Purchase Order without issuing FOA and in such case the Contract shall enter into force on the date of detailed Purchase Order only.
- 36.2 Contract/Delivery/Completion Period shall commence from the date of Notification of Award/FOA or as mentioned therein.
- 36.3 Upon the successful Bidder’s/Supplier’s furnishing of ‘Contract Performance Security/Security Deposit’, pursuant to “ITB: Clause-38”, GAIL will promptly discharge his EMD, pursuant to “ITB: Clause-16”.
- 36.4 The order value is subject to Price Reduction Schedule (PRS) clause.
- 36.5 In addition to GeM Contract(s), GAIL will place SAP generated Order(s) / Contract(s) outside GeM portal for execution of Order(s) / Contract(s) and payment to suppliers outside GeM portal. SAP Order(s)/ Contract(s) will be generated by mentioning unit price excluding GST, quantity and percentage of GST. Thus, break-up of quoted prices (such as Ex-works price, freight charges & GST) shall be provided by bidder’s post price bid opening, based on request from GAIL.
- 37.0 **DISPATCH SCHEDULE**
- 37.1 If Purchase Order issued based on FOT (Free on Truck) / FOR (Free on Rail) project site basis, materials shall be delivered at the destination on freight prepaid & door delivery basis and for the cases where order(s) are finalized on Ex-Works basis the transportation will be arranged by supplier(s) / GAIL on 'freight to pay' basis and the freight will be paid at the destination.



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Seller shall submit the following details of goods/cargo within 15 days from Notification of Award to the designated authority as per Purchase Order:

- (i) Shipments Schedule
- (ii) Dimension details of packages
- (iii) Detailed technical write-up along with Catalogue (if applicable)
- (iv) Any other document/details, if mentioned in Purchase Order

- 37.2 The consignment should be handed over to transporter with E-way bill, wherever required as per law/act. In case such e-way bill is required to be issued by GAIL, the concerned designated order issuing authority may be contacted in this regard. It will be the responsibility of the supplier to ensure the compliance of the provisions relating to E-Way bill before dispatch of the consignment and any financial implication arising due to non-compliance in this regard will be to the account of the supplier.
- 37.3 It shall be responsibility of the seller to send intimation immediately on dispatch of the material so that necessary arrangements can be made at site. Delays on account of the same shall solely be attributable to the Supplier.
- 37.4 Wherever, part shipment is allowed (refer BDS), the Supplier is allowed to make part shipment. However, until specified elsewhere in Tender Document, Payment for such part supplied Goods shall be made after supply of complete quantity of respective item.
- 37.5 Wherever the items make a full truck load, the suppliers to dispatch such items in a full truck direct to the consignee on a door delivery basis to the site. In such cases, the supplier to send a consignee copy of the lorry receipt to the consignee along with the consignment and the consignment shall be booked to GAIL and not "self". The supplier should dispatch the consignments to the designated consignee. All dispatch documents, that is, railway/lorry receipt, goods consignment note, airway bill, invoices, packing list, freight memos, test certificate, and so on, shall be sent to the concerned authority which will arrange to make the payment. If the payment is to be made through the bank, all original documents are to be sent through the designated bank.

Where critical equipment is involved, suitable special instructions will be provided in SCC to the supplier about the mode of transport, loading, avoidance of transshipment and, if necessary, provision of escorts. In case of chemicals, powdery materials, liquid materials, and so on, supplier is to ensure proper packaging to avoid spillage en route, so as to avoid pollution problems and also to conform to the ISO 14001 standard (wherever applicable).

38 CONTRACT PERFORMANCE SECURITY / SECURITY DEPOSIT [CPS/SD]

- 38.1 Within 30 days of the receipt of the notification of award/ Fax of Acceptance from GAIL, the successful bidder shall furnish the Contract Performance Security (CPS) in accordance with of General Conditions of the Contract. The CPS shall be in the form of either **Banker's Cheque or Demand Draft or Insurance Surety Bond or Fixed Deposit Receipt or Online Banking Transaction or Bank Guarantee**



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(including e-Bank Guarantee) or Letter of Credit and shall be in the currency of the Contract and in event of delay in submission of CPBG / SD, the contract can be terminated. However, there shall be no Contract Performance security / PBG requirement for contracts:

- a) Placed under Direct Purchase / L-1 Purchase Option under Para (i) and (ii) of GFR rule 149;
- b) Placed through Bids / RA with estimated bid value up to Rs 5 Lakh (in case of Goods contracts); and

38.2 The CPS shall be for an amount as specified in BDS towards faithful performance of the contractual obligations and performance of equipment/material. For the purpose of CPS, Contract/Order Value shall be exclusive of **GST (CGST & SGST/UTGST or IGST)**.

Bank Guarantee towards CPS shall be from any Indian scheduled bank (excluding Co-operative banks and Regional Rural bank) or a branch of an International bank situated in India and registered with Reserve bank of India as scheduled foreign bank. However, in case of bank guarantees from banks other than the Nationalized Indian banks, the bank must be a commercial bank having net worth in excess of Rs 100 crores and a declaration to this effect should be made by such commercial bank either in the Bank Guarantee itself or separately on its letterhead.

The Supplier shall submit CPS as per Form F-4 of Tender Document only but not as per format of GeM. Further, they also submit covering letter along with CPS as per format at F-4.

In case CPS is in the form of “**Fixed Deposit Receipt (FDR)**”, the same shall be executed as per following guidelines;

- (i) The Fixed Deposit Receipt (FDR) submitted by Vendor/Contractor from a Bank based in India shall be duly pledged / lien in favour of “GAIL (India) Limited” (GAIL).

The FDR shall be in the name of the GAIL (India) Limited A/c(Name of Vendor/ Contractor) and the Vendor/Contractor cannot encash / pre-mature this FDR without the discharge letter / NOC/approval of GAIL. However, GAIL can encash this FDR without the approval of the Vendor/Contractor in case of non-compliance of the terms of the order/contract.

The original FDR shall be accompanied by a confirmation letter in original on letter head from the issuing bank to GAIL as per the format of “Third Party Deposit Confirmation Letter” placed as Annexure -1 (FDR).

Note: FDR (free from any encumbrance payable at place mentioned in BDS) along with original confirmation letter in the manner mentioned above shall be submitted by the Vendor/Contractor within 30 days of the receipt of the notification of award/ FOA from GAIL.

Here Bank means - Any Indian scheduled Bank (excluding Co-operative banks and Regional Rural bank) or a branch of an International Bank situated in India and registered with ‘Reserve Bank of India’ as Scheduled Foreign Bank. However, in case of “Fixed Deposit” from Banks other than the Nationalized Indian Banks, the Bank must be commercial Bank having net worth in excess of Rs. 100



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Crores [Rupees One Hundred Crores] and a declaration to this effect should be made by such commercial Bank either in the “Fixed Deposit” itself or separately on its letterhead. GAIL will verify the Fixed Deposit Receipt from issuing bank.

- (ii) The FDR submitted should have a validity of at least ‘three [03] months’ beyond the Warranty Period/ Defect Liability Period.
 - (iii) Any dispute arising out of or in relation to the said FDR shall be subject to the exclusive jurisdiction of courts at New Delhi.
 - (iv) FDR in Original and Third-party Deposit Confirmation Letter in Original has to be kept in Custody of GAIL.
- 38.3 Failure of the successful Bidder to comply with the requirements of this article shall constitute sufficient grounds for the annulment of the award and forfeiture of the EMD/action as per declaration for Bid Security.
- 38.4 Further, Ministry of Finance (MOF) Department of financial service has issued direction for submission of Bank Guarantee through online vide letter ref number F.No.7/112/2011-BOA dated 17th July 2012. The successful bidder can submit CPS online through issuing bank to GAIL directly as per the above direction including its revisions, if any. In such cases confirmation will not be sought from issuing banker by GAIL.
- 38.5 The successful bidder can also submit the SD/CP G through online banking transaction i.e. IMPS/ NEFT/ RTGS/SWIFT etc. For this purpose, the details of GAIL’s Bank Account is mentioned in BDS. Further, in case a successful Bidder is willing to furnish SD/CPS through SWIFT, the details may be obtained from Purchase Officer immediately after receipt of FOA.
- While remitting such online transaction, the bidder must indicate “Security Deposit/Contract Performance Security against FOA/DLOA/PO no. _____ (contractor/ vendor to specify the FOA/DLOA/PO No.)” under remarks column of such transaction on respective bank portal. The contractor/vendor shall be required to submit the successful transaction details to the dealing officer immediately through email/letter and necessarily within 30 days from the date of Fax of Acceptance.
- 38.6 In case of forfeiture of Contract Performance Security/Security Deposit in terms of GCC, the forfeited amount will be considered inclusive of tax and tax invoice will be issued by GAIL. The forfeiture amount will be subject to final decision of GAIL based on other terms and conditions of order.
- 38.7 CPS/Security Deposit will not be accepted in case the same has reference of ‘remitter’/‘financer’ other than bidder on the aforementioned financial instrument of CPS/ Security Deposit submitted by the Supplier.
- 38.8 The first payment to vendor is to be released only after submission of CPS / Security Deposit (SD).
- 38.9 Before the CPS / Security Deposit (SD) is released a "No Claim Certificate" is to be submitted by the supplier/vendor.
- 38.10 If termination of contract is not in the interest of GAIL, an additional time of 30 days can be allowed (while maintaining the validity of EMD for the requisite period) for submission of CPS / SD at sole



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discretion of GAIL. However, a penal interest of Marginal Cost of Fund based Lending Rate (MCLR) for one year charged by SBI (applicable on due date of submission of CPBG/SD i.e. 30th day after issuance of FOA Notification of award) plus 4.0% p.a. (on CPBG/SD amount) shall be charged for delay beyond 30 days i.e. from 31st days after issuance of FOA.

39 PROCEDURE FOR ACTION IN CASE CORRUPT/FRAUDULENT /COLLUSIVE/ COERCIVE PRACTICES

39.1 Procedure for action in case Corrupt/Fraudulent/Collusive/Coercive Practices shall be as per Appendix-1 of General Conditions of Contract- Goods (Rev.1).

39.2 The Fraud Prevision Policy document is available on GAIL's website (www.GAILonline.com).

39.3 Name and contact details of nodal officer- refer BDS:

39.4 NON-APPLICABILITY OF ARBITRATION CLAUSE IN CASE OF BANNING OF VENDORS/ SUPPLIERS / CONTRACTORS/BIDDERS/ CONSULTANTS INDULGED IN FRAUDULENT/ COERCIVE PRACTICES

Notwithstanding anything contained contrary in GCC or elsewhere in the Purchase Order, in case it is found that the Bidder/ Supplier indulged in fraudulent/ coercive practices at the time of bidding, during execution of the Contract and/or on other grounds as mentioned in GAIL's "Procedure for action in case Corrupt/ Fraudulent/ Collusive/Coercive Practices" (Annexure-I), the Bidder/Supplier shall be banned (in terms of aforesaid procedure) from the date of issuance of such order by GAIL (India) Ltd., to such Bidder/Supplier.

The Bidder /Supplier / understands and agrees that in such cases where Bidder /Supplier has been banned (in terms of aforesaid procedure) from the date of issuance of such order by GAIL, such decision of GAIL shall be final and binding on the Bidder /Supplier and the 'Arbitration Clause' mentioned in the GCC or elsewhere in the Purchase Order shall not be applicable for any consequential issue /dispute arising in the matter.

40 PUBLIC PROCUREMENT POLICY FOR MICRO AND SMALL ENTERPRISES (MSE)

40.1 Following provision has been incorporated for Micro and Small Enterprises (MSE), in line with notification of Government of India, vide Gazette of India No. 503 dated 26.03.2012 proclaiming the Public Procurement Policy on procurement of goods and services from MSEs.

- i) Issue of tender document to MSEs free of cost.
- ii) Exemption to MSEs from payment of EMD.
- iii) For purchase preference clause, please refer clause no. 6.0 (purchase preference methodology under PPP-MII) at Page 64 of tender.

40.2 The MSE(s) owned by SC/ST Entrepreneurs shall mean:



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- a) In case of proprietary MSE, Proprietor(s) shall be SC/ST.
- b) In case of partnership MSE, the SC/ST partners shall be holding atleast 51% share in the unit
- c) In case of private Limited Companies, at least 51% share is held by SC/ST. If the MSE is owned by SC/ST Entrepreneurs, the bidder shall furnish appropriate documentary evidence in this regard.

The MSE(s) owned by Women shall mean:

- a) In case of proprietary MSE, Proprietor(s) shall be Women.
- b) In case of partnership MSE, the Women partners shall be holding atleast 51% share in the unit
- c) In case of private Limited Companies, at least 51% share is held by Women. If the MSE is owned by Women Entrepreneurs, the bidder shall furnish appropriate documentary evidence in this regard.

- 40.3 In case Bidder is a Micro or Small Enterprise, the Bidder shall submit Udyam Registration Certificate for availing benefit under Public Procurement Policy for MSEs-2012.

Vide Gazette notification dated 18.10.2022 of Ministry of MSME, the following is notified:

“In case of an upward change in terms of investment in plant and machinery or equipment or turnover or both, and consequent re-classification, an enterprise shall continue to avail of all nontax benefits of the category (micro or small or medium) it was in before the re-classification, for a period of three years from the date of such upward change”

Accordingly, in case of upward change in status, MSE bidder is required to submit the previous certificate also to get the MSE benefits.

The above document(s) submitted by the Bidder shall be duly certified by the Chartered Accountant (not being an employee or a Director or not having any interest in the bidder's company/firm) and notary public with legible stamp.

If the bidder does not provide the above confirmation or appropriate document or any evidence, then it will be presumed that they do not qualify for any preference admissible in the Public Procurement Policy (PPP) 2012.

The Public Procurement Policy for MSEs is meant for procurement of only goods produced & Services rendered by MSEs. The benefit of policy are not extended to the traders/dealers/ Distributors/ Stockiest/ Wholesalers.

- 40.4 If against an order placed by GAIL, successful Bidder(s) (other than Micro/Small Enterprise) is procuring material/services from their sub-vendor who is a Micro or Small Enterprise as per provision mentioned at clause no.40.3 above with prior consent in writing from GAIL, the details like Name, Registration No., Address, Contact No. details of material & value of procurement made, etc. of such Enterprises shall be furnished by the successful Bidder at the time of submission of invoice/Bill.
- 40.5 Further, MSEs who are availing the benefits of the Public Procurement Policy (PPP) 2012 get themselves registered with MSME Data Bank being operated by NSIC, under SME Division, M/o MSME, in order to create proper data base of MSEs which are making supplies to CPSUs.



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- 40.6 NSIC has initiated a scheme of “Consortia and Tender Marketing Scheme” under which they are assisting the Micro & Small enterprises to market their products and services through tender participation on behalf of the individual unit or through consortia.

Accordingly, if the MSEs or the consortia, on whose behalf the bid is submitted by NSIC, is meeting the BEC and other terms and conditions of tender their bid will be considered for further evaluation.

Further, in such cases a declaration is to be submitted by MSE/ consortia on their letter head (s) that all the terms and conditions of tender document shall be acceptable to them.

- 40.7 It may be noted that Government of India has implemented Trade Receivable Discounting System (TreDS) to address challenges faced by MSMEs in delayed payments (after receipt/acceptance of Material/Services) from Government buyers leading to shortfall of Working Capital. TreDS is an online electronic institutional mechanism for facilitating the financing of trade receivables of MSMEs through multiple financiers. GAIL is already registered on the following TreDS platform:

- M/s Receivable Exchange of India (RXIL), Mumbai
- M/s Mynd Solutions Private Limited (Mynd), New Delhi
- M/s A. TREDS (Invoicemart), Mumbai

MSME Bidders are required to register on the TreDS platform. The MSME vendors can avail the TReDS facility, if they want to.

- 40.8 Interest payment on delayed payments to MSME is payable in line with Micro, Small and Medium Enterprises Development Act, 2006.

41 PACKING INSTRUCTIONS

- 41.1 Packing shall be strong and sturdy such that it can withstand loading/unloading & pushing by mechanical devices. All packaging shall be done in such a manner as to reduce volume and weight as much as possible without jeopardizing the safety of the material. All packing materials shall be new.
- 41.2 Fragile articles should have special packing materials depending on type of materials.
- 41.3 All soft and delicate surfaces on equipment/material should be carefully protected / painted with suitable coating and wrapped to prevent rusting and damage. All mechanical and electrical equipment and other heavy articles should be securely fastened to the bottom of the case, to avoid damage.
- 41.4 Attachments and spare parts of equipment and all small pieces shall be packed separately in wooden cases with adequate protection inside the case and sent along with main equipment. Each item shall be tagged so as to identify it with the main equipment and part number and reference number shall be indicated.
- 41.5 All protrusions shall be suitably protected and openings shall be blocked by wooden/steel covers as may be required.



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41.6 Detailed case wise packing list in water proof envelope shall be inserted in each package together with equipment/material. One copy of 'Detailed Packing List' shall be fastened outside of the package in waterproof envelope and covered by metal cover.

41.7 Each package shall be marked on three sides with proper paints/indelible waterproof ink as follows:

PURCHASER:

DESTINATION:

Purchase Order No.....

Net Wt..... Kgs,

Gross Wt..... Kgs.

Dimensions.....X.....X.....CM.

Package No. (Sl. No. of total packages)

Seller's Name.

41.8 Permits are to be obtained separately for entry/use of vehicles/trailers etc. inside the plant. The following requirements are to be met to obtain vehicle permit: -

- Vehicle/Equipment etc. should be brought to site in good conditions.
- Valid Road Tax Certificate, fitness certificate and insurance policy from Competent Authority
- Valid operating/driving license of driver/operator
- Any other requirement mentioned elsewhere in Tender Document

42 VENDOR PERFORMANCE EVALUATION

Shall be as stipulated at Appendix-2 of General Conditions of Contract- Goods (Rev.1).

43 MENTIONING OF PAN NO. IN INVOICE/BILL

As per CBDT Notification No. 95/2015 dated 30.12.2015, mentioning of PAN no. is mandatory for transactions related to procurement of goods/services/exceeding Rs. 2 Lacs per transaction or as amended from time to time.

Accordingly, Supplier should mention their PAN no. in their invoice/ bill for any transaction exceeding Rs. 2 lakhs. As provided in the notification, in case Supplier do not have PAN no., they have to submit declaration in Form 60 along with invoice/ bill for each transaction.

Payment of Supplier shall be processed only after fulfilment of above requirement.

44 DISPUTE RESOLUTION MECHANISM

44.1 QUARTERLY CLOSURE OF THE CONTRACT AND SAMADHAN MECHANISM

During execution of orders, various issues may arise. In order to timely detect and to address the contractual issue(s) during the execution of contracts, GAIL has introduced a mechanism of Quarterly Closure of the contract, under which all the related issues /disputes will be monitored and addressed on quarterly basis for resolution. Vendor/ Supplier/ Contractor/Consultant (hereinafter referred 'Vendor') should first refer any issues/disputes to Engineer-in-Charge (EIC) for LOA/contracts/ Dealing C&P Executive for Purchase Orders and co-operate them for smooth execution of the contract and to timely address the issues, if any. For applicability of 'Quarterly Closure', please refer BDS.



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In case issue is not resolved by above, Supplier may submit their issue(s) to Vendor Grievance Portal “Samadhan”, which will be addressed by GAIL within 15 days. The Samadhan Portal is available at <https://GAILEbank.GAIL.co.in/grievance/welcome.aspx>.

Accordingly, the methodology for resolution of issue(s)/ grievance (s) of Vendor shall be as under:

- (i) Any issue should be first referred to EIC for contracts/ Dealing C&P Executive for Purchase Orders.
- (ii) In case issue is not resolved, Vendor may submit their issue/ grievance through online Vendor Grievance Portal- “Samadhan”.
- (iii) In case, Vendor is not satisfied, there is a provision of escalation of issue to higher authority in GAIL. This option is available two times to vendor.
- (iv) Further, issue(s) can only be submitted upto 1 month after closure of respective Order/LOA/ Contract.
- (v) Vendor should refer their issue/grievance through above mode only. Issue/grievance received through any other mode shall not be entertained.

44.2 CONCILIATION AND ARBITRATION

Shall be as per cl.no.30 of General Conditions of Contract (GCC)-Goods.

45 DISPUTES BETWEEN CPSE’S/GOVERNMENT DEPARTMENT’S/ ORGANIZATIONS

Shall be as per cl.no. 30.4 of General Conditions of Contract (GCC)-Goods

46 REPEAT ORDER

Shall be as per Clause no. 40 of GCC-Goods

47 PROMOTION OF PAYMENT THROUGH CARDS AND DIGITAL MEANS

To promote cashless transactions, the onward payments by Suppliers to their employees, service providers, sub-contractors and suppliers may be made through Cards and Digital means to the extent possible.

48 PROVISIONS FOR STARTUPS (AS DEFINED IN GAZETTE NOTIFICATION NO. D.L-33004/99 DATED 18.02.2016 AND 23.05.2017 OF MINISTRY OF COMMERCE AND INDUSTRY AND AS AMENDED FROM TIME TO TIME) (FOR APPLICABILITY REFER BDS)

As mentioned in Section-II, Prior turnover and prior experience shall not be required for all Startups [whether Micro & Small Enterprises (MSEs) or otherwise] subject to their meeting the quality and technical specifications specified in tender document and submission of document specified in Section-II.

Further, the Startups are also exempted from submission of EMDs, if applicable.

If a Startup [whether Micro & Small Enterprises (MSEs) or otherwise] gets qualified without turnover and experience criteria specified in tender and emerges lowest bidder, the order on such Startup shall be placed for entire tendered quantity.

However, before supplying the total quantity, the startup enterprise shall first demonstrate its performance by supplying 10% of total ordered quantity (rounded off to the next higher digit in terms of Unit of Measurement (UoM), wherever required) and only after successful execution of this quantity the balance 90% quantity will be cleared for supply. In case, the demonstration of performance fails, the entire order will be canceled without any financial implication on either side.

49 PROVISION REGARDING INVOICE FOR REDUCED VALUE OR CREDIT NOTE TOWARDS PRS



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

PRS is the reduction in the consideration/contract value for the goods/services covered under this contract. In case of delay in supply/execution of contract, supplier should raise invoice for reduced value as per Price Reduction Schedule Clause (PRS clause). If supplier has raised the invoice for full value, then supplier should issue Credit Note towards the applicable PRS amount with applicable taxes.

In such cases if supplier fails to submit the invoice with reduced value or does not issue credit note as mentioned above, GAIL will release the payment to supplier after giving effect of the PRS clause with corresponding reduction of taxes charged on vendor's invoice, to avoid delay in delivery/collection of material.

In case any financial implication arises on GAIL due to issuance of invoice without reduction in price or non-issuance of Credit Note, the same shall be to the account of supplier. GAIL shall be entitled to deduct/ setoff / recover such GST amount (CGST & SGST/UTGST or IGST) together with penalties and interest, if any, against any amounts paid or becomes payable by GAIL in future to the Supplier under this contract or under any other contract.

50 UNIQUE DOCUMENT IDENTIFICATION NUMBER BY PRACTICING CHARTERED ACCOUNTANTS

Practicing Chartered Accountants shall generate Unique Document Identification Number (UDIN) for all certificates issued by them as per provisions of Tender Document.

However, UDIN may not be required for documents being attested by Chartered Accountants in terms of provisions of Tender Document.

51 PROVISION W.R.T. TDS ON PURCHASE OF GOODS UNDER SECTION 194Q OF INCOME TAX ACT

50.1 TDS as applicable will be deducted by GAIL under section 194Q of the Income Tax Act, 1961 on Purchases exceeds Rs. 50 Lakhs or limit defined therein from time to time during the financial year.

50.2 Since GAIL is liable to deduct Income Tax TDS under section 194Q, the provision of TCS as per section 206C(1H) of the Income Tax Act, 1961 shall not be applicable.

50.3 Higher rate of TDS for non-filers of ITR

As per Section 206AB of Income Tax Act, 1961, in case of any vendor/supplier who does not filed their Income Tax Return for both of the two previous years preceding to current year and aggregate amount of TDS is more than or equal to 50,000/- in each of those previous two years (or limit defined by Govt. from time to time), then TDS will be deducted at the higher of following rates:

- (i) Twice the rate mentioned in relevant TDS section.
- (ii) Twice the rate or rates in force
- (iii) 5%

52 ANJANI PORTAL

GAIL has implemented "Anjani" e-Measurement Book & e-Billing Portal for ease in submission of measurement book/bill and reduction in paper transaction.

Accordingly, GAIL will process the Bill with Measurement Book through "Anjani" e-Measurement Book & e-Billing Portal (link: <https://GAILEbank.GAIL.co.in/MBAutomation/frmlogin.aspx>).



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Accordingly, Contractor/ Service Provider/ Consultant is requested to forward the RA Bill on "Anjani" e-Measurement Book & e-Billing Portal through concerned EIC/CIC/SIC, whichever is applicable.

Further, User Manual is also available on aforesaid portal.

53 DOCUMENTS FOR PAYMENT:

Payment terms shall be as mentioned in GCC-Goods/SCC.

However, for release of payment, the following documents is to be submitted by supplier/ vendor:

- i) Supplier's Invoice indicating, inter alia description and specification of the goods, quantity, unit price, total value;
- ii) Packing list;
- iii) LR/GR/consignment note;
- iv) Manufacturer's guarantee certificate and in-house inspection certificate (wherever applicable);
- v) Inspection certificate issued by purchaser's inspector (wherever applicable); and
- vi) Any other document(s) as and if required in terms of the contract.

VENDOR INVOICE MANAGEMENT (VIM)

GAIL is implementing Vendor Invoice Management (VIM) system titled as 'SARATHI' for automation, digitization & centralization of Account Payable process w.e.f. 01.04.2023.

After implementation, Supplier/ Contractor/Service Provide/ Consultant is required to upload digital invoice on 'Sparsh' portal. The system optimizes and simplifies the process of receiving, managing, monitoring and forwarding invoices for payment process. The link of 'Sparsh' portal is as under:

<https://sparsh.GAIL.co.in/flipper/#/login>

The 'Help Manual' hyperlink to access the detailed User Manual, Demo Videos, FAQ's and other relevant information is available on 'Sparsh' portal.

Only digital invoice is to be uploaded on 'Sparsh' portal and all other supporting documents along with copy of invoice are to be submitted to concerned as defined in Purchase Order (PO)/ Letter of Acceptance (LoA).

54 ORDER TRANSMITTAL SYSTEM: *[FOR APPLICABILITY OF THE CLAUSE REFER BDSI]*

The complete PO/LOA along with all annexures including tender document shall be shared through order/contract transmittal system after intimation through email.

Supplier/Contractor is requested to visit <https://GAILonline.com/home.html> and click on link order/contract transmittal system (It can be found under Vendor Zone (Portal For Suppliers)) or https://GAILEbank.GAIL.co.in/GOGA_AUDIT/fmUserLogin.aspx.

Therein, in order to access the detailed order/contract, supplier/contractor shall be prompted to enter your email id. Further an OTP shall be sent on your registered mobile number. After entering OTP, supplier/ contractor shall be allowed to download complete PO/LOA along with all annexures including tender document. After downloading the documents, the supplier/contractor shall be required to digitally sign the document (by authorized signatory) for uploading the documents on order/contract transmittal system towards acknowledgement of the same.



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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Annexure-I to Section-III

BIDDING DATA SHEET (BDS)

ITB (SECTION-III) TO BE READ IN CONJUNCTION WITH THE FOLLOWING:

ITB clause	Description
A. GENERAL	
1.1	The Purchaser is: <u>GAIL (India) Limited, Vadodara</u> The consignee details for the goods are: GAIL (India) Limited, RPNHQ Vadodara GAIL Complex, Plot No. 549/1, Ajit Nagar, Akota, Vadodara - 390020 (Gujarat) (India)
1.2	The Invitation for Bid/Tender is for <u>PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL(INDIA) LIMITED, VAGHODIA.</u> <u>PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.</u>
General	The Purchaser is: GAIL (India) Limited The consignee details and Delivery Location for the goods are as under: - <u>Consignee:</u> Sr. Officer (C&P)/General Manager (C&P) GAIL (India) Limited, RPNHQ, GAIL Complex, Plot No. 549/1, Ajit Nagar, Akota, Vadodara-390020. Ph: +91 0265-2572227 Extn: 74-383/380 Kkartheek@gail.co.in ; apurba@gail.co.in ; <u>Materials Delivery Address/Installation Location:</u> GAIL (India) LTD, GIDC Industrial Estate, Ta: Vaghodia, Dist.: Vadodara - 391760
B. TENDER DOCUMENT	
8.1	For <u>clarification purposes</u> only, the communication address is: Sh. Apurba Kumar Choudhury General Manager (C&P) GAIL (India) Limited GAIL Complex, Plot No. 549/1, Ajit Nagar, Akota, Vadodara - 390020 (Gujarat) (India), Ph: +91 265-2572227 Extn: 74-380; 74-383, Email: apurba@gail.co.in / k.kartheek@gail.co.in
C. PREPARATION OF BID	



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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11.1.1 (m)	<u>Additional documents to be submitted by the Bidder with its Part-I (Techno-commercial/ Unpriced bid):</u> <u>SCC/Scope of Work refers</u> 1. EMD & Declaration for Bid Security in bid as per proforma at Form F-2A. 2. BEC Qualification Documents. 3. Entire Tender document duly signed by authorized signatory. 4. Forms and Formats duly filled up and signed with Bidder's seal. 5. Bidder's credentials and documents. 6. Blank Schedule of Rates duly signed and has to write "Quoted" against each line item. 7. Power of Attorney (POA) / Affidavit in Favour of Manually & Digitally signing authority (As per ITB clause no. 2.6).				
12 & 13	Whether GAIL will be able to avail input tax credit in the instant tender: <table border="1" data-bbox="267 724 760 861"> <tr> <td data-bbox="267 724 495 787">YES</td> <td data-bbox="495 724 760 787">☒</td> </tr> <tr> <td data-bbox="267 787 495 861">NO</td> <td data-bbox="495 787 760 861">☐</td> </tr> </table>	YES	☒	NO	☐
YES	☒				
NO	☐				
12.2	Transit Insurance shall be arranged by: GAIL (India) Limited, Vadodara <u>the details of Transit Insurance Policy are as under:</u> <u>M/s The Oriental Insurance Company Limited,</u> 1st Floor, Kirti Tower Tilak Road Vadodara - 390005 Gujarat. Policy No. 171200/21/2027/2 Valid From: 01.04.2026 to 31.03.2027 Contact Number- 09725107345 E-Mail Id: m.ajmeri@orientalinsurance.co.in; a.krithika@orientalinsurance.co.in; Note: Material must be dispatched through registered (Bank Approved) common carrier i.e. TCI/ RTO/ARC/GATI/etc. on D.A.P. basis.				
12.4	Delivery basis shall be: <u>F.O.B. SITE</u>				



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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13.7 and 13.8	Details of Buyer:															
	Consignee	<u>SR. OFFICER (C&P) / GM (C&P)</u> <u>GAIL (India) Limited</u> GAIL Complex, Plot No. 549/1, Ajit Nagar, Akota, Vadodara-390020 E-Mail Id: k.karthick@gail.co.in / apurba@gail.co.in														
	PAN No.	AAACG1209J														
	GST no.	24AAACG1209J1Z2														
	GAIL Bank details	<table><tr><td>NAME OF BANK</td><td>STATE BANK OF INDIA</td></tr><tr><td>BRANCH</td><td>ALKAPURI, VADOADARA</td></tr><tr><td>A/C NO.</td><td>00000032777240215</td></tr><tr><td>IFSC CODE</td><td>SBIN0003321</td></tr><tr><td>MICR CODE</td><td>390002014</td></tr><tr><td>TYPE</td><td>OD</td></tr><tr><td>HOUSE BANK</td><td>SB339</td></tr></table>		NAME OF BANK	STATE BANK OF INDIA	BRANCH	ALKAPURI, VADOADARA	A/C NO.	00000032777240215	IFSC CODE	SBIN0003321	MICR CODE	390002014	TYPE	OD	HOUSE BANK
NAME OF BANK	STATE BANK OF INDIA															
BRANCH	ALKAPURI, VADOADARA															
A/C NO.	00000032777240215															
IFSC CODE	SBIN0003321															
MICR CODE	390002014															
TYPE	OD															
HOUSE BANK	SB339															
14	The currency of the Bid shall be <u>INR (INDIAN RUPEES).</u>															
15	The bid validity period shall be as per GeM Bid Document no. <u>GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28)</u>															
16.1 16.9 & 38.5	In case 'Earnest Money / Bid Security' or “Contract Performance Security” is in the form of Banker’s Cheque or Demand Draft or Insurance Surety Bond or Fixed Deposit Receipt or Online Banking Transaction or Bank Guarantee (including e-Bank Guarantee) or Letter of Credit the same should be favor of GAIL (India) Limited , payable at Vadodara In case of submission through online banking transaction i.e. IMPS / NEFT / RTGS / SWIFT, etc, the details of GAIL’s Bank account are as under:															
	NAME OF BANK		STATE BANK OF INDIA													
	BRANCH		ALKAPURI, VADOADARA													
	A/C NO.		00000032777240215													
	IFSC CODE		SBIN0003321													
	MICR CODE		390002014													
	TYPE		OD													
	HOUSE BANK		SB339													
	Bidder to mention reference no. “EMD/.....” in narration while remitting the EMD / Bid Security amount and to mention reference no. “CPS/.....” in narration while remitting the CPS amount in GAIL’s Bank Account.															
	D. SUBMISSION AND OPENING OF BIDS															
22	The GeM Bid No. of this bidding process is: <u>GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28)</u>															



**GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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22.2	For submission of physical document as per clause no. 4.0 of IFB, the Owner's address is: <u>General manager (C&P)</u> <u>GAIL (India) Limited, Vadodara</u> Regional Pipeline Network Head Quarters-Gujarat, GAIL Complex, Plot No. 549/1, Ajit Nagar, Akota, Vadodara-390020 (Gujarat) (India) Ph.: +91 265 2572227 Extn: 74-383, E-Mail id: k.kartheek@gail.co.in				
E. EVALUATION, AND COMPARISON OF BIDS					
32	Evaluation Methodology is mentioned in Section-II. Tie-breaker methodology available on GeM portal will be followed.				
34	The following Purchase Preference Policy will be applicable as per provisions mentioned in tender: i) Micro & Small Enterprises (MSEs) ii) Policy to Provide Purchase Preference as per Public Procurement (Preference to Make in India), Order 2017 Above policies shall be applicable as per Office Memorandum No. F.1/4/2021-PPD of DoE (Ministry of Finance).				
F. AWARD OF CONTRACT					
36	The following designated authority shall be contacted after receipt of Notification of Award for all contractual matters: - <u>Sh. K Kartheek, Sr. Officer (C&P) / Sh. Apurba Kumar Choudhury, GM (C&P)</u> Phone: +91 265 2572227 Extn. 74-383/380 Email id: k.kartheek@gail.co.in , apurba@gail.co.in				
37.4	Whether part shipment is allowed: <u>PART SHIPMENT IS NOT ALLOWED.</u>				
38	Contract Performance Security/ Security Deposit: <table border="1"> <tr> <td>APPLICABLE</td><td>☒</td></tr> <tr> <td>NOT APPLICABLE</td><td>☐</td></tr> </table> The value/ amount of Contract Performance Security/ Security Deposit: SD/CPBG @ 5% of Total basic Order/Contract Value (Exclusive of Taxes & Duties) within 30 days of GeM Contract/FoA/Notification of Award. Note: The bank guarantee by successful bidder(s) will be given on Non-Judicial stamp paper as per 'Stamp Duty' applicable. The Non-Judicial stamp paper should be in name of the <u>Issuing Bank</u> and <u>second party should be 'GAIL (INDIA) LIMITED'.</u> In case of foreign bank, the said bank guarantee to be issued by its correspondent bank in India on requisite non-judicial stamp paper and place of bid to be considered as Delhi. In addition to existing specified form (i.e. demand draft (DD)/ Banker's Cheque/Bank Guarantee/ letter of credit) mentioned in tender documents for submission of security deposit/contract	APPLICABLE	☒	NOT APPLICABLE	☐
APPLICABLE	☒				
NOT APPLICABLE	☐				



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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	performance security, the successful bidder can also submit the security deposit/contract performance security through online banking transaction i.e. IMPS/NEFT/ RTGS/SWIFT etc. for this purpose, the details of GAIL's bank account is mentioned hereunder. While remitting such online transaction, the bidder must indicate "security deposit/ contract performance guarantee against FOA/LOA no. (service provider to specify the FOA/ LOA no.)" Under remarks column of such transaction of respective bank portal. The contractor/vendor shall be required to submit the successful transaction details to the dealing officer immediately through email/letter and necessarily within 30 days from the date of fax of acceptance.” Further, vendor(s)/contractor(s) can submit contract performance security in the form of digital CPBG through SWIFT channel from the following banks. These banks are live with GAIL on SWIFT platform and directly push your digital CPBG from their system to GAIL without any manual intervention. a) Axis Bank b) HDFC Bank c) ICICI Bank d) State Bank of India				
39.2	Name and contact details of nodal officer are as under: Shri Tanmoy Shome – GM (GAILTEL-TC), GAIL RPNHQ, Vadodara Tel: +91 265 2572227 Extn: 74-400 Email: tshome@gail.co.in				
40	Whether tendered item is non-split able or not-divisible: <table border="1"> <tr> <td>YES</td><td>Non-Splitable/Non-Divisible</td></tr> <tr> <td>NO</td><td>x</td></tr> </table>	YES	Non-Splitable/Non-Divisible	NO	x
YES	Non-Splitable/Non-Divisible				
NO	x				
44.1	Quarterly Closure of Contract <table border="1"> <tr> <td>APPLICABLE</td><td>✓</td></tr> <tr> <td>NOT APPLICABLE</td><td>x</td></tr> </table>	APPLICABLE	✓	NOT APPLICABLE	x
APPLICABLE	✓				
NOT APPLICABLE	x				
48	Applicability of provisions relating to Startups: <table border="1"> <tr> <td>APPLICABLE</td><td>x</td></tr> <tr> <td>NOT APPLICABLE</td><td>✓</td></tr> </table>	APPLICABLE	x	NOT APPLICABLE	✓
APPLICABLE	x				
NOT APPLICABLE	✓				



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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53	Applicability of provisions relating to Order Transmittal System:			
	APPLICABLE	☒		
	NOT APPLICABLE	☐		
Clause no. 38 of GCC	Fall Clause:			
	APPLICABLE	☒		
	NOT APPLICABLE	☐		
CUSTOMER NAME	CUSTOMER ADDRESS	ARN NO.	GST NO.	PAN NO.
GAIL (INDIA) LIMITED, VADODARA	GAIL COMPLEX, PLOT NO. 549/1, AJIT NAGAR, AKOTA, VADODARA-390020	AA241216014846C	24AAACG1209J1Z2	AAACG1209J

ANNEXURE-II TO SECTION-III

POLICY TO PROVIDE PURCHASE PREFERENCE AS PER PUBLIC PROCUREMENT (PREFERENCE TO MAKE IN INDIA), ORDER 2017

NOT APPLICABLE IN THIS TENDER



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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FORMS

&

FORMATS



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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LIST OF FORMS & FORMATS

Form No.	Description
F-1	BIDDER'S GENERAL INFORMATION
F-2	PROFORMA OF "BANK GUARANTEE" FOR "EARNEST MONEY DEPOSIT / BID SECURITY"
F-2A	DECLARATION FOR BID SECURITY
F-2B	PROFORMA OF "FIXED DEPOSIT RECEIPT (FDR)" FOR "EARNEST MONEY / BID SECURITY"
F-2C	PROFORMA OF "INSURANCE SURETY BOND" FOR "EARNEST MONEY DEPOSIT/ BID SECURITY"
F-3	LETTER OF AUTHORITY
F-4	PROFORMA OF "BANK GUARANTEE" FOR CONTRACT PERFORMANCE SECURITY / SECURITY DEPOSIT"
F-4A	PROFORMA OF "FIXED DEPOSIT RECEIPT (FDR)" FOR "CONTRACT PERFORMANCE SECURITY / SECURITY DEPOSIT"
F-4B	PROFORMA OF "INSURANCE SURETY BOND" FOR "CONTRACT PERFORMANCE SECURITY / SECURITY DEPOSIT"
F-5	AGREED TERMS & CONDITIONS
F-6	ACKNOWLEDGEMENT CUM CONSENT LETTER
F-7	BIDDER'S EXPERIENCE
F-8 (A)	CHECK LIST
F-8 (B)	CHECKLIST FOR BID EVALUATION CRITERIA (BEC) QUALIFYING DOCUMENTS
F-9	FORMAT FOR CERTIFICATE FROM BANK IF BIDDER'S WORKING CAPITAL IS INADEQUATE
F-10	FORMAT FOR CHARTERED ACCOUNTANT CERTIFICATE FOR FINANCIAL CAPABILITY OF THE BIDDER
F-11	BIDDER'S QUERIES FOR PRE-BID MEETING
F-12	E-BANKING MANDATE FORM
F-13	INTEGRITY PACT – NOT APPLICABLE
F-14	FREQUENTLY ASKED QUESTIONS (FAQs)
F-15	UNDERTAKING REGARDING SUBMISSION OF ELECTRONIC INVOICE (E-INVOICE AS PER GST LAWS)



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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F-16

FORMAT FOR NO CLAIM CERTIFICATE FOR RELEASE OF CPS/SECURITY DEPOSIT



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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F-1

BIDDER'S GENERAL INFORMATION

To,
M/s GAIL (INDIA) LIMITED
VADODARA

SUB: GEM BID NO. GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28) FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL(INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

1	Bidder Name	M/s _____
2	Status of Firm	Proprietorship Firm/Partnership firm/ Limited Liability Partnership (LLP) firm/ Public Limited/ Pvt. Limited/ Govt. Dept. / PSU/ Others If Others Specify: _____ [Enclose relevant certificates / partnership deed/ certificate of Registration, as applicable]
3a	Name of Proprietor/ Partners/ Directors of the firm/company including their Father's Name and residential address, Aadhar No., Pan Card Details & DIN Nos. [As per clause for 'One Bid Per Bidder' under Section-III of Tender Document] If required, a separate sheet may be enclosed for providing the above details.	1. 2. 3. 4. 5.
3b	Name of Power of Attorney holders of bidder	
4	Number of Years in Operation	
5	Address of Registered Office:	City: District: State: PIN/ZIP:
6	Bidder's address where order/contract is to be placed *	City: District: State: PIN/ZIP:



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

7	Address from where Goods/ Services are to be dispatched/ provided along with GST no. (In case supply of Goods / Services are from multiple locations, addresses and GST no. of all such locations are to be provided).	City: District: State: PIN/ZIP: GST No.:
8	Telephone Number & Contact Information address where order is to be placed	(Country Code) (Area Code) (Telephone No.) E-mail ID:
9	Website	
10	Mobile Number:	
11	ISO Certification, if any	[If yes, please furnish details]
12	PAN No.	
13	GST No. (refer sl. no. 7 above)	
14	Whether Micro or Small Enterprise	Yes / No (If Yes, Bidder to submit requisite documents as specified it ITB: Clause No. 40)
	Whether MSE is owned by SC/ST Entrepreneur(s)	Yes / No (If Yes, Bidder to submit requisite documents as specified it ITB: Clause No. 40)
	Whether MSE is owned by Women	Yes / No (If Yes, Bidder to submit requisite documents as specified it ITB: Clause No. 40)
	Whether payment is required through TReDS	Yes / No If Yes, please provide the name of portal.....
15	Whether Bidder is Startup or not	Yes / No (If Yes, Bidder to submit requisite documents as specified it ITB: Clause No. 49)
	In case of Start-up confirm the following: (i) Date of its incorporation/ registration [The certificate shall only be valid for the entity upto ten years from the date of its incorporation/ registration] (ii) Whether turnover for any financial years since incorporation/registration has exceed Rs.100 Crores.	



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Note: *GAIL intent to place the order/contract directly on the address from where Goods are produced/dispatched.
In case, bidder wants order/ contract at some other address or supply of Goods from multiple locations, bidder is required to provide the address on which order is to be placed at sl.no.6 above.

Place:
Date:

[Signature of Authorized Signatory of Bidder]
Name:
Designation:
Seal:



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Format F-1A
(on company's letter head)
Annexure to Bidder's General Information

To,
M/s GAIL (INDIA) LIMITED
VADODARA

SUB: GEM BID NO. GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28) FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL(INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Name of Bidder: M/s

Sl. No.	Name of Directors/ Partners/ Proprietors etc	Father's Name	Residential Address	Aadhar No.	Pan Card No.	DIN No.
1.						
2.						
3.						
4.						
5.						

Note:

- Bidders are required to provide complete details of all Directors/Partners/Proprietors etc. including Father's name, Residential address, AADHAR, PAN Card details & DIN Nos. in Form F-1 of ITB and corresponding documents duly notarized by Notary Public.**
- It is the responsibility of the participating Bidder(s) to assess the relationship as mentioned above.*
- In case any undertaking/declaration given by a Bidder(s) in this regard is found to be false, this would be a sufficient ground for rejection of Bid(s) /termination of contract and also initiation of further action as per "Procedure for Action in case of Corrupt/Fraudulent/ Collusive / Coercive Practices" of tender document.**

Place:
Date:

[Signature of Authorized Signatory of Bidder]
Name:
Designation:
Seal



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

FORMAT F-2

PROFORMA OF “BANK GUARANTEE”
FOR “EARNEST MONEY / BID SECURITY”

(To be stamped in accordance with the Stamp Act)

M/s GAIL (India) Limited _____	Bank Guarantee No.	
	Date of BG	
	BG Valid up to	
	Claim period up to (There should be three months gap between expiry date of BG & Claim period)	
	Stamp Sl. No./e-Stamp Certificate No.	

Dear Sir(s),

In accordance with Letter Inviting Tender under your reference No. _____ M/s. _____ having their Registered / Head Office at _____ (hereinafter called the Tenderer), wish to participate in the said tender for _____

As an irrevocable Bank Guarantee against Earnest Money for the amount of _____ is required to be submitted by the Tenderer as a condition precedent for participation in the said tender which amount is liable to be forfeited on the happening of any contingencies mentioned in the Tender Document.

We, the _____ Bank at _____ having our Head Office _____ (Local Address) guarantee and undertake to pay immediately on demand without any recourse to the tenderers by GAIL (India) Ltd., the amount _____ without any reservation, protest, demur and recourse. Any such demand made by GAIL, shall be conclusive and binding on us irrespective of any dispute or difference raised by the Tenderer.

This guarantee shall be irrevocable and shall remain valid up to _____ [this date should be two (02) months beyond the validity of the bid]. If any further extension of this guarantee is required, the same shall be extended to such required period on receiving instructions from M/s. _____ whose behalf this guarantee is issued.

In witness whereof the Bank, through its authorized officer, has set its hand and stamp on this _____ day of _____ 20__ at _____.

Notwithstanding anything contained herein:

- The Bank's liability under this Guarantee shall not exceed (currency in figures) (currency in words only)
- This Guarantee shall remain in force upto _____ (this expiry date of BG should be two months beyond the validity of bid) and any extension(s) thereof; and
- The Bank shall be released and discharged from all liability under this Guarantee unless a written claim or demand is issued to the Bank on or before the midnight of (indicate date of expiry of claim period which includes minimum three months from the expiry of this Bank Guarantee) and if extended, the date of expiry of the last extension of this Guarantee. If a claim has been received by us within the said date, all the rights of GAIL under this Guarantee shall be valid and shall not cease until we have satisfied that claim.

Details of next Higher Authority of the Officials who have issued the Bank Guarantee:



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Name

Designation

WITNESS:

(SIGNATURE)

(NAME)

(SIGNATURE)

(NAME)

Designation with Bank Stamp

(OFFICIAL ADDRESS)

Attorney as per

Power of Attorney No. _____

Date: _____

**INSTRUCTIONS FOR FURNISHING "BID SECURITY / EARNEST MONEY" BY
"BANKGUARANTEE"**

1. The Bank Guarantee by Bidders will be given on non-judicial stamp paper as per "Stamp Duty" applicable. The non-judicial stamp paper should be in the name of the issuing Bank.
2. The expiry date should be arrived at in accordance with "ITB: Clause-16.1".
3. The Bank Guarantee by bidders will be given from Bank as specified in "ITB : Clause -16.2".
4. A letter from the issuing Bank of the requisite Bank Guarantee confirming that said Bank Guarantee / all future communication relating to the Bank Guarantee shall be forwarded to the Employer at its address as mentioned at "ITB".
5. Bidders must indicate the full postal address of the Bank along with the Bank's E-mail / Phone from where the Earnest Money Deposit has been issued as per proforma provided below.
6. If a Bank Guarantee is issued by a commercial Bank, then a letter to Employer confirming its net worth is more than Rs. 1,000,000,000.00 [Rupees One Hundred Crores] or equivalent along with documentary evidence in the Bank Guarantee itself.



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

MATTER TO BE MENTIONED IN COVERING LETTER TO BE SUBMITTED BY VENDOR ALONG WITH BANK GUARANTEE

1	BANK GUARANTEE NO	:				
2	VENDOR NAME / VENDOR CODE	:	NAME			
			VENDOR CODE			
3	BANK GUARANTEE AMOUNT	:				
4	TENDER NO	:				
5	NATURE OF BANK GUARANTEE	:				
	(Please Tick (✓) Whichever is Applicable		PERFORMANCE BANK GUARANTEE	SECURITY DEPOSIT	EMD	ADVANCE
6	BG ISSUED BANK DETAILS		(A) EMAIL ID:			
			(B) ADDRESS:			
			(C) PHONE NO:			



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

FORMAT F-2A

DECLARATION FOR BID SECURITY

To,

M/s GAIL (INDIA) LIMITED
VADODARA

SUB: GEM BID NO. GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28) FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL(INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Dear Sir

After examining/reviewing provisions of above referred tender documents (including all corrigendum/Addenda), we M/s _____ (Name of Bidder) have submitted our offer/ bid no.

We, M/s _____ (Name of Bidder) hereby understand that, according to your conditions, we are submitting this Declaration for Bid Security.

We understand that we will be put on watch list/holiday/ banning list (as per policies of GAIL in this regard), if we are in breach of our obligation(s) as per following:

- (a) have withdrawn/modified/amended, impairs or derogates from the tender, my/our Bid during the period of bid validity specified in the form of Bid; or
- (b) having been notified of the acceptance of our Bid by the GAIL during the period of bid validity:
 - (i) fail or refuse to execute the Contract, if required, or
 - (ii) fail or refuse to furnish the Contract Performance Security, in accordance provisions of tender document.
 - (iii) fail or refuse to accept 'arithmetical corrections' as per provision of tender document.
- (c) having indulged in corrupt/fraudulent /collusive/coercive practice as per procedure.

Place:

Date:

[Signature of Authorized Signatory of Bidder]

Name:

Designation:

Seal:



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

FORMAT F-2B

PROFORMA OF “FIXED DEPOSIT RECEIPT (FDR)” FOR “EARNEST MONEY / BID SECURITY”

Fixed Deposit Receipt as EMD:

- (i) The Fixed Deposit Receipt (FDR) submitted by Bidder from a Bank based in India shall be duly pledged / lien in favour of “GAIL (India) Limited” (GAIL).

The FDR shall be in the name of the GAIL (India) Limited A/c..... (Name of Bidder) and the Bidder cannot encash / pre-mature this FDR without the discharge letter / NOC/approval of GAIL. However, GAIL can encash this FDR without the approval of the Bidder in case of non-compliance of the terms of the tender.

The original FDR shall be accompanied by a confirmation letter in original on letter head from the issuing bank to GAIL as per the format of “Third Party Deposit Confirmation Letter” placed as Annexure 1 (FDR).

Note: FDR (free from any encumbrance payable at place mentioned in BDS) along with original confirmation letter in the manner mentioned above shall be uploaded/submitted as per tender conditions.

Bank means - Any Indian scheduled Bank (excluding Co-operative banks and Regional Rural bank) or a branch of an International Bank situated in India and registered with ‘Reserve Bank of India’ as Scheduled Foreign Bank. However, in case of “Fixed Deposit” from Banks other than the Nationalized Indian Banks, the Bank must be commercial Bank having net worth in excess of Rs. 100 Crores [Rupees One Hundred Crores] and a declaration to this effect should be made by such commercial Bank either in the “Fixed Deposit” itself or separately on its letterhead. GAIL will verify the Fixed Deposit Receipt from issuing bank.

- (ii) The FDR should have a validity of at least ‘two [02] months’ beyond the date on which the bid expires.
- (iii) Any dispute arising out of or in relation to the said FDR shall be subject to the exclusive jurisdiction of courts at New Delhi.
- (iv) FDR in Original and Third Party Deposit Confirmation Letter in Original has to be kept in Custody of GAIL.



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Annexure – 1 (FDR)

THIRD PARTY DEPOSIT CONFIRMATION LETTER

Date: __/__/____

To,
GAIL (India) Limited,
.....
.....
.....

Dear Sir/ Madam

Sb: Issuance of Cumulative FDR..... amounting to ₹.....valid till.....

It is hereby certified that Cumulative Fixed Deposit Receipt (FDR) bearing number dated..... amounting to ₹..... (Amount in figure and words) has been issued by (Name of the Bank) branch address..... The maturity value is ₹..... on dated.....

This FDR has been issued on the request of M/s (Name of the contractor) under the PO no. / W.O. No/Tender no. This FDR can be encashed/ redeemed without any consent/ letter from the contractor M/s.....(Name of the contractor) on the demand by M/s GAIL (India) Limited and the payment will be made to M/s GAIL (India) Limited excluding the interest earned thereon. The Contractor cannot encash/ premature above FDR unless above original FDR is accompanied by the discharge letter/NOC/approval of GAIL.

If the FDR is not withdrawn, till date of maturity, it may be renewed or treated as instructed by the Contractor & GAIL for renewal.

This FDR has been issued by authorized signatory of the Bank.

For or on behalf of.....[Name of the Bank & Branch details (Including IFS Code)]

Signature.....

Name:.....
Designation:.....
Contact no.
Email Id.
Stamp of Bank.....

Note:

- (i) This letter forms an integrated part of FDR
- (ii) In case confirmation is required, the communication can be send to the following:
Details for confirmations (including Address, Email Id, IFS Code and contact no.)



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

FORMAT F-2C

PROFORMA OF "INSURANCE SURETY BOND" FOR "EARNEST MONEY DEPOSIT/ BID SECURITY"

(To be stamped in accordance with the Stamp Act)

To, M/s GAIL (India) Limited _____	Insurance Surety Bond No.	
	Date of ISB	
	ISB Valid up to (Expiry date)	
	Claim period up to (indicate date of expiry of claim period which includes minimum three months from the expiry date)	
	Stamp Sl. No./e-Stamp Certificate No.	

Dear Sir(s),

In accordance with Tender Document under your reference No _____ M/s. _____ having their Registered / Head Office at _____ (hereinafter called the Tenderer/Bidder), wish to participate in the said tender for _____

As an irrevocable Insurance Surety Bond against Earnest Money Deposit for the amount of _____ is required to be submitted by the Bidder as a condition precedent for participation in the said Tender Document which amount is liable to be forfeited on the happening of any contingencies mentioned in the Tender Document.

We, the _____ [Name & address of the Insurer] at _____ having our Head Office _____ (Local Address) guarantee and undertake to pay immediately on demand without any recourse to the Bidder by GAIL (India) Ltd., the amount _____ without any reservation, protest, demur and recourse. Any such demand made by GAIL (India) Ltd., shall be conclusive and binding on us irrespective of any dispute or difference raised by the Bidder.

This Insurance Surety Bond shall be irrevocable and shall remain valid up to _____ [this date should be two (02) months beyond the validity of the bid]. If any further extension of this Insurance Surety Bond is required, the same shall be extended to such required period on receiving instructions from Bidder M/s. _____ on whose behalf this Insurance Surety Bond is issued.

Notwithstanding anything contained herein:

- The Insurer's liability under this Insurance Surety Bond shall not exceed (currency in figures) (currency in words only)
- This Insurance Surety Bond shall remain in force upto _____ (this expiry date should be two months beyond the validity of bid) and any extension(s) thereof; and



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

c) The Insurer shall be released and discharged from all liability under this Insurance Surety Bond unless a written claim or demand is issued to the Insurer on or before the midnight of(indicate date of expiry of claim period which includes minimum three months from the expiry of this Insurance Surety Bond) and if extended, the date of expiry of the last extension of this Insurance Surety Bond. If a claim has been received by us within the said date, all the rights of GAIL under this Insurance Surety Bond shall be valid and shall not cease until we have satisfied that claim.

In witness whereof the Insurer, through its authorized officer, has set its hand and stamp on this _____ day of _____ 20____ at _____.

Details of next Higher Authority of the Officials who have issued the Insurance Surety Bond:

Name

Designation

WITNESS:

(SIGNATURE)

(NAME)

(OFFICIAL ADDRESS)

(SIGNATURE)

(NAME)

Designation with Insurer Stamp

E-Mail ID:

Telephone/Mobile No.:

Attorney as per

Power of Attorney No. _____

Date: _____

INSTRUCTIONS FOR FURNISHING "BID SECURITY DEPOSIT/ EARNEST MONEY" BY "INSURANCE SURETY BOND"

- The Insurance Surety Bond shall be from Insurance Regulatory and Development Authority of India (IRDAI) registered general insurance companies as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI).
- The Employer shall be the Creditor, the Bidder shall be the Principal debtor and the Insurance company/Insurer shall be the Surety in respect of the Insurance Surety Bond to be issued by the Insurer.
- The Insurance Surety Bond should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in State where the Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Bidder/Insurer issuing the Insurance Surety Bond.
- The expiry date should be arrived at in accordance with "ITB: Clause-xx".
- The Insurance Surety Bond by bidders will be given from Insurer as specified in "ITB: Clause-xx".



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

- f) A letter from the issuing insurer of the requisite Insurance Surety Bond confirming that said Insurance Surety Bond / all future communication relating to the Insurance Surety Bond shall be forwarded to the Purchaser at its address as mentioned at "ITB".
- g) Bidder must indicate the full postal address of the Insurer along with the Insurer's E-mail / Fax / Phone from where the Insurance Surety Bond has been issued at sl.no.2 of Form F-5.

MATTER TO BE MENTIONED IN COVERING LETTER TO BE SUBMITTED BY VENDOR
ALONG WITH INSURANCE SURETY BOND

1	INSURANCE SURETY BOND NO	:				
2	VENDOR NAME / VENDOR CODE	:	NAME			
			VENDOR CODE			
3	INSURANCE SURETY BOND AMOUNT	:				
4	TENDER NO	:				
5	NATURE OF INSURANCE SURETY BOND	:				
	(Please Tick (✓) Whichever is Applicable		PERFORMANCE INSURANCE SURETY BOND	SECURITY DEPOSIT	EMD	ADVANCE
6	INSURER DETAILS	(A)	EMAIL ID:			
(B)		ADDRESS:				
(C)		PHONE NO:				



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

F-3

LETTER OF AUTHORITY

[Pro forma for Letter of Authority for Attending 'Pre-Bid Meetings']

Ref:

Date:

To,

M/s GAIL (INDIA) LIMITED
VADODARA

SUB: GEM BID NO. GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28) FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL(INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Dear Sir,

I/We, _____ hereby authorize the following representative(s) for attending Pre-Bid Meeting', against the above Tender Document:

[1] Name & Designation _____ Signature _____
Phone/Cell: _____
Fax: _____
E-mail: @

[2] Name & Designation _____ Signature _____
Phone/Cell: _____
Fax: _____
E-mail: @

We confirm that we shall be bound by all commitments made by aforementioned authorised representative(s).

Place:

[Signature of Authorized Signatory of Bidder]

Date:

Name:

Designation:

Seal:

Note:

- (i) This "Letter of Authority" should be on the "**letterhead**" of the Firm / Bidder and should be signed by a person competent and having the 'Power of Attorney' to bind the Bidder. Not more than 'two [02] persons per Bidder' are permitted to attend 'Pre-Bid Meetings'.
- (ii) Bidder's authorized representative is required to carry a copy of this authority letter while attending the 'Pre-Bid Meetings'.



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

F-4

PROFORMA OF “BANK GUARANTEE” FOR "CONTRACT PERFORMANCE SECURITY / SECURITY DEPOSIT"

(ON NON-JUDICIAL STAMP PAPER OF APPROPRIATE VALUE)

[This Format supersede the Format of GeM]

To, M/s GAIL (India) Limited _____	Bank Guarantee No.	
	Date of BG	
	BG Valid up to	
	Claim period up to (There should be three months gap between expiry date of BG & Claim period)	
	Stamp Sl. No./e-Stamp Certificate No.	

Dear Sir(s),

M/s. _____ having registered office at _____ (herein after called the “Service Provider” which expression shall wherever the context so require include its successors and assignees) have been placed/ awarded the job/work of _____ vide PO/LOA /FOA No. _____ dated _____ for GAIL (India) Limited having registered office at 16, Bhikaiji Cama Place, R.K. Puram, New Delhi (herein after called the “GAIL” which expression shall wherever the context so require include its successors and assignees).

The Contract conditions provide that the “SERVICE PROVIDER” shall pay a sum of Rs. _____ (Rupees _____) as full Contract Performance Guarantee in the form therein mentioned. The form of payment of Contract Performance Guarantee includes guarantee executed by Nationalized Bank/Scheduled Commercial Bank, undertaking full responsibility to indemnify GAIL (INDIA) LIMITED, in case of default.

The said M/s. _____ has approached us and at their request and in consideration of the premises we having our office at _____ have agreed to give such guarantee as hereinafter mentioned.

1. We _____ hereby undertake to give the irrevocable & unconditional guarantee to you that if default shall be made by M/s. _____ in performing any of the terms and conditions of the tender/order/contract or in payment of any money payable to GAIL (INDIA) LIMITED we shall on first demand pay without demur, contest, protest and/ or without any recourse to the Service Provider to GAIL in such manner as GAIL may direct the said amount of Rupees _____ only or such portion thereof not exceeding the said sum as you may require from time to time.
2. You will have the full liberty without reference to us and without affecting this guarantee, postpone for any time or from time to time the exercise of any of the powers and rights conferred on you under the order/contract with the said _____ M/s. _____ and to enforce or to forbear from endorsing any powers or rights or by reason of time being given to the said M/s. _____ and such postponement forbearance would not have the effect



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

of releasing the bank from its obligation under this debt.

3. Your right to recover the said sum of Rs. _____ (Rupees _____) from us in manner aforesaid is absolute & unequivocal and will not be affected or suspended by reason of the fact that any dispute or disputes have been raised by the said M/s. _____ and/or that any dispute or disputes are pending before any officer, tribunal or court or arbitrator or any other authority/forum and any demand made by you in the bank shall be conclusive and binding. The bank shall not be released of its obligations under these presents by any exercise by you of its liberty with reference to matter aforesaid or any of their or by reason or any other act of omission or commission on your part or any other indulgence shown by you or by any other matter or changed what so ever which under law would, but for this provision, have the effect of releasing the bank.
4. The guarantee herein contained shall not be determined or affected by the liquidation or winding up dissolution or changes of constitution or insolvency of the said Service Provider but shall in all respects and for all purposes be binding and operative until payment of all money due to you in respect of such liabilities is paid.
5. The bank undertakes not to revoke this guarantee during its currency without your previous consent and further agrees that the guarantee shall continue to be enforceable until it is discharged by GAIL in writing. However, if for any reason, the Service Provider is unable to complete the supply/work within the period stipulated in the order/contract and in case of extension of the date of delivery/completion resulting extension of defect liability period/guarantee period of the Service Provider fails to perform the supply/work fully, the bank hereby agrees to further extend this guarantee at the instance of the Service Provider till such time as may be determined by GAIL. If any further extension of this guarantee is required, the same shall be extended to such required period on receiving instruction from M/s. _____ (Service Provider) on whose behalf this guarantee is issued.
6. Bank also agrees that GAIL at its option shall be entitled to enforce this Guarantee against the bank (as principal debtor) in the first instant, without proceeding against the Service Provider and notwithstanding any security or other guarantee that GAIL may have in relation to the Service Provider's liabilities.
7. The amount under the Bank Guarantee is payable forthwith without any delay by Bank upon the written demand raised by GAIL. Any dispute arising out of or in relation to the said Bank Guarantee shall be subject to the exclusive jurisdiction of courts at New Delhi.
8. Therefore, we hereby affirm that we are guarantors and responsible to you on behalf of the Service Provider up to a total amount of _____ (amount of guarantees in words and figures) and we undertake to pay you, upon your first written demand declaring the Service Provider to be in default under the order/contract and without caveat or argument, any sum or sums within the limits of (amounts of guarantee) as aforesaid, without your needing to prove or show grounds or reasons for your demand or the sum specified therein.
9. We have power to issue this guarantee in your favor under Memorandum and Articles of Association and



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

the undersigned has full power to do under the Power of Attorney, dated _____ granted to him by the Bank.

10. Notwithstanding anything contained herein:

- a) The Bank's liability under this Guarantee shall not exceed (currency in figures) (currency in words only)
- b) This Guarantee shall remain in force upto _____ (this date should be expiry date of defect liability period of the Contract) and any extension(s) thereof; and
- c) The Bank shall be released and discharged from all liability under this Guarantee unless a written claim or demand is issued to the Bank on or before the midnight of (indicate date of expiry of claim period which includes minimum three months from the expiry of this Bank Guarantee) and if extended, the date of expiry of the last extension of this Guarantee. If a claim has been received by us within the said date, all the rights of GAIL under this Guarantee shall be valid and shall not cease until we have satisfied that claim.

Details of next Higher Authority of the Officials who have issued the Bank Guarantee:

Name

Designation

Yours faithfully,

Bank by its Constituted Attorney
Signature of a person duly
Authorized to sign on behalf of the Bank

INSTRUCTIONS FOR FURNISHING

"CONTRACT PERFORMANCE SECURITY / SECURITY DEPOSIT" BY "BANK GUARANTEE"

1. The Bank Guarantee by successful Bidder(s) will be given on non-judicial stamp paper as per 'stamp duty' applicable. The non-judicial stamp paper should be in name of the issuing bank.
2. The Bank Guarantee by Bidders will be given from bank as specified in cl.no. 38.3 of ITB [Section-III] of Tender Document.
3. A letter from the issuing bank of the requisite Bank Guarantee confirming that said Bank Guarantee and all future communication relating to the Bank Guarantee shall be forwarded to Employer.
4. If a Bank Guarantee is issued by a commercial bank, then a letter to Employer and copy to Consultant (if applicable) confirming its net worth is more than Rs. 100,00,00,000.00 [Rupees One Hundred Crores] or its equivalent in foreign currency along with documentary evidence OR in the Bank Guarantee itself.
5. Service Provider shall submit attached cover letter (Annexure) while submitting Contract Performance Security



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PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

MATTER TO BE MENTIONED IN COVERING LETTER TO BE SUBMITTED BY VENDOR
ALONG WITH BANK GUARANTEE

1	BANK GUARANTEE NO	:				
2	VENDOR NAME / VENDOR CODE	:	NAME			
			VENDOR CODE			
3	BANK GUARANTEE AMOUNT	:				
4	PURCHASE ORDER/ LOA NO	:				
5	NATURE OF BANK GUARANTEE	:				
	(Please Tick (✓) Whichever is Applicable		PERFORMANCE BANK GUARANTEE	SECURITY DEPOSIT	EMD	ADVANCE
6	BG ISSUED BANK DETAILS	(A)	EMAIL ID:			
		(B)	ADDRESS:			
		(C)	PHONE NO:			



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

FORMAT F-4A

PROFORMA OF “FIXED DEPOSIT RECEIPT (FDR)” FOR "CONTRACT PERFORMANCE SECURITY / SECURITY DEPOSIT"

Fixed Deposit Receipt as CPS:

- (v) The Fixed Deposit Receipt (FDR) submitted by Vendor/Contractor from a Bank based in India shall be duly pledged / lien in favour of “GAIL (India) Limited” (GAIL).

The FDR shall be in the name of the GAIL (India) Limited A/c(Name of Vendor/ Contractor) and the Vendor/Contractor cannot encash / pre-mature this FDR without the discharge letter / NOC/approval of GAIL. However, GAIL can encash this FDR without the approval of the Vendor/Contractor in case of non-compliance of the terms of the order/contract.

The original FDR shall be accompanied by a confirmation letter in original on letter head from the issuing bank to GAIL as per the format of “Third Party Deposit Confirmation Letter” placed as Annexure -1 (FDR).

Note: FDR (free from any encumbrance payable at place mentioned in BDS) along with original confirmation letter in the manner mentioned above shall be submitted by the Vendor/Contractor within 30 days of the receipt of the notification of award/ FOA from GAIL.

Here Bank means - Any Indian scheduled Bank (excluding Co-operative banks and Regional Rural bank) or a branch of an International Bank situated in India and registered with ‘Reserve Bank of India’ as Scheduled Foreign Bank. However, in case of “Fixed Deposit” from Banks other than the Nationalized Indian Banks, the Bank must be commercial Bank having net worth in excess of Rs. 100 Crores [Rupees One Hundred Crores] and a declaration to this effect should be made by such commercial Bank either in the “Fixed Deposit” itself or separately on its letterhead. GAIL will verify the Fixed Deposit Receipt from issuing bank.

- (vi) The FDR submitted should have a validity of at least ‘three [03] months’ beyond the Warranty Period/Defect Liability Period.
- (vii) Any dispute arising out of or in relation to the said FDR shall be subject to the exclusive jurisdiction of courts at New Delhi.
- (viii) FDR in Original and Third-Party Deposit Confirmation Letter in Original has to be kept in Custody of GAIL.



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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Annexure – 1 (FDR)

THIRD PARTY DEPOSIT CONFIRMATION LETTER

Date: _ / _ / _

To,
GAIL (India) Limited,
.....
.....
.....

Dear Sir/ Madam

Sb: Issuance of Cumulative FDR..... amounting to ₹.....valid till.....

It is hereby certified that Cumulative Fixed Deposit Receipt (FDR) bearing number..... dated..... amounting to ₹..... (Amount in figure and words) has been issued by (Name of the Bank) branch address..... The maturity value is ₹..... on dated.....

This FDR has been issued on the request of M/s (Name of the contractor) under the PO no. / W.O. No/Tender no. This FDR can be encashed/ redeemed without any consent/ letter from the contractor M/s.....(Name of the contractor) on the demand by M/s GAIL (India) Limited and the payment will be made to M/s GAIL (India) Limited excluding the interest earned thereon. The Contractor cannot encash/ premature above FDR unless above original FDR is accompanied by the discharge letter/NOC/approval of GAIL.

If the FDR is not withdrawn, till date of maturity, it may be renewed or treated as instructed by the Contractor & GAIL for renewal.

This FDR has been issued by authorized signatory of the Bank.

For or on behalf of.....[Name of the Bank & Branch details (Including IFS Code)]
Signature.....

Name:.....
Designation:.....
Contact no.
Email Id.
Stamp of Bank.....

Note:

- (iii) This letter forms an integrated part of FDR
- (iv) In case confirmation is required, the communication can be send to the following:
Details for confirmations (including Address, Email Id, IFS Code and contact no.)



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

FORMAT F-4B

PROFORMA OF "INSURANCE SURETY BOND" FOR "CONTRACT PERFORMANCE SECURITY / SECURITY DEPOSIT"
(ON NON-JUDICIAL STAMP PAPER OF APPROPRIATE VALUE)

To, M/s GAIL (India) Limited	Insurance Surety Bond No.	
	Date of Insurance Surety Bond	
	Insurance Surety Bond Valid up to (Expiry date)	
	Claim period up to (indicate date of expiry of claim period which includes minimum three months from the expiry date)	
	Stamp Sl. No./e-Stamp Certificate No.	

Dear Sir(s),

M/s. _____ having registered office at _____ (herein after called the "Contractor/Supplier" which expression shall wherever the context so require include its successors and assignees) have been placed/ awarded the job/work of _____ vide PO/LOA /FOA No. _____ dated _____ for GAIL (India) Limited having registered office at 16, Bhikaiji Cama Place, R.K. Puram, New Delhi (herein after called the "GAIL" which expression shall wherever the context so require include its successors and assignees).

The Contract conditions provide that the CONTRACTOR/SUPPLIER shall pay a sum of Rs. _____ (Rupees _____) as full Contract Performance Guarantee in the form therein mentioned. The form of payment of Insurance Surety Bond executed by Insurer, undertaking full responsibility to indemnify GAIL (INDIA) LIMITED, in case of default.

The said M/s. _____ (herein after called the "insurer" which expression shall wherever the context so require include its successors and assignees) has approached us and at their request and in consideration of the premises we having our office at _____ have agreed to give such guarantee as hereinafter mentioned.

1. We _____ hereby undertake to give the irrevocable & unconditional guarantee in form of Insurance Surety Bond to GAIL that if default shall be made by M/s. _____ in performing any of the terms and conditions of the tender/order/contract or in payment of any money payable to GAIL (INDIA) LIMITED we shall on first demand, pay without demur, contest, protest and/ or without any recourse to the contractor to GAIL in such manner as GAIL may direct, the said amount of Rupees _____ only or such portion thereof not exceeding the said sum as you may require from time to time.
2. You will have the full liberty without reference to us and without affecting this Insurance Surety Bond, to postpone for any time or from time to time the exercise of any of the powers and rights conferred on you under the order/contract with the said _____ M/s.



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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_____ and to enforce or to forbear from endorsing any powers or rights or by reason of time being given to the said M/s. _____ and such postponement forbearance would not have the effect of releasing the insurer from its obligation under this debt.

3. Your right to recover the said sum of Rs. _____ (Rupees _____) from us in manner aforesaid is absolute & unequivocal and will not be affected or suspended by reason of the fact that any dispute or disputes have been raised by the said M/s. _____ and/or that any dispute or disputes are pending before any officer, tribunal or court or arbitrator or any other authority/forum and any demand made by you to the Insurer shall be conclusive and binding. The Insurer shall not be released of its obligations under these presents by any exercise by you of its liberty with reference to matter aforesaid or any of their or by reason or any other act of omission or commission on your part or any other indulgence shown by you or by any other matter or changed what so ever which under law would, but for this provision, have the effect of releasing the insurer.
4. The Insurance Surety Bond herein contained shall not be determined or affected by the liquidation or winding up dissolution or changes of constitution or insolvency of the said supplier/contractor but shall in all respects and for all purposes be binding and operative until payment of all money due to you in respect of such liabilities is paid.
5. The Insurer undertakes not to revoke this Insurance Surety Bond during its currency without your previous consent and further agrees that the Insurance Surety Bond shall continue to be enforceable until it is discharged by GAIL in writing. However, if for any reason, the Contractor/Supplier is unable to complete the supply/work within the period stipulated in the order/contract and in case of extension of the date of delivery/completion resulting extension of defect liability period/guarantee period of the supplier/contractor fails to perform the supply/work fully, the insurer hereby agrees to further extend this Insurance Surety Bond at the instance of the Contractor/Supplier till such time as may be determined by GAIL. If any further extension of this Insurance Surety Bond is required, the same shall be extended to such required period on receiving instruction from M/s. _____ (contractor) on whose behalf this Insurance Surety Bond is issued.
6. Insurer also agrees that GAIL at its option shall be entitled to enforce this Insurance Surety Bond against the Insurer (as principal debtor) in the first instant, without proceeding against the Contractor/Supplier and notwithstanding any security or other guarantee that GAIL may have in relation to the Contractor/Supplier's liabilities.
7. The amount under the Insurance Surety Bond is payable forthwith without any delay by Insurer upon the written demand raised by GAIL. Any dispute arising out of or in relation to the said Insurance Surety Bond shall be subject to the exclusive jurisdiction of courts at New Delhi.
8. Therefore, we hereby affirm that we are guarantors and responsible to you on behalf of the Contractor/Supplier up to a total amount of _____ (amount of guarantees in words and figures) and we undertake to pay you, upon your first written demand declaring the Contractor/Supplier to be in



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

default under the order/contract and without caveat or argument, any sum or sums within the limits of (amounts of guarantee) as aforesaid, without your needing to prove or show grounds or reasons for your demand or the sum specified therein.

9. We have power to issue this Insurance Surety Bond in your favor under our Memorandum and Articles of Association, and the undersigned has full power to sign and execute documents under the Power of Attorney, dated _____ granted to him by the Insurer.
10. Notwithstanding anything contained herein:
- a) The Insurer's liability under this Insurance Surety Bond shall not exceed (currency in figures) (currency in words only)
- b) This Insurance Surety Bond shall remain in force upto _____ (this date should be expiry date of defect liability period of the Contract) and any extension(s) thereof; and
11. The Insurer shall be released and discharged from all liability under this Insurance Surety Bond unless a written claim or demand is issued to the Insurer on or before the midnight of(indicate date of expiry of claim period which includes minimum three months from the expiry of this Insurance Surety Bond) and if extended, the date of expiry of the last extension of this Insurance Surety Bond. If a claim has been received by us within the said date, all the rights of GAIL under this Insurance Surety Bond shall be valid and shall not cease until we have satisfied that claim.

Details of next Higher Authority of the Officials who have issued the Insurance Surety Bond:

Name
Designation

Yours faithfully,

Insurer by its Constituted Attorney

Signature of a person duly
Authorized to sign on behalf of the Insurer

INSTRUCTIONS FOR FURNISHING
"CONTRACT PERFORMANCE SECURITY / SECURITY DEPOSIT" BY "INSURANCE SURETY BOND"

- a) The Insurance Surety Bond shall be from Insurance Regulatory and Development Authority of India (IRDAI) registered general insurance companies as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI).



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

- b) The Employer shall be the Creditor, the Bidder shall be the Principal debtor and the Insurance company/Insurer shall be the Surety in respect of the Insurance Surety Bond to be issued by the Insurer.
- c) The Insurance Surety Bond should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in State where the Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Bidder/Insurer issuing the Insurance Surety Bond.
- d) The Insurance Surety Bond by successful Bidder(s) will be given on non-judicial stamp paper as per 'stamp duty' applicable. The non-judicial stamp paper should be in name of the issuing Insurer.
- e) The Insurance Surety Bond by Bidders will be given from insurer as specified in cl.no. XX of ITB [Section-III] of Tender Document.
- f) A letter from the issuing insurer of the requisite Insurance Surety Bond confirming that said Insurance Surety Bond and all future communication relating to the Insurance Surety Bond shall be forwarded to Purchaser.
- g) Supplier/Contractor shall submit attached cover letter (Annexure) while submitting Contract Performance Security / Security Deposit.

MATTER TO BE MENTIONED IN COVERING LETTER TO BE SUBMITTED BY VENDOR ALONG WITH INSURANCE SURETY BOND

1	INSURANCE SURETY BOND NO	:				
2	VENDOR NAME / VENDOR CODE	:	NAME			
			VENDOR CODE			
3	INSURANCE SURETY BOND AMOUNT	:				
4	PURCHASE ORDER/ LOA NO	:				
5	NATURE OF INSURANCE SURETY BOND	:				
	(Please Tick (✓) Whichever is Applicable		PERFORMANCE INSURANCE SURETY BOND	SECURITY DEPOSIT	EMD	ADVANCE
6	INSURER DETAILS					
(A)		EMAIL ID:				
(B)		ADDRESS:				
(C)		PHONE NO:				



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

F-5

AGREED TERMS & CONDITIONS

To,

M/s GAIL (INDIA) LIMITED
VADODARA

SUB: GEM BID NO. GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28) FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL(INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

This Format duly filled in, signed & stamped must form part of Bidder's Bid and must be submitted in Part –I (Un-priced Bid). Clauses confirmed hereunder need not be repeated in the Bid.

Sl.	DESCRIPTION	BIDDER'S CONFIRMATION
1.	Bidder's name, Vendor Code of GAIL (if any) and address Bidder's name: GAIL's Vendor Code: Address:	
2.	Bidder furnishes bid security declaration OR EMD/Bid Security details as under a) EMD/ Bid Security No. & date b) Value c) Validity d) Bank Address/e-mail ID/Mobile no. [in case of BG] Bidder furnishes bid security declaration [applicable for bidders to whom exemption is allowed as per cl.no.16.9 of Section-III].	
3.	Bidder confirms that the currency of quoted prices is in Indian Rupees.	
4.	Bidder confirms that quoted prices will remain firm and fixed (except where price escalation/variation is allowed in the Tender) till complete execution of the order.	
5.	Bidder confirms that quoted prices are strictly as per Price Schedule format of the GeM.	
6.	Bidder specify the Dispatch Point [Location, Dist. & State from where material will be dispatched]:	
7.	Bidder confirms acceptance of relevant Terms of Payment specified in the Bid Document.	



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Sl.	DESCRIPTION	BIDDER'S CONFIRMATION
8.	Bidder confirms that Contract Performance Security/ Security Deposit (CPS) will be furnished as per Bid Document within 30 days of FOA in case of successful bidder.	
9.	Bidder confirms that CPS shall be from any Indian scheduled bank (excluding Co-operative banks and Regional Rural bank) or a branch of an International bank situated in India and registered with Reserve bank of India as scheduled foreign bank. However, in case of bank guarantees from banks other than the Nationalised Indian banks, the bank must be a commercial bank having net worth in excess of Rs 100 crores and a declaration to this effect shall be made by such commercial bank either in the Bank Guarantee itself or separately on its letterhead.	
10.	Bidder confirms acceptance to Delivery/Completion Period as per Bid Document	
11.	(i) Bidder confirms acceptance of Price Reduction Schedule (PRS) for delay in delivery as specified in Bid Document. (ii) In case of delay, the bills shall be submitted after reducing the price reduction due to delay (refer PRS Clause).	
12.	a) Bidder confirms acceptance of all terms and conditions of Bid Document (all sections & enclosures). b) Bidder confirms that printed terms and conditions of Bidder are not applicable.	
13.	Bidder confirms that their offer is valid for period specified in BDS from the final 'Bid Due Date'.	
14.	Bidder confirms that (i) none of Directors (in Board of Director) of bidder is a relative of any Director (in Board of Director) of GAIL or (ii) the bidder is not a firm in which any Director (in Board of Director) of GAIL or their relative is a partner.	
15.	Bidder confirms that all correspondence must be in ENGLISH language only.	
16.	Bidder confirms that all Bank charges associated with Bidder's Bank regarding release of payment etc. shall be borne by Bidder.	
17.	Bidder confirms that the quoted prices is in compliance with the Section 171 of CGST Act/ SGST Act as mentioned as clause no. 13.10 of ITB (Anti-profiteering clause)	
18.	Bidder confirms that they have included GST (CGST & SGST/ UTGST or IGST) in Price Schedule of GeM.	
19.	Bidder confirms that GST registration details have been updated on GeM portal.	



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PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Sl.	DESCRIPTION	BIDDER'S CONFIRMATION
20.	Whether in the instant tender items are covered in reverse charge rule of GST (CGST & SGST/UTGST or IGST). If yes, Bidder confirms that they have included GST (CGST & SGST/ UTGST or IGST) in Price Schedule / Schedule of Rates of GeM	Yes/ No
21.	Bidder confirms that they have mentioned Harmonized System Nomenclature (HSN) in Bid.	
22.	Bidder confirms that (i) any variation in GST at the time of supplies for any reasons, other than statutory, including variations due to turnover, shall be borne by them and (ii) any error of interpretation of applicability of rate of GST (CGST & SGST/ UTGST or IGST) on components of an item and/or various items of tender by them shall be to bidder's account.	
23.	Whether bidder is liable to raise E-Invoice as per GST Act. If yes, bidder will raise E-Invoice and confirm compliance to provision of tender in this regard.	Yes/No
24.	Part Order: (a) Bidder confirms acceptance to Part Order. (b) Bidder confirms that any charges quoted extra as lumpsum shall be applicable prorata on value basis in the event of part order.	
25.	Testing and Inspection charges: Bidder confirms that goods and services are subject to stage-wise and final Inspection by Owner / Owner's Authorized representative. Travel, Living and Personnel expenses of Owner / Authorized representative shall be borne by Owner/ authorized representative.	
26.	No Deviation Confirmation: It may be note that any 'deviation / exception' in any form may result in rejection of Bid. Therefore, Bidder confirms that they have not taken any 'exception / deviation' anywhere in the Bid. In case any 'deviation / exception' is mentioned or noticed, Bidder's Bid may be rejected.	
27.	If the Bidder becomes a successful Bidder pursuant to the provisions of the Tender Document, the following Confirmation shall be automatically become enforceable: "Bidder agrees and acknowledges that the Employer is entering into the Contract/Agreement solely on its own behalf and not on behalf of any other person or entity. In particular, it is expressly understood & agreed that the Government of India is not a party to the Contract/Agreement and has no liabilities, obligations or rights thereunder. It is expressly understood and agreed that the Purchaser is authorized to enter into Contract/Agreement, solely on its own behalf under the applicable laws of India. Bidder expressly agrees, acknowledges and understands that the Purchaser is not an agent, representative or delegate of the Government of India. It is further understood and agreed that the Government of India is not and shall not be	



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Sl.	DESCRIPTION	BIDDER'S CONFIRMATION
	liable for any acts, omissions, commissions, breaches or other wrongs arising out of the Agreement. Accordingly, Bidder hereby expressly waives, releases and foregoes any and all actions or claims, including cross claims, VIP claims or counter claims against the Government of India arising out of the Agreement and covenants not to sue to Government of India as to any manner, claim, cause of action or things whatsoever arising of or under the Agreement."	
28.	Bidder hereby confirms that they are not on 'Holiday' by GAIL or Public Sector Project Management Consultant (like EIL, Mecon only due to "poor performance" or "corrupt and fraudulent practices") or banned by Government department/ Public Sector on due date of submission of bid. Further, Bidder confirms that neither they nor their allied agency/(ies) (as defined in the Procedure for Action in case of Corrupt/Fraudulent/Collusive/Coercive Practices) are on banning list of GAIL or the Ministry of Petroleum and Natural Gas.	
29.	The contents of this Tender Document have not been modified or altered by Bidder. In case, it is found that the tender document has been modified / altered by the bidder, the bid submitted by them shall be liable for rejection.	
30.	Bidder confirms that they have read and understood the General Conditions of Contract – Goods enclosed at Section-IV & no 'exception / deviation' anywhere has been taken in the same and that they shall abide by provisions of relevant GCC-Goods.	
31.	Bidder certifies that they would adhere to the Fraud Prevention Policy of GAIL [available on GAIL's website (www.GAILonline.com)] and shall not indulge themselves or allow others (working in GAIL) to indulge in fraudulent activities and that they would immediately apprise GAIL of the fraud/suspected fraud as soon as it comes to their notice. Concealment of facts regarding their involvement in fraudulent activities in connection with the business transaction(s) of GAIL is liable to be treated as crime and dealt with by the procedures of GAIL as applicable from time to time.	
32.	Bidders confirm to submit signed copy of Integrity Pact (wherever included in tender). If Bidder is a partnership concern or a consortium, this agreement must be signed by all partners or consortium members.	Not Applicable
33.	Bidder confirms that there is no conflict of interest with other bidders, as per clause no. 4.2 of Section-III (ITB) of Tender Document.	



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Sl.	DESCRIPTION	BIDDER'S CONFIRMATION
34.	In case of any variance in the terms and conditions between GeM Contract and SAP PO/LOA, the terms and conditions of SAP PO/LOA shall prevail.	
35.	Bidder confirms that as specified in tender that evaluation bids will be based on the confirmations & documents submitted by bidders in the their bid and methodology specified in Section II of tender document irrespective of the status/evaluation on GeM portal and GAIL's decision in this regard shall be final.	
36.	As per GEM policy/guidelines, MSE bidders have to update their status in their Profile and declare whether they are participating as MSE on GeM Portal (including updating their status in Profile) while submitting the bid on GeM tender. Further, MSE are required to upload relevant documents in bid as per provision of tender. However, evaluation and applicability of EMD exemption and purchase preference policy will be based on the confirmations & documents submitted by the bidder in the their bid irrespective of selection/option made on GeM portal. (Applicable only for MSE Bidders).	
37.	Confirm that, in case of contradiction between the confirmations provided in this format and terms & conditions mentioned elsewhere in the offer, the confirmations given in this format shall prevail.	

Place:

Date:

[Signature of Authorized Signatory of Bidder]

Name:

Designation:

Seal:



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

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ACKNOWLEDGEMENT CUM CONSENT LETTER

(On receipt of Tender Document/information regarding the tender, Bidder shall acknowledge the receipt and confirm his intention to bid or reason for non-participation against the enquiry /tender through e-mail/fax to Purchase Officer in GAIL who issued the Tender Document, by filling up the Format)

To,

M/s GAIL (INDIA) LIMITED
VADODARA

SUB: GEM BID NO. GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28) FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL(INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Dear Sir,

We hereby acknowledge receipt of a complete set of Tender Document along with enclosures for subject item/job and/or the information regarding the subject tender.

- We intend to bid as requested for the subject item/job and furnish following details with respect to our quoting office:

Postal Address with Pin Code:
 Telephone Number :
 Fax Number :
 Contact Person :
 E-mail Address :
 Mobile No. :
 Date :
 Seal/Stamp :

- We are unable to bid for the reason given below:

Reasons for non-submission of bid:

Agency's Name :
 Signature :
 Name :
 Designation :
 Date :
 Seal/Stamp :



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

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BIDDER'S EXPERIENCE

To,

M/s GAIL (INDIA) LIMITED
VADODARA

SUB: GEM BID NO. GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28) FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL(INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Sl. No	Description of the Services	LOA /WO No. and date	Full Postal Address & phone nos. of Client. Name, designation and address of Engineer/ Officer-in-Charge (for cases other than purchase)	Value of Contract/Order (Specify Currency Amount)	Date of Commencement of Services	Scheduled Completion Time (Months)	Date of Actual Completion	Reasons for delay in execution, if any
(1)	(2)	(3)	(5)	(6)	(7)	(8)	(9)	(10)

Place:
Date:

[Signature of Authorized Signatory of Bidder]
Name:
Designation:
Seal:

Note:

Only documents (Work Order, Completion certificate, Execution Certificate etc.) which have been referred/ specified in the bid shall be considered in reply to queries during evaluation of Bids. Any new document submitted against representation option provided on GeM portal shall also be not considered for re-valuation of bid.



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

F-8 (A)
CHECK LIST

Bidders are requested to duly fill in the checklist. This checklist gives only certain important items to facilitate the Bidder to make sure that the necessary data/information as called for in the Tender Document has been submitted by them along with their offer/Bid. This, however, does not relieve the Bidder of his responsibilities to make sure that his Bid is otherwise complete in all respects.

Please ensure compliance and tick (✓) against following points:

S. No.	DESCRIPTION	CHECK BOX	REFERENCE PAGE NO. OF THE BID SUBMITTED
1.0	Confirm that the following details have been submitted in the Un-priced part of the Bid		
i	Covering Letter, Letter of Submission		
ii	Earnest Money Deposit / Declaration for Bid Security		
iii	Duly signed Tender Document along with drawings and addendum (if any)		
iv	Power of Attorney in the name of person signing the bid.		
v	Confirm submission of documents alongwith unpriced bid as per tender requirement (including cl.no.11.1.1 of Section-III).		
2.0	Confirm that all forms duly filled in are enclosed with the bid duly signed by authorised person(s)		
3.0	Confirm that the price part is uploaded in GeM portal.		
4.0	Confirm that Undertaking as per Form 1 of Annexure-II to Section-III has been submitted (applicable for MSE and Class I Local supplier).		
5.0	Confirm that Undertaking as per <i>Form-2 to Annexure-II to Section-III</i> and Certification from the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of other than companies) as per <i>Form-3 to Annexure-II to Section-III</i> are submitted (Applicable for all bidders including MSEs bidders).		
6.0	Confirm that Undertaking as per Form-1 to Section-II have been submitted by the bidder (Guidelines from Procurement from a Country sharing a Land Border with India)		
7.0	Confirm submission of Checklist against Bid Evaluation Criteria as per format F-8(B)		

Place:

Date:

[Signature of Authorized Signatory of Bidder]

Name:

Designation:

Seal:



**GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.**

F-8 (B)

**CHECKLIST FOR BID EVALUATION CRITERIA (BEC) QUALIFYING DOCUMENTS
(Refer Section II of Tender document)**

BEC Clause No.	Description	Documents required for qualification	Documents Submitted by Bidder	Documents attested as per Section-II of Tender	Reference Page No. of the Bid submitted
Technical BEC					
1.	Experience	AS MENTIONED ABOVE IN SECTION-II	Yes/No		
2.	Job executed for Subsidiary / Fellow subsidiary/ Holding company.		Yes/No		
3.	Any other technical criteria in BEC		Yes/No		
Financial BEC					
1.	Annual Turn Over	AS MENTIONED ABOVE IN SECTION-II	Submitted (Mention specific year.....)	Yes/No	
2.	Net Worth		Submitted (Mention specific year.....)	Yes/No	
3	Working Capital		Submitted (Mention specific year.....) Submitted/ Not Applicable (Bidder to tick appropriate option)	Yes/No	
4.	Format for Details of financial capability of Bidder		Submitted	Yes/No	

Place:
Date:

[Signature of Authorized Signatory of Bidder]
Name:
Designation:
Seal:



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

F-9
FORMAT FOR CERTIFICATE FROM BANK
IF BIDDER'S WORKING CAPITAL IS INADEQUATE/NEGATIVE

(To be provided on Bank's letter head)

Date:

To,

M/s. GAIL (India) Limited

Dear Sir,

This is to certify that M/s (name of the Bidder with address) (hereinafter referred to as Customer) is an existing Customer of our Bank.

The Customer has informed that they wish to bid for GAIL's Tender No. dated for (Name of the supply/work/services/consultancy) and as per the terms of the said Tender Document they have to furnish a certificate from their Bank confirming the availability of line of credit.

Accordingly, M/s (name of the Bank with address) confirms availability of line of credit to M/s (name of the Bidder) for at least an amount of Rs. _____

It is also confirmed that the net worth of the Bank is more than Rs. 100 Crores (or Equivalent USD) and the undersigned is authorized to issue this certificate.

Yours truly

for (Name & address of Bank)

(Authorized signatory)

Name of the signatory :

Designation :

Email Id :

Contact No. :

Stamp

Note:

This Declaration Letter for line of credit shall be from single bank only. Letters from multiple banks shall not be applicable. However, banking syndicate will be acceptable wherein a group of banks can jointly provide line of credit to the bidder.



**GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.**

F-10

FORMAT FOR CHARTERED ACCOUNTANT CERTIFICATE/ CERTIFIED PUBLIC ACCOUNTANT (CPA) FOR FINANCIAL CAPABILITY OF THE BIDDER

We have verified the Audited Financial Statements and other relevant records of M/s.....
..... (Name of the bidder) and certify the following:

A. AVERAGE ANNUAL FINANCIAL TURNOVER* DURING THE LAST THREE FINANCIAL YEARS:

Year	Amount (Currency)
Year 1: FY:	
Year 2: FY:	
Year 3: FY:	
Total (A)	
Average Annual Financial Turnover during the last three financial years (A/3)	

B. NET WORTH* AS PER AUDITED FINANCIAL STATEMENT OF PRECEDING FINANCIAL YEAR:

Description	Year FY:
	Amount (Currency)
1. Net Worth	

C. WORKING CAPITAL*AS PER AUDITED FINANCIAL STATEMENT OF PRECEDING FINANCIAL YEAR:

Description	Year FY:
	Amount (Currency)
1. Current Assets	
2. Current Liabilities	
3. Working Capital (Current Assets-Current liabilities)	

****Refer Instructions on page 2 of 2***

Notes:

- It is further certified that the above-mentioned applicable figures are matching with the returns filed with Registrar of Companies (ROC).
- We confirm that above figures are after referring instructions at page 2 of 2 of Format F-10.
- Practicing Chartered Accountants shall generate Unique Document Identification Number (UDIN) for all certificates issued by them.

Name of Audit Firm:
Chartered Accountant/CPA
Date:

[Signature of Authorized Signatory]
Name:
Designation:
Seal:
Membership No.:
UDIN:



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Instructions for Format F-10:

1. The Separate Pro-forma shall be used for each member in case of JV/ Consortium.
2. The financial year would be the same as one normally followed by the bidder for its Annual Report.
3. The bidder shall provide the audited annual financial statements as required for this Tender document. Failure to do so would result in the Proposal being considered as non- responsive.
4. For the purpose of this Tender document:
 - (i) **Annual Turnover** shall be “Revenue from Operations” as per Profit & Loss account of audited annual financial statements”

In case the date of constitution/incorporation of the bidder is less than 3 years old, the average turnover in respect of the completed financial years after the date of constitution/ incorporation shall be taken into account for minimum Average Annual Financial Turnover criteria.
 - (ii) **Working Capital** shall be “Current Assets less Current liabilities” and
 - (iii) **Net Worth** shall be Paid up share capital plus Free Reserves & Surplus less accumulated losses, deferred expenditure and miscellaneous expenditure not written off, if any.
5. **Above figures shall be calculated after considering the qualification, if any, made by the statutory auditor on the audited financial statements of the bidder including quantified financial implication.**
6. This certificate is to be submitted on the letter head of Chartered Accountant/CPA.



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

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BIDDER'S QUERIES FOR PRE-BID MEETING

To,

M/s GAIL (INDIA) LIMITED
VADODARA

SUB: GEM BID NO. GEM/2026/B/7786440(GAIL/VAG/C&P/KK/26/P-28) FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL(INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

SL. NO.	REFERENCE OF BIDDING DOCUMENT				BIDDER'S QUERY	GAIL'S REPLY
	SEC. NO.	Page No.	Clause No.	Subject		

NOTE: The Pre-Bid Queries may be sent by fax / e-mail before due date for receipt of Bidder's queries in terms of Clause No. 8.1 of ITB.

Signature of Authorised Representative of Bidder: _____

Name of Bidder: _____



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

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E-Banking Mandate Form

(Applicable only in case Bidder's bank account is not mapped in GAIL)

(To be issued on vendors letter head)

1. Vendor/customer Name:
2. Vendor/customer Code:
3. Vendor /customer Address:
4. Vendor/customer e-mail id:
5. Particulars of bank account
 - a) Name of Bank
 - b) Name of branch
 - c) Branch code:
 - d) Address:
 - e) Telephone number:
 - f) Type of account (current/saving etc.)
 - g) Account Number:
 - h) RTGS IFSC code of the bank branch
 - i) NEFT IFSC code of the bank branch
 - j) 9-digit MICR code

I/We hereby authorize GAIL(India) Limited to release any amount due to me/us in the bank account as mentioned above. I/We hereby declare that the particulars given above are correct and complete. If the transaction is delayed or lost because of incomplete or incorrect information, we would not hold the GAIL (India) Limited responsible.

(Signature of vendor/customer)

BANK CERTIFICATE

We certify that ----- has an Account no. ----- with us and we confirm that the details given above are correct as per our records.

Bank stamp

Date

(Signature of authorized officer of bank)



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

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INTEGRITY PACT

NOT APPLICABLE



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

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FREQUENTLY ASKED QUESTIONS (FAQs)

SL. NO	QUESTION	ANSWER
1.0	Can any vendor quote for subject Tender?	Yes. A Vendor has to meet Bid Evaluation Criteria given under Section II of Tender document in addition to other requirements.
2.0	Should the Bid Evaluation Criteria documents be attested?	Yes. Please refer Section II of Tender document
3.0	Is attending Pre-Bid Meeting mandatory.	No. Refer Clause No. 17 of Instruction to Bidders of Tender Document. However, attending Pre-Bid Meeting is recommended to sort out any issue before submission of bid by a Bidder.
4.0	Can a vendor submit more than 1 offer?	No. Please refer Clause No. 4 of Instruction to Bidders of Tender Document.
5.0	Is there any Help document available for GeM.	Refer training module presentations and FAQs as available on GeM Portal.
6.0	Are there are any MSE (Micro & Small Enterprises) benefits available?	Yes. Refer Clause No. 40 of Instructions to Bidders of Tender Document.
7.0	Are there are any benefits available to Startups?	Refer Clause No. 48 of Instructions to Bidders of Tender Document.

All the terms and conditions of Tender remain unaltered.



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

F-15

UNDERTAKING REGARDING SUBMISSION OF ELECTRONIC INVOICE (E-INVOICE AS PER GST LAWS)
(to be submitted on letter head along with documents for release of payment)

To,
M/s GAIL (INDIA) LIMITED
.....

SUB:
PO NO:

Dear Sir,

We _____ (Name of the Supplier) hereby confirm that E-Invoice provision as per the GST Law is

- (i) Applicable to us []
- (ii) Not Applicable to us []

(Supplier is to tick appropriate option (✓) above).

In case, same is applicable to us, we confirm that we will submit E-Invoice after complying with all the requirements of GST Laws. If the invoice issued without following this process, such invoice can-not be processed for payment by GAIL as no ITC is allowed on such invoices. We also confirm that If input tax credit is not available to GAIL for any reason attributable to Supplier (both for E-invoicing cases and non-E-invoicing cases), then GAIL shall not be obligated or liable to pay or reimburse GST (CGST & SGST/UTGST or IGST) claimed in the invoice(s) and shall be entitled to deduct / setoff / recover such GST amount (CGST & SGST/UTGST or IGST) or Input Tax Credit amount together with penalties and interest, if any, by adjusting against any amounts paid or becomes payable in future to the Supplier under this contract or under any other contract.

Place:
Date:

[Signature of Authorized Signatory of Bidder]
Name:
Designation:
Seal:



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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**NO CLAIM CERTIFICATE
(TO BE SUBMITTED BEFORE RELEASE OF CPS/SECURITY DEPOSIT)**

[On the Letter-head of Contractor]

We, _____, a company incorporated under the laws of India/ a Consortium between *____ and *____ (name of Consortium partners to be inserted)/ a Partnership Firm consisting of *____ and *____ (name of Partners to be inserted)/ a Sole Proprietorship (as the case may be), having its registered office at _____ and carrying on business under the name and style M/s. _____ were awarded the contract by GAIL (India) Ltd. in reference to Tender No. _____ dated _____ (“Order/Contract”).

After completion of the above-said items/job under the Order/Contract, we have scrutinized all our claims, contentions, disputes, issues and we hereby confirm that after adjusting all payments received by us against our R.A. Bills and final bill, we have no claims, dues, issues and contentions from GAIL (India) Ltd.

We further absolve GAIL (India) Ltd. from all liabilities present or future arising directly or indirectly out of the Contract.

There is no economic duress or any other compulsion on us for submission of this no claim certificate.

Place:
Date:

[Signature of Authorized Signatory of Service Provider]
Name:
Designation:
Seal:



**GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.**

SECTION-IV

GENERAL CONDITIONS OF
CONTRACT - GOODS [Rev.1]

&

GENERAL CONDITIONS OF
CONTRACT-SERVICES

FOR

PROCUREMENT OF GOODS AND
SERVICES

GAIL (India) Limited



**GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
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GCC- GOODS

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DEFINITIONS, INTERPRETATIONS & PRIORITY OF CONTRACT DOCUMENTS

1.0 Definitions

In this document, General Conditions of Contract (GCC-Goods), the following terms shall have the following respective meanings:

- 1.0.1 "Approved" means prior approval in writing.
- 1.0.2 The "Bid" or "Tender" "Offer" means the proposal along with supporting documents submitted before Notification of Award by the Bidder for consideration / acceptance by the Purchaser.
- 1.0.3 "Bidder" Designates the person(s) or legal entity / Firm / Company /Corporation /Organisation, and it's legal representatives, successors and permitted assigns which has made a proposal or submitted Bid/Tender/Offer with the aim of concluding a Contract with the Purchaser.
- 1.0.4 "Consultant" or "PMC" [if engaged] shall mean M/s.having its registered office at..... who are the consultant to the Purchaser for this Contract. The term Consultant includes successors, assigns of M/s.
- 1.0.5 "Contract" shall mean all obligations, commitments, promises agreed upon between Purchaser and Supplier for supply of Goods including execution of the Services (if any) as per Purchase Order (PO) and its subsequent amendment(s), if any in writing thereto.
- 1.0.6 "Contract Price" or "Purchase Order Value" shall mean the total sum accepted or the total sum calculated in accordance with the prices accepted in the Contract as payable to the Supplier under the Contract for the full and proper performance of its contractual obligations. The Contract Price /Purchase Order Value is subject to Price Reduction Schedule clause.
- 1.0.7 "Completion Date" shall mean the date on which the supplied Goods are successfully commissioned by the Supplier and handed over to the Purchaser.
- "Delivery Date" shall be the date on which Goods are supplied by Supplier as per delivery terms of the Contract.
- 1.0.8 "Commercial Operation" shall mean the condition of the operation in which the complete Goods / equipment covered under the Contract is officially declared by the Purchaser to be available for continuous operation at different loads upto and including rated capacity.
- 1.0.9 "Day" shall mean a day of 24 hours from midnight to midnight irrespective of the number of hours worked in that day.



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1.0.10 “Delivery” shall mean the transfer of the Goods from the Supplier to the Purchaser in accordance with the terms and conditions set forth in the Contract.

Delivery terms shall be interpreted as per current edition of INCOTERMS, published by the International Chamber of Commerce before the due date of submission of Bid

1.0.11 “Drawings” shall mean and include Engineering drawings, sketches showing plans, sections and elevations in relation to the Contract together with modifications and/or revisions thereto.

1.0.12 “Engineer” or “Engineer-in-Charge” shall mean the person designated from time to time by Purchaser/Consultant and shall include those who are expressly authorized to act for and on behalf of Purchaser/Consultant for operation of this Contract.

1.0.13 “Fax of Acceptance” shall mean intimation regarding notification of award by the Purchaser/Consultant to the successful Bidder/Supplier through a fax/ letter/ email conveying that the Tender/Bid/Offer has been accepted in accordance with the provisions contained therein.

1.0.14 “Final Acceptance” shall mean the Purchaser’s written acceptance of the Goods supplied and works/Services performed under the Contract after successful completion of performance and guarantee test, at/after the Completion Date.

1.0.15 “Goods” shall mean articles, materials, equipment, machinery, instruments, stores, design and drawings, data and other property to be supplied by Supplier including Services (if any), to complete the Contract and Amendment(s) thereto.

1.0.16 “Inspector” shall mean any person or third party Agency nominated by Purchaser/ Consultant to inspect Goods, stage wise as well as final, before dispatch, at Supplier’s works and/or on receipt at Site as per terms of the Contract.

1.0.17 “Initial Operation” shall mean the first integral operation of the complete Goods covered under the Contract with sub-systems and supporting equipment(s) in service or available for service.

1.0.18 “Purchase Order” means the Contract Document/Order collectively the Tender Documents, Designs, Drawings, Specification, Bill of Quantities, Schedule of Rates alongwith its break-up (if any), Fax of Acceptance (if any), agreed variations and amendments (if any) and such other documents constituting the Tender and acceptance thereof.

1.0.19 “Purchaser” shall mean GAIL (INDIA) LIMITED (GAIL) having its registered office at 16, BHIKAIJI CAMA PLACE, R.K.PURAM, NEW DELHI-110066 (INDIA). The term Purchaser includes successors, assigns of GAIL

1.0.20 “Performance and Guarantee Tests” shall mean all operational checks and tests required to determine and demonstrate capacity, efficiency and operating characteristics as specified in the Purchase Order.

1.0.21 “Project” designates the aggregate of the Goods and/or Services to be provided by one or more Suppliers/Contractors.



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- 1.0.22 “Quantities / Bills of Quantities” designate the quantity calculations to be taken into account when these calculations are made from detailed or construction drawings or from work actually performed, and presented according to a jointly agreed breakdown of the Goods and/or Services.
- 1.0.23 “Supplier” shall mean the successful Bidder whose Bid has been accepted by the Purchaser for supply of Goods and incidental Services (if any). The term Supplier is a synonyms of Seller and Vendor/Contractor and also includes its successor(s) and permitted assign(s).
- 1.0.24 “Service” shall mean those services ancillary to the supply of Goods, such as transportation and insurance and any other incidental services such as erection, installation, testing, commissioning, provision of technical assistance, training and other such obligations of the Supplier covered under the Contract.
- 1.0.25 “Site” means the land(s) and other place(s) on, under, in or across/through which the Goods and/or Services have to be supplied, erected, assembled, adjusted, tested, arranged and/or commissioned.
- 1.0.26 “Specifications” shall mean and include schedules, details, description, statement of technical data, performance characteristics, standards (Indian and/or International) and standard specifications including all addenda/corrigenda published before entering into the Contract, as applicable and specified in the Contract.
- 1.0.27 “Sub-Contract” shall mean order placed by the Supplier, for any portion of the Contract, after necessary consent and prior written approval of Purchaser unless otherwise explicitly mentioned in the Contract.
- 1.0.28 “Sub-Contractor” shall mean the person(s) / firm / Organisation / company (other than the Supplier) and it’s legal representatives, successors and permitted assigns named in the Contract for supply of any part of the Goods or Service(s) or to whom any part of the Contract has been sub-let by the Supplier with the prior consent in writing of the Consultant/Purchaser unless otherwise explicitly mentioned in the Contract.
- 1.0.29 “Start-Up” shall mean the time period required to bring the Goods covered under the Contract from an inactive condition, when construction is essentially complete to the state of readiness for trial operation. The start-up period shall include preliminary inspection and check out of Goods and supporting subsystems, initial operation of the complete Goods covered under the Contract to obtain necessary pre-trial operation data, perform calibration and corrective action, shutdown inspection and adjustment prior to the trial operation period.
- 1.0.30 “Tests” shall mean such process or processes to be carried out by the Supplier as are prescribed in the Contract or considered necessary by Purchaser or his representative in order to ascertain quality, workmanship, performance and efficiency of Goods or part thereof.
- 1.0.31 “Tests on Completion” shall mean such tests as prescribed in the Contract to be performed by the Supplier before the complete Goods and Services are taken over by the Purchaser.
- 1.0.32 “Week” shall mean a period of any consecutive seven Days.



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1.1 Interpretations & Priority of Contract Documents

1.1.1 The documents forming the Contract are to be read together and interpreted as mutually explanatory of one another. If there is a direct inconsistency in specific obligation(s), then for the purposes of interpretation, and unless otherwise provided in the Contract, the priority of the Contract Documents shall be in accordance with following sequence:

- (i) Purchase Order
- (ii) Fax of Acceptance
- (iii) Specific Technical Specification/Job Specifications (pertaining to Scope of Supply)
- (iv) Drawings
- (v) Special Purchase Conditions (SPC) / Special Conditions of Contract (SCC)
- (vi) General Technical Specifications (if applicable)
- (vii) Instructions to Bidders (ITB)
- (viii) General Conditions of Contract (GCC)
- (ix) Any other document forming part of the Contract

A Amendment issued to Purchase Order after signing of formal Contract shall take precedence over respective clauses of the formal Contract and its annexures.

The higher priority interpretation shall be adopted only to the extent required to deal with an inconsistency. Specific term(s) agreed take priority over general statement(s) and terms in Contract Document created at a later date govern over terms in earlier Contract Document. Subject to foregoing, the terms of the groups of documents set out above have equal importance within their group.

1.1.2 Headings and Marginal Notes: All headings and marginal notes to the clauses of these General Conditions of Contract or to the Specifications or to any other Tender Document are solely for the purpose of giving a concise indication and not a summary of the contents thereof, and they shall never be deemed to be part thereof or be used in the interpretation thereof the Contract.

1.1.3 Singular and Plural: In Contract Documents unless otherwise stated specifically, the singular shall include the plural and vice versa wherever the context so requires.

1.1.4 Interpretation: Words implying 'Person(s)/Party(ies)' shall include relevant Corporate Companies / Registered Associations/ Body of Individuals/ Firm of Partnership' and any firm/organization having legal capacity, as the case may be.

1.1.5 Gender: Where the context so requires, words imparting the masculine gender shall also include the feminine gender and the neuter gender and vice versa.

1.1.6 Severability: Should any provision of this Contract be found to be invalid, illegal or otherwise not enforceable by any court of law, such finding shall not affect the remaining provisions hereto and they shall remain binding on the parties hereto.

1.1.7 Incoterms:



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- (i) The meaning of any trade term and the rights and obligations of Parties thereunder shall be as prescribed by Incoterms® 2020 or its latest version.
- (ii) EXW, FOB, FCA, CIF, CIP& CPT and other similar terms, shall be governed by the rules prescribed in the Incoterms® 2020 or its latest version, published by the International Chamber of Commerce, applicable as on due date of submission of Bid.

2.0 SUPPLIER TO INFORM

- 2.1 The Supplier shall be deemed to have carefully examined all Contract documents to his entire satisfaction. Any lack of information shall not in any way relieve the Supplier of his responsibility to fulfill his obligation under the Contract.

3.0 APPLICATION

- 3.1 These General Conditions of Contract (GCC-Goods) shall apply to the extent that they are not superseded by provisions of other parts of the Contract.

4.0 COUNTRY OF ORIGIN

- 4.1 All goods and services supplied under the contract shall have their Origin as quoted by the Bidder and accepted by Purchaser.
- 4.2 For purposes of this Clause “Origin” means the place where the Goods were mined, grown or produced, or from which the Services are supplied. Goods are produced when, through manufacturing, processing or substantial and major assembling of components, a commercially recognized new product results that is substantially different in basic characteristics or in purpose or utility from its components.
- 4.3 In case of Contract with foreign Suppliers, a certificate issued by relevant Chamber of Commerce specifying Country of Origin shall form part of shipping/dispatch documents.
- 4.4 The Origin of goods and services is distinct from the nationality of the Supplier.
- 4.5 In case of any export/re-export control restrictions imposed by parent country of Bidder / country of origin on the Goods offered/supplied regarding Goods’ end use or end user, then Bidder shall intimate the same upfront in their offer. In such case, right to accept or reject the Bid of such Bidder shall be decided by Purchaser on it’s sole discretion.

5.0 SCOPE OF CONTRACT

- 5.1 Scope of the Contract shall be as defined in the Purchase Order/Contract Document(s) and Annexure thereto.
- 5.2 Completeness of the Goods and Services shall be the responsibility of the Supplier. Any equipment, fittings and accessories which may not be specifically mentioned in the Scope, Specifications or drawings, but which are usual or necessary for the satisfactory functioning of the Goods (i.e. successful operation



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and functioning of the Equipment being Supplier's responsibility) shall be provided by Supplier without any extra cost.

- 5.3 The Supplier shall follow the good engineering practices in the manufacture of Goods/Equipment(s) notwithstanding any omission in the Specifications. The true intent and meaning of these documents is that Supplier shall in all respects, design, engineer, manufacture and supply the Goods, equipment in a thorough workmanlike manner and supply the same in prescribed time to the entire satisfaction of Purchaser.
- 5.4 The Supplier shall furnish three (3) copies in English language of Technical documents, final drawings, preservation instructions, operation and maintenance manuals, test certificates, spare parts catalogues for all equipments to the Purchaser. The Supplier shall also furnish the above in computer readable soft copies in PDF format or equivalent by electronic mode.
- 5.5 The documents once submitted by the Supplier shall be firm and final and not subject to subsequent changes unless otherwise explicitly agreed by the Purchaser in writing. The Supplier shall be responsible for any loss to the Purchaser/Consultant consequent to furnishing of incorrect data/drawings.
- 5.6 All dimensions and weight should be in metric system.
- 5.7 All equipment to be supplied and work to be carried out under the Contract shall conform to and comply with the provisions of relevant regulations/Acts a(State Government or Central Government) as may be applicable to the type of equipment/work carried out and necessary certificates shall be furnished.
- 5.8 The Supplier shall provide cross sectional drawings, wherever applicable, to identify the spare part numbers and their location
- 5.9 Specifications, design and drawings issued to the Supplier alongwith Tender Document/RFQ and Contract are not sold or given but loaned. These remain property of Purchaser/Consultant or its assigns and are subject to recall by Purchaser/Consultant. The Supplier and his employees shall not make use of the drawings, specifications and technical information for any purpose at any time except for manufacture against the Contract and shall not disclose the same to any person, firm or corporate body, without prior written permission of Purchaser/Consultant. All such details shall be kept confidential.
- 5.10 Supplier shall pack, protect, mark and arrange for dispatch of Equipment as per instructions given in the Contract.
- 5.11 The Supplier on his own behalf and on behalf of Sub-Contractor(s) hereby represents that both have full legal right, power and authority to transfer the ownership of the equipment/material to Purchaser.

6.0 STANDARDS

- 6.1 The Goods supplied under the Contract shall conform to the standards mentioned in the Technical Specifications, or such other standards which ensure equal or higher quality, and when no applicable standard is mentioned, to the authoritative standard appropriate to the Goods' country of origin and such standards shall be the latest issued by the concerned institution(s).



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7.0 INSTRUCTIONS, DIRECTION & CORRESPONDENCE

- 7.1 The Goods described in the Contract are to be supplied according to the standards, data sheets, tables, specifications and drawings attached thereto and/or enclosed with the Contract, itself and according to all conditions, both general and specific enclosed with the contract, unless any or all of them have been modified or cancelled in writing as a whole or in part.
- 7.2 All instructions and orders to Supplier shall, excepting what is herein provided, be given by Purchaser/Consultant.
- 7.3 All provision of Goods and supply of Services shall be carried out under the direction of and to the satisfaction of Purchaser/Consultant.
- 7.4 All communications including technical/commercial clarifications and/or comments shall be addressed to Purchaser/Consultant and shall always bear reference to the Purchase Order number.
- 7.5 Invoices for payment against Contract shall be addressed to Purchaser.
- 7.6 The Purchase Order number shall be shown on all invoices, communications, packing lists, containers and bills of lading, etc.

8.0 CONTRACT OBLIGATIONS

- 8.1 Purchaser will be the sole judge in the matter of award of Contract and the decision of Purchaser shall be final and binding on the Supplier.

The Acceptance of Tender/Bid will be intimated to the successful Bidder by the Purchaser through notification of award of Contract either by fax / e - mail /letter or like means defined as Fax of Acceptance (FOA). The Contract shall enter into force on the date of Notification of Award and the same shall be binding on Purchaser and Supplier.

- 8.2 If after award of the Contract, the Supplier does not acknowledge the receipt of FOA/PO or fails to furnish the Contract Performance Security within the prescribed time limit, the Purchaser reserves the right to cancel the Contract and apply all remedies available to him under the terms and conditions of this Contract.
- 8.3 Once a Contract enters into force, the terms and conditions contained therein shall take precedence over the Supplier's bid and all previous correspondence.

8.4 Supplier's Responsibilities

- 8.4.1 The Supplier shall supply all the Goods and incidental Services as per terms and conditions of Purchase Order within the Delivery and Completion schedule mentioned therein.



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8.5 Purchaser's Responsibilities

- 8.5.1 Whenever the supply of Goods and incidental Services requires that the Supplier obtain permits, approvals, and import and other licenses from local public authorities, the Purchaser shall, if so required by the Supplier, make its best effort to assist the Supplier in complying with such requirements in a timely and expeditious manner.

8.6 Joint and Several Responsibility:

- 8.6.1 Where Supplier's Goods/Equipment(s) or any part thereof are to be used jointly with other equipment(s) supplied by another manufacturer(s), the name of the such manufacturer(s) will be communicated separately to Supplier, the Purchaser/Consultant will hold Supplier and the manufacturer(s) jointly and severally responsible for the perfect operation of the entire group or section of equipment as regard the technical and mechanical characteristics stipulated in the specification. Such responsibility shall also include the mechanical coupling as well as dynamic and starting moment.
- 8.6.2 Consequently, Supplier shall establish and maintain all necessary contact with the manufacturer to be indicated by Purchaser/Consultant with a view to ensuring the exchange of all relevant data and information.

9.0 MODIFICATION IN CONTRACT

- 9.1 All modifications leading to changes in the Contract with respect to technical and/or commercial aspects including terms of delivery, shall be considered valid only when accepted in writing by Purchaser/Consultant by issuing amendment to the Contract. Issuance of acceptance or otherwise in such cases shall not be any ground for extension of agreed delivery date and also shall not affect the performance of contract in any manner except to the extent mutually agreed through a modification of Contract.
- 9.2 Based on the requirement, the Purchaser/Consultant in writing shall have the right to change the quantities, specifications, drawings etc. without changing the indented purpose of the Contract. If such changes cause an increase or decrease in the price or time required for the supply, the Supplier shall submit the proposal indicating the implications along with documentary evidence/ back-up documents/ calculations within 7 days, for review and processing of change order/amendment to the Contract by Purchaser/Consultant. On receipt of the amendment to the Contract, Supplier shall execute the change order.
- 9.3 Purchaser/Consultant shall not be bound by any printed conditions or provisions in the Supplier's Bid Forms or acknowledgment of Contract, invoices, packing list and other documents which purport to impose any conditions at variance with or supplemental to Contract.

10.0 USE OF CONTRACT DOCUMENTS & INFORMATION



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- 10.1 The Supplier shall not, without the Purchaser's/Consultant's prior written consent, disclose the Contract or any provision thereof, or any specification, plan, drawing, pattern, sample or information furnished by or on behalf of the Purchaser in connection therewith, to any person other than a person employed by the Supplier in the performance of the Contract. Disclosure to any such employed person shall be made in confidence and shall extend only so far as may be necessary for purpose of such performance.
- 10.2 The Supplier shall not, without the Purchaser's prior written consent, make use of any document or information enumerated in clause no. 10.1. except for purpose of performing the Contract.

11.0 PATENT RIGHTS, LIABILITY & COMPLIANCE OF REGULATIONS

- 11.1 Supplier hereby warrants that the use or sale of the materials delivered hereunder will not infringe claims of any patent covering such material and Supplier agrees to be responsible for and to defend at his sole expense all suits and proceedings against Purchaser based on any such alleged patent infringement and to pay all costs, expenses and damages which Purchaser and/or Consultant may have to pay or incur by reason of any such suit or proceedings.
- 11.2 The Supplier shall, indemnify and hold harmless the Purchaser/Consultant and its employees and officers from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of any nature, including attorney's fees and expenses, which the Purchaser/Consultant may suffer as a result of any infringement or alleged infringement of any patent, utility model, registered design, trademark, copyright, industrial design rights or other intellectual property right registered or otherwise by reason of
- (a) the installation or the use of the Goods or any part thereof in the country where the Site is located; and
- (b) the sale of the products (which is produced by use of the Goods) in any country.
- 11.3 Supplier shall also protect and fully indemnify the Purchaser from any claims from Supplier's workmen/employees or their heirs, dependents, representatives, etc. or from any other person(s) or company(ies) etc. for any acts of commissions or omission while executing the Contract.
- 11.4 Supplier shall be responsible for compliance with all requirements under the laws and shall protect and indemnify completely the Purchaser from any claims/penalties arising out of any infringements.

12.0 CONTRACT PERFORMANCE SECURITY (CPS):

- 12.1 Within 30 days after the Supplier's receipt of FOA, the Supplier shall furnish Contract Performance Security (CPS) in the form of Demand Draft/online direct transfer/Bank Guarantee in the format attached as Appendix-III, for an amount equivalent to defined percentage (mentioned in tender/ FOA) of the total Purchase Order Value excluding GST on finished goods or for the amount mentioned in the Tender Document/FOA.
- 12.2 The proceeds of CPS shall be appropriated by the Purchaser as compensation for any loss resulting from the Supplier's failure to complete his obligations under the Contract without prejudice to any of the rights or remedies the Purchaser may be entitled to as per terms and conditions of Contract. The proceeds of this CPS shall also govern the successful performance of Goods and Services during the entire period of Contractual Warrantee/Guarantee.



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In case of forfeiture of Contract Performance Security/ Security Deposit, the forfeited amount will be considered inclusive of tax and tax invoice will be issued by GAIL. The forfeiture amount will be subject to final decision of GAIL based on other terms and conditions of order/ contract.

- 12.3 The CPS shall be denominated in the currency of the Contract.
- 12.4 The CPS shall be valid for the duration upto expiry of Warrantee/Guarantee period with claim period as per the format attached as Appendix-III. The Bank Guarantee will be discharged by Purchaser within 3 months from the date of expiration of the Supplier's entire obligations, including any warrantee/guarantee obligations, under the Contract.
- 12.5 All compensation, claim or other sums of money payable by the Supplier to the Purchaser/Consultant under terms of this Contract may be deducted from or paid by the encashment or sale of a sufficient part of his Contract Performance Security or from any sums which may be due or may become due to the Supplier by the Purchaser/Consultant of any account whatsoever and in the event of his CPS being reduced by reasons of any such deductions or sale of aforesaid, the Supplier shall within ten days thereafter make good in bank drafts/Bank Guarantee as aforesaid any sum or sums which may have been deducted from or realized by sale of his CPS, or any part thereof. The Supplier shall pay to the Purchaser/Consultant on demand any balance remaining due. No interest shall be payable by the Purchaser/Consultant for sum deposited as CPS and no claim whatsoever in this regard shall be entertained by Purchaser.

13.0 INSPECTION, TESTING & EXPEDITING

- 13.1 The Purchaser or its representative shall have the right to inspect and/or to test the Goods to confirm their conformity to the Contract specifications. The special conditions of Contract and/or the Technical Specifications shall specify what inspections and tests the Purchaser requires and where they are to be conducted. The Purchaser shall notify the Supplier in writing the identity of any representative(s) retained for these purposes.
- 13.2 The inspections and tests may be conducted on the premises of the Supplier or his sub-contractor(s), at point of Delivery and/or at the Goods' final destination. When conducted on the premises of the Supplier or his sub-contractor (s), all reasonable facilities and assistance including access to the drawings and production data shall be furnished to the inspectors at no charge to the Purchaser.
- 13.3 Should any inspected or tested Goods fail to conform to the Specifications, the Purchaser may reject them and the Supplier shall either replace the rejected Goods or make all alterations necessary to meet Specifications' requirements, free of cost to the Purchaser.
- 13.4 The Purchaser's right to inspect, test and where necessary reject the Goods after the Goods' arrival in the Purchaser's country shall in no way be limited or waived by reason of the Goods having previously been inspected, tested and passed by the Purchaser, or their representative prior to the Goods shipment from the country of Origin.



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- 13.5 The Inspector may follow the progress of the manufacture of the Goods under the Contract to ensure that the requirements outlined in the Contract are not being deviated with respect to schedule and quality. Supplier shall allow the Inspector to visit, during working hours, the workshops relevant for execution of the Contract during the entire period of Contract validity.
- 13.6 Any materials/goods covered under scope of Contract, which during the process of inspection by Inspector, at any stage of manufacture/fabrication and subsequent stages, prior to dispatch is found not conforming to the requirements/specifications of the Purchase Order, shall be liable for immediate rejection. Supplier shall be responsible and liable for immediate replacement of such material with acceptable material at no extra cost or impact on the delivery schedule to Purchaser.
- 13.7 In order to enable Purchaser's representatives to obtain entry visas in time, Supplier shall notify Purchaser two months before assembly, testing and packing of main Equipment. If requested, Supplier shall assist Purchaser's representatives in getting visas in the shortest possible time (applicable only in case of foreign order).
- 13.8 Supplier shall place at the disposal of the Inspector, free of charge, all tools, instruments, and other apparatus necessary for the inspection and/or testing of the Goods. The Inspector is entitled to prohibit the use and dispatch of Goods and/or materials which have failed to comply with the characteristics required for the Goods during tests and inspections.
- 13.9 Supplier shall advise in writing of any delay in the inspection program at the earliest, describing in detail the reasons for delay and the proposed corrective action.
- 13.10 All Tests and trials in general, including those to be carried out for materials not manufactured by Supplier shall be witnessed by the Inspector. Therefore, Supplier shall confirm to Purchaser by fax or e-mail about the exact date of inspection with at least 30 days notice. Supplier shall specify the Goods and quantities ready for testing and indicate whether a preliminary or final test is to be carried out.
- 13.11 If on receipt of this notice, Purchaser should waive the right to witness the test, timely information will be given accordingly.
- 13.12 Any and all expenses incurred in connection with tests, preparation of reports and analysis made by qualified laboratories, necessary technical documents, testing documents and drawings shall be at Supplier's cost. The technical documents shall include the reference and numbers of the standards used in the construction and, wherever deemed practical by the Inspector, copy of such standards.
- 13.13 Nothing in Clause-13 shall in any way release the Supplier from any warrantee/guarantee or other obligations under this Contract.
- 13.14 Arrangements for all inspections required by Indian Statutory Authorities and as specified in technical specifications shall be made by Supplier.
- 13.15 **INSPECTION & REJECTION OF MATERIALS BY CONSIGNEES**



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When materials are rejected by the consignee, the Supplier shall be intimated with the details of such rejected materials, as well as the reasons for their rejection, also giving location where such materials are lying at the risk & cost of the Supplier. The Supplier will be called upon either to remove the materials or to give instructions as to their disposal within 14 days and in the case of dangerous, infected and perishable materials within 48 hours from the date of such written Notice, failing which the consignee/Purchaser will either return the materials to the Supplier on freight to pay or otherwise dispose them off at the Supplier's risk and cost. The Purchaser shall also be entitled to recover handling & storage charges, as per Clause No. 27.4

14. TIME SCHEDULE & PROGRESS REPORTING

14.1 Time Schedule Network/Bar Chart

14.1.1 Together with the Contract confirmation, Supplier shall submit to Purchaser, his time schedule regarding the documentation, manufacture, testing, supply, erection and commissioning of the Goods.

14.1.2 The time schedule will be in the form of a network or a bar chart clearly indicating all main or key events regarding documentation, supply of raw materials, manufacturing, testing, delivery, erection and commissioning.

14.1.3 The original issue and subsequent revisions of Supplier's time schedule shall be sent to Purchaser.

14.1.4 The time schedule network/bar chart shall be updated at least every second month or as agreed with Purchaser.

14.2 Progress Trend Chart/Monthly Report

14.2.1 Supplier shall report monthly to Purchaser, on the progress of the execution of Contract and achievement of targets set out in time bar chart.

14.2.2 The progress will be expressed in percentages as shown in the progress trend chart attached to the Time Schedule specification.

14.2.3 The first issue of the Progress Trend Chart will be forwarded together with the time bar chart along with Contract confirmation.

14.2.4 Purchaser's/Consultant's representatives shall have the right to inspect Supplier's premises with a view to evaluating the actual progress of Contract execution on the basis of Supplier's time schedule documentation.

14.2.5 Irrespective of such inspection, Supplier shall advise Consultant, with copy to Purchaser, at the earliest possible date of any anticipated delay in the progress.



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- 14.3 Notwithstanding the above, in case progress on the execution of contract at various stages is not as per time schedule and is not satisfactory in the opinion of the Purchaser/Consultant which shall be conclusive or Supplier shall neglect to execute the Contract with due diligence and expeditiousness or contravenes the provisions of the Contract, Purchaser/Consultant may give notice of the same in writing to the Supplier calling upon him to make good the failure, neglect or contravention complained of. Should Supplier fail to comply with such notice within the period considered reasonable by Purchaser/Consultant, the Purchaser/Consultant shall have the option and be at liberty to cancel the Contract wholly or in part out and make alternative arrangements to obtain the requirements and completion of Contract at the Supplier's risk and cost and recover from the Supplier, all extra cost incurred by the Purchaser on this account. In such event Purchaser/Consultant shall not be responsible for any loss that the Supplier may incur and Supplier shall not be entitled to any gain. Purchaser/Consultant shall, in addition, have the right to encash Contract Performance Security in full or part.

15. DELIVERY & DOCUMENTS AND DISPATCH SCHEDULE

- 15.1 Delivery of the Goods shall be made by the Supplier in accordance with terms specified in the Contract, and the goods shall remain at the risk of the Supplier until delivery has been completed.
- 15.2 Delivery shall be deemed to have been made:
- (i) In the case of FOB/FCA, CFR/CPT& CIF/CIP Contracts, when the Goods have been put on board the ship/flight, at the specified port of loading and a clean Bill of Lading/Airway Bill is obtained. The date of Bill of Lading/Airway Bill shall be considered as the delivery date.
 - (ii) In case of FOT despatch point Contract (For Indian bidder), on evidence that the goods have been loaded on the carrier and a negotiable copy of the Goods receipt obtained. The date of LR/GR shall be considered as the date of delivery.
 - (iii) In case of FOT site (for Indian bidders) Contract, date of receipt of Goods by Purchaser/Consultant at the designated site(s) shall be considered as the date of delivery.
 - (iv) For Contracts involving Services, the delivery/completion period for such Services mentioned in Contract shall commence from zero date as intimated by the Purchaser/Consultant in writing or as mentioned in SCC or elsewhere.
- 15.3 The delivery terms are binding and essential and consequently, no delay is allowed without the written approval of Purchaser/Consultant. Any request concerning delay will be void unless accepted by Purchaser/Consultant through a modification to the Contract.
- 15.4 Delivery time shall include time for submission of drawings for approval, incorporation of comments, if any, and final approval of drawings by Purchaser/Consultant.



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- 15.5 In the event of delay in delivery, Price Reduction Schedule as stipulated in Clause– 26 shall apply. The Contract shall be continued to be in force till the delivery of Goods or written Notice from Purchaser to Supplier for termination of Contract.
- 15.6 It should be noted that if a Contract is placed on a higher bidder as a result of this tender, in preference to the lowest acceptable offer, in consideration of an earlier delivery, the Supplier will be liable to pay to GAIL the difference between the contract rate and the rate quoted by the lowest acceptable bidder in case of failure to complete the supply in terms of such Contract within the date of delivery specified in the Tender Document and incorporated in the Contract. This is without prejudice to other rights and remedies available to GAIL, under terms of Contract.
- 15.7 The documentation, in English Language, shall be delivered in due time, in proper form and in the required number of copies as specified in the contract.
- 15.8 The additional copies of final drawings and instructions will be included in the package of goods, properly enveloped and protected.
- 15.9 The Supplier should comply with the Packing, Marking and Shipping Documentation Specifications.

15.10 Dispatch Schedule

15.10.1 Indian Bidder:

If Purchase Order issued based on FOT (Free on Truck) / FOR (Free on Rail) project site basis, materials shall be delivered at the destination on freight prepaid & door delivery basis and for the cases where order(s) are finalized on Ex-works basis the transportation will be arranged by supplier(s) / GAIL on 'freight to pay' basis and the freight will be paid at the destination.

Supplier shall submit the following details of goods/cargo within 15 days from Notification of Award to the designated authority as per Purchase Order:

- (i) Shipments Schedule
- (ii) Dimension details of packages
- (iii) Detailed technical write-up along with Catalogue (if applicable)
- (iv) Any other document/details, if mentioned in Purchase Order

The consignment should be handed over to transporter with E-way bill, wherever required as per law/act. In case such e-way bill is required to be issued by GAIL, the concerned designated order issuing authority may be contacted in this regard. It will be the responsibility of the supplier to ensure the compliance of the provisions relating to E-Way bill before dispatch of the consignment and any financial implication arising due to non-compliance in this regard will be to the account of the supplier.



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It shall be responsibility of the Supplier to send intimation immediately on dispatch of the material so that necessary arrangements can be made at site. Delays on account of the same shall solely be attributable to the Supplier.

15.10.2 Foreign Bidder:

Where the Supplier is required under the Contract to deliver the Goods on CFR or CIF, transportation of the Goods to the port of discharge or such other point in the country of destination as shall be specified in the Contract shall be arranged and paid for by the Supplier and the for the cases where order(s) are finalized on FOB or FCA basis the transportation will be arranged by GAIL.

Supplier shall submit the following details of goods/cargo within 15 days from Notification of Award to the designated authority as per Purchase Order:

- (i) Shipments Schedule
- (ii) Dimension details of packages
- (iii) Detailed technical write-up along with Catalogue (if applicable)
- (iv) Any other document/details, if mentioned in Purchase Order

It shall be responsibility of the Supplier to send intimation and Original Shipping Documents immediately on dispatch of the material so that necessary arrangements can be made at Destination Port. Delays on account of the same shall solely be attributable to the Supplier.

All equipments / materials are to be insured by GAIL for transit/marine risks unless specified otherwise in the purchase order, to cover the damages during the transportation etc.

Any such damage during the transportation shall be immediately notified to under-writers as well as the transporter, for further necessary action for recovery of transit damages.

For the purpose of arranging transit/marine insurance of the goods dispatched / shipped, vendors are required to furnish the dispatch / shipping particulars to the Insurance Company giving complete details of dispatches along with Policy No. etc.

16 TRANSIT RISK INSURANCE

- 16.1 All Goods supplied under the contract shall be fully insured in a freely convertible currency against loss or damage incidental to manufacture or acquisition, transportation, storage and delivery.
- 16.2 The Purchaser shall arrange transit risks Insurance for the Goods supplied by indigenous Supplier unless specified otherwise in the Purchase Order, to cover the risk & damages during the inland transportation. Further, where delivery is on FOB/FCA or CFR/CPT basis, marine insurance shall be the responsibility of the Purchaser.

Any such damage during the transportation shall be immediately notified to under-writers as well as the transporter under intimation to consignee, for further necessary action for recovery of transit damages.



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16.3 Insurance Requirements:

Indigenous Supplier: Transit risk insurance from F.O.T. dispatch point onwards shall be arranged and borne by GAIL unless specified otherwise in the Purchase Order.

Immediately after shipment, the Supplier shall inform the Purchaser's insurance agent and Purchaser/Consultant giving the details of shipment regarding LR number and date, invoice no. & date with value, number of packages/cases, gross/net weight, value of goods and Purchase Order number along with Insurance policy no., for arranging insurance of the consignment against transit risk from the dispatch point to the Site/warehouse of the consignee.

Foreign Supplier: Marine insurance as well as transit insurance in Purchaser's country shall be arranged and borne by GAIL, in case of EXW, FOB/FCA, CFR/C&F orders as per INCOTERMS.

Immediately after shipment, the Supplier shall inform the Purchaser's insurance agent and Purchaser/Consultant giving the details of shipment regarding name of vessel, B/L or AWB number and date, invoice no. & date with value, packing details including number of packages/cases & gross/net weight, value of goods and Purchase Order number & date, ETD & ETA of vessel at ports along with Insurance policy no., for arranging necessary insurance.

The Supplier shall ensure that in effecting despatch of Goods, the primary responsibility of the carriers for safe movement is always retained so that the Purchaser's interests are fully safeguarded and are in no way jeopardised. The Supplier shall furnish the cost of materials against each equipment.

Purchaser's Insurance Agent & Insurance policy no.:

[The name and address of Insurance Agent and Insurance policy no. shall be mentioned in Tender Document/Purchase Order]

17. PACKING & SHIPPING INSTRUCTIONS AND TRANSPORTATION

17.1 Packing & Marking:

The Supplier shall dispatch the materials in worthy/Sea worthy/Air worthy packing conforming to the international norms of packing/ prescribed standards in force to withstand air/ocean/land journey and ensuring the safety of cargo en-route and also arrival of materials at ultimate destination in good condition. Hazardous/dangerous cargo ordered alongwith other material, against a particular supply order, the hazardous/dangerous cargo should be packed in a separate identifiable box to avoid payment of excess freight and delay in clearance. The consignment shall be comprehensively insured against all risks by the Supplier in case of contracts with transit insurance in Supplier's scope from Supplier's ware-house to ultimate consignee's ware-house basis and each case/packing shall have on its outer side the following marking in English in indelible ink:

- (i) Purchase Order No. and date
- (ii) Country of origin (Applicable for Foreign Suppliers)
- (iii) Name of Supplier
- (iv) Case number (running number upon total number of boxes).
- (v) Gross and net weight in Kilogram on each box.



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- (vi) Dimension of packages
- (vii) Port of destination (Applicable for Foreign Suppliers)
- (viii) Consignee
- (ix) TOP/DON'T Turnover/Handle with Care (as applicable)
- (x) The equipment which cannot be packed shall bear metal tags with above marking indicated thereon. Each box shall contain one copy of packing list and Material Safety Data Sheet (if applicable) in English.

In case of hazardous chemicals / materials the bidder will provide Material Safety Data Sheets along with quotation and also while dispatching the materials. The bidder will also provide special hazard identification symbols / markings on each packing of hazardous chemicals.

The Supplier shall be held liable for all damages or breakages to the goods due to the defective or insufficient packing as well as for corrosion due to insufficient protection. Packaged equipment or material showing damage, defects or shortages resulting from improper packaging material or packing procedures or having concealed damage or shortages, at the time of unpacking shall be to the Supplier's account.

Wherever the items make a full truck load, the suppliers to dispatch such items in a full truck direct to the consignee on a door delivery basis to the site. In such cases, the supplier to send a consignee copy of the lorry receipt to the consignee along with the consignment and the consignment shall be booked to GAIL and not "self". The supplier should dispatch the consignments to the designated consignee. All dispatch documents, that is, railway/lorry receipt, goods consignment note, airway bill, invoices, packing list, freight memos, test certificate, and so on, shall be sent to the concerned authority which will arrange to make the payment. If the payment is to be made through the bank, all original documents are to be sent through the designated bank.

Where critical equipment is involved, suitable special instructions will be provided in SCC to the supplier about the mode of transport, loading, avoidance of transshipment and, if necessary, provision of escorts. In case of chemicals, powdery materials, liquid materials, and so on, supplier is to ensure proper packaging to avoid spillage en route, so as to avoid pollution problems and also to conform to the ISO 14001 standard (wherever applicable).

17.2 Shipping Instructions:

The Supplier shall notify the Purchaser/Consultant & all concerned and also the port as well as ultimate consignee by e-mail the Bill of Lading/Airway Bill number and date, the name of ship/flight, ship manifest, the date of departure of the ship/flight, the port of loading and destination, brief description of materials, gross/net weight and total number of packages, quantity, value and Purchase Order number and date within 2 days from the departure of the ship or within 24 hours from the departure of the flight from the port of loading.

- 17.3 Copies of dispatch documents should reach Purchaser/Consultant well in advance failing which any demurrage/wharfage etc. incurred on account of late/ non-receipt of dispatch document/wrong dispatches of consignment will be recovered from Supplier. In case of documents through Bank, it may be noted that the documents will be retired only if the dispatches are made as per the terms of the Purchase Order.



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- 17.4 Where the Supplier is required under the Contract to deliver the Goods on FOB/FCA basis, transport of the Goods until delivery, that is, upto and including the point of putting the Goods on board the export conveyance at the specified port of loading, shall be arranged and paid for by the Supplier and the cost thereof shall be included in the Purchase Order Value.
- 17.5 Where the Supplier is required under the Contract to deliver the Goods on CFR/CPT or CIF/CIP basis, transport of the Goods to the port of discharge or such other point in the country of destination as specified in the Contract shall be arranged and paid for by the Supplier and the cost thereof shall be included in the Purchase Order Value.
- 17.6 Where the Supplier is required under the Contract to deliver the Goods on FOT destination point basis, transport of the Goods upto the destination point shall be specified in the Contract shall be arranged and paid by the Supplier and the cost thereof shall be included in the Purchase Order Value.
- 17.7 As per the Section 3 of the “Carriage by Road Act 2007”, no person can engage in the business of a common carrier unless granted a certificate of registration to do so and any transportation of goods through unregistered common carrier is illegal. Accordingly, Goods should be transported through registered common carriers only.

18. INCIDENTAL SERVICES

- 18.1 The Supplier may be required to provide any or all of the following Services:
- 18.1.1 Performance or supervision of onsite assembly and/or start-up of the supplied Goods:
- 18.1.2 Furnishing tools required for assembly and/or maintenance of the supplied Goods:
- 18.1.3 Performance or supervision or maintenance and/or repair of the supplied Goods, for a period of time agreed by the parties, provided that this Service shall not relieve the Supplier of any warranty/guarantee obligations under the Contract.
- 18.1.4 Training of the Purchaser’s personnel at the Supplier’s premise and/or at Site, in assembly, start-up operation, maintenance and/or repair of the supplied Goods at no extra cost. However, Purchaser will bear boarding, lodging & personal expenses of Trainees.
- 18.2 Prices charged by the Supplier for the preceding incidental Services, shall not exceed the prevailing rates charged to other parties by the Supplier for similar services.
- 18.3 When required, Supplier shall depute necessary personnel for supervision and/or erection of the Goods/ Equipments at site for duration to be specified by Purchaser on mutually agreed terms. Supplier’s personnel shall be available at Site within seven Days for emergency action and twenty-one Days for medium and long-term assistance, from the date of notice given by Purchaser.
- 18.4 If the cost of incidental Services is not shown separately in the Price Schedules /t Schedule of Rates, then the same shall be considered included in the quoted prices.



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19. SPARE PARTS, MAINTENANCE TOOLS ETC.

- 19.1 Supplier may be required to provide any or all of the following materials and notification pertaining to Spare parts (including standby equipments, accessories, sub-assemblies/assemblies etc.) manufactured or sourced by the Supplier. Such Spares shall be supplied directly by Supplier and the responsibility shall not be passed on to his dealers/distributors/stockists or Indian associates.
- 19.1.1 Such Spare parts as the Purchaser may opt to purchase from the Supplier, provided that his option shall not relieve the Supplier of any warranty obligations under the Contract, and
- 19.1.2 In the event of termination of production of the spare parts:
- i) Advance notification to the Purchaser of the pending termination, in sufficient time to permit the Purchaser to procure such Spares, and
 - ii) Following such termination, furnishing at no cost to the Purchaser, the blue prints, drawings and specifications of the spare parts, if any when requested.
- 19.2 Supplier shall supply item wise list with value of each item of Spare parts and maintenance tools requirements, along with full details of all manufacturers/ sub-supplier(s) for spares/maintenance tools sourced by Supplier.
- 19.3 Spare parts shall be new and of first-class quality as per engineering standards/ codes, free of any defects (even concealed), deficiency in design, materials & workmanship and also shall be completely interchangeable with the corresponding parts.
- 19.4 Type and sizes of FILTER ELEMENTS shall be clearly indicated.
- 19.5 Spare parts shall be packed for long storage under tropical climatic conditions in suitable cases, clearly marked as to intended purpose.
- 19.6 A list of special tools and gauges required for normal maintenance and special handling and lifting appliances, if any, for the Goods, shall be submitted to Purchaser.
- 19.7 Bidders should note that if they do not comply with above conditions, their Bid may be rejected.

20. GUARANTEE

- 20.1 All Goods or Materials shall be supplied strictly in accordance with the specifications, drawings, data sheets, other attachments and conditions stated in the Contract.
- No deviation from such specifications or alterations or of these conditions shall be made without Purchaser's /Consultant's agreement in writing which must be obtained before any work against the order is commenced. All materials supplied by the Supplier pursuant to the Contract (irrespective of whether engineering, design data or other information has been furnished, reviewed or approved by Purchaser/ Consultant) are guaranteed to be of the best quality of their respective kinds (unless otherwise specifically authorised in writing by Purchaser/Consultant) and shall be free from faulty design, workmanship and



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materials, and to be of sufficient size and capacity and of proper materials so as to fulfil in all respects all operating conditions, if any, specified in the Contract.

If any trouble or defect, originating with the design, material, workmanship or operating characteristics of any materials, arises at any time prior twelve(12) months from the date of the first commercial operation of the Goods/Equipments or twenty four (24) months from the date of last shipment whichever period shall first expire, and the Supplier is notified thereof, Supplier shall, at his own expense and as promptly as possible, make such alterations, repairs and replacements as may necessary to permit the materials to function in accordance with the specifications and to fulfil the foregoing guarantees. However, in no case, warranty of repaired/replaced part shall exceed 24 months from the date of commissioning of original equipment or 36 months from last supply, whichever is earlier. This period excludes repair/replacement/rectification period of defective goods.

Purchaser/Consultant may, at his option, remove such defective materials, at Supplier's expense in which event Supplier shall, without cost to Purchaser/Consultant and as promptly as possible, furnish and install proper materials.

In case defects are of such nature that Goods shall have to be taken to Supplier's works for rectification etc., Supplier shall take the Goods at his costs after giving necessary undertaking or security as may be required by Purchaser/Consultant. Purchaser/Consultant may, if so required by the Supplier, dispatch the Goods by quickest mode on "Freight-to-pay" basis to the Supplier's works. After repairs Supplier shall deliver the Goods at Site on freight pre-paid basis. All risks in transit to and fro and all expenses on account of to and fro freight, insurance, customs clearance, transportation and handling, port charges and customs duty etc. shall be borne by the Supplier.

In the event that the materials supplied do not meet the specifications and/or not in accordance with the drawings data sheets or the terms of the Contract (including guarantee period) and rectification is required at site, Purchaser/Consultant shall notify the Supplier giving full details of differences. The Supplier shall attend the site within seven (7) days of receipt of such notice to meet and agree with representatives of Purchaser/Consultant, the action required to correct the deficiency. Should the Supplier fail to attend meeting at Site within the time specified above, Purchaser/Consultant shall immediately rectify the work/ materials and Supplier shall reimburse Purchaser all costs and expenses incurred in connection with such trouble or defect.

20.2 Performance Guarantee of Equipment

20.2.1 Supplier shall guarantee that the performance of the Equipment supplied under the Contract shall be strictly in conformity with the specifications and shall perform the duties specified under the Contract.

20.2.2 If the Supplier fails to prove the guaranteed performance of the Equipment set forth in the specification, the Supplier shall investigate the causes and carry out necessary rectifications/modifications to achieve the guaranteed performance. In case the Supplier fails to do so within a reasonable period, the Supplier shall replace the Equipment and prove guaranteed performance of the new equipment without any extra cost to Purchaser.



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20.2.3 If the Supplier fails to prove the guarantee within a reasonable period, Purchaser/Consultant shall have the option to take over the Equipment and rectify, if possible, the Equipment to fulfil the guarantees and/or to make necessary additions to make up the deficiency at Supplier's risk and cost. All expenditure incurred by the Purchaser/Consultant in this regard shall be to Supplier's account.

21. TERMS OF PAYMENT

21.1 In case of supply, payment shall be released **within 15 days** after receipt and acceptance of goods and submission of relevant documents complete in all respects through e-banking unless otherwise specifically mentioned in the Special Conditions of Contract.

21.2 The type(s) of payment to be made to the Supplier under this Contract shall be as mentioned above unless otherwise specifically specified in the Special Conditions of Contract.

21.3 The Supplier's request(s) for payment shall be made to the Purchaser in writing accompanied by an invoice describing, as appropriate, the Goods delivered and services performed, and by shipping documents submitted, and upon fulfillment of other obligations stipulated in the Contract. For release of payment, the following documents is to be submitted by supplier/ vendor:

- i) Supplier's Invoice indicating, inter alia description and specification of the goods, quantity, unit price, total value;
- ii) Packing list;
- iii) LR/GR/consignment note;
- iv) Manufacturer's guarantee certificate and in-house inspection certificate (wherever applicable);
- v) Inspection certificate issued by purchaser's inspector (wherever applicable); and
- vi) Any other document(s) as and if required in terms of the contract.

21.4 Payment will be made in the currency or currencies in which the Contract Price has been stated in the Supplier's bid, as well as in other currencies in which the Supplier had indicated in his bid that he intends to incur expenditure in the performance of the Contract and wishes to be paid. If the requirements are stated as a percentage of the bid price along with exchange rates used in such calculations these exchange rates shall be maintained.

21.5 Mentioning of PAN no. in Invoice/Bill

As per CBDT Notification No. 95/2015 dated 30.12.2015, mentioning of PAN no. is mandatory for transactions related to procurement of goods / services exceeding Rs. 2 Lakhs per transaction or as amended from time to time.

Accordingly, Supplier should mention their PAN no. in their invoice/ bill for any transaction exceeding Rs. 2 lakhs. As provided in the notification, in case Supplier do not have PAN no., they have to submit declaration in Form 60 along with invoice/ bill for each transaction.

Payment of Supplier shall be processed only after fulfilment of above requirement.

21.6 Foreign Suppliers should ensure submission of Tax Residency Certificate (TRC), Form 10F or Permanent Establishment (PE) information within specified time.



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General Notes:

- (i) All foreign currency payments to foreign bidder shall be released through Cash against Documents (CAD) through bank, If Supplier insists payment through an irrevocable Letter of Credit, which shall be opened through Government of India Nationalized Bank and hence shall not be confirmed. In case any bidder insists on confirmation, charges towards confirmation shall be borne by him. L/C shall be established within 30 days after receipt of acknowledgement of Letter/Fax of Acceptance/Purchase Order together with Contract Performance Security.
- (ii) For dispatches on FOT dispatch point (in India) basis involving payment through bank, the payment shall be through Purchaser's bank. Payment through Bank, wherever applicable, shall be released as per normal banking procedures.
- (iii) All bank charges incurred in connection with payments shall be to Supplier's account in case of Indian bidders and to respective accounts in case of foreign bidder.
- (iv) Unless otherwise specifically stated in Bid Document, all payments shall be made in the currency quoted.
- (v) No interest charges for delay in payments, if any, shall be payable by Purchaser.
- (vi) In case of Indian bidder, variation, if any, on account of customs duty on their built-in- import content, as per terms of bid document, shall be claimed separately by bidder after receipt of goods at site(s). However, any price benefits to the Purchaser, on account of such variation as per terms specified in the Bid Document, shall be passed on to the Purchaser along with invoicing itself.
- (vii) Agency commission, if any, to Indian agent for foreign bidders, indicated in prices, shall be paid to the agent in equivalent Indian Rupees on receipt and acceptance of material at site and after completion of its role & responsibility by such agent.
- (viii) Wherever buy-back is involved, 5% payment towards supply of new item shall be made only after uplifting the buy-back items.

21.7 Further, after implementation of Vendor Invoice Management (VIM) Supplier/ Vendor to forward the invoice on VIM Collection Center or upload digital invoice on Portal (details of same will be provided in tender/contract). The copy of invoice and all other document mentioned above or in order/ contract is to be forwarded to address provided in order/contract.

22. PRICES

22.1 Prices charged by the Supplier for Goods delivered and Services performed under the Contract shall not, with the exception of any price adjustments authorized by the Contract, vary from the prices quoted by the Supplier in his bid.

23. SUBLETTING & ASSIGNMENT



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23.1 The Supplier shall not without previous consent in writing of the Purchaser authority, sublet, transfer or assign the Contract or any part thereof or interest therein or benefit or advantage thereof in any manner whatsoever. Provided, nevertheless, that any such consent shall not relieve the Supplier from any obligation, duty or responsibility under the Contract.

23.2 There is no obligation on part of Purchaser/Consultant to release any payment to Sub-Contractor.

24. TIME AS ESSENCE OF CONTRACT

24.1 The original or extended time of delivery/completion of the Goods/Services as stipulated in the Contract shall be deemed to be the essence of the Contract.

25. DELAYS IN THE SUPPLIER'S PERFORMANCE

25.1 If the specified delivery schedule is not adhered to or the progress of manufacture or supply of the items is not satisfactory or is not in accordance with the progress schedule, the Purchaser has the right to:

- i) hire for period of delay from elsewhere goods which in Purchaser's opinion will meet the same purpose as the Goods which are delayed and Supplier shall be liable without limitation for such hire charges plus overhead charges @ 15% thereupon; or
- ii) terminate /cancel the Contract in whole or in part without liability for termination/cancellation charges. In that event, Purchaser may procure from elsewhere goods which Purchaser's opinion would meet the same purpose as the Goods for which Contract is cancelled and Supplier shall be liable without limitations for the difference between the cost of such substitution and the price set forth in the Contract for the Goods involved; or
- iii) hire the substitute goods vide (i) above and if the ordered goods continue to remain undelivered thereafter, cancel the order in part or in full vide (ii) above.

25.2 Any inexcusable delay by the Supplier or his sub-contractor shall render the Supplier liable, without prejudice to any other terms of the Contract, to any or all of the following sanctions:

- forfeiture of Contract Performance Security,
- imposition of price reduction for delay in delivery and
- termination of the contract for default.

As per Performance Evaluation procedure (Appendix-II), the Supplier's non-performance or poor performance shall affect the future business relationship with GAIL and its PMCs.

26. PRICE REDUCTION SCHEDULE (PRS) FOR DELAYED DELIVERY

26.1 Subject to Clause-29, if the Supplier fails to deliver any or all of the Goods or performance of the services within the time period (s) specified in the Contract, the Purchaser shall, without prejudice to his other remedies under the Contract, deduct from the Contract Price, a sum calculated on the basis of the Contract Price, including subsequent modifications.



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26.1.1 Deductions shall apply as per following formula:

A. For order including only supply of Goods/Equipment/Package

In case of delay in delivery of equipment/materials or delay in completion, PRS shall be applicable ½ % (half percent) of the order value per complete week of delay or part thereof subject to a maximum of 5% (five percent) of the Total Contract Price/ Order Value.

The portion of supply completed in all respect which can be used for commercial operation shall not be considered for applying PRS, if delivered within contractual delivery period. The remaining supplies which are completed beyond the contractual delivery shall attract price reduction schedule @1/2 % of the delayed delivery value maximum up to 5% of total Purchase Order Value.

Decision of the Purchaser in the matter of usage for commercial operation shall be final and binding.

Note: When installation and/or commissioning is in Supplier's scope, the above clause 'A' will not be applicable, in such cases clause 'B' below will be applicable.

B. For order including both supply of Goods and Services (i.e. supervision, installation, erection, commissioning etc.)

For delay in supply:

The PRS shall be applicable @ ½ % (half percent) of price of respective goods/equipment / package (including spares etc. even if prices are indicated separately in the order but excluding value of Services) per week of delay or part thereof subject to maximum 5% (five percent) of Total Contract/ Order Value excluding value of Services.

For delay in Services (i.e. supervision, installation, erection, commissioning etc.):

The PRS shall be applicable @ ½ % (half percent) of Total Contract/ Order Value of respective equipment/ package (including value of spares, Services etc. even if prices are indicated separately in the Contract) per week of delay or part thereof subject to maximum 5% (five percent) of Total Contract/ Order Value including value of Services.

In no case, total PRS shall exceed 5% (five percent) of Total Contract/ Order Value (Supply +Services).

However, if the completion of supply and services together are achieved within the overall completion period, no PRS shall be applicable.

For specific provision relating to supervision by Supplier (wherever applicable), refer SCC.

26.2 Both Supplier and Purchaser agree that the above percentages of price reduction are genuine pre-estimates of the loss/damage which the Purchaser would have suffered on account of delay/breach on the part of the Supplier and the said amount will be payable on demand without there being any proof of the actual loss/or damage caused by such breach/delay. A decision of the Purchaser/EIC in the matter of applicability of price reduction shall be final and binding.



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- 26.3 In case of delay in delivery on the part of Supplier, the invoice/document value shall be reduced proportionately for the delay and payment shall be released accordingly.
- 26.4 In the event the invoice value is not reduced proportionately for the delay, the Purchaser may deduct the amount so payable by Supplier, from any amount falling due to the Supplier or by recovery against the Contract Performance Security.
- 26.5 In case of Annual Rate Contract (ARC), the PRS shall be applicable on the value of Release Order/ Individual Order(s) and not on the entire value of ARC.
- 26.6 In case of FOT Site /dispatch point order, the value referred in PRS clause is the EXW value (i.e. excluding GST and Freight/Inland Transportation) for delay in supply. In case of Import, PRS shall be applicable on FOB amount (except EXW orders) for delay in supply.
- 26.7 PRS is the reduction in the consideration / contract value for the goods / services covered under this contract. In case of delay in supply/ execution of contract, Supplier should raise invoice for reduced value as per Price Reduction Schedule Clause (PRS clause). If Supplier has raised the invoice for full value, then Supplier shall issue Credit Note towards the applicable PRS amount with applicable taxes.

In such cases if Supplier fails to submit the invoice with reduced value or does not issue credit note as mentioned above, GAIL will release the payment to Supplier after giving effect of the PRS clause with corresponding reduction of taxes charged on vendor's invoice, to avoid delay in delivery/collection of material."

In case any financial implication arises on GAIL due to issuance of invoice without reduction in price or non-issuance of Credit Note, the same shall be to the account of Supplier. GAIL shall be entitled to deduct/setoff / recover such GST amount (CGST & SGST/UTGST or IGST) together with penalties and interest, if any, against any amounts paid or becomes payable by GAIL in future to the Supplier under this contract or under any other contract.

27. REJECTIONS, REMOVAL OF REJECTED EQUIPMENT & REPLACEMENT

- 27.1 Preliminary inspection at Supplier's works by Inspector shall not prejudice Purchaser's/Consultant's claim for rejection of the Goods / Equipment on final inspection at Site or claims under warranty provisions.
- 27.2 If the Equipments are not of specification or fail to perform specified duties or are otherwise not satisfactory the Purchaser/Consultant shall be entitled to reject the Equipment/Material or part thereof and ask free replacement within reasonable time failing which obtain his requirements from elsewhere at Supplier's cost and risk.
- 27.3 Nothing in this clause shall be deemed to deprive the Purchaser and/or Affect any rights under the Contract which it may otherwise have in respect of such defects or deficiencies or in any way relieve the Supplier of his obligations under the Contract.



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27.4 Goods/Equipment rejected by the Purchaser/Consultant shall be removed by the Supplier at his cost within 14 days of notice after repaying the amounts received against the Supply. Failure or any delays of Supplier for removal of Goods/Equipment, the Purchaser shall also be entitled to recover handling and storage charges @5% of the estimated value of such Goods for each month or part of a month without relieving the Supplier from any other related liability. In the event of the Supplier's failure to remove the same within a period of 6 months or as decided by the Purchaser, the Purchaser may take action for removal through auction or sale on behalf of the Supplier and at his risk in all respects. The Supplier shall be liable to pay the Purchaser the handling & storage charges as mentioned above plus overhead charges @ 15% of sale value of such materials. The decision of Purchaser w.r.t. such removal and the amount of the proceeds shall be final and binding on the Supplier. The Purchaser shall in no way be responsible for any deterioration or damage to the Equipment under any circumstances whatsoever.

27.5 In case of rejection of Equipment, Purchaser shall have the right to recover the amounts, if any, from any of Supplier's invoices pending with Purchaser or by alternative method(s).

28. TERMINATION OF CONTRACT

28.1 Termination for Default

28.1.1 The Purchaser may, without prejudice to any other remedy for breach of Contract, by written notice of default sent to the Supplier, terminate the Contract in whole or in part:

- (i) If the Supplier fails to deliver any or all of the Goods within the time period(s) specified in the Contract; or
- (ii) If the Supplier fails to perform any other obligation(s) under the Contract, and
- (iii) If the Supplier, in either of the above circumstances, does not cure his failure within a period of 30 days (or any such period as the Purchaser may authorize in writing) after receipt of the default notice from the Purchaser.

28.1.2 In the event the Purchaser terminates the Contract in whole or in part, pursuant to clause no. 28.1.1, the Purchaser may procure, upon such terms and in such manner as it deems appropriate, goods similar to those undelivered and the Supplier shall be liable to the Purchaser for any excess costs for such similar Goods. However, the Supplier shall continue performance of the Contract to the extent not terminated.

28.1.3 In case of termination of Contract herein set forth (under clause 28) [except under conditions of Force Majeure (under clause 29)], the Purchaser is entitled to put Supplier on under Suspension and/or Holiday as per provisions of "Procedure for Action in Case of Corrupt/Fraudulent/Collusive/Coercive Practices (Appendix-I)" and "Procedure for Evaluation of Performance of Vendor/ Supplier/ Contractor/ Consultant" of Tender Document (Appendix-II)".

28.2 Termination for Insolvency



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28.2.1 The Purchaser, may at any time, terminate the Contract by giving written notice to the Supplier, without compensation to the Supplier, if the Supplier becomes bankrupt or otherwise insolvent, provided that such termination will not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to the Purchaser.

28.3 Termination for Convenience including short-closure

28.3.1 The Purchaser may, by written notice/communication to the Supplier, may short-close/ terminate the Contract, in whole or part, at any time for his convenience. The notice/ communication to the Supplier shall specify that short-closure/termination is for the Purchaser's convenience, the extent to which performance of work under the Contract is short-closed/terminated and the date upon which such short-closure/termination becomes effective.

28.3.2 The Goods that are complete and ready for shipment within 30 days after the Supplier's receipt of notice/ communication of termination/short-closure shall be purchased by the Purchaser at the Contract terms and prices. For the remaining Goods, the Purchaser may opt:

- (i) to have any portion completed and delivered at the Contract terms and prices, and /or
- (ii) to cancel the remainder and pay to the Supplier an agreed amount for partially completed Goods and for materials and parts previously procured by the Supplier.

28.4 Termination of Contract for Corrupt/Fraudulent/Collusive/Coercive Practices and Non-Performance

If the Bidder/Supplier is found to have indulged in Corrupt/Fraudulent /Collusive/Coercive practices, the Contract shall be terminated and the Bidder/ Supplier shall be banned for future business with GAIL. The detailed procedure for banning including suspension in this regard is attached as Appendix-I to this GCC.

Due to non- performance of the Supplier leading to termination of the Contract, the Supplier shall be put on suspension list and also on holiday list of Purchaser for a period mentioned in the detailed procedure. The detailed procedure for evaluation of performance in this regard is attached as Appendix-II to this GCC.

29. FORCE MAJEURE

29.1 Force Majeure shall mean and be limited to the following:

- (i) Act of terrorism;
- (ii) Riot, war, invasion, act of foreign enemies, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection of military or usurped power;
- (iii) Ionizing, radiation or contamination, radio activity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel, radioactive toxic explosive or other hazardous properties of any explosive assembly or nuclear component;
- (iv) Pandemic, Epidemics, earthquakes, flood, natural fire/wildfire, hurricanes, typhoons or other physical natural disaster, but excluding weather conditions regardless of severity; and



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- (v) Freight embargo, strikes at national or state-wide level or industrial disputes (more than 7 consecutive days) at a national or state-wide level where supplier's Works is located.

For the avoidance of doubt, inclement weather, third party breach, delay in supply of materials (other than conditions mentioned above at sl. no. (i) to (v)) or commercial hardship shall not constitute a Force Majeure event.

The Supplier shall advise Purchaser/Consultant by a registered letter/courier duly certified by the local Chamber of Commerce or statutory authorities, the beginning and end of the above causes of delay within ten (10) days of the occurrence and cessation of such Force Majeure Conditions.

The extension of time for a period upto the period of delay attributable to the causes of Force Majeure shall be the sole remedy of the Supplier for any delay under this clause and the Supplier shall not be entitled in addition to or in lieu of such extension to claim any damages or compensation on any account whatsoever whether under the law governing contracts or any other law in force, and the Supplier hereby waives and disclaims any and all contrary rights.

In case force majeure conditions persists for period exceeding 02 (Two) Months, the Purchaser reserves the right to cancel the Purchase order or part of it.

Supplier shall categorically specify the extent of Force Majeure Conditions prevalent in their works at the time of submitting their bid and whether the same have been taken into consideration or not in their quotations. In the event of any force majeure cause, the Supplier or the Purchaser shall not be liable for delays in performing their obligations under this order and the delivery dates will be extended to the Supplier without being subject to price reduction for delayed deliveries, as stated elsewhere.

Payment in case of termination due to Force Majeure

In case of termination of Order/contract due to Force Majeure, the Supplier will get payment of goods supplied and/ or services performed as at the date of the commencement of the relevant event of Force Majeure.

The Supplier has no entitlement and Purchaser has no liability for:

- (i) Any costs, losses, expenses, damages or the payment of any part of the Order/ Contract Price during an event of Force Majeure; and
- (ii) Any delay costs in any way incurred by the Supplier due to an event of Force Majeure.

30. DISPUTE RESOLUTION MECHANISM

30.1 Conciliation

GAIL (India) Limited has framed the Conciliation Rules 2010 in conformity with Part – III of the Arbitration and Conciliation Act 1996 as amended from time to time for speedier, cost effective and amicable settlement of disputes through conciliation. All issue(s)/dispute(s) arising under the Contract, which cannot be mutually resolved within a reasonable time, may be referred for conciliation in



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accordance with GAIL Conciliation Rules 2010 as amended from time to time. A copy of the said rules have been made available on GAIL's web site i.e. www.GAILonline.com.

Where invitation for Conciliation has been accepted by the other party, the Parties shall attempt to settle such dispute(s) amicably under Part-III of the Arbitration and Conciliation Act, 1996 and GAIL (India) Limited Conciliation Rules, 2010. It would be only after exhausting the option of Conciliation as an Alternate Dispute Resolution Mechanism that the Parties hereto shall invoke Arbitration Clause. For the purpose of this clause, the option of 'Conciliation' shall be deemed to have been exhausted, even in case of rejection of 'Conciliation' by any of the Parties.

30.2 Arbitration

All issue(s)/dispute(s) excluding the matters that have been specified as excepted matters and listed at clause no. 30.2.6 and which cannot be resolved through Conciliation, such issue(s)/dispute(s) shall be referred to arbitration for adjudication by Sole Arbitrator.

The party invoking the Arbitration shall have the option to either opt for Ad-hoc Arbitration as provided at Clause 30.2.1 below or Institutionalized Arbitration as provided at Clause 30.2.2 below, the remaining clauses from 30.2.3 to 30.2.7 shall apply to both Ad-hoc and Institutional Arbitration: -

30.2.1 On invocation of the Arbitration clause by either party, GAIL shall suggest a panel of three independent and distinguished persons (Retd Supreme Court & High Court Judges only) to the other party from the Panel of Arbitrators maintained by 'Delhi International Arbitration Centre (DIAC)' to select any one among them to act as the Sole Arbitrator. In the event of failure of the other party to select the Sole Arbitrator within 30 days from the receipt of the communication from GAIL suggesting the panel of arbitrators, the right of selection of the sole arbitrator by the other party shall stand forfeited and GAIL shall appoint the Sole Arbitrator from the suggested panel of three Arbitrators for adjudication of dispute(s). The decision of GAIL on the appointment of the sole arbitrator shall be final and binding on the other party. The fees payable to Sole Arbitrator shall be governed by the fee Schedule of 'Delhi International Arbitration Centre'.

OR

30.2.2 If a dispute arises out of or in connection with this contract, the party invoking the Arbitration shall submit that dispute to any one of the Arbitral Institutions i.e. ICADR/ICA/DIAC/SFCA and that dispute shall be adjudicated in accordance with their respective Arbitration Rules. The matter shall be adjudicated by a Sole Arbitrator who shall necessarily be a Retd. Supreme Court/High Court Judge to be appointed/nominated by the respective institution. The cost/expenses pertaining to the said Arbitration shall also be governed in accordance with the Rules of the respective Arbitral Institution. The decision of the party invoking the Arbitration for reference of dispute to a specific Arbitral institution for adjudication of that dispute shall be final and binding on both the parties and shall not be subject to any change thereafter. The institution once selected at the time of invocation of dispute shall remain unchanged.

30.2.3 The cost of arbitration proceedings shall be shared equally by the parties.

30.2.4 The Arbitration proceedings shall be in English language and the seat, venue and place of Arbitration shall be New Delhi, India only.



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30.2.5 Subject to the above, the provisions of Arbitration & Conciliation Act 1996 and any amendment thereof shall be applicable. All matter relating to this Contract and arising out of invocation of Arbitration clause are subject to the exclusive jurisdiction of the Court(s) situated at New Delhi.

30.2.6 List of Excepted matters:

- (i) Dispute(s)/issue(s) involving claims below Rs 25 lakhs and above Rs 25 crores.
- (ii) Dispute(s)/issue(s) relating to indulgence of Supplier/Vendor/Bidder in corrupt/fraudulent/collusive/ coercive practices and/or the same is under investigation by CBI or Vigilance or any other investigating agency or Government.
- (iii) Dispute(s)/issue(s) wherein the decision of Engineer-In-Charge/owner/GAIL has been made final and binding in terms of the Contract.

30.2.7 Disputes involving claims below Rs 25 Lakhs and above Rs. 25 crores: -Parties mutually agree that dispute(s)/issue(s) involving claims below Rs 25 Lakhs and above Rs 25 crores shall not be subject matter of Arbitration and are subject to the exclusive jurisdiction of the Court(s) situated at New Delhi.

All Issue(s)/ Dispute(s) arising out of or in connection with this Agreement [excluding the matters that have been specified as excepted matters at clause (d)] which cannot be resolved by the Parties through Conciliation, shall:

- (a) *be finally settled by arbitration administered by the India International Arbitration Centre ("IIAC") in accordance with the India International Arbitration Centre (Conduct of Arbitration) Regulations ("IIAC Regulations") and the Arbitration and Conciliation Act, 1996 ("the Act") for the time being in force, which regulations are deemed to be incorporated by reference in this clause. It is clarified that in case of any conflict between the IIAC Regulations and the Act, the provisions of the Act shall prevail over the IIAC Regulations.*
- (b) *The place, seat and venue of the arbitration shall be New Delhi, India. The Tribunal shall consist of Sole Arbitrator to be appointed with the mutual consent of Parties as provided in (c) below. The law governing the arbitration agreement shall be Indian Law. The language of the arbitration shall be English. The cost (i.e. fees, administrative charges, expenses etc.) of arbitration proceedings shall be determined as per the IIAC Regulations and shall be shared equally between the Parties.*
- (c) *Procedure to be followed by the Parties for appointment of sole arbitrator by mutual consent:*

On invocation of the Arbitration clause by either party (on making a request for arbitration with the IIAC and/or to the other party), GAIL shall propose 5 (five) names of retired judges of Hon'ble Supreme Court of India and/or Hon'ble High Court from the panel of IIAC to the IIAC and/or the other party and on receipt of names from GAIL, the other party shall accept one name out of such proposed 5 names who shall be appointed as Sole Arbitrator. Where the request for arbitration has



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been made by the other party, GAIL shall propose such 5 (five) names within a period of 30 (thirty) days from the date of the receipt of such request from the other party.

In the event of failure of the other party to select the Sole Arbitrator within 30 days from the receipt of the communication from GAIL suggesting such proposed 5 names, the right of selection of Sole Arbitrator by the other party shall stand forfeited and the Sole Arbitrator is to be appointed by the Chairperson of IIAC as per the provisions of the IIAC Regulations who shall necessarily be a retired judge of Hon'ble Supreme Court/ High Court.

(d) List of excepted matters:

(i) Dispute(s)/issue(s) involving claims below Rs. 25 lakhs and above 10 crores.

(ii) Dispute(s)/issue (s) relating to indulgence of Suppliers/Vendor/Bidder in corrupt/ fraudulent/ collusive/ coercive practices and the same is under investigation by CBI or Vigilance or any other investigating agency or Government the same shall not be subject matter of arbitration or conciliation mechanism.

(iii) Dispute(s)/issue(s) wherein the decision of Engineer-In-Charge/owner/GAIL has been made final and binding in terms of the contract.

e) Foreign Arbitration

The Arbitration and Conciliation Act 1996 has provisions for international commercial arbitration, which shall be applicable if one of the parties has its central management and control in any foreign country.

When the contract is with a foreign supplier, the supplier has the option to choose either the Indian Arbitration and Conciliation Act, 1996 or arbitration in accordance with the provisions of the United Nations Commission on International Trade Law (UNCITRAL) arbitration rules. The arbitration clause in ICB tenders or RFQ to Foreign OEM/Proprietary bidder should have suitable provision (a suitable arbitration clause will be issued separately). Further, the venue of arbitration should be in accordance with UNCITRAL or arbitration rules of India, whereby it may be in India or in any neutral country.

f) Arbitration Awards

i) In cases where the GAIL has challenged an arbitral award and, as a result, the amount of the arbitral award has not been paid, 75% of the arbitral award (which may include interest up to date of the award) shall be paid by the GAIL to the contractor/ concessionaire against a Bank Guarantee (BG). The BG shall only be for the said 75% of the arbitral award as above and not for the interest which may become payable to GAIL should the subsequent court order require refund of the said amount.

ii) The payment may be made into a designated Escrow Account with the stipulation that the proceeds will be used first, for payment of lenders' dues, second, for completion of the project and then for



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completion of other projects of GAIL as mutually agreed/ decided. Any balance remaining in the escrow account subsequent to settlement of lenders' dues and completion of projects of GAIL may be allowed to be used by the contractor/ concessionaire with the prior approval of the lead banker and GAIL. If otherwise eligible and subject to contractual provisions, retention money and other amounts withheld may also be released against BG.

30.3 Governing Law and Jurisdiction:

The Contract shall be governed by and construed in accordance with the laws in force in India. The Parties hereby submit to the exclusive jurisdiction of the Courts situated at New Delhi for adjudication of disputes, injunctive reliefs, actions and proceedings, if any, arising out of this Contract.

30.4 Disputes between CPSE's/Government Department's/ Organizations

Subject to conciliation as provided above, in the event of any dispute (other than those related to taxation matters) or difference relating to the interpretation and application of the provisions of commercial contract(s) between Central Public Sector Enterprises (CPSEs/ Port Trusts) inter se and also between CPSEs and Government Departments /Organizations), such dispute or difference shall be taken up by either party for resolution only through AMRCD as mentioned in OPE OM No. 4(1)/2013-DPE(GM)/FTS-1835 dated 22-05-2018.

Any party aggrieved with the decision of the Committee at the First level (tier) may prefer an appeal before the Cabinet Secretary at the Second level (tier) within 15 days from the date of receipt of decision of the Committee at First level, through it's administrative Ministry/Department, whose decision will be final and binding on all concerned.

The above provisions mentioned at clause no. 30.1 to 30.4 shall supersede provisions relating to Conciliation, Arbitration, Governing Law & Jurisdiction and Disputes between CPSE's/ Government Department's/ Organizations mentioned elsewhere in tender document.

Subject to conciliation as provided above, in the event of any dispute or difference relating to the interpretation and application of the provisions of commercial contract(s) between Central Public Sector Enterprises (CPSEs)/Port Trusts inter se and also between CPSEs and Government Departments/ Organizations (excluding disputes relating to Railways, Income Tax, Customs & Excise Departments), such dispute or difference shall be taken up by either party for its resolution through Administrative Mechanism for Resolution of CPSE's Disputes ("AMRCD") as mentioned in DPE OM No. 05/0003/2019-FTS-10937 dated 14th December, 2022 and the decision of AMRCD on the said dispute will be binding on both the parties.

30.5 Continuance of the Contract:

Notwithstanding the fact that settlement of dispute(s) (if any) may be pending, the parties hereto shall continue to be governed by and perform the work in accordance with the provisions under this Contract and no payment due or payable to the Supplier shall be withheld on account of such proceedings.



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30.6 Non-Applicability of Arbitration Clause in Case of Banning of Vendors/ Suppliers / Bidders indulged in Fraudulent/ Coercive Practices

Notwithstanding anything contained contrary in GCC or elsewhere in the Purchase Order, in case it is found that the Bidder/ Supplier indulged in fraudulent/ coercive practices at the time of bidding, during execution of the Contract and/or on other grounds as mentioned in GAIL's "Procedure for action in case Corrupt/ Fraudulent/ Collusive/Coercive Practices" (Appendix-I), the Bidder/Supplier shall be banned (in terms of aforesaid procedure) from the date of issuance of such order by GAIL (India) Ltd., to such Bidder/Supplier.

The Bidder /Supplier understands and agrees that in such cases where Bidder /Supplier has been banned (in terms of aforesaid procedure) from the date of issuance of such order by GAIL, such decision of GAIL shall be final and binding on the Bidder /Supplier and the 'Arbitration Clause' mentioned in the GCC or elsewhere in the Purchase Order shall not be applicable for any consequential issue /dispute arising in the matter.

31. GOVERNING LANGUAGE

31.1 The Contract shall be written in English language as specified by the Purchaser/Consultant in the Instruction to Bidders. All literature, correspondence and other documents pertaining to the Contract which are exchanged by the parties shall be written in English language. Printed literature in other language shall only be considered, if it is accompanied by an English translation. For the purposes of interpretation, English translation shall govern and be binding on all parties. The Supplier shall bear all costs of translation to the governing language and all risks of the accuracy of such translation.

31.2 The Supplier shall ensure that the language/terminology/description of Goods used in Purchase Order/ Bill of Lading/Airway Bill/Invoice is verbatim in English and not at variance.

32. NOTICES

32.1 TO THE SUPPLIER: Any notice to be given to the Supplier may be served by the Purchaser/Consultant by facsimile / e-mail or through registered post/Courier at the address/contact information furnished by the Supplier. Proof of issue of any such notice could be conclusive of the Supplier having been duly informed of all contents therein.

32.2 TO THE PURCHASER/CONSULTANT: Any notice to be given to the Purchaser/Consultant under the terms of the Contract may be served by the Supplier, by facsimile / e-mail or delivering the same through registered post /Courier at the concerned site office.

32.3 A notice shall be effective when delivered or on the notice's effective date, whichever is later.

33. TAXES & DUTIES

33.1 A foreign Supplier shall be entirely responsible for all taxes, stamp duties, license fees, and other such levies imposed outside the Purchaser's country.



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33.2 A domestic Supplier shall be entirely responsible for all taxes, duties, license fees etc. incurred until the delivery of the contracted goods to the Purchaser. However, GST on finished products shall be reimbursed by Purchaser.

33.3 Customs duty payable in India for imported Goods ordered by Purchaser on foreign Supplier shall be borne and paid by Purchaser.

33.4 Any income tax payable in respect of supervisory services rendered by foreign Supplier under the Contract shall be as per the Indian Income Tax Act and shall be borne by Supplier. It is upto the Bidder/Supplier to ascertain the amount of these taxes and to include them in his Bid price.

33.5 TDS

33.5.1 TDS as applicable will be deducted by GAIL under section 194Q of the Income Tax Act, 1961 on Purchases exceeds Rs. 50 Lakhs or limit defined therein from time to time during the financial year.

33.5.2 Since GAIL is liable to deduct Income Tax TDS under section 194Q, the provision of TCS as per section 206C (1H) of the Income Tax Act, 1961 shall not be applicable.

33.5.3 Higher rate of TDS for non-filers of ITR

As per Section 206AB of Income Tax Act, 1961, in case of any vendor/customer who does not filed their Income Tax Return for both of the two previous years preceding to current year and aggregate amount of TDS is more than or equal to Rs. 50,000/- in each of those previous two years (or limit defined by Govt. from time to time), then TDS will be deducted at the higher of following rates:

- (i) Twice the rate mentioned in relevant TDS section.
- (ii) Twice the rate or rates in force
- (iii) 5%

34. BOOKS & RECORDS

34.1 Supplier shall maintain adequate books and records in connection with Contract and shall make them available for inspection and audit by Purchaser/Consultant or their authorized agents or representatives during the terms of Contract until expiry of the Contract Performance Security. Fixed price (lumpsum or unit price) Contract will not be subject to audit as to cost except for cost reimbursable items, such as escalation and termination claims, transportation and comparable requirements.

35. PERMITS & CERTIFICATES

35.1 Supplier shall procure, at his expense, all necessary permits, certificates and licences required by virtue of all applicable laws, regulations, ordinances and other rules in effect at the place where any of the work is to be performed, and Supplier further agrees to hold Purchaser and/or Consultant harmless from liability or penalty which might be imposed by reason of any asserted or established violation of such laws, regulations, ordinances or other rules. Purchaser will provide necessary permits for Supplier's personnel to undertake any work at Site in connection with Contract.



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36. GENERAL

36.1 In the event that terms and conditions stipulated in the General Conditions of Contract should deviate from terms and conditions stipulated in the Contract, the latter shall prevail.

36.2 Losses due to non-compliance of Instructions

Losses or damages occurring to the Purchaser owing to the Supplier's failure to adhere to any of the instructions given by the Purchaser/Consultant in connection with the Contract execution shall be recoverable from the Supplier.

36.3 Recovery of sums due

All costs, damages or expenses which the Purchaser/Consultant may have paid, for which under the Contract Supplier is liable, may be recovered by the Purchaser (he is hereby irrevocably authorized to do so) from any money due to or becoming due to the Supplier under this Contract or other Contracts and/or may be recovered by action at law or otherwise. If the sums due to the Supplier be not sufficient to recover the recoverable amount, the Supplier shall pay to the Purchaser, on demand, the balance amount.

36.4 Payments, etc. not to affect rights of the Purchaser

No sum paid on account by the Purchaser nor any extension of the date for completion granted by the Purchaser/Consultant shall affect or prejudice the rights of the Purchaser against the Supplier or relieve the Supplier of his obligation for the due fulfillment of the Contract.

36.5 Cut-off Dates

No claims or correspondence on claims on this Contract shall be entertained by the Purchaser/Consultant after 90 days after expiry of the Contract Performance Security (from the date of final extension, if any)

36.6: Indemnity

The Supplier hereby irrevocably and unconditionally undertakes to indemnify and keep indemnified the Purchaser/GAIL and all its employees, agents and assigns from and against all losses, penalties interests, costs etc., which may arise out of breach of any terms and conditions of this Contract by the Supplier and the employees' /personnel/sub-contractors/agents or any third party appointed by the Supplier for the purpose of implementation of their obligations under this Contract. The Supplier undertakes to compensate the Purchaser/GAIL forthwith on demand without protest any loss suffered by the Purchaser/GAIL together with direct/indirect expenses. This Indemnity shall remain valid and irrevocable for all claims of the Purchaser/GAIL arising from any such case or court case filed for which Purchaser/GAIL or its employees has been made party until now or here -in- after.

36.7 Paragraph heading

The paragraph heading in these conditions shall not affect the construction thereof.

36.8 Retired Purchaser's Director

No Director of GAIL is allowed to participate in tender for a period of 1 (one) year after his retirement from the employment of GAIL, without the prior permission of GAIL. The Contract if awarded is liable to be cancelled if the tenderer is found at any time to be such a person and has not obtained the permission of GAIL before submission of the tender. Any tender by a person aforesaid shall carry a disclosure thereof



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on the tender and shall be accompanied by a copy of the document by which the requisite consent is given. Such disqualifications shall apply to every partner of a partnership firm.

The tenderer is required to state whether he is a relative of any Director of GAIL, or whether the tenderer is a partnership firm, whether a Director of GAIL or its relative is a partner in the firm, or whether the tenderer is a Company, whether a Director of GAIL or relative of such Director is a substantial member holding more than 10% (ten percent) of the paid up capital in the Company, or a Director of the Company. The definition of relative shall be as per The Companies Act, 2013 and its amendment(s).

37. IMPORT LICENSE

37.1 No import license is required for the imports covered under this Contract.

38. FALL CLAUSE

The following Fall Clause shall be applicable in the Contract, only if there is a specific mention of its applicability in ITB or SCC of Tender Document.

38.1 The price charged for the Goods supplied under the Contract by the Supplier shall in no event exceed the lowest price at which the Supplier or his agent/principal/dealer, as the case may be, sells the Goods of identical description to any Persons/Organizations including the Purchaser or any Department of the Central Govt. or any Department of a State Govt. or any Statutory Undertaking of the Central or State Govt. as the case may be, during the currency of the Contract.

38.2 If at any time during the said period, the Supplier or his agent/principal/dealer, as the case may be, reduces the sale price, sells or offers to sell such materials to any persons/organizations including the Purchaser or any Deptt. of Central Govt. or State Govt. as the case may be, at a price lower than the price chargeable under the Contract, he shall forthwith notify such reduction or sale or offer of sale to the Purchase Authority who has issued the Purchase Order and the price payable under the Purchase Order for the materials supplied after the date of coming into force of such reduction or sale or offer of sale shall stand correspondingly reduced.

The above stipulation will, however, not apply to:

- (i) Export/Deemed Export by the Supplier or
- (ii) Sale of goods as original equipment prices lower than the price charged for normal replacement;
- (iii) Sale of goods such as drugs, which have expiry date;
- (iv) Sale of goods at lower price on or after the date of completion of sale/placement of order of goods or services by the authority concerned, under the existing or previous Rate Contracts as also under any previous contracts entered into with the Central or State Government Departments including new undertakings (excluding joint sector companies and or private parties) and bodies.

38.3 The Supplier shall furnish the following certificate to the concerned Paying Authority along with each bill for payment for supplies made against this order:-



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“I/We certify that there has been no reduction in sale price of the items/Goods/materials of description identical to those supplied to the GAIL under the order herein and such items/Goods/materials have not been offered/sold by me/us to any person/organizations including the Purchaser or any Deptt. of Central Govt. or any Deptt. of State Govt. or any Statutory Undertaking of the Central or State Govt. as the case may be upto the date of bill/during the currency of the Contract whichever is later, at a price lower than the price charged to the GAIL under this Purchase Order”.

Such a certificate shall be obtained, except for quantity of items/Goods/materials categories under sub-clause (i), (ii) & (iii) of sub-para 38.2 above, of which details shall be furnished by the Supplier.

39. PUBLICITY & ADVERTISING

39.1 Supplier shall not without the written permission of Purchaser/Consultant make a reference to Purchaser/Consultant or any Company affiliated with Purchaser/Consultant or to the destination or the description of goods or services supplied under the contract in any publication, publicity or advertising media.

40. REPEAT ORDER

40.1 Purchaser reserves the right, within 6 months of order to place repeat order up to 25% of the original quantity without any change in unit price or other terms and conditions.

41. LIMITATION OF LIABILITY

41.1 Notwithstanding anything contrary contained herein, the aggregate total liability of Supplier, excluding his liability towards infringement of patent & trade mark or industrial design rights or willful misconduct or fraud, under the contract or otherwise shall be limited to 100% of value of Purchase order.

However, neither party shall be liable to the other party for any indirect and consequential damages, loss of profits or loss of production.

42. COMPLETION CERTIFICATE AND EXECUTION CERTIFICATE

42.1 No Completion Certificate shall be issued against orders for supply of goods only. However, for these cases, a copy of Good Receipt (GR) duly signed by concerned Store-in-charge will be forwarded to the Supplier.

42.2 Completion Certificate, in case of Purchase Orders for supply of Goods along with associated/incidental Services (like erection, installation, commissioning etc.) should be issued after completion of supplies/services in accordance with Contract.

42.3 Completion of supplies, for issuance of completion certificate, shall be completion of supply and acceptance of Goods in all respect as per provisions of Contract.

42.4 **Application for Completion Certificate:** When the Supplier fulfills his obligation under the Contract he shall be eligible to apply for Completion Certificate. The Purchaser/Consultant shall normally issue to the Supplier the Completion Certificate within one month after receiving any application thereof from the Supplier after verifying from the completion documents and satisfying himself that the supplies have been made in accordance with and as set out in the Contract.



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42.5 **Completion Certificate:** Within one month from receipt of application from Supplier after the completion of the Supplies in all respects as specified above at clause no. 42.4, the Supplier shall be furnished with a certificate by the Purchaser/Consultant such completion. Purchaser's/Consultant's certification about completion of supplies in all aspects shall be binding and conclusive.

42.6 **Execution Certificate:** Execution Certificate during currency of Rate contract can be issued by Purchaser/Consultant against written request from Supplier.

43.0 PROVISIONS FOR BUY-BACK ITEMS:

The following provision for Buy-Back shall be applicable in the Contract, only if there is a specific mention of its applicability in ITB or SCC of Tender Document.

43.1 Old materials will be handed over to the Supplier in terms of the contract with proper documentation on "as is where is basis". The Supplier is required to take away such materials out of GAIL immediately after handing over to them.

43.2 The Supplier will not sell these materials to any Purchaser's employee without written permission of Purchaser/HR Department-Purchaser, to be obtained by the Purchaser employee(s). Even after such permission is obtained by employee(s), the Supplier is free to take decision whether to sell such item(s) to Purchaser employee(s) or not.

43.3 The Supplier will maintain a separate record for such sales to Purchaser employees and will make the same available as and when required by Purchaser.

43.4 The Supplier will accept payment only by Cheque/Demand Draft/e-banking (NEFT) for sale of old item(s) to GAIL employee(s).

43.5 The Supplier is required to take away the buy-back items out of GAIL premises at his cost within 14 days of notice. Failure or any delays of Supplier for removal of buy-back items, the Purchaser shall be entitled to recover handling and storage charges @5% of the buy-back value of such items for each month or part of a month without relieving the Supplier from any other related liability. In the event of the Supplier's failure to remove the same within a period of 6 months, the Purchaser will take action for removal through auction or sale on behalf of the Supplier and at his risk in all respects. The buy back amount deducted from payment and proceed of such action or sale will be adjusted towards handling, storage and overhead charges of GAIL. The decision of Purchaser w.r.t. such removal and the amount of the proceeds shall be final and binding on the Supplier. The Purchaser shall in no way be responsible for any deterioration or damage to the Equipment under any circumstances whatsoever. Further, such action shall be considered as poor-performance and action will be taken as per procedure in this regard.

44.0 CONFIDENTIALITY:

The Supplier, it's Sub-Contractor and their personnel shall not, either during the term or within two (2) years after the expiration of this Contract, disclose any proprietary or confidential information related to work / Project, this Contract, or Purchaser's business or operations without the prior consent of the Purchaser.

45.0 INTELLECTUAL PROPERTY RIGHT:

The Supplier shall retain the copy right and other intellectual property rights in the Supplier's document and other design documents made by (or on behalf of) the Supplier.



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Subject to the confidentiality obligations, by signing the Contract, within the value of Contract, the Supplier shall be deemed to give to the Purchaser a non-terminable, transferable, non-exclusive and royalty-free right to copy, use and communicate the Supplier's documents for the operation, maintenance, repair of the Goods/Work / Plant, training and Statutory purposes, but not for any other purpose. Such documents of the Supplier shall not be used, copied or communicated to a third party by or on behalf of the Purchaser for the purposes other than those permitted, without the Supplier's Consent.

46.0 ACTION IN CASE OF CORRUPT/ FRAUDULENT/ COLLUSIVE/ COERCIVE PRACTICES AND POOR PERFORMANCE:

The procedure for action in case of Corrupt/ Fraudulent/ Collusive/ Coercive Practices containing provisions for putting a Bidder/Supplier on suspension and/or banning list (as the case may be) if such an agency has indulged in Corrupt/ Fraudulent/ Collusive/ Coercive Practices. The Procedure is also enclosed as Appendix-I to this GCC.

Further, Bidder/Supplier accepts and solemnly affirms that they would adhere to the Fraud Prevention Policy of GAIL and shall not indulge themselves or allow others (working in GAIL) to indulge in fraudulent activities and that they would immediately apprise the Owner/GAIL/Employer / Organization(s) of the fraud/ suspected fraud as soon as it comes to their notice. Concealment of facts regarding Bidder/Supplier's involvement in fraudulent activities in connection with the business transaction(s) of GAIL is liable to be treated as crime and dealt with by the procedures of GAIL as applicable from time to time. The Fraud Prevention Policy document is available on GAIL's website (www.GAILonline.com).

47.0 VENDOR PERFORMANCE EVALUATION

The procedure for evaluation of performance of Supplier containing provisions for putting a Bidder / Supplier on suspension and/or holiday list (as the case may be) is enclosed as Appendix II to this GCC.



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APPENDIX-I

**PROCEDURE FOR ACTION IN CASE CORRUPT/FRAUDULENT /
COLLUSIVE/COERCIVE PRACTICES**

A Definitions:

- A.1 “Corrupt Practice” means the offering, giving, receiving or soliciting, directly or indirectly, anything of value to improperly influence the actions in selection process or in contract execution.
- “Corrupt Practice” also includes any omission for misrepresentation that may mislead or attempt to mislead so that financial or other benefit may be obtained or an obligation avoided.
- A.2 “Fraudulent Practice” means and include any act or omission committed by a agency or with his connivance or by his agent by misrepresenting/ submitting false documents and/ or false information or concealment of facts or to deceive in order to influence a selection process or during execution of Contract/ Purchase Order.
- A.3 “Collusive Practice amongst bidders (prior to or after bid submission)” means a scheme or arrangement designed to establish bid prices at artificial non-competitive levels and to deprive the Purchaser/Employer of the benefits of free and open competition.
- A.4 “Coercive practice” means impairing or harming or threatening to impair or harm directly or indirectly, any agency or its property to influence the improperly actions of an agency, obstruction of any investigation or auditing of a procurement process.
- A.5 “Vendor/Supplier/Contractor/Consultant/Bidder/Service Provider” is herein after referred in this Appendix as “Agency”
- A.6 “Appellate Authority” shall mean Committee of Directors consisting of Director (Finance) and Director (BD) for works centers under Director (Projects). For all other cases committee of Directors shall consist of Director (Finance) & Director (Projects).
- A.7 “Competent Authority” shall mean the authority, who is competent to take final decision for Suspension of business dealing with an Agency(ies) and Banning of business dealings with Agency(ies) and shall be the “Director” concerned.
- A.8 “Allied Agency” shall mean all concerns which come within the sphere of effective influence of the banned/suspended agency shall be treated as allied agency. In determining this, the following factors may be taken into consideration:
- a) Whether the management is common;
 - b) Majority interest in the management is held by the partners or directors of banned/ suspended agency;
 - c) Substantial or majority shares are owned by the banned/ suspended agency and by virtue of this it has a controlling voice.
 - d) Directly or indirectly controls, or is controlled by or is under common control with another bidder.



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e) All successor agency will also be considered as allied agency.

A.9 “Investigating Agency” shall mean any department or unit of GAIL investigating into the conduct of Agency/ party and shall include the Vigilance Department of the GAIL, Central Bureau of Investigation, State Police or any other agency set up by the Central or state government having power to investigate.

A.10 “Obstructive practice”: materially impede the procuring entity's investigation into allegations of one or more of the above mentioned practices either by deliberately destroying, falsifying, altering; or by concealing of evidence material to the investigation; or by making false statements to investigators and/ or by threatening, harassing or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or by impeding GAIL's rights of audit or access to information.

B Actions against bidder(s) indulging in corrupt /fraudulent/ collusive/ coercive practice

B.1 Irregularities noticed during the evaluation of the bids:

If it is observed during bidding process/ bids evaluation stage that a bidder has indulged in corrupt/ fraudulent /collusive/coercive practice, the bid of such Bidder(s) shall be rejected and its Earnest Money Deposit (EMD) shall be forfeited.

Further, such agency shall be banned for future business with GAIL for a period specified in para B 2.2 below from the date of issue of banning order.

B.2 Irregularities noticed after award of contract

(i) During execution of contract:

If an agency, is found to have indulged in corrupt/fraudulent/ collusive/coercive practices, action shall be initiated for putting the agency on banning list.

After conclusion of process and issuance of Speaking order for putting party on banning list, the order (s)/ contract (s) where it is concluded that such irregularities have been committed shall be terminated and Contract cum Performance Bank Guarantee (CPBG) submitted by agency against such order (s)/ contract (s) shall also be forfeited. Further such order/ contract will be closed following the due procedure in this regard.

The amount that may have become due to the contractor on account of work already executed by him shall be payable to the contractor and this amount shall be subject to adjustment against any amounts due from the contractor under the terms of the contract. No risk and cost provision will be enforced in such cases.

Suspension of order/ contract:

Further, only in the following situations, the concerned order (s)/ contract(s) (where Corrupt/ Fraudulent/Collusive/Coercive Practices are observed) and payment shall be suspended after issuance of Suspension cum Show Cause Notice:

(i) Head of Corporate Vigilance Department/CVO based on the investigation by them, recommend for specific immediate action against the agency.



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- (ii) Head of Corporate Vigilance Department/CVO based on the input from investigating agency, forward for specific immediate action against the agency.

Suspension cum Show Cause Notice being issued in above cases after approval of the competent authority (as per provisions mentioned under Clause no. D) shall also include the provision for suspension of Order (s)/ Contract (s) and payment. Accordingly, after issuance of Suspension cum Show Cause Notice, the formal communication for suspension of Order (s)/ Contract (s) and payment with immediate effect will be issued by the concerned person of GAIL.

During suspension, Contractor/ Service Providers will be allowed to visit the plant/ site for upkeep of their items/ equipment, GAIL's issued materials (in case custody of same is not taken over), demobilizing the site on confirmation of EIC, etc.

In addition to above, Recovery of payments (other than due payments) including balance advance payments, if any, made by along with interest thereon at the prevailing rate shall be recovered.

(i). After execution of contract and during Defect Liability Period (DLP)/ Warranty/Guarantee Period:

If an Agency is found to have indulged in corrupt/fraudulent/ collusive/coercive practices, after execution of contract and during DLP/ Warranty/Guarantee Period, the Agency shall be banned for future business with GAIL for a period specified in para B 2.2 below from the date of issue of banning order.

Further, the CPS submitted by agency against such order (s)/ Contract (s) shall be forfeited.

(ii). After expiry of DLP/ Warranty/Guarantee Period

If an Agency is found to have indulged in corrupt/fraudulent/ collusive/coercive practices, after expiry of DLP/Warranty/Guarantee Period, the agency shall be banned for future business with GAIL for a period specified in para B 2.2 below from the date of issue of banning order.

B.2.2 Period of Banning

The period of banning of agencies indulged in Corrupt/Fraudulent/Collusive/Coercive Practices shall be as under and to be reckoned from the date of banning order:

S. No.	Description	Period of banning from the date of issuance of Banning order
1	Misrepresentation/False information other than pertaining to BEC of tender but having impact on the selection process. For example, if an agency confirms not being in holiday in GAIL/PSU's PMC or banned by PSUs/ Govt. Dept., liquidation, bankruptcy & etc. and subsequently it is found otherwise, such acts shall be considered in this category.	06 Months



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2	Corrupt/Fraudulent (except mentioned at sl. no. 1 above)/ Collusive/Coercive Practices	01 year
2.1	If an agency again commits Corrupt/Fraudulent (except mentioned at sl. no. 1 above)/Collusive/Coercive Practices in subsequent cases after their banning, such situation of repeated offense to be dealt with more severity.	2 years (in addition to the period already served)
3	Indulged in unauthorized disposal of materials provided by GAIL	2 years
4	If act of vendor/ contractor is a threat to the National Security	2 years

C Effect of banning on other ongoing contracts/ tenders

- C.1 If an agency is put on Banning, such Agency should not be considered in ongoing tenders/future tenders.
- C.2 However, if such an Agency is already executing other order (s)/ contract (s) where no corrupt/fraudulent/collusive/coercive practice is found, the agency should be allowed to continue till its completion without any further increase in scope except those incidental to original scope mentioned in the contract.
- C.3 If an agency is put on the Banning List during tendering and no irregularity is found in the case under process:
- C.3.1 after issue of the enquiry /bid/tender but before opening of Technical bid, the bid submitted by the agency shall be ignored.
- C.3.2 after opening Technical bid but before opening the Price bid, the Price bid of the agency shall not be opened and BG/EMD submitted by the agency shall be returned to the agency.
- C.3.3 After opening of price, BG/EMD made by the agency shall be returned; the offer of the agency shall be ignored & will not be further evaluated. In case such agency is lowest (L-1), next lowest bidder shall be considered as L-1.

D. Procedure for Suspension of Bidder

D.1 Initiation of Suspension

Action for suspension business dealing with any agency/(ies) shall be initiated when

- Corporate Vigilance Department, GAIL based on the fact of the case gathered during investigation by them recommend for specific immediate action against the agency.
- Corporate Vigilance Department, GAIL based on the input from investigating agency, forward for specific immediate action against the agency.
- Non-performance of Vendor/Supplier/Contractor/Consultant leading to termination of Contract/ Order.

D.2 Suspension Procedure:

- D.2.1 The order of suspension would operate initially for a period not more than six months and shall be communicated to the agency and also to Corporate Vigilance Department. Period of suspension can be



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extended with the approval of the Competent Authority by one month at a time with a ceiling of six months pending a conclusive decision to put the agency on banning list.

D.2.2 During the period of suspension, no new business dealing shall be held with the agency.

D.2.3 Period of suspension shall be accounted for in the final order passed for banning of business with the agency.

D.2.4 The decision regarding suspension of business dealings shall also be communicated to the agency.

D 3 Effect of Suspension of business:

Effect of suspension on other on-going/future tenders will be as under:

D.3.1 No enquiry/bid/tender shall be entertained from an agency as long as the name of agency appears in the Suspension List.

D.3.2 If an agency is put on the Suspension List during tendering:

D.3.2.1 after issue of the enquiry /bid/tender but before opening of Technical bid, the bid submitted by the agency shall be ignored.

D.3.2.2 after opening Technical bid but before opening the Price bid, the Price bid of the agency shall not be opened and BG/EMD submitted by the agency shall be returned to the agency.

D.3.2.3 After opening of price, BG/EMD made by the agency shall be returned; the offer of the agency shall be ignored & will not be further evaluated. In case such agency is lowest (L-1), next lowest bidder shall be considered as L-1.

D.3.3 The existing contract (s)/ order (s) under execution shall continue.

D.3.4 Bidder confirms/undertakes that (i) neither the bidder themselves nor their allied agency/(ies) are on banning list of GAIL or the Ministry of Petroleum and Natural Gas and (ii) bidder is not banned by any Government department/ Public Sector.

F. Appeal against the Decision of the Competent Authority:

F.1 The agency may file an appeal against the order of the Competent Authority for putting the agency on banning list. The appeal shall be filed to Appellate Authority. Such an appeal shall be preferred within one month from the of receipt of banning order.

F.2 Appellate Authority would consider the appeal and pass appropriate order which shall be communicated to the party as well as the Competent Authority.

F.3 Appeal process may be completed within 45 days of filing of appeal with the Appellate Authority.

G. Wherever there is contradiction with respect to terms of 'Integrity pact', GCC and 'Procedure for action in case of Corrupt/Fraudulent/ Collusive/Coercive Practice', the provisions of 'Procedure for action in case of Corrupt/Fraudulent/ Collusive/Coercive Practice' (Appendix I) shall prevail.



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APPENDIX-II

PROCEDURE FOR EVALUATION OF PERFORMANCE OF VENDORS/ SUPPLIERS/ CONTRACTORS/ CONSULTANTS

1.0 GENERAL

A system for evaluation of Vendors/Suppliers/Contractors/Consultants (*referred elsewhere as “Seller”*) and their performance is a key process and important to support an effective purchasing & contracting function of an organization.

Performance of all participating Seller need to be closely monitored to ensure timely receipt of supplies, completion of an assignment or complete execution of order by Seller within scheduled completion period. For timely execution of projects and meeting the operation & maintenance requirement of operating plants, it is necessary to monitor the execution of order or Contracts right from the award stage to completion stage and take corrective measures in time.

2.0 OBJECTIVE

The objective of Evaluation of Performance aims to recognize, and develop reliable Vendors/ Suppliers/ Contractors/Consultants so that they consistently meet or exceed expectations and requirements.

The purpose of this procedure is to put in place a system to monitor performance of Vendors/ Suppliers/ Contractors/Consultants associated with GAIL so as to ensure timely completion of various projects, timely receipt of supplies including completion of works & services for operation and maintenance of operating plants and quality standards in all respects.

3.0 METHODOLOGY

i) Preparation of Performance Rating Data Sheet (PRDS)

Performance rating data Sheet for each and every Vendor/ Supplier/Contractor/Consultant for all orders/Contracts with a value of Rs. 50 Lakhs and above is recommended to be drawn up. Further, Performance rating data Sheet for orders/contracts of Vendor/Supplier/Contractor/ Consultant who are on watch list/holiday list/ banning list shall be prepared irrespective of order/ contract value. These data sheets are to be separately prepared for orders/ contracts related to Projects and O&M. Format, Parameters, Process, responsibility for preparation of Performance Rating Data Sheet are separately mentioned.

ii) Measurement of Performance

Based on the parameters defined in Data Sheet, Performance of concerned Seller would be computed and graded accordingly. The measurement of the performance of the Seller would be its ability to achieve the minimum scoring of 60% points in the given parameters.

iii) Initiation of Measures:



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Depending upon the Grading of Performance, corrective measures would be initiated by taking up the matter with concerned Seller. Response of Seller would be considered before deciding further course of action.

iv) **Implementation of Corrective Measures:**

Based on the response of Seller, concerned Engineer-in-Charge/Purchaser for the Projects and/or OIC in case of O&M would recommend for continuation or discontinuation of such Seller from the business of GAIL.

- v) Orders/Contracts placed on Proprietary/OEM basis for O&M will be evaluated and, if required, corrective action will be taken for improvement in future.

4.0 EXCLUSIONS:

The following would be excluded from the scope of evaluation of performance of Vendors/ Suppliers/ Contractors/ Consultants:

- Orders/Contracts below the value of Rs. 50 Lakhs if Vendor/ Supplier/Contractor/ Consultant is not on watch list/ holiday list/ banning list.
- Orders for Misc./Administrative items/ Non stock Non valued items (PO with material code ending with 9).

However, concerned Engineer-in-Charge /OICs will continue to monitor such cases so as to minimize the impact on Projects/O&M plants due to non performance of Vendors/ Suppliers/Contractors/ Consultants in all such cases.

5.0 PROCESS OF EVALUATION OF PERFORMANCE OF VENDORS/SUPPLIERS/ CONTRACTORS/ CONSULTANTS

5.1 FOR PROJECTS

- Evaluation of performance of Seller in case of PROJECTS shall be done immediately with commissioning of any Project.
- On commissioning of any Project, EIC (Engineer-in-charge)/ Project-in-charge of Purchaser shall prepare a PRDS (Format at Annexure-1) for all Orders and Contracts.
- Depending upon the Performance Rating, following action shall be initiated by Engineer-in-charge/ Project-in-charge:

Sl. No.	Performance Rating	Action
1	POOR	Seek explanation for Poor performance
2	FAIR	Seek explanation for Fair performance
3	GOOD	Letter to the concerned for improving performance in future
4	VERY GOOD	No further action



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iv) Reply from concerned Seller shall be examined. In case of satisfactory reply, PRDS to be closed with a letter to the concerned for improving performance in future.

v) When no reply is received or reasons indicated are unsatisfactory, the following actions need to be taken:

A) Where performance rating is “POOR” (as per Performance Rating carried out after execution of Order/ Contract and where no reply/ unsatisfactory reply is received from party against the letter seeking the explanation from Vendor/Supplier/Contractor/ Consultant along with sharing the performance rating)

Recommend such defaulting Vendor/Supplier/Contractor/ Consultant for the following action:

1. Poor Performance on account of Quality (if marks obtained against Quality parameter is less than 20):

(a) **First Instance: Holiday (Red Card) for One Years**

(b) **Subsequent instance (s) in other ongoing order (s)/ contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: Holiday (Red Card) for Two Years**

2. Poor Performance on account of other than Quality (if marks obtained against Quality parameter is more than 20):

(a) **First such instance: Advisory notice (Yellow Card)** shall be issued and Vendor/Supplier/ Contractor/ Consultant shall be put on watch list for a period of **Two (2) Years**.

(b) **Second such instance in other ongoing order (s)/ contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: Putting on Holiday (Red Card) for a period of One Year**

(c) **Subsequent instances (more than two) in other ongoing order (s)/ contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: Putting on Holiday (Red Card) for a period of Two Years.**

B) Where Poor/Non-Performance leading to termination of contract or Offloading of contract due to poor performance attributable to Vendor/Supplier/ Contractor/Consultant

(a) **First instance: Advisory notice (Yellow Card)** shall be issued and Vendor/Supplier/Contractor / Consultant shall be put on watch list for a period of **Two (2) Years**.

Further such vendor will not be allowed to participate in the re-tender of the same supply/ work/ services of that location which has terminated / offloaded. Moreover, it will be ensured that all other action as per provision of contract including forfeiture of Contract Performance Security (CPS) etc. are undertaken.



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However, such vendor will be allowed to participate in all other tenders and to execute other ongoing order/ contract (s) or new contract/ order (s).

The Yellow card will be automatically revoked after a period of two years unless the same is converted into Red Card due to subsequence instances of poor/ non-performance in other ongoing order (s)/ contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant.

(b) Second instances in other ongoing order (s)/ contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: **Holiday (Red Card)** for period of One Year and they shall also to be considered for Suspension.

(c) Subsequent instances (more than two) in other ongoing order (s)/ contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: **Holiday (Red Card)** for period of **Two Years and they shall also to be considered for Suspension.**

(C) Where Performance rating is “FAIR”:

Issuance of warning to such defaulting Vendor/Supplier/Contractor/Consultant to improve their performance.

5.2 DELETED.

5.3 FOR OPERATION & MAINTENANCE

- i) Evaluation of performance of Seller in case of Operation and Maintenance shall be done immediately after execution of order/ Contract.
- ii) After execution of orders a PRDS (Format at Annexure-2) shall be prepared for Purchaser Orders by Site C&P and for Services by respective Engineer-In-Charge.
- iii) Depending upon Performance Rating, following action shall be initiated:

Sl. No.	Performance Rating	Action
1	POOR	Seek explanation for Poor performance
2.	FAIR	Seek explanation for Fair performance
3	GOOD	Letter to the concerned for improving performance in future.
4	VERY GOOD	No further action

- iv) Reply from concerned Seller shall be examined. In case of satisfactory reply, PRDS to be closed with a letter to the concerned for improving performance in future.
- v) When no reply is received or reasons indicated are unsatisfactory, the following actions need to be taken:



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- A) Where performance rating is “POOR” (as per Performance Rating carried out after execution of Order/ Contract and where no reply/ unsatisfactory reply is received from party against the letter seeking the explanation from Vendor/Supplier/Contractor/ Consultant along with sharing the performance rating)

Recommend such defaulting Vendor / Supplier / Contractor / Consultant for the following action:

1. Poor Performance on account of Quality (if marks obtained against Quality parameter is less than 20):

(a) **First Instance: Holiday (Red Card) for One Years**

(b) **Subsequent instance (s) in other ongoing order (s)/ contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: Holiday (Red Card) for Two Years**

2. Poor Performance on account of other than Quality (if marks obtained against Quality parameter is more than 20):

(a) **First such instance: Advisory notice (Yellow Card)** shall be issued and Vendor/Supplier/ Contractor/ Consultant shall be put on watch list for a period of **Two (2) Years**.

(b) **Second such instance in other ongoing order (s)/ contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: Putting on Holiday (Red Card) for a period of One Year**

(c) **Subsequent instances (more than two) in other ongoing order (s)/contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: Putting on Holiday (Red Card) for a period of Two Years.**

- B) Where Poor/Non-Performance leading to termination of contract or Offloading of contract due to poor performance attributable to Vendor/Supplier/ Contractor/Consultant

- a. **First instance: Advisory notice (Yellow Card)** shall be issued and Vendor/Supplier/Contractor / Consultant shall be put on watch list for a period of Two (2) Years.

Further such vendor will not be allowed to participate in the re-tender of the same supply/work/ services of that location which has terminated / offloaded. Moreover, it will be ensured that all other action as per provision of contract including forfeiture of Contract Performance Security (CPS) etc. are undertaken.

However, such vendor will be allowed to participate in all other tenders and to execute other ongoing order/ contract (s) or new contract/ order (s).

The Yellow card will be automatically revoked after a period of two years unless the same is converted into Red Card due to subsequence instances of poor/ non-performance in other ongoing order (s)/ contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant.



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- b. **Second instances** in other ongoing order (s)/ contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: **Holiday (Red Card)** for period of One Year and they shall also to be considered for Suspension.
- c. **Subsequent instances (more than two)** in other ongoing order (s)/contract (s) or new order (s) / contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: **Holiday (Red Card)** for period of **Two Years and they shall also to be considered for Suspension.**

(C) Where Performance rating is “FAIR”:

Issuance of warning to such defaulting Vendor/ Supplier/Contractor/ Consultant to improve their performance.

6.0 REVIEW & RESTORATION OF SELLER PUT ON HOLIDAY

- 6.1 An order for Holiday passed for a certain specified period shall deemed to have been automatically revoked on the expiry of that specified period and it will not be necessary to issue a specific formal order of revocation.

Further, in case Seller is put on holiday due to quality, and new order is placed on bidder after restoration of Seller, such order will be properly monitored during execution stage by the concerned site.

7.0 EFFECT OF HOLIDAY

- 7.1 If a Seller is put on Holiday, such Seller shall not be considered in ongoing tenders/future tenders.
- 7.2 However, if such Seller is already executing any other order/ contract and their performance is satisfactory in terms of the relevant contract, should be allowed to continue till its completion without any further increase in scope except those incidental to original scope mentioned in the contract. In such a case CPBG/CPS will not be forfeited and payment will be made as per provisions of concerned contract. However, this would be without prejudice to other terms and conditions of the contract.
- 7.3. Effect on other ongoing tendering:
- 7.3.1 after issue of the enquiry /bid/tender but before opening of Technical Bid (unpriced bid), the bid submitted by the Seller shall be ignored.
- 7.3.2 after opening Technical Bid but before opening the Price Bid, the Price Bid of the Seller shall not be opened and BG/EMD submitted by the Seller shall be returned to the party.
- 7.3.3 after opening of price, BG/EMD made by the party shall be returned; the offer of the party shall be ignored & will not be further evaluated. In case such agency is lowest (L-1), next lowest bidder shall be considered as L-1.
- 8.0 While putting the Seller on holiday as per the procedure, the holding company, subsidiary, joint venture, sister concerns, group division of the errant Seller shall not be considered for putting on holiday list.



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Any Bidder/Seller, put on holiday, will not be allowed to bid through consortium route also in new tender during the period of holiday.

- 9.0 If an unsuccessful bidder makes any vexatious, frivolous or malicious complaint against the tender process with the intention of delaying or defeating any procurement or causing loss to GAIL or any other bidder, such bidder will be put on holiday for a period of six months, if such complaint is proved to be vexatious, frivolous or malicious, after following the due procedure.

10. APPEAL AGAINST THE DECISION OF THE COMPETENT AUTHORITY:

- (a) The party may file an appeal against the order of the Competent Authority for putting the party on Holiday list. The appeal shall be filed to Appellate Authority. Such an appeal shall be preferred within one month from the receipt of Holiday order.
- (b) Appellate Authority would consider the appeal and pass appropriate order which shall be communicated to the party as well as the Competent Authority.
- (c) Appeal process may be completed within 45 days of filing of appeal with the Appellate Authority.
- (d) “Appellate Authority” shall mean Committee of Directors consisting of Director (Finance) and Director (BD) for works centers under Director (Projects). For all other cases committee of Directors shall consist of Director (Finance) & Director (Projects).

11. ERRANT BIDDER

In case after price bid opening the lowest evaluated bidder (L1) is not awarded the job for any mistake committed by him in bidding or withdrawal of bid or modification of bid or varying any term in regard thereof leading to re-tendering, GAIL shall forfeit EMD if paid by the bidder and such bidders shall be debarred from participation in retendering of the same job(s)/item(s).

Further, such bidder will be put on Watch List (Yellow Card) for a period of two years after following the due procedure. However, during the period in watch list such vendor will be allowed to participate in all other tenders and to execute other ongoing order/ contract (s) or new contract/ order (s).

In case of subsequent instances of default in other tender(s) during aforesaid watch list period, the action shall be initiated as per provision of sl. no. 2 of para A of Clause no. 5.1 (v) and 5.3 (v).

The Yellow card will be automatically revoked after specified period unless the same is converted into Red Card

12. In case CBIC (Central Board of Indirect Taxes and Customs)/ any equivalent government agency brings to the notice of GAIL that a Supplier has not remitted the amount towards GST (CGST & SGST/UTGST or IGST) collected from GAIL to the government exchequer, then, that Supplier shall be put under Holiday list of GAIL for period of six months as mentioned in Procedure for Evaluation of Performance of Vendors/ Suppliers/Contractors/ Consultants enclosed with the tender document.



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Annexure-1

**GAIL (India) Limited
PERFORMANCE RATING DATA SHEET
(FOR PROJECTS)**

- i) Project/Work Centre :
ii) Order No. & date :
iii) Brief description of Items :
iv) Order value (Rs.) :
v) Name of Supplier/ :
vi) Contracted delivery Schedule :
vii) Actual delivery date :

Performance Parameter	Delivery Performance	Quality Performance	Reliability Performance#	Total
Maximum Marks	40	40	20	100
Marks Allocated				

Note:

Remarks (if any)

PERFORMANCE RATING ()**

Note :

- (#) Supplier who seek repeated financial assistance or deviation beyond contract payment term or seeking direct payment to the sub-vendor/sub-contractor due to financial constraints, then '0' marks should be allotted against Reliability Performance.
(*) Allocation of marks should be as per enclosed instructions
(**) Performance rating shall be classified as under:

Sl. No.	Range (Marks)	Rating
1	60 & below	POOR
2	61-75	FAIR
3	76-90	GOOD
4	More than 90	VERY GOOD

Signature of Authorised Signatory:

Name:

Designation:



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Instructions for allocation of marks

1. Marks are to be allocated as under:

1.1 DELIVERY PERFORMANCE 40 Marks

Delivery Period	Delay in Weeks	Marks
a) Upto 3 months	Before CDD	40
	Delay upto 4 weeks	35
	“ 8 weeks	30
	“ 10 weeks	25
	“ 12 weeks	20
	“ 16 weeks	15
	More than 16 weeks	0
b) Above 3 months	Before CDD	40
	Delay upto 4 weeks	35
	“ 8 weeks	30
	“ 10 weeks	25
	“ 16 weeks	20
	“ 20 weeks	15
	“ 24 weeks	10
	More than 24 weeks	0

1.2 QUALITY PERFORMANCE 40 Marks

For Normal Cases : No Defects/ No Deviation/ No failure:		40 marks
i) Rejection/Defects	Marks to be allocated on prorata basis for acceptable quantity as compared to total quantity for normal cases	10 marks
ii) When quality failure endanger system integration and safety of the system	Failure of severe nature	0 marks
	- Moderate nature	5 marks
	- low severe nature	10-25 marks
iii) Number of deviations	1. No deviation	5 marks
	2. No. of deviations ≤ 2	2 marks
	3. No. of deviations > 2	0 marks



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1.3 RELIABILITY PERFORMANCE

20 Marks

i)	Submission of order acceptance, PBG, Drawings and other documents within time	5 marks
ii)	Attending complaints and requests for after sales service/ warranty repairs and/ or query/ advice (upto the evaluation period).	5 marks
iii)	Response to various correspondence and conformance to standards like ISO	5 marks
iv)	Submission of all required documents including Test Certificates at the time of supply	5 marks



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Annexure-2

GAIL (India) Limited
PERFORMANCE RATING DATA SHEET
(FOR O&M)

- i) Location :
ii) Order No. & date :
iii) Brief description of Items :
iv) Order value (Rs.) :
v) Name of Supplier :
vi) Contracted delivery Schedule :
vii) Actual delivery date :

Performance Parameter	Delivery Performance	Quality Performance	Reliability Performance#	Total
Maximum Marks	40	40	20	100
Marks Allocated (*)				

Remarks (if any)

PERFORMANCE RATING (**)

Note :

- (#) Supplier who seek repeated financial assistance or deviation beyond contract payment term or seeking direct payment to the sub-vendor/sub-contractor due to financial constraints, then '0' marks should be allotted against Reliability Performance
(*) Allocation of marks should be as per enclosed instructions
(**) Performance rating shall be classified as under:

Sl. No.	Range (Marks)	Rating
1	60 & below	POOR
2	61-75	FAIR
3	76-90	GOOD
4	More than 90	VERY GOOD

Signature of Authorised Signatory:

Name:

Designation:



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Instructions for allocation of marks (For O&M)

1. Marks are to be allocated as under:

1.1 DELIVERY PERFORMANCE 40 Marks

Delivery Period	Delay in Weeks	Marks
a) Upto 3 months	Before CDD	40
	Delay upto 4 weeks	35
	“ 8 weeks	30
	“ 10 weeks	25
	“ 12 weeks	20
	“ 16 weeks	15
	More than 16 weeks	0
b) Above 3 months	Before CDD	40
	Delay upto 4 weeks	35
	“ 8 weeks	30
	“ 10 weeks	25
	“ 16 weeks	20
	“ 20 weeks	15
	“ 24 weeks	10
	More than 24 weeks	0

1.2 QUALITY PERFORMANCE 40 Marks

For Normal Cases : No Defects/ No Deviation/ No failure:		40 marks
i) Rejection/Defects	Marks to be allocated on prorata basis for acceptable quantity as compared to total quantity for normal cases	10 marks
ii) When quality failure endanger system integration and safety of the	Failure of severe nature - Moderate nature - low severe nature	0 marks 5 marks 10-25 marks



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system		
iii) Number of deviations	1. No deviation	5 marks
	2. No. of deviations ≤ 2	2 marks
	3. No. of deviations > 2	0 marks

1.3 RELIABILITY PERFORMANCE 20 Marks

i)	Submission of order acceptance, PBG, Drawings and other documents within time	5 marks
ii)	Attending complaints and requests for after sales service/ warranty repairs and/ or query/ advice (upto the evaluation period).	5 marks
iii)	Response to various correspondence and conformance to standards like ISO	5 marks
iv)	Submission of all required documents including Test Certificates at the time of supply	5 marks



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APPENDIX-III

**PROFORMA OF “BANK GUARANTEE” FOR “CONTRACT PERFORMANCE SECURITY /
SECURITY DEPOSIT
(ON NON-JUDICIAL STAMP PAPER OF APPROPRIATE VALUE)**

To, M/s GAIL (India) Limited _____	Bank Guarantee No.	
	Date of BG	
	BG Valid up to (expiry date)	
	Claim period up to (There should be three months gap between expiry date of BG & Claim period)	
	Stamp Sl. No./e-Stamp Certificate No.	

Dear Sir(s),

M/s. _____ having registered office at _____ (herein after called the “Contractor/Supplier” which expression shall wherever the context so require include its successors and assignees) have been placed/ awarded the job/work of _____ vide PO/LOA/FOA No. _____ dated _____ for GAIL (India) Limited having registered office at 16, Bhikaiji Cama Place, R.K. Puram, New Delhi (herein after called the “GAIL” which expression shall wherever the context so require include its successors and assignees).

The Contract conditions provide that the Supplier/Contractor shall pay a sum of Rs.[or currency of Contract] _____ (Rupees _____) as full Contract Performance Guarantee in the form therein mentioned. The form of payment of Contract Performance Guarantee includes guarantee executed by Nationalized Bank/Scheduled Commercial Bank, undertaking full responsibility to indemnify GAIL (India) Limited, in case of default.

The said M/s. _____ has approached us and at their request and in consideration of the premises we having our office at _____ have agreed to give such guarantee as hereinafter mentioned.

1. We _____ hereby undertake to give the irrevocable & unconditional guarantee to you that if default shall be made by M/s. _____ in performing any of the terms and conditions of the tender/ order/contract or in payment of any money payable to GAIL (INDIA) LIMITED we shall on first demand pay without demur, contest, protest and/ or without any recourse or reference to the contractor to GAIL in such manner and at time, as GAIL may direct the said amount of Rupees _____ only or such portion thereof not exceeding the said sum as you may require from time to time.
2. You will have the full liberty without reference to us and without affecting this guarantee, postpone for any time or from time to time the exercise of any of the powers and rights conferred on you under the order/contract with the said M/s. _____ and to enforce or to forbear from endorsing any powers or rights or by reason of time being given to the said M/s. _____ and



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such postponement forbearance would not have the effect of releasing the bank from its obligation under this debt.

3. Your right to recover the said sum of Rs. _____ (Rupees _____) from us in manner aforesaid is absolute & unequivocal and will not be affected or suspended by reason of the fact that any dispute or disputes have been raised by the said M/s. _____ and/or that any dispute or disputes are pending before any officer, tribunal or court or arbitrator or any other authority/forum and any demand made by you in the bank shall be conclusive and binding. The bank shall not be released of its obligations under these presents by any exercise by you of its liberty with reference to matter aforesaid or any of their or by reason or any other act of omission or commission on your part or any other indulgence shown by you or by any other matter or changed what so ever which under law would, but for this provision, have the effect of releasing the bank.
4. The guarantee herein contained shall not be determined or affected by the liquidation or winding up or dissolution or changes of constitution or insolvency of the said supplier/contractor or any change in the legal constitution of the Bank or of GAIL but shall in all respects and for all purposes be binding and operative until payment of all money due to you in respect of such liabilities is paid.
5. The bank undertakes not to revoke this guarantee during its currency without your previous consent and further agrees that the guarantee shall continue to be enforceable until it is discharged by GAIL in writing. However, if for any reason, the supplier/contractor is unable to complete the supply/work within the period stipulated in the order/contract and in case of extension of the date of delivery/completion resulting extension of defect liability period/guarantee period of the supplier/contractor fails to perform the supply/work fully, the bank hereby agrees to further extend this guarantee at the instance of the supplier/contractor till such time as may be determined by GAIL. If any further extension of this guarantee is required, the same shall be extended to such required period on receiving instruction from M/s. _____ (contractor) on whose behalf this guarantee is issued.
6. Bank also agrees that GAIL at its option shall be entitled to enforce this Guarantee against the bank (as principal debtor) in the first instant, without proceeding against the supplier/contractor and notwithstanding any security or other guarantee that GAIL may have in relation to the supplier's/contractor's liabilities.
7. The amount under the Bank Guarantee is payable forthwith without any delay by Bank upon the written demand raised by GAIL. Any dispute arising out of or in relation to the said Bank Guarantee shall be subject to the exclusive jurisdiction of courts at New Delhi.
8. Therefore, we hereby affirm that we are guarantors and responsible to you on behalf of the Supplier/Contractor up to a total amount of _____ (amount of guarantees in words and figures) and we undertake to pay you, upon your first written demand declaring the Supplier/Contractor to be in default under the order/contract and without caveat or argument, any sum or sums within the limits of (amounts of guarantee) as aforesaid, without your needing to prove or show grounds or reasons for your demand or the sum specified therein.



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9. We have power to issue this guarantee in your favor under Memorandum and Articles of Association and the undersigned has full power to do under the Power of Attorney, dated _____ granted to him by the Bank.
10. Notwithstanding anything contained herein:
- a) The Bank's liability under this Guarantee shall not exceed(currency in figures) (currency in words only)
- b) This Guarantee shall remain in force upto _____ (this date should be expiry date of defect liability period / guarantee period of the Contract) and any extension(s) thereof; and
- c) The Bank shall be released and discharged from all liability under this Guarantee unless a written claim or demand is issued to the Bank on or before the midnight of(indicate date of expiry of claim period which includes minimum 03 months from the expiry of this Bank Guarantee) and if extended, the date of expiry of the last extension of this Guarantee. If a claim has been received by us within the said date, all the rights of GAIL under this Guarantee shall be valid and shall not cease until we have satisfied that claim.

Details of next Higher Authority of the Officials who have issued the Bank Guarantee:

Name

Designation

Yours faithfully,

Bank by its Constituted Attorney

Signature of a person duly
Authorized to sign on behalf of the Bank

INSTRUCTIONS FOR FURNISHING

"CONTRACT PERFORMANCE SECURITY / SECURITY DEPOSIT" BY "BANK GUARANTEE"

1. The Bank Guarantee by successful Bidder(s) will be given on non-judicial stamp paper as per 'stamp duty' applicable. The non-judicial stamp paper should be in name of the issuing bank. In case of foreign bank, the said Bank Guarantee to be issued by its correspondent bank in India on requisite non-judicial stamp paper and place of Bid to be considered as Delhi.
2. The Bank Guarantee by Bidders will be given from bank as specified in Tender.
3. A letter from the issuing bank of the requisite Bank Guarantee confirming that said Bank Guarantee and all future communication relating to the Bank Guarantee shall be forwarded to Purchaser.
4. If a Bank Guarantee is issued by a commercial bank, then a letter to Purchaser and copy to Consultant (if applicable) confirming its net worth is more than Rs. 100,00,00,000.00 [Rupees One Hundred Crores] or its equivalent in foreign currency alongwith documentary evidence.
5. In case claim period is not mentioned or same date is mentioned against validity and claim period, then the date of validity of BG shall be considered as three months prior to such date.



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6. Supplier shall submit attached cover letter (Annexure) while submitting Contract Performance Security

MATTER TO BE MENTIONED IN COVERING LETTER TO BE SUBMITTED BY VENDOR
ALONG WITH BANK GUARANTEE

1	BANK GUARANTEE NO	:				
2	VENDOR NAME / VENDOR CODE	:	NAME			
			VENDOR CODE			
3	BANK GUARANTEE AMOUNT	:				
4	PURCHASE ORDER/ LOA NO	:				
5	NATURE OF BANK GUARANTEE	:				
	(Please Tick (√) Whichever is Applicable		PERFORMANCE BANK GUARANTEE	SECURITY DEPOSIT	EMD	ADVANCE
6	BG ISSUED BANK DETAIL					
		(A)	EMAIL ID:			
		(B)	ADDRESS:			
		(C)	PHONE NO:			



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GCC SERVICES

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SECTION – I DEFINITIONS & INTERPRETATIONS

1.1 Definition of Terms:

In this Contract (as defined here-in-after), save where the context otherwise requires, the following words and expressions shall have the meanings respectively assigned to them:

"Approved" means approval in writing including subsequent written confirmation of previous verbal approval(s).

The "Bid /Tender/Offer" means the proposal along with required supporting documents submitted by the Bidder/Service Provider for consideration by the Employer.

The "Bidder/Tenderer" means the person(s)/Firm/company/Corporation/Organization/entity, who participated in the Tender.

"Completion Certificate" means the certificate to be issued by the Engineer In-charge (EIC) when the Services have been completed entirely in accordance with Contract.

"Completion Date" means the date of actual completion of the services by the Service Provider as certified by the Employer.

"Contract" means an agreement between Employer and the Service Provider/Supplier for execution of the Service(s) as per Contract Documents and its subsequent amendment(s), if any in writing thereto.

"Contract Documents" means collectively the Tender Documents, Designs, Drawings, Scope of Services, Specifications, Schedule of Rates (SOR), Letter of Acceptance and agreed variations if any, and such other documents constituting the tender and acceptance thereof.

"Day" means a calendar day of 24 hours from midnight to midnight irrespective of the number of hours serviced in that day.

"Demobilization" means removal of all equipment, machinery, manpower from the site after completion of the services with the due permission of EIC.

"Drawings" means and include all Engineering sketches, general arrangements/ layout drawings, sectional plans, all elevations, etc. related to the Contract together with modification and revision thereto.

The "Employer/Service Receiver/ Company/Owner" means GAIL (India) Limited (GAIL), a public limited company, incorporated under the Company's Act 1956 and having its registered office at 16, Bhikaiji Cama Place, New Delhi - 110066 and includes its successors, assigns and Site(s)/work center(s).

The "Engineer-In-Charge" (EIC) means the person designated from time to time by Employer and shall include those who are expressly authorized by him to act for and on his behalf for operation/execution of this Contract for Services.

"Equipment/Materials/Goods" means and include all equipment, machinery, stores, goods which are required under the Contract for satisfactory performance of Services by the Service Provider.



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"Fax of Acceptance" means intimation regarding notification of award by the Employer to the successful Bidder/Service Provider through a Fax/ Letter conveying that the Tender/Bid/Offer has been accepted in accordance with the provisions contained therein.

"Guarantee/Warranty/ Defect Liability Period (DLP)" means the period and other conditions governing the warranty/guarantee/defect liability period of the services as provided in the Contract.

"Metric System": All technical documents are given in the metric system and all service should be carried out according to the metric system. All documents concerning the service shall also be maintained in the metric system.

"Mobilization" means stabilizing adequate infrastructure at designated Site comprising of Equipment, aids, tools, tackles, instruments, Goods & Materials, experienced manpower, supported with supervising personal in order to provide services as per the provision of Contract document.

"Negligence" means any act or failure to act (whether sole, joint or concurrent) by a person or an entity which was intended to cause, or which was reckless disregard of or wanton indifference to, avoidable and harmful consequences such person or entity knew, or should have known, would result from such act or failure to act. Notwithstanding the foregoing, negligence shall not include any action taken in good faith for the safeguard of life or property.

The "Service(s)" means and include all services and activities/jobs to be performed by the Service Provider in pursuant to and in accordance with Contract or part thereof as the case may be and shall include all extra, additional, altered or substituted services and approvals from any agency/third party & license(s)/permissions from statutory authorities (if any), as required for purpose of the Contract.

The "Service Provider" means Bidder/Tenderer whose tender has been accepted by the Employer and includes the Service Provider's legal representative(s), his successor(s) and permitted assign(s).

"Service Provider's/ Bidder's Representative" means such person(s) duly authorized by the Bidder/Service Provider in writing to the Employer as having authority to act for and on behalf the Bidder /Service Provider in matters affecting the Services and to provide the requisite services to Employer.

"Site" means the place(s) provided by the Employer where the Services are to be carried out/executed and any other place(s) as may be specifically designated in the Contract as forming part of the site.

"Specifications" means and include detailed description, statements to technical data, performance characteristics, and standards (Indian as well as International) as applicable and as specified in the Contract.

The "Sub-Service Provider" means any person / firm / Organization / company /entity (other than the Service Provider) and it's legal representatives, successors and permitted assigns named in the Contract as a Sub-Service Provider for a part of the Services or to whom a part of the Services has been sub-Contracted with the written prior consent of the Employer.

"Value of Contract" or "Total Contract Price" means the sum accepted or the sum calculated in accordance with the prices accepted in the Contract as payable to the Service Provider for the entire execution and full completion of the service, including Amendment(s) to Contract, if any.

"Week" means a period of any consecutive seven Days.

"Willful Misconduct" means intentional disregard of good and prudent standards of performance or proper conduct under the Contract with knowledge that it is likely to result in any injury to any person or loss or damage of property.



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“Working Day” means any Day which is not declared by the Employer to be holiday or off-day.

1.2 INTERPRETATIONS & PRIORITY OF CONTRACT DOCUMENTS

1.2.1 The documents forming the Contract are to be read together and interpreted as mutually explanatory of one another. If there is a direct inconsistency in specific obligation(s), then for the purposes of interpretation, and unless otherwise provided in the Contract, the priority of the Contract Documents shall be in accordance with following sequence:

- i) The Contract Agreement
- ii) Detailed Letter of Acceptance along with its enclosures
- iii) Fax of Acceptance
- iv) Scope of Works/ Job Specifications (specific to particular job only, wherever provided)
- v) Drawings
- vi) Special Conditions of Contract (SCC)
- vii) Technical Specifications (wherever applicable)
- viii) Instructions to Bidders (ITB)
- ix) General Conditions of Contract (GCC)
- x) Other Documents

Works shown in the Drawing but not mentioned in the Specifications or described in the Specifications without being shown in the Drawings shall nevertheless be deemed to be included in the same manner as if they had been specifically shown upon the Drawings and described in the Specifications.

Any amendment/change order issued by Employer upon signing of formal Contract shall take precedence over respective clauses of the formal Contract and its annexures.

The higher priority interpretation shall be adopted only to the extent required to deal with an inconsistency. Specific term(s) agreed take priority over general statement(s) and terms in Contract Document created at a later date govern over terms in earlier Contract Document. Subject to foregoing, the terms of the groups of documents set out above have equal importance within their group.

1.2.2 Headings and Marginal Notes: All headings and marginal notes to the clauses of these General Conditions of Contract or to the Specifications or to any other Tender Document are solely for the purpose of giving a concise indication and not a summary of the contents thereof, and they shall never be deemed to be part thereof or be used in the interpretation thereof the Contract.

1.2.3 Singular and Plural: In Contract Documents unless otherwise stated specifically, the singular shall include the plural and vice versa wherever the context so requires.

1.2.4 Gender: Where the context so requires, words imparting the masculine gender shall also include the feminine gender and the neuter gender and vice versa.

1.2.5 Severability: Should any provision of this Contract be found to be invalid, illegal or otherwise not enforceable by any court of law, such finding shall not affect the remaining provision(s)/clause(s) hereto and they shall remain binding on the parties hereto.

1.3 SPECIAL CONDITIONS OF CONTRACT:

1.3.1 Special Conditions of Contract consisting of scope of services, specification of Services & items etc. shall be read in conjunction with the General Conditions of Contract, and any other documents forming part of this Contract wherever the context so requires.



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- 1.3.2 Notwithstanding the sub-division of the documents into these separate sections and volumes every part of each section/volume shall be deemed to be supplementary to and complementary of every other part and shall be read with and into the Contract so far as it may be practicable to do so.
- 1.3.3 Where any portion of the General Condition of Contract is repugnant to or at variance with any provisions of the Special Conditions of Contract, unless a different intention appears the provisions of the Special Conditions of Contract shall be deemed to over-ride the provisions of the General Conditions of Contract and shall to the extent of such repugnancy, or variations, prevail.
- 1.3.4 Wherever it is mentioned in the Specifications that the Service Provider shall perform certain Service or provide certain facilities, it is understood that the Service Provider shall do so at his cost and the Value of Contract shall be deemed to have included cost of such performance and provisions, so mentioned.
- 1.3.5 The materials, design and services shall satisfy the relevant Standards, the Job Specifications contained herein and Codes referred to. Where the job specification stipulate requirements in addition to those contained in the standard codes and specifications, these additional requirements shall also be satisfied.

SECTION – II

2.0 GENERAL INSTRUCTIONS & OBLIGATIONS

2.1 FORMATION OF CONTRACT:

- 2.1.1 Employer will be the sole judge in the matter of award of Contract and the decision of Employer shall be final and binding.
- 2.1.2 The acceptance of tender will be intimated to the successful Bidder by the Employer either by Fax/E - mail/ Letter or like means defined as Fax of Acceptance (FOA).
- 2.1.3 The Contract shall come into force on the date of FOA and the same shall be binding on Employer and Service Provider.

2.2 SIGNING OF AGREEMENT:

- 2.2.1 The successful Tenderer/Service Provider shall be required to execute an Agreement within 15 days of the FOA in the format attached/enclosed with Tender Document. In the event of failure on the part of the Service Provider to sign the Agreement within the aforesaid stipulated period, the Earnest Money Deposit or initial Security Deposit/Performance Security Deposit (as available, preferably the later) will be forfeited and Employer may consider the Contract as terminated.

2.3 ADDENDA/CORRIGENDA:

- 2.3.1 Addenda/ Corrigenda to the Tender Documents incorporating modification(s) and clarification(s) to the Tender Document issued prior to the due date of bid submission shall become integral part of the Contract.

2.4 LIABILITY OF GOVERNMENT OF INDIA:



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- 2.4.1 It is expressly understood and agreed by and between Bidder /Service Provider and Employer that Employer is entering into this agreement solely on its own behalf and not on behalf of any other person or entity. In particular, it is expressly understood and agreed that the Government of India is not a party to this agreement and has no liabilities, obligations or rights hereunder. It is expressly understood and agreed that Employer is an independent legal entity with power and authority to enter into Contracts solely on its own behalf under the applicable Laws of India and general principles of Contract Law. The Bidder/Service Provider expressly agrees, acknowledges and understands that Employer is not an agent, representative or delegate of the Government of India. It is further understood and agreed that the Government of India is not and shall not be liable for any acts, omissions, commissions, breaches or other wrongs arising out of the Contract. Accordingly, Bidder/Service Provider hereby expressly waives, releases and foregoes any and all actions or claims, including cross claims, impleader claims or counter claims against the Government of India arising out of this Contract and covenants not to sue to Government of India as to any manner, claim, cause of action or thing whatsoever arising of or under this agreement/Contract.

2.5 SITE VISIT:

- 2.5.1 The Bidder/Service Provider shall be deemed to have visited the Site(s)/work centre(s) and familiarized itself while submitting the Tender. Non-familiarity with the Site conditions by the Bidder/ Service Provider will not be considered a reason either for extra claim(s) or for any delay in performance or any other claim in this regard.

2.6 ACTION IN CASE OF CORRUPT/ FRAUDULENT/ COLLUSIVE/ COERCIVE PRACTICES AND POOR PERFORMANCE:

The Bidder(s)/Service Provider(s) are required to abide by the following documents:

- (i) The procedure for action in case of Corrupt/ Fraudulent/ Collusive/ Coercive Practices containing provisions for putting a Bidder/Service Provider on suspension and/or banning list (as the case may be) if such an agency has indulged in Corrupt/ Fraudulent/ Collusive/ Coercive Practices.

The Procedure is enclosed as Appendix 1 to this GCC.

Further, Bidder(s)/Service Provider(s) accepts and certifies that they would adhere to the Fraud Prevention Policy of GAIL and shall not indulge themselves or allow others (working in GAIL) to indulge in fraudulent activities and that they would immediately apprise the Owner/GAIL/Organization(s) of the fraud/ suspected fraud as soon as it comes to their notice. The Fraud Prevention Policy document is available on GAIL's website (www.gailonline.com).

- (ii) The procedure for evaluation of performance of Service Provider containing provisions for putting a Service Provider on suspension and/or holiday list (as the case may be).

The Procedure is enclosed as Appendix 2 to this GCC.

2.7 RETIRED GOVERNMENT OR EMPLOYER's OFFICERS:

- 2.7.1 No Employee/Officer employed in Engineering or Administrative duties in an Engineering Department of the States/ Central Government or of the Employer is allowed to service as a Service Provider for a period of one year after his retirement /resignation /severance from Government Service or from the employment of the Employer without the previous permission of the Employer. The Contract, if awarded, is liable to be terminated if either the Service Provider or any of his employees is found at any time to be such a person, who has not obtained the permission of the State/Central Government or of the Employer as aforesaid before submission of tender, or engagement in the Service Provider's service as the case may be.



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2.8 CONFLICT OF INTEREST:

- i. During the currency of Contract and after its termination, the Service Provider and its affiliates, shall be disqualified from providing any goods, works or services for any project resulting from or closely related to the Services.

2.9 ABNORMAL RATES:

- 2.9.1 The Tenderer is expected to quote rate for each item after careful analysis of cost involved for the performance of the completed item considering all specifications and Conditions of Contract. In case, it is noticed that the rates quoted by the Tenderer for any item are unusually higher or unusually lower, it will be sufficient cause for the rejection of the tender/bid unless the Employer is convinced about the reasonableness after scrutiny of the analysis for such rate(s) to be furnished by the Tenderer (on demand).
- 2.9.2 In case of Abnormally High Rated (AHR) item(s), the same shall be dealt as per AHR clause in the SCC (as applicable).

2.10 GENERAL OBLIGATIONS OF SERVICE PROVIDER:

Service Provider shall, in accordance with and subject to the terms and conditions of this Contract:

- 2.10.1 Perform the services in accordance with the Scope of Services /Specifications and Activity Schedule of the Tender Document and carry out its obligations with all due diligence and efficiency, in accordance with generally accepted professional techniques and practices and shall observe sound management practices and employ appropriate advance technology and safe methods. When completed, the job/services shall be fit for the purpose for which the services are intended as specifically defined in the Contract.
- 2.10.2 Provide all Labour as required to provide the Service unless otherwise provided in the Scope of Services or Special Conditions of the Contract.
- 2.10.3 Perform all other obligations, jobs / services which are required by the terms of this Contract or which reasonably can be implied from such terms as being necessary for providing necessary service as per the Contract.
- 2.10.4 be deemed to have satisfied himself before submitting his bid as to the correctness and sufficiency of its bid for the services required and of the rates and prices quoted, which rates and prices shall, except insofar as otherwise provided, cover all its obligations under the Contract.
- 2.10.5 Give or provide all necessary supervision during the performance of the services and as long thereafter within the warranty period/DLP as Employer may consider necessary for the proper fulfilling of Service Provider's obligations under the Contract.
- 2.10.6 Not disrupt the Services of the Employer being carried out by the Service Provider / and shall provide access for carrying out job/services to:
- Employer's personnel(s), and /or
 - any other Contractor(s) / Service Provider(s) employed by Employer, and /or
 - personnel of public authority(ies)/third party(ies)



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Further, the Service Provider shall execute the job carefully without causing damage to the existing facility(ies) and facility(ies) of third party(ies) and in case of such happening shall immediately bring to the notice of EIC..

Further, the coordination and inspection of the day-to-day job under the Contract shall be the responsibility of the Engineer-in-Charge (EIC). The EIC or his authorized representative including any statutory authority shall at all reasonable times, have full power and authority to access and inspect the Services wherever in progress either on the Site or at the Service Provider's premises/workshops and the Service Provider shall afford or procure every facility and assistance to carry out such inspection. Such Inspection shall not release the Service Provider from any obligation under the Contract.

2.11 SERVICE PROVIDER'S REPRESENTATIVE & PERSONNEL:

2.11.1 Service Provider shall appoint a person ("*Service Provider's Representative*") who shall be responsible for and authorized to represent it at all times during the progress of the Service and to receive and to act on any request made by Employer in the performance of the Service pursuant to the terms of this Contract.

2.11.2 Service Provider's Representative shall have full authority to represent and bind the Service Provider in relation to any matter concerning the Service Provider's performance of the services under the Contract and Employer shall be entitled to rely on all the decisions of the Service Provider's Representative as if they were the decisions of the Service Provider.

2.11.3 Service Provider's Representative shall supervise, coordinate and ensure the quality of all aspects of his obligations under this Contract. Service Provider shall not change its Representative without the prior approval of Employer.

2.11.4 Service Provider's Representative shall liaise with Employer for the proper coordination and timely completion of the Services and on any matter pertaining to the same.

2.11.5 Service Provider's Representative shall extend full cooperation to Employer's representatives/inspector in the manner required by them for supervision /inspection/ observation of equipment, material, procedures, performance, reports and records pertaining to Services.

2.11.6 Service Provider's Representative shall have complete charge of his personnel engaged in the performance of the Service and to ensure compliance of rules and regulations and safety practice.

2.11.7 If the Service Provider's Representative is found not acceptable to the EIC, the Service Provider shall, as soon as practicable, having regard to the requirement of replacing him, after receiving notice of such withdrawal, remove the representative and shall not thereafter employ him again on the Services in any capacity and shall replace him by another representative acceptable to the EIC.

2.12 SERVICE PROVIDER'S EMPLOYEES / PERSONNEL:

The Service Provider in connection with performing the Services and remedying of any defects, shall provide:

- (a) Only such skilled and experienced personnel(s) in their respective areas; and
- (b) such skilled, semi-skilled and un-skilled labour as is necessary for the proper and timely fulfilling of the Service Provider's obligations under the Contract.

The Service Provider shall provide skilled / qualified /experienced personnel, if specified in the SCC /Scope of Work.



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While engaging the contractual manpower, Service Provider is required to make effort to provide opportunity of employment to the people belonging to Scheduled Castes and weaker sections of society also in order to have a fair representation of these sections.

2.13 CONTRACT PERFORMANCE SECURITY (CPS):

- 2.13.1 The Service Provider shall provide Contract Performance Security (CPS) to the Employer, within 30 days from the date of notification of award (i.e. FOA/Letter of Acceptance) or the date specified in the notification of award whichever is earlier, for an amount mentioned therein. The CPS shall be returned/refunded three months after Contract completion period and Defects Liability Period (DLP), if any. All costs associated with CPS shall be borne by the Service Provider. No charges or interest shall be payable by the Employer even if the CPS is in the form of a Demand Draft.
- 2.13.2 The Service Provider shall furnish the CPS in the form of a Demand Draft or a Bank Guarantee or an irrevocable Letter of Credit from any Indian scheduled bank or a branch of an International bank situated in India and registered with Reserve Bank of India as scheduled foreign bank. However, for other than the Nationalized Indian Banks, the banks whose BGs are furnished, must be commercial banks having net worth in excess of Rs. 100 crores and a declaration to this effect should be made by such commercial bank either in the bank guarantee itself or separately on a letter head. The bank guarantee or the Letter of Credit shall be submitted in the prescribed format.
- 2.13.3 If the Service Provider or their employees /agents / representatives or Sub-Service Provider (if authorized by Employer) shall damage, break, deface or destroy any property /equipment belonging to the Employer or third party(ies) during the execution of this Contract, the same shall be made good by the Service Provider at his own expenses and in default thereof, the EIC may cause the same to be made good by other agencies and recover expenses plus 15% overhead from the Service Provider. The decision of EIC in this matter shall be final and binding on the Service Provider.
- 2.13.4 All compensation, claim or other sums of money payable by the Service Provider to the Employer under terms of this Contract may be deducted from or paid by the encashment of a sufficient part of his Contract Performance Security or from any sums which may be due or may become due to the Service Provider by the Employer on any account whatsoever and in the event of his CPS being reduced by reasons of any such deductions or sale of aforesaid, the Service Provider shall within ten days thereafter make good in form of bank draft(s)/BG/LC (as the case may be) as aforesaid any sum or sums which may have been deducted from or realised by encashment of his CPS, or any part thereof. The Service Provider shall pay to the Employer on demand without protest any balance remaining due. In this regard no interest shall be payable by the Employer to Service Provider for such sum deposited as CPS.
- 2.13.5 The CPS deposit shall cover the entire Contract value including extra jobs/ services. As long as the CPS submitted at the time of award take cares the extra jobs/ services executed and total executed value are within the awarded Contract price, there is no need for additional CPS . As soon as the total executed value is likely to exceed the ceiling of awarded Contract Value, the Service Provider should furnish additional CPS through DD or submit amendment to existing BG/LC to effect the enhancement of CPS.

- 2.13.6 Failure of the successful bidder to comply with the requirements of Clause 2.13 shall constitute sufficient grounds for the annulment of the award, the forfeiture of CPS and any other actions or remedies available to the Employer.

2.14 FAILURE BY THE SERVICE PROVIDER TO COMPLY WITH THE PROVISIONS OF THE CONTRACT:

- 2.14.1 If the Service Provider refuses or fails to provide the Service or any part thereof with such diligence as will ensure its performance within the time specified in the Contract or extension thereof or fails to perform any of his obligation



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under the Contract or in any manner commits a breach of any of the provisions of the Contract it shall be open to the Employer at its option by written notice to the Service Provider:

- a) TO DETERMINE THE CONTRACT in which event the Contract shall stand terminated and shall cease to be in force and effect on and from the date appointed by the Employer on that behalf, whereupon the Service Provider shall stop forthwith any of the Service then in progress, except such Service as the Employer may, in writing, require to be done to safeguard any property or work or installations from damage, and the Employer, for its part, may take over the Service remaining unfinished by the Service Provider and complete the same through another service provider or by other means, at the risk and cost of the Service Provider, and any of his sureties if any, shall be liable to the Employer for any excess cost occasioned by such service having to be so taken over and obtained by the Employer over and above the cost at the rates specified in the schedule of quantities and rate/prices.
- b) WITHOUT DETERMINING THE Contract to take over the Service of the Service Provider or any part thereof and complete the same through other service provider or by other means at the risk and cost of the Service Provider. The Service Provider and any of his sureties are liable to the Employer for any excess cost over and above the cost at the rates specified in the Schedule of Quantities/ rates, occasioned by such services having been taken over and completed by the Employer.

2.14.2 In such events of Clause 2.14.1(a) or (b) above, the following shall be applicable: -

- a) The whole or part of the Contract Performance Security furnished by the Service Provider is liable to be forfeited without prejudice to the right of the Employer to recover from the Service Provider the excess cost referred to in the sub-clause aforesaid. The Employer shall also have the right of taking possession and utilising in completing the services or any part thereof, such as materials, equipment and plants available at service site belonging to the Service Provider as may be necessary and the Service Provider shall not be entitled for any compensation for use or damage to such materials, equipment and plant.
- b) The amount that may have become due to the Service Provider on account of service already executed by him shall not be payable to him until after the expiry of Six (6) calendar months reckoned from the date of termination of Contract or from the taking over of the Service or part thereof by the Employer as the case may be, during which period the responsibility for faulty material or workmanship in respect of such service shall, under the Contract, rest exclusively with the Service Provider. This amount shall be subject to deduction of any amounts due from the Contract to the Employer under the terms of the Contract authorised or required to be reserved or retained by the Employer.

2.14.3 Before taking any action as per Clause 2.14.1(a) or (b) if in the judgment of the Employer, the default or defaults committed by the Service Provider is/are curable and can be cured by the Service Provider if an opportunity given to him, then the Employer may issue Notice in writing calling the Service Provider to cure the default within such time specified in the Notice.

2.14.4 The Employer shall also have the right to proceed or take action as per 2.14.1(a) or (b) above, in the event that the Service Provider becomes bankrupt, insolvent, compounds with his creditors, assigns the Contract in favour of his creditors or any other person(s) or being a company or a corporation goes into voluntary liquidation, provided that in the said events it shall not be necessary for the Employer to give any prior notice to the Service Provider.

2.14.5 Termination of the Contract as provided for in sub- clause 2.14.1(a) above shall not prejudice or affect their rights of the Employer which may have accrued upto the date of such termination.

2.15 SERVICE PROVIDER REMAINS LIABLE TO PAY COMPENSATION IF ACTION NOT TAKEN UNDER CLAUSE 2.14



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- 2.15.1 If in any case in which any of the powers conferred upon the Employer by clause 2.14 thereof shall have become exercisable and the same had not been exercised, the non-exercise thereof shall not constitute a waiver of any of the conditions hereof and such powers shall notwithstanding be exercisable in the event of any further case of default by the Service Provider for which by any clause or clauses hereof he is declared liable to pay compensation amounting to the whole of his Contract Performance Security, and the liability of the Service Provider for past and future compensation shall remain unaffected. In the event of the Employer putting in force the power under above sub-clause 2.14 (a) or 2.14 (b) vested in him under the preceding clause he may, if he so desired, take possession of all or any tools and plants, materials and stores at the site thereof belonging to the Service Provider or procured by him and intended to be used for the execution of the Service or any part thereof paying or allowing for the same in account at the Contract rates or in case of these not being applicable, at current market rates to be certified by the EIC whose certificate thereof shall be final, otherwise the EIC may give notice in writing to the Service Provider or Service Provider's Representatives requiring him to remove such tools, plant, materials or stores from the premises (within a time to be specified in such notice).

Failure of any action by the Service Provider for removal of material/tools/plant/store etc. within the period mentioned in notice of EIC, the Employer shall also be entitled to recover handling and storage charges @5% of the estimated value of material tools/plant/store for each month or part of a month without relieving the Service Provider from any other related liability. In the event of the Service Provider's failure to remove the same within a period of 6 months or as decided by the EIC, the EIC may take action for removal through auction or private sale on behalf of the Service Provider and at his risk in all respects. The Service Provider shall be liable to pay the Employer the handling & storage charges per month or a part of the month from the date of serving the notice by the EIC to the date of removal of the materials by the Employer plus overhead charges @ 15% of sale value of such materials. In case of negative or zero sale value, the overhead charges shall be applicable on the handling & storage charges. The decision of EIC w.r.t. such removal and the amount of the proceeds shall be final and binding on the Service Provider.

2.16 CHANGE IN CONSTITUTION:

- 2.16.1 Where the Service Provider is a partnership firm, the prior approval of the Employer shall be obtained in writing, before any change is made in the constitution of the firm. Where the Service Provider is an individual or a Hindu undivided family business concern, such approval as aforesaid shall, likewise be obtained before such Service Provider enters into any agreement with other parties, where under, the reconstituted firm would have the right to carry out the service hereby undertaken by the Service Provider. In either case if prior approval as aforesaid is not obtained, the Contract shall be deemed to have been allotted in contravention of clause 2.23 hereof.

2.17 TERMINATION OF CONTRACT:

2.17.1 TERMINATION OF CONTRACT FOR DEATH

If the Service Provider is an individual or a proprietary concern and the individual or the proprietor dies or if the Service Provider is a partnership concern and one of the partner dies then unless, the Employer is satisfied that the legal representative of the individual or the proprietary concern or the surviving partners are capable of carrying out and completing Contract, the Employer is entitled to cancel the Contract for the uncompleted part without being in any way liable for any compensation payment to the estate of the deceased Service Provider and/or to the surviving partners of the Service Provider's firm on account of the cancellation of Contract. The decision of the Employer/EIC in such assessment shall be final & binding on the parties. In the event of such cancellation, the Employer shall not hold the estate of the deceased Service Provider and/or the surviving partners of Service Provider's firm liable for any damages for non-completion of the Contract.

2.17.2 TERMINATION OF CONTRACT IN CASE OF LIQUIDATION / BANKRUPTCY, ETC.



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If the Service Provider shall dissolve or become bankrupt or insolvent or cause or suffer any receiver to be appointed of his business of any assets thereof compound with his Creditors, or being a corporation commence to be wound up, not being a member's voluntary winding up for the purpose of amalgamation or reconstruction, or carry on its business under a Receiver for the benefits of its Creditors any of them, Employer shall be at liberty to terminate the Contract forthwith upon coming to know of the happening of any such event as aforesaid by notice in writing to the Service Provider or to give the Receiver or Liquidator or other person, the option of carrying out the Contract subject to his providing a guarantee up to an amount to be agreed upon by the Employer for due and faithful performance of the Contract.

2.17.3 TERMINATION OF CONTRACT FOR CORRUPT / FRAUDULENT / COLLUSIVE / COERCIVE PRACTICES AND NON-PERFORMANCE

If the Bidder/Service Provider is found to have indulged in Corrupt/ Fraudulent /Collusive/Coercive practices, the Contract shall be terminated and the Bidder/ Service Provider shall be banned for future business with GAIL. The detailed procedure for banning including suspension in this regard may be referred as enclosed as Appendix 1.

Due to non-performance of the Service Provider leading to termination of the Contract, the Service Provider initially shall be put on suspension list and thereafter on holiday list of Employer for a period mentioned in the detailed procedure, to be reckoned from the date of communication by Owner/Employer. The detailed procedure for evaluation of performance in this regard may be referred as enclosed as Appendix 2.

2.17.4 TERMINATION FOR CONVENIENCE

Notwithstanding anything contained in the Contract, the Employer may, by 30 (Thirty) days written notice, terminate the Contract in whole or in part. In addition to the payment mentioned at clause 2.18, the Service Provider shall be compensated for de-mobilization and other costs incurred at mutually negotiated terms.

In case of such termination, the obligation of the Employer to pay, shall be limited to the extent of work/job completed by the Service Provider as per provision of the Contract upto the date of termination, subject to the Service Provider complying with other terms of the Contract.

Notwithstanding the termination of the Contract, the parties shall continue to be bound by the provisions of this Contract that reasonably require some action or forbearance after such termination.

2.18 AMOUNT PAYABLE IN CASE OF TERMINATION:

2.18.1 In all cases of termination herein set forth, the obligation of the Employer to pay, shall be limited to the extent of service rendered by Service Provider as per provision of the Contract upto the date of termination, subject to the Service Provider complying with other terms of the Contract. Notwithstanding the termination of the Contract, the parties shall continue to be bound by the provisions of this Contract that reasonably require some action or forbearance after such termination.

2.19 MEMBERS OF THE EMPLOYER NOT INDIVIDUALLY LIABLE:

2.19.1 No Director, or official or employee of the Employer shall in any way be personally bound or liable for the acts or obligations of the Employer under the Contract or answerable for any default or omission in the observance or performance of any of the acts, matters or things which are herein contained.



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2.20 EMPLOYER NOT BOUND BY PERSONAL REPRESENTATIONS:

2.20.1 The Service Provider shall not be entitled to any increase on the scheduled rates or any other right or claim whatsoever by reason of any representation, explanation statement or alleged representation, promise or guarantees given or alleged to have been given to him by any person.

2.21 FORCE MAJEURE:

2.21.1 In the event of either party being rendered unable by Force Majeure to perform any obligations required to be performed by them under the Contract the relative obligation of the party affected by such Force Majeure shall upon notification to the other party be suspended for the period during which Force Majeures event lasts. The cost and loss sustained by the either party shall be borne by the respective parties.

The term "Force Majeures" as employed herein shall include:

- (a) act of terrorism;
- (b) riot, war, invasion, act of foreign enemies, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection of military or usurped power;
- (c) ionising radiation or contamination, radio activity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel, radioactive toxic explosive or other hazardous properties of any explosive assembly or nuclear component;
- (d) epidemics, earthquakes, flood, fire, hurricanes, typhoons or other physical natural disaster, but excluding weather conditions regardless of severity; and
- (e) freight embargoes, strikes at national or state-wide level or industrial disputes at a national or state-wide level in any country where Works/Services are performed, and which affect an essential portion of the Works/Services but excluding any industrial dispute which is specific to the performance of the Works/Services or the Contract.

For the avoidance of doubt, inclement weather, third party breach, delay in supply of materials (other than due to a nationwide transporters' strike) or commercial hardship shall not constitute a Force Majeure event.

2.21.2 Notification of Force Majeure

The affected party shall notify within 10 (ten) days of becoming aware of or the date it ought to have become aware of the occurrence of an event of Force Majeure giving full particulars of the event of Force Majeure and the reasons for the event of Force Majeure preventing the affected party from, or delaying the affected party in performing its obligations under the Contract.

2.21.3 Right of either party to terminate

If an event of Force Majeure occurs and its effect continues for a period of 180 (one hundred eighty) days or more in a continuous period of 365 (three hundred sixty five) days after notice has been given under this clause, either party may terminate the Contract by issuing a written notice of 30 (thirty) days to the other party.

Further, the Service Provider shall with all reasonable diligence remove from the Site all the Service Provider's equipment and shall give similar facilities to his Sub Service Provider to do so.

2.21.4 Payment in case of termination due to Force Majeure

The Contract Price attributable to the Works/Services performed till the date of the commencement of the relevant event of Force Majeure with effective recovery/ retention shall be payable to Service Provider.

The Service Provider has no entitlement and Employer has no liability for:



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- a) any costs, losses, expenses, damages or the payment of any part of the Total Contract Price during an event of Force Majeure; and
- b) any delay costs in any way incurred by the Service Provider due to an event of Force Majeure.

2.21.5 Time for performance of the relative obligation suspended by the Force Majeure shall then stand extended by the period for which such cause lasts.

2.21.6 Outbreak of War:

If during the currency of the Contract there shall be an out break of war whether declared or not, in that part of the World which whether financially or otherwise materially affect the execution of the Work, the Service Provider shall unless and until the Contract is terminated under the provisions in this clause continue to use his best endeavour to complete the execution of the Work/Services, provided always that the Employer shall be entitled, at any time after such out break of war to terminate or re-negotiate the Contract by giving notice in writing to the Service Provider and upon such notice being given the Contract shall, save as to the rights of the parties under this clause and to the operation of the clauses entitled settlement of Disputes and Arbitration hereof, be terminated but without prejudice to the right of either party in respect of any antecedent breach thereof.

2.22 PRICE REDUCTION SCHEDULE:

2.22.1 Time is the essence of the Contract. In case the Service Provider fails to mobilize / deploy the required manpower and the complete equipments so as to commence the Services within Mobilisation Period and complete the Services within the stipulated period, then, unless such failure is due to Force Majeure as defined in Clause 2.21 herein above or due to Employer's defaults, the total Value of Contract shall be reduced by ½ (half) % of the total Value of Contract per complete week of delay or part thereof subject to a maximum of 5 (five) % of the total Value of Contract, by way of reduction in price for delay and not as penalty.

The Employer shall be at liberty to adjust or deduct the said amount from amount due to the Service Provider/ it's Contract Performance Security payable on demand.

The decision of the EIC with respect to applicability of Price Reduction Schedule shall be final and binding on the Service Provider.

2.22.2 The parties agree that this is a genuine pre-estimate of the loss/damage which will be suffered by the Employer on account of delay on the part of the Service Provider and the said amount will be adjusted for the amount payable to the Service Provider, without there being any proof of the actual loss or damages having been caused by such delay/breach.

2.22.3 The Price Reduction will be calculated on the basis of total Value of Contract / executed Value of Contract (as the case may be) excluding taxes and duties where such taxes and duties have been shown separately in the Contract.

2.22.4 As mentioned above, in case of delay in execution of Contract, Service Provider will raise invoice for reduced value as per Price Reduction Clause. If Service Provider has raised the invoice for full value, then Service Provider will issue Credit Note towards the applicable Price Reduction Schedule amount.

In case Service Provider fails to submit the invoice for reduced value or does not issue credit note as mentioned above, GAIL will release the payment to Service Provider after effecting the Price Reduction Schedule clause.



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In the event any financial implication arises on GAIL due to issuance of invoice without reduction in price or non-issuance of Credit Note, the same shall be to the account of Service Provider.

2.23 ASSIGNMENT/SUBLET:

- 2.23.1 The Service Provider shall not, save with previous written consent of the Engineer-in-charge, sublet, transfer or assign the Contract or any part thereof or interest therein or benefit or advantage thereof in any manner whatsoever. Provided, nevertheless, that any such consent shall not relieve the Service Provider from any obligation, duty or responsibility under the Contract.
- 2.23.2 The basic scope of Services cannot be sublet. However, on specific request of the Service Provider and subject to written consent of Employer, the Service Provider may sublet allied/incidental jobs related to the Services. Such consent shall not relieve the Service Provider from any obligation, duty or responsibility under the Contract and Service Provider shall be fully responsible for the Services hereunder and the execution and performance of the Contract.
- 2.23.3 Sub-letting of whole Contract is prohibited. An undertaking to this effect will be given by Service Provider along with each invoice/ bill.

2.24 LIENS:

- 2.24.1 If, at any time there should be evidence of any lien or claim for which the Employer might have become liable and which is chargeable to the Service Provider, the Employer shall have the right to retain out of any payment then due or thereafter to become due an amount sufficient to completely indemnify the Employer against such lien or claim and if such lien or claim be valid, the Employer may pay and discharge the same and deduct the amount so paid from any money which may be or may become due and payable to the Service Provider. If any lien or claim remain unsettled after all payments are made, the Service Provider shall refund or pay to the Employer all money that the latter may be compelled to pay in discharging such lien or claim including all costs and reasonable expenses.
- 2.24.2 The Employer shall have lien on all materials, equipments including those brought by the Service Provider for the purpose of providing service.
- 2.24.3 The final payment shall not become due until the Service Provider delivers to the EIC a complete release or waiver of all liens arising or which may arise out of his agreement or receipt in full or certification by the Service Provider in a form approved by EIC that all invoices for labour, materials, services have been paid in lien thereof and if required by the EIC in any case an affidavit that so far as the Service Provider has knowledge or information the releases and receipts include all the labour and material for which a lien could be filled.
- 2.24.4 Service Provider will indemnify and hold the Employer harmless, for a period of two years after the issue of Completion/Execution Certificate, from all liens and other encumbrances against the Employer on account of debts or claims alleged to be due from the Service Provider or his Sub-Service Provider to any person and on behalf of Employer, the Service Provider will defend at his own expense, any claim or litigation brought against the Employer or the Service Provider including Sub-Service Provider in connection therewith. Service Provider shall defend or contest at his own expense, any fresh claim or litigation against the Employer by any person including his Sub-Service Provider, till its satisfactory settlement even after the expiry of two years from the date of issue of Completion/Execution Certificate.

2.25 DELAYS BY EMPLOYER OR HIS AUTHORISED REPRESENTATIVE:



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2.25.1 In case the Service Provider's performance is delayed due to any act or omission on the part of the Employer or his authorized Representative, then the Service Provider shall be given due extension of time for the completion of the Service, to the extent such omission on the part of the Employer has caused delay in the Service Provider's performance of his Services.

2.25.2 No adjustment in Contract Price shall be allowed for reasons of such delays and extensions granted except as provided in Tender Document, where the Employer reserves the right to seek indulgence of Service Provider to maintain the agreed Time Schedule of Completion. In such an event the Service Provider shall be obliged to provide Service for additional time beyond stipulated time including Off-days / Holidays or by enhancing resources to achieve the completion date/interim targets.

2.26 NO WAIVER OF RIGHTS:

2.26.1 None of the terms and conditions of this Contract shall be deemed waived by either party unless such waiver is executed in writing by the duly authorized representative of both the parties.

2.27 CERTIFICATE NOT TO AFFECT RIGHT OF EMPLOYER AND LIABILITY OF SERVICE PROVIDER:

2.27.1 No interim payment certificate(s) issued by the EIC of the Employer, nor any sum paid on account by the Employer, nor any extension of time for execution of the service granted by Employer shall affect or prejudice the rights of the Employer against the Service Provider or relieve the Service Provider of his obligations for the due performance of the Contract, or be interpreted as approval of the Service done and no certificate shall create liability for the Employer to pay for alterations, amendments, variations or additional services not ordered, in writing, by Employer or discharge the liability of the Service Provider for the payment of damages whether due, ascertained, or certified or not or any sum against the payment of which he is bound to indemnify the Employer.

2.28 LANGUAGE AND MEASURES:

2.28.1 All documents pertaining to the Contract including Specifications, Schedules, Notices, Correspondence, operating and maintenance Instructions or any other writing shall be written in English/Hindi language. The Metric System of measurement shall be used in the Contract unless otherwise specified.

2.29 RELEASE OF INFORMATION:

2.29.1 The Service Provider shall not communicate or use in advertising, publicity, sales releases or in any other medium, photographs, or other reproduction of the Service under this Contract or description of the site dimensions, quantity, quality or other information concerning the Service unless prior written permission has been obtained from the Employer.

2.30 COMPLETION PERIOD, CONTRACT PERIOD AND COMPLETION OF CONTRACT:

2.30.1 The Completion Period of Service and Contract Period shall be as mentioned in Special Conditions of Contract.

2.30.2 Unless terminated under the provisions of any other relevant clause, this Contract shall be deemed to have been completed at the expiration of the Defect Liability Period as provided for under the Contract.

2.31 INDEPENDENT CAPACITY



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2.31.1 The parties intend that an independent Service Provider relationship will be created by this Contract. The Service Provider and his/her employees or agents performing under this Contract are not employees or agents of the Employer. The Service Provider will neither hold himself/herself out as nor claim to be an officer or employee of the Employer by reasons hereof, nor will the Service Provider make any claim of right, privilege or benefit that would accrue to such employee under law. Conduct and control of work will be solely with the Service Provider.

2.32 NOTICE

2.32.1 TO THE SERVICE PROVIDER: Any notice to be given to the Service Provider or his duly authorised representative at the job Site under the terms of the Contract may be served by the Employer by facsimile / e-mail or through registered post/Courier at the address/contact information furnished by the Service Provider. Proof of issue of any such notice could be conclusive of the Service Provider having been duly informed of all contents therein.

2.32.2 TO THE EMPLOYER: Any notice to be given to the EIC of the Employer under the terms of the Contract may be served by the Service Provider, by facsimile / e-mail or delivering the same through registered post /Courier at the concerned site office.

2.32.3 Either party may change a nominated address to another address in the country where the Services are being provided by prior notice to the other party, with a copy to EIC and the EIC may do so by prior notice to both the parties. The decision of EIC in this regard shall be final and binding on the parties.

2.33 CONFIDENTIALITY:

The Service Provider, its Sub-Service Provider and their personnel shall not, either during the term or within two (2) years after the expiration of this Contract, disclose any proprietary or confidential information related to Service/project, this Contract, or Employer's business or operations without the prior written consent of the Employer.

2.34 INTELLECTUAL PROPERTY RIGHT:

The Service Provider shall retain the copy right and other intellectual property rights in the Service Provider's document and other design documents made by (or on behalf of) the Service Provider.

Subject to the confidentiality obligations, by signing the Contract, within the Contract Price, the Service Provider shall be deemed to give to the Employer a non-terminable, transferable, non-exclusive and royalty-free right to copy, use and communicate the Service Provider's documents for the operation, maintenance, repair of the Service and Statutory purposes, but not for any other purpose. Such documents of the Service Provider shall not be used, copied or communicated to a third party by or on behalf of the Employer for the purposes other than those permitted, without the Service Provider's Consent.



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SECTION - III

3.0 PERFORMANCE OF SERVICE

3.1 EXECUTION OF SERVICES:

3.1.1 All Services shall be provided in strict conformity with the provisions of the Contract Documents and with such explanatory detailed specification and instruction as may be furnished from time to time to the Service Provider by EIC. The Service Provider shall undertake to perform all Services under this Contract with all reasonable skill, diligence and care in accordance with sound industry practice or international / national standards, wherever applicable (as the case may be) to the satisfaction of the Employer and accept full responsibility for the satisfactory quality of such services as performed by them.

3.2 CHANGES IN SERVICES:

3.2.1 During the performance of the Services, EIC / Employer may make a change in the Services within the general scope of this Contract including, but not limited to, changes in methodology and minor additions to or deletions from the Services and Service Provider shall render the service as changed. Changes of this nature will be affected by a written order (i.e. Amendment) by the Employer. The time of completion of the said job may be extended for the part of the particular job at the discretion of Engineer-In-Charge, for only such alterations or substitutions of the Services, as he may consider just and reasonable.

3.2.2 If any change result in an increase in compensation payable to Service Provider or in terms of a credit to be passed on to Employer, Service Provider shall submit to EIC an estimate of the amount of such compensation or credit in a form prescribed by Employer. Such estimates shall be based on the rates shown in the Schedule of Rates. Upon review of Service Provider's estimate, Employer shall establish and set forth in the written order the amount of the compensation or credit for the change or a basis for determining a reasonable compensation or credit for the change.

3.3 ACTION AND COMPENSATION IN CASE OF POOR SERVICE:

3.3.1 If it shall appear to the EIC that any service has been rendered with unsound, imperfect or unskilled way, or with materials /manpower of any inferior description, or that any materials / manpower provided by the Service Provider for the execution of the Service are unsound, or of a quality inferior to that Contracted for, or otherwise not in accordance with the Contract, the Service Provider shall on demand in writing from the EIC or his authorized representative specifying the Service, materials or manpower complained of notwithstanding that the same may have been inadvertently passed, certified and paid for, forthwith rectify the service so specified and at his own cost and in the event of failure to do so within the period specified by the EIC in his demand aforesaid, the Service Provider shall be liable to pay compensation at the rate of 1 % (One percent) of the estimated cost of the whole Service, for every week limited to a maximum of 10% (ten percent) of the value of the whole Service, in event of his failure to do so the EIC may on expiry of notice period rectify/re-execute the Service as the case may be at the risk and expense in all respects of the Service Provider or may terminate the contract due to non-performance. The decision of the EIC as to any question arising under this clause shall be final and conclusive.

3.4 SUSPENSION OF SERVICES:

3.4.1 Subject to the provisions of sub-para 3.4.2 of this clause, the Service Provider shall, if ordered in writing by the EIC, temporarily suspend the Services or any part thereof for such written order and not proceed with the Service therein ordered to be suspended until, he shall have received a written order to proceed therewith. The Service Provider shall not be entitled to claim compensation for any loss or damage sustained by him by reason of temporary suspension



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of the Services aforesaid. An extension of time for completion, corresponding with the delay caused by any such suspension of the Services as aforesaid will be granted to the Service Provider should he apply for the same provided that the suspension was not consequent to any default or failure on the part of the Service Provider.

- 3.4.2 In case of suspensions of entire Service, ordered in writing by EIC, for a period of more than two months, the Service Provider shall have the option to terminate the Contract.

3.5 DEFECTS LIABILITY PERIOD:

- 3.5.1 The Service Provider unless otherwise specified elsewhere in the tender document shall guarantee the installation/Service for a period of 12 months from the date of completion of Service mentioned in the Completion Certificate issued by the EIC. Any damage or defect that may arise or lie undiscovered at the time of issue of Completion Certificate, connected in any way with the equipment or materials supplied by him or in the workmanship, shall be rectified or replaced by the Service Provider at his own expense as deemed necessary by the EIC. In case of default, the EIC may carry out such services by other service provider(s) and deduct actual cost incurred towards labour, supervision and materials consumables or otherwise plus 15% towards overheads from any sums that may then be or at any time thereafter, become due to the Service Provider or from his Contract Performance Security, or the proceeds of sale thereof or a sufficient part on thereof. The decision of EIC in this regard shall be final and binding.
- 3.5.2 If the Service Provider feels that any variation in Service or in quality of materials or proportions would be beneficial or necessary to fulfill the guarantees called for, he shall bring this to the notice of the EIC in writing. If during the period of liability any portion of the Service/Equipment, is found defective and is rectified/ replaced, the period of liability of 12 months for such equipment/ portion of Service shall be operative from the date such rectification/ replacement are carried out and Contract Performance Guarantee shall be furnished separately for the extended period of liability for that portion of Service/ Equipment only. However, in no such case extension will exceed 36 months from the date of initial DLP. Notwithstanding the above provisions the supplier's, guarantees/warranties for the replaced/rectified Equipment/Service shall also be passed on to the Employer.

3.6 COMPLETION CERTIFICATE:

- 3.6.1 APPLICATION FOR COMPLETION CERTIFICATE: When the Service Provider fulfills his obligation under the Contract he shall be eligible to apply for Completion Certificate. The EIC shall normally issue to the Service Provider the Completion Certificate within one month after receiving any application thereof from the Service Provider after verifying from the completion documents and satisfying himself that the Service has been rendered in accordance with and as set out in the Contract Documents. The Service Provider, after obtaining the Completion Certificate, is eligible to present the final bill for the Service executed by him under the terms of Contract.

Completion of jobs/services for issuance of completion certificate shall constitute completion of jobs/ services as per provisions of LOA/Contract duly accepted and certified by EIC.

- 3.6.2 COMPLETION CERTIFICATE: Within one month from receipt of application from Service Provider after the completion of the Service in all respects as specified above at clause no. 3.6.1, the Service Provider shall be furnished with a certificate by the EIC of such completion, but no certificate shall be given nor shall the Service be deemed to have been rendered until all scaffolding, Equipment(s) & machine(s), surplus materials and rubbish brought for/ generated during execution of service is cleared off the Site completely. EIC's certification about completion of service in all aspects shall be binding and conclusive.



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3.6.3 COMPLETION CERTIFICATE DOCUMENTS: For the purpose of Completion, the following documents will be deemed to form the completion documents:

- i) The technical documents according to which the Service was carried out.
- ii) Material appropriation, Statement for the materials issued by the Employer for the Service and list of surplus materials returned to the Employer's store duly supported by necessary documents

3.6.4 EXECUTION CERTIFICATE:

Execution Certificate against Rate/ Maintenance contract shall be issued by EIC against written request from Service Provider.

3.7 FINAL DECISION & FINAL CERTIFICATE:

3.7.1 Upon expiry of the period of liability and subject to the Engineer-in-Charge being satisfied that the Service Provider has in all respect duly made-up any shortfall and performed all his obligations under the Contract, the Engineer-in-Charge shall (without prejudice to the rights of the Employer to retain the provisions of relevant Clause hereof) otherwise give a certificate herein referred to as the Final Certificate to that effect. The Service Provider shall not be considered to have fulfilled the whole of his obligations under Contract until Final Certificate shall have been given by the Engineer-In- Charge.

3.8 LIMITATION OF LIABILITY

3.8.1 Notwithstanding anything contrary contained herein, the aggregate total liability of Service Provider to Employer under the Contract shall not exceed the Total Contract Value, except that this clause shall not limit the liability of the Service Provider for following:

- (a) In the event of breach of any Applicable Law;
- (b) In the event of fraud, willful misconduct or illegal or unlawful acts, or gross Negligence of the Service Provider or any person acting on behalf of the Service Provider; or
- (c) In the event of acts or omissions of the Service Provider which are contrary to the most elementary rules of diligence which a conscientious Service Provider would have followed in similar circumstances; or
- (d) In the event of any claim or loss or damage arising out of infringement of Intellectual Property; or
- (e) For any damage to any third party, including death or injury of any third party caused by the Service Provider or any person or firm acting on behalf of the Service Provider in executing the Works/Services.

However, neither party shall be liable to the other Party for any indirect nor consequential loss or damage like loss of use, loss of profit, loss of production or business interruption which is connected with any claim arising under the Contract.

3.9 INDEMNITY:

3.9.1 If any action is brought before a Court, Tribunal or any other Authority against the Employer or an officer or agent of the Employer, for the failure, omission or neglect on the part of the Service Provider to perform any acts, matters, covenants or things under the Contract, or damage or injury caused by the alleged omission or negligence on the part of the Service Provider, his agents, representatives or his Sub- Service Provider's, or in connection with any claim based on lawful demands of Sub-Service Provider's servicemen suppliers or employees, the Service Provider, shall in such cases indemnify and keep the Employer and/or their representatives harmless from all losses, damages, expenses or decrees arising out of such action.



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SECTION – IV

4.0 PAYMENT, INSURANCE AND TAXES

4.1 DEDUCTION FROM THE CONTRACT PRICE:

- 4.1.1 All costs, damages or expenses which Employer may have paid or incurred, which under the provisions of the Contract, the Service Provider is liable to pay to the Employer. All such claims shall be claimed by the Employer from the Service Provider regularly as and when they fall due. Such claims shall be paid by the Service Provider within 15 (fifteen) days of the receipt of the corresponding bills/ claims and if not paid by the Service Provider within the said period, the Employer may, then, deduct the amount from any immediate moneys due to the Service Provider like R.A Bills, Final Bills, Contract Performance Security or any payment becoming due to the Service Provider under the Contract or may be recovered by actions of law or otherwise, if the Service Provider fails to satisfy the Employer of such claims.

4.2 SCHEDULE OF RATES AND PAYMENTS:

4.2.1 SERVICE PROVIDER'S REMUNERATION:

The price to be paid by the Employer to Service Provider for the whole of the Service to be done and for the performance of all the obligations undertaken by the Service Provider under the Contract Documents shall be ascertained by the application of the respective Schedule of Rates (the inclusive nature of which is more particularly defined by way of application but not of limitation, with the succeeding sub-clause of this clause) and payment to be made accordingly for the Services actually executed and approved by the Engineer-in-Charge. The sum so ascertained shall (except only as and to the extent expressly provided herein) constitute the sole and inclusive remuneration of the Service Provider under the Contract and no further or other payment whatsoever shall be or become due or payable to the Service Provider under the Contract.

4.2.2 SCHEDULE OF RATES TO BE INCLUSIVE:

The prices/rates quoted by the Service Provider shall remain firm till the issue of Final Certificate and shall not be subject to escalation. Schedule of Rates shall be deemed to include and cover all costs, expenses and liabilities of every description and all risks of every kind to be taken in rendering the services to the Employer by the Service Provider. The Service Provider shall be deemed to have known the nature, scope, magnitude and the extent of the service though the Contract Document may not fully and precisely furnish/specify them. The Tenderer shall be deemed to include the requisite services as may be required to complete the Services properly including remedying of any defect therein.

4.2.3 SCHEDULE OF RATES TO COVER CONSTRUCTION EQUIPMENTS, MATERIALS, LABOUR ETC.:

Without in any way limiting the provisions of the preceding sub-clause the Schedule of Rates shall be deemed to include and cover the cost of all construction equipment, temporary work (except as provided for herein), pumps, materials, labour, insurance, fuel, consumables, stores & appliances and such other items / equipments / materials as required for carrying out the services by the Service Provider and all other matters in connection with each item in the Schedule of Rates and the execution of the Service or any portion thereof finished, complete in every respect and maintained as shown or described in the Contract Documents or as may be ordered in writing during the continuance of the Contract.



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4.2.4 SCHEDULE OF RATES TO COVER ROYALTIES, RENTS AND CLAIMS:

The Schedule of Rates (i.e., Value of Contract) shall be deemed to include and cover the cost of all royalties and fees for the articles and processes, protected by letters, patent or otherwise incorporated in or used in connection with the Service, also all royalties, rents and other payments in connection with obtaining materials of whatsoever kind for the Service and shall include an indemnity to the Employer which the Service Provider hereby gives against all actions, proceedings, claims, damages, costs and expenses arising from the incorporation in or use in the Service of any such articles, processes or materials, octroi or other municipal or local Board Charges, if levied on materials, equipment or machineries to be brought to site for use for Services shall be borne by the Service Provider.

4.2.5 SCHEDULE OF RATES TO COVER TAXES AND DUTIES:

No exemption or reduction of Customs Duties, GST, Works Contract Tax or any port dues, transport charges, stamp duties or Central or State Government or local Body or Municipal Taxes or duties, taxes or charges (from or of any other body), entry tax, whatsoever, will be granted or obtained, all of which expenses shall be deemed to be included in and covered by the Schedule of Rates, unless mentioned specifically elsewhere in the Tender Document. The Service Provider shall also obtain and pay for all permits/licenses or other privileges necessary to complete the Service.

4.2.6 SCHEDULE OF RATES TO COVER RISKS OF DELAY:

The Schedule of Rates shall be deemed to include and cover the risk of all possibilities of delay and interference with the Service Provider's conduct/performance of Services which occurs from any causes including orders of the Employer in the exercise of his power and on account of extension of time granted due to various reasons and for all other possible or probable causes of delay.

4.2.7 SCHEDULE OF RATES CANNOT BE ALTERED:

For Service under unit rate basis, no alteration will be allowed in the Schedule of Rates by reason of services or any part of them being modified, altered, extended, diminished or committed. The Schedule of Rates are fully inclusive of rates which have been fixed by the Service Provider and agreed to by the Employer and cannot be altered. For lumpsum Contracts, the payment will be made according to the Service actually carried out, for which purpose an item wise, or work wise Schedule of Rates shall be furnished, suitable for evaluating the value of Service provided and preparing running account bill. Payment for any additional Service which is not covered in the Schedule of Rates shall only be released on issuance of Amendment to LOA/Contract by the Employer.

4.3 PROCEDURE FOR BILLING OF SERVICES:

4.3.1 BILLING PROCEDURE:

Following procedures shall be adopted for billing of services executed by the Service Provider.

4.3.1.1 The Bill(s) complete in all respect with details and enclosure(s) is to be submitted by Service Provider in line with terms of the Contract. Employer shall make all endeavour to release payments of undisputed amount of the bills submitted within 15 (Fifteen) days from the date of certification by the Engineer-in-Charge.

4.3.1.2 COMPUTERISED BILLING SYSTEM: GAIL (India) Limited has introduced Computerised Billing System whereby whenever the Bill(s) are submitted in GAIL by a Service Provider, a receipt number is usually generated. The Service Provider may also know the status of the Bill through GAIL's website.



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4.3.2 MODE OF MEASUREMENT:

The payment shall be made based on the mode of measurement as specified in the Contract. Otherwise, the mode of measurement shall be adopted as per latest Indian Standard Specifications.

4.4 NOTICE OF CLAIMS FOR ADDITIONAL PAYMENTS:

4.4.1 Should the Service Provider consider that he is entitled to any extra payment for any extra/additional Job(s)/Service(s) or material change in original Specifications carried out by him in respect of job, he shall forthwith give notice in writing to the Engineer-in-Charge that he claims extra payment. Such notice shall be given to the Engineer-in-Charge upon which Service Provider bases such claims and such notice shall contain full particulars of the nature of such claim with full details of amount claimed. Irrespective of any provision in the Contract to the contrary, the Service Provider must intimate his intention to lodge claim on the Employer within 10 (ten) days of the commencement of happening of the event and quantify the claim within 30 (thirty) days, failing which the Service Provider will lose his right to claim any compensation/reimbursement/damages etc.. Failure on the part of Service Provider to put forward any claim without the necessary particulars as above within the time above specified shall be an absolute waiver thereof. No omission by Employer to reject any such claim and no delay in dealing therewith shall be waiver by Employer of any of these rights in respect thereof.

4.4.2 Engineer-in-Charge shall review such claims within a reasonable period of time and cause to discharge these in a manner considered appropriate after due deliberations thereon. However, Service Provider shall be obliged to carry on with the Jobs/services during the period in which his claims are under consideration by the Employer, irrespective of the outcome of such claims, where additional payments for Services considered extra are justifiable in accordance with the Contract provisions, Employer shall arrange to release the same in the same manner as for normal job payments. Such of the extra services so admitted by Employer shall be governed by all the terms, conditions, stipulations and specifications as are applicable for the Contract. The rates for extra services shall generally be the unit rates provided for in the Contract. In the event unit rates for extra services so executed are not available as per Contract, payments may either be released on day work basis for which daily/hourly rates for workmen and hourly rates for equipment rental shall apply, or on the unit rate for Services executed shall be derived by interpolation/extrapolation of unit rates already existing in the Contract. In all the matters pertaining to applicability of rate and admittance of otherwise of an extra service claim(s) of Service Provider, the decision of Engineer-in-Charge shall be final and binding on the Service Provider.

4.5 INSURANCE:

4.5.1 Service Provider shall, at his own expense, arrange appropriate insurance to cover all risks assumed by the Service Provider under this Contract in respect of its personnel deputed under this Contract as well as Service Provider's equipment, tools and any other belongings of the Service Provider or their personnel during the entire period of their engagement in connection with this Contract. Employer will have no liability on this account. The Personnel covered must be covered to meet the liability under Employee Compensation Act.

4.5.2 The provisions of this Clause shall in no way limit the liability of the Service Provider under the Contract.

4.5.3 If the Service Provider neglects, fails, or refuses to obtain or maintain insurances required to be effected, or fails to provide certification etc., the Employer has the right to procure and maintain policies at Service Provider's expense plus administrative cost of 10% of the amount of Insurance premium.



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4.5.4 INSURANCE TYPES:

Service Provider shall at all time during the currency of the Contract provide, pay for and maintain the following insurance amongst others:

- a. Employee Compensation and Employer's common law liability insurance covering liability to employees of the Service Provider under the laws of their place or employment or place or injury, arising out of injury sustained in connection with any of the services. This insurance will be extended where submitted by law, to indemnify the Employer against any statutory liability which it may incur towards injured employees of the Service Provider. A proof of the same should be submitted to EIC for liability in line with Employees Compensation Act.
- b. General Public Liability Insurance covering liabilities including contractual liability for bodily injury, including death of persons, and liabilities for damage of property. This insurance must cover all operations of Service Provider required to fulfill the provisions under this Contract.
- c. Service Provider's Equipment/Materials/Goods used for execution of the work hereunder shall have an insurance cover with a suitable limit (as per international standards).
- d. Automobile Public Liability Insurance covering owned, non-owned and hired automobiles used in the performance of the work hereunder, with bodily injury limits and property damage limits as governed by Indian Insurance regulations.
- e. Public Liability Insurance as required under Public Liability Insurance Act 1991.

4.5.5 Service Provider shall obtain additional insurance or revise the limits of existing insurance as per Employer's request in which case additional cost shall be to Service Provider's account.

Further, the Service Provider shall ensure the adequacy of Insurance at all time in accordance with the nature of the Service(s), terms of the Contract and Statutory requirements.

4.5.6 CERTIFICATE OF INSURANCE:

Before commencing performance of the services, Service Provider shall on request furnish EIC/Employer with certificates of insurance indicating:

- i) type and amounts of insurance as required herein;
 - ii) insurance company or companies carrying the aforesaid coverage;
 - iii) effective and expiry dates of policies;
 - iv) that the Employer may give advance notice for any material change in the policy. waiver of subrogation endorsement has been attached to all policies; and
 - v) the territorial limits of all policies.
- 4.5.7 If any of the above policies expire or are cancelled during the terms of the service, and Service Provider fails for any reason to renew such policies, the Employer may replace same and recover the charges towards premium plus administrative charges from Service Provider. Should there be a lapse in any insurance required to be carried out by the Service Provider hereunder for any reason, losses & penalty, if any resulting there from shall be to the sole account of the Service Provider.



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4.5.8 Service Provider shall require all its Sub-Service Providers to provide such foregoing insurance cover as the Service Provider is obligated to provide under the Contract.

4.5.9 WAIVER OF SUBROGATION: All insurance policies of the Service Provider with respect to the operations conducted hereunder, shall be endorsed by the underwriter in accordance with the following policy wording: “The insurers hereby waive their rights of subrogation against any individual, Employer, affiliates or assignees for whom or with whom the assured may be operating to the extent of the Contractual indemnities undertaken by the Service Provider”.

4.5.10 Deductible: That portion of any loss not covered by insurance provided for in this article solely by reason of deductible provision in such insurance policies shall be to the account of the Service Provider.

4.6 TAXES AND DUTIES:

4.6.1 The Service Provider, unless specified otherwise elsewhere in the Contract agrees to and does hereby accept full and exclusive liability for the payment of any and all Taxes, Duties, including GST now or hereafter imposed, increased, modified from time to time in respect of Services and materials and all contributions and taxes for unemployment compensation, insurance and old age pensions or annuities now or hereafter imposed by any Central or State Government authorities which are imposed with respect to or covered by the wages, salaries, or other compensations paid to the persons employed by the Service Provider and the Service Provider shall be responsible for the compliance of all Sub-Service Providers, with all applicable Central, State, Municipal and local law and regulation and requirement of any Central, State or local Government agency or authority. Service Provider further agrees to defend, indemnify and hold Employer harmless from any liability or penalty which may be imposed by the Central, State or Local authorities by reason or any violation by Service Provider or Sub- Sub-Service Provider of such laws, suits or proceedings that may be brought against the Employer arising under, growing out of, or by reason of the service provided for by this Contract, by third parties, or by Central or State Government authority or any administrative sub-division thereof. Tax deductions will be made as per the rules and regulations in force in accordance with acts prevailing from time to time.

4.6.2 Service Provider shall ensure timely submission of correct invoice(s) with all required supporting document(s) as per Contract within a period specified in Contracts to enable Employer to avail Input Tax Credit.

If Input Tax credit with respect to GST is not available to Employer for any reason which is not attributable to Employer, then Employer shall not be obligated or liable to pay or reimburse GST charged in the invoice(s) and shall be entitled to / deduct/ setoff /recover the such GST together with all penalties and interest if any, against any amounts paid or payable by Employer to Service Provider.

4.6.3 Where Employer has the obligation to discharge tax liability under reverse charge mechanism and Employer has paid or is /liable to pay GST to the Government on which interest or penalties becomes payable as per rules (as amended from time to time) for any reason which is not attributable to Employer or Input Tax credit with respect to such payments is not available to Employer for any reason which is not attributable to Employer, then Employer shall be entitled to deduct/ setoff / recover such amounts against any amounts paid or payable by Employer to Service Provider.

4.7 INCOME TAX:

4.7.1 Income Tax deduction shall be made from all payments of the Service Provider as per rules and regulation in force in accordance with the Income Tax Act prevailing from time to time. As per the provisions of the income Tax Act,



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1961, Permanent Account No. (PAN) is compulsorily required to be mentioned in Tax Deduction at Source (TDS) certificate issued to the payee. Therefore, the bidder must submit the details of PAN / the copy of application filed for allotment of PAN (if PAN no. not available) to EIC immediately on receipt of FOA/Contract Document, failing which, TDS will be applied as per applicable law and TDS certificate will not be issued. Therefore, in case the Service Provider does not furnish PAN, EMPLOYER shall deduct at source as provided in the Income Tax Act 1961, or in the relevant Finance Act, or as directed in the orders u/s 195(3) or 197 or 195(2), as the case may be, or at such higher rate as may be required by Section 206AA of Income Tax Act 1961, from time to time.

- 4.7.2 In case of foreign bidder, the Service Provider must apply through the local embassy / consulate of India for obtaining PAN card. In case, foreign Service Provider don't have the PAN, then amount will be deducted and deposited as per law and TDS certificate will also not be provided. Further, such Service Provider shall comply all other provisions mentioned elsewhere in the Tender Document related to making remittances to non-residents including Permanent Establishment, Tax Residency Certificate (TRC) if non-resident desire to avail benefits available under Double Tax Avoidance Agreement (DTAA), Withholding Tax etc., as per Income Tax Act, 1961 (as amended from time to time).

4.8 STATUTORY VARIATIONS:

- 4.8.1 All duties, taxes (except where otherwise expressly provided in the Contract) as may be levied / imposed in consequences of execution of the Jobs/Services or in relation thereto or in connection therewith as per the Acts, Laws, Rules, Regulations in force on the due date of submission of Bid for this Contract shall be to Service Provider's account. Any increase / decrease in such duties, taxes after the due date of submission of bid but within the Contractual completion date as stipulated in the Contract will be to the account of Employer subject to submission of documentary proof to the satisfaction of Employer.
- 4.8.2 Any increase in the duties and taxes after the Contractual completion period will be to the Service Provider's account, where delay in completion /mobilization period is attributable to the Service Provider and the taxes & duties are not cenvatable (i.e. Input Tax Credit (ITC) not available). In case of applicability of ITC / cenvatable taxes & duties, payment shall be made as per the prevailing rates during the currency of the Contract. However, any benefit of decrease in duties and taxes after the Contractual completion will be passed on to the Employer.
- 4.8.3 In the event of introduction of any new legislation or any change or amendment or enforcement of any Act or Law, rules or regulations of Government of India or State Government(s) or Public Body which becomes effective after the due date of submission of Bid for this Contract but within the Contractual completion period (including extended period allowed due to reasons attributed to Employer) and which results in increased cost of the jobs/services under the Contract through increased liability of taxes, (other than personnel and Corporate taxes), duties, the Service Provider shall be indemnified for any such increased cost by the Employer subject to the production of documentary proof to the satisfaction of the Employer to the extent which directly is attributable to such introduction of new legislation or change or amendment as mentioned above and adjudication by the competent authority & the courts wherever levy of such taxes / duties are disputed by Employer.
- 4.8.4 Similarly, in the event of introduction of new legislation or any change or amendment or enforcement of any Act or Law, rules or regulations of Government of India or State Government(s) or Public Body which becomes effective after the due date of submission of Bid for this Contract and which results in any decrease in the cost of the services/ jobs through reduced liability of taxes, (other than personnel and Corporate taxes) duties, the Service Provider shall pass on the benefits of such reduced cost, taxes or duties to the Employer, to the extent which is directly attributable to such introduction of new legislation or change or amendment as mentioned above.

4.9 DAMAGES TO PROPERTY, ANY PERSON AND THIRD PARTY



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- i) Service Provider shall be responsible for making good to the satisfaction of the Employer any loss or any damage to structures and properties belonging to the Employer or being executed or procured or being procured by the Employer or of other agencies within in the premises of the Employer, if such loss or damage is due to fault and/or the Negligence or Willful Misconduct or omission of the Service Provider, his employees, agents, representatives or Sub-Service Providers.
- ii) The Service Provider shall take sufficient care in moving his equipments and materials from one place to another so that they do not cause any damage to any person or to the property of the Employer or any third party including overhead and underground cables and in the event of any damage resulting to the property of the Employer or of a third party during the movement of the aforesaid equipment or materials the cost of such damages including eventual loss of production, operation or services in any plant or establishment as estimated by the Employer or ascertained or demanded by the third party shall be borne by the Service Provider. Third party liability risk shall be Rupees One lakh for single accident and limited to Rupees Ten lakhs.
- iii) The Service Provider shall indemnify and keep the Employer harmless of all claims for damages to property other than Employer's property arising under or by reason of this agreement, if such claims result from the fault and/or Negligence or Willful Misconduct or omission of the Service Provider, his employees, agents, representative of Sub-Service Provider.

SECTION – V

5.0 LAWS, HEALTH, SAFETY & ENVIRONMENT

5.1 LABOUR LAWS:

- i) No labour below the age of 18 (eighteen) years shall be employed on the Job.
- ii) The Service Provider shall not pay less than what is provided under law to labourers engaged by him on the Job.
- iii) The Service Provider shall at his expense comply with all labour laws and keep the Employer indemnified in respect thereof.
- iv) The Service Provider shall pay equal wages for men and women in accordance with applicable labour laws.
- v) If the Service Provider is covered under the Contract labour (Regulation and Abolition) Act, he shall obtain a license from licensing authority (i.e. office of the labour commissioner) by payment of necessary prescribed fee and the deposit, if any, before starting the Job under the Contract. Such fee/deposit shall be borne by the Service Provider.
- vi) The Service Provider shall employ labour in sufficient numbers either directly or through Sub- Service Provider's to maintain the required rate of progress and of quality to ensure workmanship of the degree specified in the Contract while also ensuring that workman is not stressed due to long hour of working and to the satisfaction of the EIC.
- vii) The Service Provider shall furnish to the EIC the distribution return of the number and description, by trades of the service people employed on the services. The Service Provider shall also submit on the 4th and 19th of every month to the EIC a true statement showing in respect of the second half of the preceding month and the first half of the current month (1) the accidents that occurred during the said fortnight showing the circumstances under which they happened and the extent of damage and injury caused by them and (2) the number of female workers who have been



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allowed Maternity Benefit as provided in the Maternity Benefit Act 1961 on Rules made thereunder and the amount paid to them.

- viii) The Service Provider shall comply with the provisions of the payment of Wage Act 1936, Employee Provident Fund Act 1952, Minimum Wages Act 1948. Employers Liability Act 1938. Servicemen's Compensation Act 1923, Industrial Disputes Act 1947, the Maternity Benefit Act 1961 and Contract Labour Regulation and Abolition Act 1970, Employment of Children Act 1938 or any modifications thereof or any other law relating thereto and rules made thereunder from time to time.
- ix) The EIC shall on a report having been made by an Inspecting Officer as defined in Contract Labour (Regulation and Abolition) Act 1970 have the power to deduct from the money due to the Service Provider any sum required or estimated to be required for making good the loss suffered by a worker or workers by reason of non- fulfilment of the Conditions of the Contract for the benefit of workers, non-payment of wages or of deductions made from his or their wages which are not justified by the terms of the Contract or non-observance of the said regulations.
- x) The Service Provider shall indemnify the Employer against any payments to be made under and for the observance of the provisions of the aforesaid Acts without prejudice to his right to obtain indemnity from his Sub-Service Provider's. In the event of the Service Provider committing a default or breach of any of the provisions of the aforesaid Acts as amended from time to time, of furnishing any information or submitting or filling and Form/ Register/ Slip under the provisions of these Acts which is materially incorrect then on the report of the inspecting Officers, the Service Provider shall without prejudice to any other liability pay to the Employer a sum not exceeding Rs.10000.00 as Liquidated Damages for every default, breach or furnishing, making, submitting, filling materially incorrect statement as may be fixed by the EIC and in the event of the Service Provider's default continuing in this respect, the Liquidated Damages may be enhanced to Rs.5000.00 per day for each day of default subject to a maximum of one percent of the estimated cost of the Services put to the Contract. The EIC shall deduct such amount from bills or Contract Performance Security of the Service Provider and credit the same to the Welfare Fund constitute under these acts. The decision of the EIC in this respect shall be final and binding.

5.2 SAFETY REGULATIONS:

- i) In respect of all labour, directly employed in the Service for the performance of Service Provider's part of this agreement, the Service Provider shall at his own expense arrange for all the safety provisions as per safety codes of C.P.W.D., Indian Standards Institution. The Electricity Act, The Mines Act and such other acts as applicable.
- ii) The Service Provider shall observe and abide by all fire and safety regulations of the Employer. Before starting service, Service Provider shall consult with Employer's safety Engineers or EIC and must make good to the satisfaction of the Employer any loss or damage due to fire to any portion of the service done or to be done under this agreement or to any of the Employer's existing property.

5.3 FIRST AID AND INDUSTRIAL INJURIES:

- i) Service Provider shall maintain first aid facilities for its employees and those of its Sub-Service Provider.
- ii) Service Provider shall make outside arrangements for ambulance service and for the treatment of industrial injuries. Names of those providing these services shall be furnished to Employer prior to start and their telephone numbers shall be prominently posted in Service Provider's field office.



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- iii) All critical industrial injuries shall be reported promptly to Employer, and a copy of Service Provider's report covering each personal injury requiring the attention of a physician shall be furnished to the Employer.

5.4 GENERAL RULES:

- 5.4.1 Smoking within the battery area, tank farm, dock limits or any such area identified by EIC or mentioned in SCC or any guideline, is strictly prohibited. Violators of the no smoking rules shall be discharged immediately after imposing the applicable penalty(ies). Decision of EIC in the matter shall be final and binding on the Service Provider.

5.5 CARE IN HANDLING INFLAMMABLE GAS:

- 5.5.1 The Service Provider has to ensure all precautionary measures and exercise utmost care in handling the inflammable gas cylinder/inflammable liquids/paints etc. as required under the law and/or as advised by the fire Authorities of the Employer.

5.6 PRESERVATION OF PLACE:

- 5.6.1 The Service Provider shall take requisite precautions and use his best endeavors to prevent any riotous or unlawful behavior by or amongst his worker / personnel employed for the services and for the preservation of peace and protection of the inhabitants and security of property in the neighborhood of the Site. In the event of the Employer requiring the maintenance of a Special Police Force at or in the vicinity of the site during the tenure of services, the expenses thereof shall be borne by the Service Provider and if paid by the Employer shall be recoverable from the Service Provider.

5.7 ENVIRONMENT:

- 5.7.1 Employer acknowledges their commitment to conduct their respective operations in a manner which not only complies with all relevant environmental protection and pollution control legislation but also such operations do not cause environmental damage or pollution and in a manner which acknowledges other cultural and associated considerations. In recognition of this commitment, the Service Provider shall perform the services in such a way as to avoid or minimize environmental damage or pollution and fully recognize the special aspects of the environment as communicated by Employer or as applicable. Service Provider shall comply with, and the Service Provider shall ensure compliance with all applicable environmental protection and pollution control legislation as it relates to the services.
- 5.7.2 In the furtherance of any laws, regulations and rules promulgated by the Government of India, Service Provider shall:
- Employ good international oil & gas industry practices, including as required, advanced techniques, practices and methods of operation for the prevention of environmental damage in conducting the job;
 - Take necessary and adequate steps to prevent environmental damage and, where some adverse impact on the environment is unavoidable, minimize such damage and the consequential effects thereof of property and people; and
 - Adhere to the guidelines, limitations or restrictions, if any, imposed by the environmental clearance as applicable.
- 5.7.3 If during the Service Provider's performance of the services, the Employer is of the opinion that the Service Provider is either not conducting the services in strict compliance with this Contract or is conducting the services in such a



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way as to endanger the environment or in such a way as to risk being in breach of any environmental protection or pollution control legislation, then the Employer shall notify the Service Provider in writing of the conduct involved and the Service Provider shall initiate corrective action to the reasonable satisfaction of the Employer within twenty four (24) hours of the conduct so notified or as decided by EIC. Employer may, require Service Provider to discontinue the Service in whole or in part until Service Provider has taken such action.

5.7.4 The Service Provider shall notify the Employer as soon as reasonably practicable of any spillage or potential spillage of petroleum or any act of pollution or potentially polluting event. For each and any such event the Service Provider shall record the relevant information on the incident report form and shall deliver the completed form to the Employer forthwith.

5.7.5 After completion of the entire job as per this Contract and prior to Demobilization, Service Provider shall at its expense satisfactorily dispose off all rubbish, remove all temporary work, equipment and materials belonging to Service Provider and return to Employer warehouse all surplus spares and salvageable Employer supplied materials. Further, the Service Provider can take away the brought out Service Provider supplied surplus Material (i.e. Materials brought by the Service Provider for work/Services at site under Contract, not used by them for work/Services and leftover at the Site) subject to prior written consent of the EIC. The payment made, if any, towards such surplus Material will be recovered from the payment of Service Provider.

Service Provider shall leave the premises in a neat and safe condition. Service Provider shall be required to leave all, sites and surrounding area as it existed at the commencement of Contract.

5.7.6 Service Provider shall:

Ensure that the pertinent completed environmental impact studies including the Rapid Environmental Impact Assessment carried out by Employer are made available to its Personnel and to its Sub-Service Providers to develop adequate and proper awareness of the measures and methods of environmental protection to be used in carrying out the job;

Ensure and maintain at his own cost all lights, guards, fencing, warning signs and watching, when and where necessary or required by the EIC, for the protection of the Services or for the safety and convenience of the public or others.

Ensure that the Contracts entered into between Service Provider and its Sub Service Providers (if allowed) relating to the Services shall include the provisions stipulated herein;

- be responsible for the removal from the Site or for otherwise making safe in accordance with applicable Indian laws and directives any materials generated or released by Service Provider during its activities at the Site which are toxic or similarly hazardous to the health or safety of persons or to the environment;
- be liable for and shall indemnify, protect, defend and hold harmless Employer from and against any and all demands, claims, suits and causes of action and any and all liability, costs, expenses, settlements and judgments incurred in connection therewith (including court costs and attorney's fees incurred by Employer) arising out of such toxic or hazardous materials for which the Service Provider is responsible pursuant to this Clause.

NOTE: "PLANNING AND DESIGNING IN PURVIEW OF VULNERABILITY ATLAS OF INDIA:



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Vulnerability Atlas of India (VAI) is a comprehensive document which provides existing hazard scenario for the entire country and presents the digitized State/UT- wise hazard, maps with respect to earthquakes, winds and floods for district-wise identification of vulnerable areas. It also includes additional digitized maps for thunderstorms, cyclones and landslides. The main purpose of this Atlas is its use for disaster preparedness and mitigation at policy planning and project formulation stage.

This atlas is one of its kind single point source for the various stakeholders including policy makers, administrators, municipal commissioners, urban managers, engineers, architects, planners, public etc. to ascertain proneness of any city/location/site to multi-hazard which includes earthquakes, winds, floods thunderstorms, cyclones and landslides. While project formulation, approvals and implementation of various urban housing, buildings and infrastructures schemes, this Atlas provides necessary information for risk analysis and hazard assessment. The Vulnerability Atlas of India has been prepared by Building Materials and Technology Promotion Council under Ministry of Housing and Urban Affairs, Government of India and available at their website www.bmtpc.org.

It is mandatory for the bidders to refer Vulnerability Atlas of India for multi hazard risk assessment and include the relevant hazard proneness specific to project location while planning and designing the project in terms of:

- (i) Seismic zone (II to V) for earthquakes,
- (ii) Wind velocity (Basic Wind Velocity: 55, 50, 47, 44, 39 & 33 m/s)
- (iii) Area liable to floods and Probable max, surge height
- (iv) Thunderstorms history
- (v) Number of cyclonic storms/severe cyclonic storms and max sustained wind specific to coastal region
- (vi) Landslides incidences with Annual rainfall normal
- (vii) District wise Probable Max. Precipitation.



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SECTION – VI

6.0 DISPUTE RESOLUTION AND ARBITRATION:

6.1 DISPUTE RESOLUTION:

- 6.1.1 GAIL (India) Limited has framed the Conciliation Rules 2010 in conformity with supplementary to Part – III of the Indian Arbitration and Conciliation Act 1996 for speedier, cost effective and amicable settlement of disputes through conciliation. A copy of the said rules made available on GAIL's web site www.gailonline.com for reference. Unless otherwise specified, the matters where decision of the Engineer-in-Charge is deemed to be final and binding as provided in the Contract and the issues/disputes which cannot be mutually resolved within a reasonable time, all disputes shall be settled in accordance with the Conciliation Rules 2010.
- 6.1.2 Any dispute(s)/difference(s)/issue(s) of any kind whatsoever between/amongst the Parties arising under/out of/in connection with this Contract shall be settled in accordance with the aforesaid rules.
- 6.1.3 In case of any dispute(s)/difference(s)/issue(s), a Party shall notify the other Party (ies) in writing about such a dispute(s) / difference(s) / issue(s) between/amongst the Parties and that such a Party wishes to refer the dispute(s)/difference(s)/issue(s) to Conciliation. Such Invitation for Conciliation shall contain sufficient information as to the dispute(s)/difference(s)/issue(s) to enable the other Party (ies) to be fully informed as to the nature of the dispute(s)/difference(s) /issue(s), the amount of monetary claim, if any, and apparent cause(s) of action.
- 6.1.4 Conciliation proceedings commence when the other Party(ies) accept(s) the invitation to conciliate and confirmed in writing. If the other Party (ies) reject(s) the invitation, there will be no conciliation proceedings.
- 6.1.5 If the Party initiating conciliation does not receive a reply within thirty days from the date on which he/she sends the invitation, or within such other period of time as specified in the invitation, he/she may elect to treat this as a rejection of the invitation to conciliate. If he/she so elects, he/she shall inform the other Party(ies) accordingly.
- 6.1.6 Where Invitation for Conciliation has been furnished, the Parties shall attempt to settle such dispute(s) amicably under Part-III of the Indian Arbitration and Conciliation Act, 1996 and GAIL (India) Limited Conciliation Rules, 2010. It would be only after exhausting the option of Conciliation as an Alternate Dispute Resolution Mechanism that the Parties hereto shall go for Arbitration in terms of clause no. 6.2. For the purpose of this clause, the option of 'Conciliation' shall be deemed to have been exhausted, even in case of rejection of 'Conciliation' by any of the Parties.
- 6.1.7 The cost of Conciliation proceedings including but not limited to fees for Conciliator(s), Airfare, Local Transport, Accommodation, cost towards conference facility etc. shall be borne by the Parties in equal share.
- 6.1.8 The Parties shall freeze claim(s) of interest, if any, and shall not claim the same during the pendency of Conciliation proceedings. The Settlement Agreement, as and when reached/agreed upon, shall be signed between the Parties and Conciliation proceedings shall stand terminated on the date of the Settlement Agreement.

6.2 ARBITRATION:

- 6.2.1 If the issues/disputes which cannot be resolved through dispute resolution mechanism pursuant to clause no. 6.1, all disputes such shall be referred to arbitration by Sole Arbitrator. The Employer shall suggest a panel of three independent and distinguished persons to the /Service Provider to select any one among them to act as the Sole



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Arbitrator. In the event of failure of the other parties to select the Sole Arbitrator within 30 days from the receipt of the communication suggesting the panel of arbitrators, the right of selection of the sole arbitrator by the other party shall stand forfeited and the Employer shall have discretion to proceed with the appointment of the Sole Arbitrator. The decision of Employer on the appointment of the sole arbitrator shall be final and binding on the parties. The award of sole arbitrator shall be final and binding on the parties and unless directed/awarded otherwise by the sole arbitrator, the cost of arbitration proceedings shall be shared equally by the parties. The Arbitration proceedings shall be in English language and seat/venue shall be New Delhi, India. Subject to the above, the provisions of Indian Arbitration & Conciliation Act 1996 and the Rules and amendment thereof shall be applicable. All matter relating to this Contract are subject to the exclusive jurisdiction of the court situated in the state of Delhi.

Contractor may please note that the Arbitration & Conciliation Act 1996 was enacted by the Indian Parliament and is based on United Nations Commission on International Trade Law (UNCITRAL model law), which were prepared after extensive consultation with Arbitral Institutions and centers of International Commercial Arbitration. The United Nations General Assembly vide resolution 31/98 adopted the UNCITRAL Arbitration rules on 15 December 1976.

Notwithstanding anything contained contrary in GCC and other Contract Documents, in case it is found that the Bidder/Service Provider indulged in fraudulent/ coercive practices at the time of bidding or during execution of the contract as mentioned in "Procedure for action in case of Corrupt/ Fraudulent/ Collusive / Coersive Practices", the Service Provider / Bidder shall be banned (in terms of aforesaid procedure) from the date of issuance of such order for banning.

The Bidder/Service Provider understands and agrees that in such cases of banning, the decision of Employer shall be final and binding on such Bidder/Service Provider and the Arbitration Clause mentioned in the GCC and other Contract Documents shall not be applicable for any issue /dispute arising in the matter.

6.2.2 SETTLEMENT OF COMMERCIAL DISPUTES BETWEEN PUBLIC SECTOR ENTERPRISE(S) INTER SE AND PUBLIC SECTOR ENTERPRISE(S) AND GOVERNMENT DEPARTMENT (S) THROUGH ADMINISTRATIVE MECHANISM FOR RESOLUTION OF CPSEs DISPUTES (AMRCD) IN THE DEPARTMENT OF PUBLIC ENTERPRISES:

In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial contract(s) between Central Public Sector Enterprises (CPSEs) inter se and also between CPSEs and Government Departments / Organizations (excluding disputes concerning Railways, Income Tax, Customs & Excise Departments), such dispute or difference shall be taken up by either party for resolution through AMRCD as mentioned in DPE OM No. 4(1)/2013-DPE (GM) / FTS-1835 dated 22.05.2018.

6.3 JURISDICTION:

- 6.3.1 The Contract shall be governed by and constructed according to the laws in force in India. The Service Provider hereby submits to the jurisdiction of the Courts situated at New Delhi/Delhi only for the purposes of disputes, actions and proceedings arising out of the Contract and it is agreed that the Courts at New Delhi/Delhi only will have the exclusive jurisdiction to hear and decide such disputes, actions and proceedings.

6.4 CONTINUANCE OF THE CONTRACT:

Notwithstanding the fact that settlement of dispute(s) (if any) may be pending, the parties hereto shall continue to be governed by and perform the Services in accordance with the provisions under this Contract.



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Appendix -1

PROCEDURE FOR ACTION IN CASE OF CORRUPT/FRAUDULENT/COLLUSIVE/ COERCIVE PRACTICES

A Definitions:

- A.1 “Corrupt Practice” means the offering, giving, receiving or soliciting, directly or indirectly, anything of value to improperly influence the actions in selection process or in contract execution.
“Corrupt Practice” also includes any omission for misrepresentation that may mislead or attempt to mislead so that financial or other benefit may be obtained or an obligation avoided.
- A.2 “Fraudulent Practice” means and include any act or omission committed by a agency or with his connivance or by his agent by misrepresenting/ submitting false documents and/ or false information or concealment of facts or to deceive in order to influence a selection process or during execution of contract/ order.
- A.3 “Collusive Practice amongst bidders (prior to or after bid submission)” means a scheme or arrangement designed to establish bid prices at artificial non-competitive levels and to deprive the Employer of the benefits of free and open competition.
- A.4 “Coercive practice” means impairing or harming or threatening to impair or harm directly or indirectly, any agency or its property to influence the improperly actions of an agency, obstruction of any investigation or auditing of a procurement process.
- A.5 “Vendor/Supplier/Contractor/Consultant/Bidder” is herein after referred as “Agency”
- A.6 “Appellate Authority” shall mean Committee of Directors consisting of Director (Finance) and Director (BD) for works centers under Director (Projects). For all other cases committee of Directors shall consist of Director (Finance) & Director (Projects).
- A.7 “Competent Authority” shall mean the authority, who is competent to take final decision W.t.t banning of business dealings with Agency(ies) and shall be the Director concerned.
- A.8 “Allied Agency” shall mean all concerns which come within the sphere of effective influence of the banned/suspended agency shall be treated as allied agency. In determining this, the following factors may be taken into consideration:
- Whether the management is common;
 - Majority interest in the management is held by the partners or directors of banned/ suspended agency;
 - Substantial or majority shares are owned by the banned/ suspended agency and by virtue of this it has a controlling voice.
 - Directly or indirectly controls, or is controlled by or is under common control with another bidder.
 - All successor agency will also be considered as allied agency.
- A.9 “Investigating Agency” shall mean any department or unit of GAIL investigating into the conduct of Agency/ party and shall include the Vigilance Department of the GAIL, Central Bureau of Investigation, State Police or any other agency set up by the Central or state government having power to investigate.
- A.10 “Obstructive practice”: materially impede the procuring entity's investigation into allegations of one or more of the above mentioned practices either by deliberately destroying, falsifying, altering; or by concealing of evidence material to the investigation; or by making false statements to investigators and/ or by threatening, harassing or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or by impeding GAIL's rights of audit or access to information.

B Actions against bidder(s) indulging in corrupt /fraudulent/ collusive/ coercive practice

B.1 Irregularities noticed during the evaluation of the bids :



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If it is observed during bidding process/ bids evaluation stage that a bidder has indulged in corrupt/fraudulent /collusive/coercive practice, the bid of such Bidder (s) shall be rejected and its Earnest Money Deposit (EMD) shall be forfeited.

Further, such agency shall be banned for future business with GAIL for a period specified in para B 2.2 below from the date of issue of banning order.

B.2 Irregularities noticed after award of contract

(i) During execution of contract:

If an agency, is found to have indulged in corrupt/fraudulent/collusive/coercive practices, action shall be initiated as per procedure mentioned at Clause no. E for putting the agency on banning list.

After conclusion of process and issuance of Speaking Order for putting party on banning list as per process defined in para E, the order(s)/contract(s) where it is concluded that such irregularities have been committed shall be terminated and Contract cum Performance Bank Guarantee (CPBG) submitted by agency against such order(s)/contract(s) shall also be forfeited. Further such order/contract will be closed following the due procedure in this regard.

The amount that may have become due to the contractor on account of work already executed by him shall be payable to the contractor and this amount shall be subject to adjustment against any amounts due from the contractor under the terms of the contract. No risk and cost provision will be enforced in such cases.

In addition to above, Recovery of payments including advance payments made, if any, along with interest thereon at the prevailing rate shall be recovered.

(ii). After execution of contract and during Defect liability period (DLP)/ Warranty/ Guarantee Period:

If an agency is found to have indulged in corrupt/fraudulent/ collusive/coercive practices, after execution of contract and during DLP/ Warranty/Guarantee Period, the agency shall be banned for future business with GAIL for a period specified in para B 2.2 below from the date of issue of banning order.

Further, the Contract cum Performance Bank Guarantee (CPBG)/Contract Performance Security (CPS) submitted by agency against such order (s)/ contract (s) shall be forfeited.

(iii). After expiry of Defect liability period (DLP)/ Warranty/Guarantee Period

If an agency is found to have indulged in corrupt/fraudulent/ collusive/coercive practices, after expiry of Defect liability period (DLP)/ Warranty/Guarantee Period, the agency shall be banned for future business with GAIL for a period specified in para B 2.2 below from the date of issue of banning order.

B.2.2 Period of Banning

The period of banning of agencies indulged in Corrupt/ Fraudulent/ Collusive/Coercive Practices shall be as under and to be reckoned from the date of banning order:



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S. No.	Description	Period of banning from the date of issuance of Banning order
1	Misrepresentation/False information other than pertaining to BEC of tender but having impact on the selection process. For example, if an agency confirms not being in holiday in GAIL/PSU's PMC or banned by PSUs/ Govt. Dept., liquidation, bankruptcy & etc. and subsequently it is found otherwise, such acts shall be considered in this category.	06 Months
2	Corrupt/Fraudulent (except mentioned at sl. no. 1 above) / Collusive/Coercive Practices	01 year
2.1	If an agency again commits Corrupt/Fraudulent (except mentioned at sl. no. 1 above) /Collusive/ Coercive Practices in subsequent cases after their banning, such situation of repeated offense to be dealt with more severity.	2 years (in addition to the period already served)
3	Indulged in unauthorized disposal of materials provided by GAIL	2 years
4	If act of vendor/ contractor is a threat to the National Security	2 years

C Effect of banning on other ongoing contracts/ tenders

- C.1 If an agency is put on Banning, such agency should not be considered in ongoing tenders/future tenders.
- C.2 However, if such an agency is already executing other order (s)/ contract (s) where no corrupt/fraudulent/collusive/coercive practice is found, the agency should be allowed to continue till its completion without any further increase in scope except those incidental to original scope mentioned in the contract.
- C.3 If an agency is put on the Banning List during tendering and no irregularity is found in the case under process:
- C.3.1 after issue of the enquiry /bid/tender but before opening of Technical bid, the bid submitted by the agency shall be ignored.
- C.3.2 after opening Technical bid but before opening the Price bid, the Price bid of the agency shall not be opened and BG/EMD submitted by the agency shall be returned to the agency.
- C.3.3 After opening of price, BG/EMD made by the agency shall be returned; the offer of the agency shall be ignored & will not be further evaluated. In case such agency is lowest (L-1), next lowest bidder shall be considered as L-1.

D. Deleted.

F. Appeal against the Decision of the Competent Authority:

- F.1 The agency may file an appeal against the order of the Competent Authority for putting the agency on banning list. The appeal shall be filed to Appellate Authority. Such an appeal shall be preferred within one month from the of receipt of banning order.
- F.2 Appellate Authority would consider the appeal and pass appropriate order which shall be communicated to the party as well as the Competent Authority.
- F.3 Appeal process may be completed within 45 days of filing of appeal with the Appellate Authority.



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- G. Wherever there is contradiction with respect to terms of 'Integrity pact' , GCC and 'Procedure for action in case of Corrupt/Fraudulent/ Collusive/Coercive Practice', the provisions of 'Procedure for action in case of Corrupt/Fraudulent/ Collusive/Coercive Practice' shall prevail.



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Appendix 2

PROCEDURE FOR EVALUATION OF PERFORMANCE OF VENDORS/ SUPPLIERS/ CONTRACTORS/ CONSULTANTS

1.0 GENERAL

A system for evaluation of Vendors/ Suppliers/Contractors/ Consultants and their performance is a key process and important to support an effective purchasing & contracting function of an organization.

Performance of all participating Vendors/ Suppliers/Contractors/ Consultants need to be closely monitored to ensure timely receipt of supplies from a Vendor, completion of an assignment by a Consultant or complete execution of order by a contractor within scheduled completion period. For timely execution of projects and meeting the operation & maintenance requirement of operating plants, it is necessary to monitor the execution of order or contracts right from the award stage to completion stage and take corrective measures in time.

2.0 OBJECTIVE

The objective of Evaluation of Performance aims to recognize, and develop reliable Vendors/ Suppliers/ Contractors/ Consultants so that they consistently meet or exceed expectations and requirements.

The purpose of this procedure is to put in place a system to monitor performance of Vendors/ Suppliers/Contractors/ Consultants associated with GAIL so as to ensure timely completion of various projects, timely receipt of supplies including completion of works & services for operation and maintenance of operating plants and quality standards in all respects.

3.0 METHODOLOGY

i) Preparation of Performance Rating Data Sheet

Performance rating data Sheet for each and every Vendor/ Supplier/Contractor/Consultant for all orders/Contracts with a value of Rs. 50 Lakhs and above is recommended to be drawn up. Further, Performance rating data Sheet for orders/contracts of Vendor/Supplier/Contractor/ Consultant who are on watch list/holiday list/ banning list shall be prepared irrespective of order/ contract value. These data sheets are to be separately prepared for orders/ contracts related to Projects and O&M. Format, Parameters, Process, responsibility for preparation of Performance Rating Data Sheet are separately mentioned.

ii) Measurement of Performance

Based on the parameters defined in Data Sheet, Performance of concerned Vendor/ Supplier/Contractor/ Consultant would be computed and graded accordingly. The measurement of the performance of the Party would be its ability to achieve the minimum scoring of 60% points in the given parameters.

iii) Initiation of Measures:

Depending upon the Grading of Performance, corrective measures would be initiated by taking up the matter with concerned Vendor/ Supplier/Contractor/ Consultant. Response of Vendor/ Supplier/Contractor/ Consultant would be considered before deciding further course of action.

iv) Implementation of Corrective Measures:



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Based on the response of Vendor/ Supplier/Contractor/ Consultant, concerned Engineer-in-Charge for the Projects and/or OIC in case of O&M would recommend for continuation or discontinuation of such party from the business of GAIL.

- v) Orders/contracts placed on Proprietary/OEM basis for O&M will be evaluated and, if required, corrective action will be taken for improvement in future.

4.0 **EXCLUSIONS:**

The following would be excluded from the scope of evaluation of performance of Vendors/ Suppliers/ Contractors/ Consultants:

- i) Orders/Contracts below the value of Rs. 50 Lakhs if Vendor/ Supplier/Contractor/ Consultant is not on watch list/ holiday list/ banning list.
 ii) Orders for Misc./Administrative items/ Non stock Non valued items (PO with material code ending with 9).

However, concerned Engineer-in-Charge /OICs will continue to monitor such cases so as to minimize the impact on Projects/O&M plants due to non-performance of Vendors/ Suppliers/Contractors/ Consultants in all such cases.

5.0 **PROCESS OF EVALUATION OF PERFORMANCE OF VENDORS/ SUPPLIERS/ CONTRACTORS/ CONSULTANTS**

5.1 FOR PROJECTS

- i) Evaluation of performance of Vendors/ Suppliers/Contractors/ Consultants in case of PROJECTS shall be done immediately with commissioning of any Project.
 ii) On commissioning of any Project, EIC (Engineer-in-charge)/ Project-in-charge shall prepare a Performance Rating Data Sheet (Format at Annexure-1) for all Orders and Contracts.
 iii) Depending upon the Performance Rating, following action shall be initiated by Engineer-in-charge/Project-in-charge:

Sl. No.	Performance Rating	Action
1	POOR	Seek explanation for Poor performance
2	FAIR	Seek explanation for Fair performance
3	GOOD	Letter to the concerned for improving performance in future
4	VERY GOOD	No further action

- iv) Reply from concerned Vendor/ Supplier/Contractor/ Consultant shall be examined. In case of satisfactory reply, Performance Rating data Sheet to be closed with a letter to the concerned for improving performance in future.
 v) When no reply is received or reasons indicated are unsatisfactory, the following actions need to be taken:

- A) Where performance rating is "POOR" (as per Performance Rating carried out after execution of Order/ Contract and where no reply/ unsatisfactory reply is received from party against the letter



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seeking the explanation from Vendor/Supplier/Contractor/ Consultant along with sharing the performance rating)

Recommend such defaulting Vendor / Supplier / Contractor / Consultant for the following action:

1. Poor Performance on account of Quality (if marks obtained against Quality parameter is less than 20):

(a) **First Instance: Holiday (Red Card) for One Year**

(b) **Subsequent instance (s) in other ongoing order (s)/ contract (s) or new order (s) / contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: Holiday (Red Card) for Two Years**

2. Poor Performance on account of other than Quality (if marks obtained against Quality parameter is more than 20):

(a) **First such instance: Advisory notice (Yellow Card)** shall be issued and Vendor/Supplier/Contractor/ Consultant shall be put on watch list for a period of Two (2) Years.

(b) **Second such instance in other ongoing order (s)/ contract (s) or new order (s) / contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: Putting on Holiday (Red Card) for a period of One Year.**

(c) **Subsequent instances (more than two) in other ongoing order (s)/ contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant: Putting on Holiday (Red Card) for a period of Two Years.**

- B) **Where Poor/Non-Performance leading to termination of contract or Offloading of contract due to poor performance attributable to Vendor/Supplier/ Contractor/ Consultant (under Clause no. 2.17.3 of GCC-Services)**

(a) **First instance: Advisory notice (Yellow Card)** shall be issued and Vendor/Supplier/ Contractor /Consultant shall be put on watch list for a period of Two (2) Years.

Further such vendor will not be allowed to participate in the re-tender of the same supply/work/services of that location which has terminated / offloaded. Moreover, it will be ensured that all other action as per provision of contract including forfeiture of Contract Performance Security (CPS) etc. are undertaken.

However, such vendor will be allowed to participate in all other tenders and to execute other ongoing order/ contract (s) or new contract/ order (s).

The Yellow card will be automatically revoked after a period of two years unless the same is converted into Red Card due to subsequence instances of poor/ non-performance in other ongoing order (s)/ contract (s) or new order (s) /contact (s) on such Vendor/ Supplier/ Contractor/ Consultant.



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(b) **Second instances** in other ongoing order(s)/contract(s) or new order(s)/ contract(s) on such Vendor/Supplier/ Contractor/Consultant: **Holiday (Red Card)** for a period of One Year.

(c) **Subsequent instances (more than two)** in other ongoing order(s)/ contract(s) or new order(s)/contract(s) on such Vendor/Supplier/ Contractor/ Consultant: **Holiday (Red Card)** for a period of Two Years.

(C) Where Performance rating is “FAIR”:

Issuance of warning to such defaulting Vendor/ Supplier/Contractor/ Consultant to improve their performance.

5.2 FOR CONSULTANCY JOBS

Monitoring and Evaluation of consultancy jobs will be carried out in the same way as described in para 5.1 for Projects.

5.3 FOR OPERATION & MAINTENANCE

- Evaluation of performance of Vendors/ Suppliers/Contractors/ Consultants in case of Operation and Maintenance shall be done immediately after execution of order/ contract.
- After execution of orders a Performance Rating Data Sheet (Format at Annexure-2) shall be prepared for Orders by Site C&P and for Contracts/Services by respective Engineer-In-Charge.
- Depending upon Performance Rating, following action shall be initiated by EIC:

Sl. No.	Performance Rating	Action
1	POOR	Seek explanation for Poor performance
2.	FAIR	Seek explanation for Fair performance
3	GOOD	Letter to the concerned for improving performance in future.
4	VERY GOOD	No further action

- Reply from concerned Vendor/ Supplier/Contractor/ Consultant shall be examined. In case of satisfactory reply, Performance Rating data Sheet to be closed with a letter to the concerned for improving performance in future.
- When no reply is received or reasons indicated are unsatisfactory, the following actions need to be taken:

A) Where performance rating is “POOR” (as per Performance Rating carried out after execution of Order/ Contract and where no reply/ unsatisfactory reply is received from party against the letter seeking the explanation from Vendor/Supplier/Contractor/ Consultant along with sharing the performance rating)

Recommend such defaulting Vendor / Supplier / Contractor / Consultant for the following action:

- Poor Performance on account of Quality (if marks obtained against Quality parameter is less than 20):

(a) **First Instance: Holiday (Red Card) for One Year**



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- (b) **Subsequent instance (s) in other ongoing order (s)/ contract (s) or new order (s) / contract (s) on such Vendor/ Supplier/ Contractor/ Consultant: Holiday (Red Card) for Two Years**
2. Poor Performance on account of other than Quality (if marks obtained against Quality parameter is more than 20):
- (a) **First such instance: Advisory notice (Yellow Card)** shall be issued and Vendor/Supplier/Contractor/ Consultant shall be put on watch list for a period of Two (2) Years.
- (b) **Second such instance in other ongoing order (s)/ contract (s) or new order (s) / contract (s) on such Vendor/ Supplier/ Contractor/ Consultant: Putting on Holiday (Red Card) for a period of One Year**
- (c) **Subsequent instances (more than two) in other ongoing order (s)/ contract (s) or new order (s) /contract (s) on such Vendor/ Supplier/ Contractor/ Consultant: Putting on Holiday (Red Card) for a period of Two Years.**
- B) Where Poor/Non-Performance leading to termination of contract or Offloading of contract due to poor performance attributable to Vendor/Supplier/Contractor/ Consultant under Clause no. 2.17.3 of GCC-Services)
- (a) **First instance: Advisory notice (Yellow Card)** shall be issued and Vendor/Supplier/ Contractor /Consultant shall be put on watch list for a period of Two (2) Year.
- Further such vendor will not be allowed to participate in the re-tender of the same supply/work/services of that location which has terminated / offloaded. Moreover, it will be ensured that all other action as per provision of contract including forfeiture of Contract Performance Security (CPS) etc. are undertaken.
- However, such vendor will be allowed to participate in all other tenders and to execute other ongoing order/ contract (s) or new contract/ order (s).
- The Yellow card will be automatically revoked after a period of two years unless the same is converted into Red Card due to subsequence instances of poor/ non-performance in other ongoing order (s)/ contract (s) or new order (s) /contract (s) on such Vendor/ Supplier/ Contractor/ Consultant.
- (b) **Second instances in in other ongoing order(s)/contract(s) or new order(s)/ contract(s) on such Vendor/Supplier/ Contractor/Consultant: Holiday (Red Card) for a period of One Year.**
- (c) **Subsequent instances (more than two) in other ongoing order(s)/contract(s) or new order(s)/contract(s) on such Vendor/Supplier/Contractor/Consultant: Holiday (Red Card) for a period of Two Years.**
- (C) Where Performance rating is “FAIR”
Issuance of warning to such defaulting Vendors/Contractors/Consultants to improve their performance.



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6.0 REVIEW & RESTORATION OF PARITES PUT ON HOLIDAY

- 6.1 An order for Holiday passed for a certain specified period shall deemed to have been automatically revoked on the expiry of that specified period and it will not be necessary to issue a specific formal order of revocation.

Further, in case Vendor/ Supplier/Contractor/ Consultant is put on holiday due to quality, and new order is placed on bidder after restoration of Vendor/ Supplier/Contractor/ Consultant, such order will be properly monitored during execution stage by the concerned site.

7.0 EFFECT OF HOLIDAY

- 7.1 If a Vendor/Supplier/Contractor/ Consultant is put on Holiday, such Vendor/ Supplier/Contractor/ Consultant shall not be considered in ongoing tenders/future tenders.

- 7.2 However, if such Vendor/ Supplier/Contractor/ Consultant is already executing any other order/ contract and their performance is satisfactory in terms of the relevant contract, should be allowed to continue till its completion without any further increase in scope except those incidental to original scope mentioned in the contract. In such a case CPBG will not be forfeited and payment will be made as per provisions of concerned contract. However, this would be without prejudice to other terms and conditions of the contract.

- 7.3. Effect on other ongoing tendering:

- 7.3.1 after issue of the enquiry /bid/tender but before opening of Technical bid, the bid submitted by the party shall be ignored.

- 7.3.2 after opening Technical bid but before opening the Price bid, the Price bid of the party shall not be opened and BG/EMD submitted by the party shall be returned to the party.

- 7.3.3 After opening of price, BG/EMD made by the agency shall be returned; the offer of the agency shall be ignored & will not be further evaluated. In case such agency is lowest (L-1), next lowest bidder shall be considered as L-1.

- 8.0 While putting the Vendor/ Supplier/Contractor/ Consultant on holiday as per the procedure, the holding company, subsidiary, joint venture, sister concerns, group division of the errant Vendor/Supplier/ Contractor/Consultant shall not be considered for putting on holiday list.
Any bidder, put on holiday, will not be allowed to bid through consortium route also in new tender during the period of holiday.

- 9.0 If an unsuccessful bidder makes any vexatious, frivolous or malicious complaint against the tender process with the intention of delaying or defeating any procurement or causing loss to GAIL or any other bidder, such bidder will be put on holiday for a period of six months, if such complaint is proved to be vexatious, frivolous or malicious, after following the due procedure.

10. APPEAL AGAINST THE DECISION OF THE COMPETENT AUTHORITY:

- (a) The party may file an appeal against the order of the Competent Authority for putting the party on Holiday list. The appeal shall be filed to Appellate Authority. Such an appeal shall be preferred within one month from the of receipt of Holiday order.
- (b) Appellate Authority would consider the appeal and pass appropriate order which shall be communicated to the party as well as the Competent Authority.
- (c) Appeal process may be completed within 45 days of filing of appeal with the Appellate Authority.



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(d) “Appellate Authority” shall mean Committee of Directors consisting of Director (Finance) and Director (BD) for works centers under Director (Projects). For all other cases committee of Directors shall consist of Director (Finance) & Director (Projects).

11. ERRANT BIDDER

In case after price bid opening the lowest evaluated bidder (L1) is not awarded the job for any mistake committed by him in bidding or withdrawal of bid or modification of bid or varying any term in regard thereof leading to re-tendering, GAIL shall forfeit EMD if paid by the bidder and such bidders shall be debarred from participation in retendering of the same job(s)/item(s).

Further, such bidder will be put on Watch List (Yellow Card) for a period of two years after following the due procedure. However, during the period in watch list such vendor will be allowed to participate in all other tenders and to execute other ongoing order/ contract (s) or new contract/ order (s).

In case of subsequent instances of default in other tender(s) during aforesaid watch list period, the action shall be initiated as per provision of sl. no. 2 of para A of Clause no. 5.1 (v) and 5.3 (v).

The Yellow card will be automatically revoked after specified period unless the same is converted into Red Card.

12. In case CBIC (Central Board of Indirect Taxes and Customs)/ any tax authority / any equivalent government agency brings to the notice of GAIL that the Supplier has not remitted the amount towards GST (CGST & SGST/UTGST or IGST) collected from GAIL to the government exchequer, then, that Supplier shall be put under Holiday list of GAIL for period of six months after following the due procedure. This action will be in addition to the right of recovery of financial implication arising on GAIL.



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Annexure-1

**GAIL (India) Limited
PERFORMANCE RATING DATA SHEET
(FOR PROJECTS/ CONSULTANCY JOBS)**

- i) Project/Work Centre :
ii) Order/ Contract No. & date :
iii) Brief description of Items Works/Assignment :
iv) Order/Contract value (Rs.) :
v) Name of Vendor/Supplier/Contractor/ Consultant :
vi) Contracted delivery/ Completion Schedule :
vii) Actual delivery/ Completion date :

Performance Parameter	Delivery/ Completion Performance	Quality Performance	Reliability Performance#	Total
Maximum Marks	40	40	20	100
Marks Allocated				

Note:

Remarks (if any)

PERFORMANCE RATING (**)

Note :

- (#) Vendor/Supplier/Contractor/Consultant who seek repeated financial assistance or deviation beyond contract payment term or seeking direct payment to the sub-vendor/sub-contractor due to financial constraints, then '0' marks should be allotted against Reliability Performance.
(*) Allocation of marks should be as per enclosed instructions
(**) Performance rating shall be classified as under:

Sl. No.	Range (Marks)	Rating
1	60 & below	POOR
2	61-75	FAIR
3	76-90	GOOD
4	More than 90	VERY GOOD

Signature of Authorised Signatory:

Name:

Designation:



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Instructions for allocation of marks

1. Marks are to be allocated as under:

1.1 DELIVERY/ COMPLETION PERFORMANCE 40 Marks

Delivery Period/ Completion Schedule	Delay in Weeks	Marks
a) Upto 3 months	Before CDD	40
	Delay upto 4 weeks	35
	" 8 weeks	30
	" 10 weeks	25
	" 12 weeks	20
	" 16 weeks	15
	More than 16 weeks	0
b) Above 3 months	Before CDD	40
	Delay upto 4 weeks	35
	" 8 weeks	30
	" 10 weeks	25
	" 16 weeks	20
	" 20 weeks	15
	" 24 weeks	10
	More than 24 weeks	0

1.2 QUALITY PERFORMANCE 40 Marks

For Normal Cases : No Defects/ No Deviation/ No failure:		40 marks
i) Rejection/Defects	Marks to be allocated on prorata basis for acceptable quantity as compared to total quantity for normal cases	10 marks
ii) When quality failure endanger system integration and safety of the system	Failure of severe nature - Moderate nature - low severe nature	0 marks 5 marks 10-25 marks
iii) Number of deviations	1. No deviation 2. No. of deviations ≤ 2 3. No. of deviations > 2	5 marks 2 marks 0 marks



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

1.3

RELIABILITY PERFORMANCE

20 Marks

A.	FOR WORKS/CONTRACTS	
i)	Submission of order acceptance, agreement, PBG, Drawings and other documents within time	4 marks
ii)	Mobilization of resources as per Contract and in time	4 marks
iii)	Liquidation of Check-list points	4 marks
iv)	Compliance to statutory and HS&E requirements or Reliability of Estimates/Design/Drawing etc. in case of Consultancy jobs	4 marks
v)	Timely submission of estimates and other documents for Extra, Substituted & AHR items	4 marks
B.	FOR SUPPLIES	
i)	Submission of order acceptance, PBG, Drawings and other documents within time	5 marks
ii)	Attending complaints and requests for after sales service/ warranty repairs and/ or query/ advice (upto the evaluation period).	5 marks
iii)	Response to various correspondence and conformance to standards like ISO	5 marks
iv)	Submission of all required documents including Test Certificates at the time of supply	5 marks



**GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.**

Annexure-2

**GAIL (India) Limited
PERFORMANCE RATING DATA SHEET
(FOR O&M)**

- i) Location :
ii) Order/ Contract No. & date :
iii) Brief description of Items Works/Assignment :
iv) Order/Contract value (Rs.) :
v) Name of Vendor/Supplier/ Contractor/ Consultant :
vi) Contracted delivery/ Completion Schedule :
vii) Actual delivery/ Completion date :

Performance Parameter	Delivery Performance	Quality Performance	Reliability Performance#	Total
Maximum Marks	40	40	20	100
Marks Allocated (*)				

Remarks (if any)

PERFORMANCE RATING (**)

Note :

- (#) Vendor/Supplier/Contractor/Consultant who seek repeated financial assistance or deviation beyond contract payment term or seeking direct payment to the sub-vendor/sub-contractor due to financial constraints, then '0' marks should be allotted against Reliability Performance
(*) Allocation of marks should be as per enclosed instructions
(**) Performance rating shall be classified as under:

Sl. No.	Range (Marks)	Rating
1	60 & below	POOR
2	61-75	FAIR
3	76-90	GOOD
4	More than 90	VERY GOOD

Signature of Authorised Signatory:

Name:

Designation:



GEM BID NO. GEM/2026/B/7786440 FOR PART A- BATTERY CHARGER WITH NI-CD BATTERY BANK ALONG WITH BUYBACK OF EXISTING BATTERY CHARGER AND BATTERY BANK FOR THE MAIN SUBSTATION AT GAIL (INDIA) LIMITED, VAGHODIA.
PART B- SUPPLY, INSTALLATION, TESTING AND COMMISSIONING OF BATTERY BANK FOR 220V DC SYSTEM ON BUYBACK BASIS AT GAIL.

Instructions for allocation of marks (For O&M)

1. Marks are to be allocated as under:

1.1 DELIVERY/ COMPLETION PERFORMANCE 40 Marks

Delivery Period/ Completion Schedule	Delay in Weeks	Marks
a) Upto 3 months	Before CDD	40
	Delay upto 4 weeks	35
	" 8 weeks	30
	" 10 weeks	25
	" 12 weeks	20
	" 16 weeks	15
	More than 16 weeks	0
b) Above 3 months	Before CDD	40
	Delay upto 4 weeks	35
	" 8 weeks	30
	" 10 weeks	25
	" 16 weeks	20
	" 20 weeks	15
	" 24 weeks	10
	More than 24 weeks	0

1.2 QUALITY PERFORMANCE 40 Marks

For Normal Cases : No Defects/ No Deviation/ No failure:		40 marks
i) Rejection/Defects	Marks to be allocated on prorata basis for acceptable quantity as compared to total quantity for normal cases	10 marks
ii) When quality failure endanger system integration and safety of the system	Failure of severe nature - Moderate nature - low severe nature	0 marks 5 marks 10-25 marks
iii) Number of deviations	1. No deviation 2. No. of deviations ≤ 2 3. No. of deviations > 2	5 marks 2 marks 0 marks



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1.3

RELIABILITY PERFORMANCE

20 Marks

A.	FOR WORKS/CONTRACTS	
i)	Submission of order acceptance, agreement, PBG, Drawings and other documents within time	4 marks
ii)	Mobilization of resources as per Contract and in time	4 marks
iii)	Liquidation of Check-list points	4 marks
iv)	Compliance to statutory and HS&E requirements or Reliability of Estimates/Design/Drawing etc. in case of Consultancy jobs	4 marks
v)	Timely submission of estimates and other documents for Extra, Substituted & AHR items	4 marks
B.	FOR SUPPLIES	
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ii)	Attending complaints and requests for after sales service/ warranty repairs and/ or query/ advice (upto the evaluation period).	5 marks
iii)	Response to various correspondence and conformance to standards like ISO	5 marks
iv)	Submission of all required documents including Test Certificates at the time of supply	5 marks



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Appendix 3

PROFORMA FOR CONTRACT AGREEMENT

[To be executed on non-judicial stamp paper of appropriate value]

LOA No. GAIL / _____ Dated ----- Contract Agreement for the work of ----- of GAIL (INDIA) Ltd. made on ----- between (Name and Address)-----, hereinafter called the “CONTRACTOR” (which term shall unless excluded by or repugnant to the subject or context include its successors and permitted assignees) of the one part and GAIL (INDIA) LIMITED hereinafter called the “EMPLOYER” (which term shall, unless excluded by or repugnant to the subject or context include its successors and assignees) of the other part. WHEREAS A. The EMPLOYER being desirous of having provided and executed certain work mentioned, enumerated or referred to in the Tender Documents including Letter Inviting Tender, General Tender Notice, General Conditions of Contract, Special Conditions of Contract, Specifications, Drawings, Plans, Time Schedule of completion of jobs, Schedule of Rates, Agreed Variations, other documents has called for Tender. B. The CONTRACTOR has inspected the SITE and surroundings of WORK specified in the Tender Documents and has satisfied himself by careful examination before submitting his tender as to the nature of the surface, strata, soil, sub-soil and ground, the form and nature of site and local conditions, the quantities, nature and magnitude of the work, the availability of labour and materials necessary for the execution of work, the means of access to SITE, the supply of power and water thereto and the accommodation he may require and has made local and independent enquiries and obtained complete information as to the matters and thing referred to, or implied in the tender documents or having any connection therewith and has considered the nature and extent of all probable and possible situations, delays, hindrances or interferences to or with the execution and completion of the work to be carried out under the CONTRACT, and has examined and	एलओए सं. गेल/ _____ दिनांक गेल (इंडिया) लिमिटेड के... .. कार्य के लिए एक पक्षकार के रूप में..... ... (नाम और पता), इसके बाद से “संविदाकार” कहा जाएगा (जब तक यह शब्द विषय या संदर्भ के प्रतिकूल होने के कारण हटा न दिया जाए, जिसमें इसके उत्तराधिकारी और अनुमेय वारिस शामिल होंगे) तथा दूसरे पक्षकार के रूप में गेल (इंडिया) लिमिटेड, इसके बाद से “नियोक्ता” कहा गया है (जब तक यह शब्द विषय या संदर्भ के प्रतिकूल होने के कारण हटा न दिया जाए, जिसमें इसके उत्तराधिकारी और अनुमेय वारिस शामिल होंगे) के बीच दिनांक को को करार किया गया। जबकि क. नियोक्ता निविदा दस्तावेज में उल्लिखित, शामिल या संदर्भित कुछ कार्यों, जिनमें निविदा आमंत्रण पत्र, सामान्य निविदा सूचना, संविदा की सामान्य शर्तें, संविदा की विशेष शर्तें, विशिष्टियां, ड्राइंग, योजनाएं, कार्यों को पूरा करने की समय अनुसूची, दरों की अनुसूची, सहमत परिवर्तन, अन्य दस्तावेज शामिल हैं, का निष्पादन करने के लिए निविदा आमंत्रित की है। ख. संविदाकार ने निविदा दस्तावेजों में विनिर्दिष्ट कार्यों और स्थल का निरीक्षण किया है और अपनी निविदा प्रस्तुत करने से पहले स्थल की सतह, स्तर, मृदा, उप-मृदा तथा जमीन की प्रकृति, साइट और स्थानीय स्थितियों के स्वरूप और प्रकृति, कार्य की मात्रा, प्रकृति और विशालता, मजदूरों की उपलब्धता और कार्य के निष्पादन के लिए आवश्यक सामग्री, साइट तक पहुंच के साधनों, इस तक बिजली और पानी की आपूर्ति तथा आवश्यकता अनुसार आवास के बारे में सावधानीपूर्वक जांच करते हुए स्वयं को संतुष्ट कर लिया है तथा निविदा दस्तावेजों में संदर्भित या लागू मामलों और चीजों के अनुसार अपेक्षित सूचना प्राप्त कर ली है तथा संविदा के अंतर्गत किए जाने वाले कार्य के निष्पादन और उसे पूरा करने या सभी संभावित
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considered all other matters, conditions and things and probable and possible contingencies, and generally all matters incidental thereto and ancillary thereof affecting the execution and completion of the WORK and which might have influenced him in making his tender.

C. The Tender Documents including the Notice Letter Inviting Tender, General Conditions of Contract, Special Conditions of Contract, Schedule of Rates, General Obligations, SPECIFICATIONS, DRAWINGS, PLANS, Time Schedule for completion of Jobs, Letter of Acceptance of Tender and any statement of agreed variations with its enclosures copies of which are hereto annexed form part of this CONTRACT though separately set out herein and are included in the expression "CONTRACT" wherever herein used.

AND WHEREAS

The EMPLOYER accepted the Tender of the CONTRACTOR for the provision and the execution of the said WORK at the rates stated in the schedule of quantities of the work and finally approved by EMPLOYER (hereinafter called the "Schedule of Rates") upon the terms and subject to the conditions of CONTRACT.

NOW THIS AGREEMENT WITNESSETH AND IT IS HEREBY AGREED AND DECLARED AS FOLLOWS:-

1. In consideration of the payment to be made to the CONTRACTOR for the WORK to be executed by him, the CONTRACTOR hereby covenants with EMPLOYER that the CONTRACTOR shall and will duly provide, execute and complete the said work and shall do and perform all other acts and things in the CONTRACT mentioned or described or which are to be implied there from or may be reasonably necessary for the completion of the said WORK and at the said times and in the manner and subject to the terms and conditions or stipulations mentioned in the contract.

2. In consideration of the due provision execution and completion of the said WORK, EMPLOYER does hereby agree with the CONTRACTOR that the EMPLOYER will pay to the CONTRACTOR the

और संभव स्थितियों, विलंब, बाधाओं या हस्तक्षेप की प्रकृति और सीमा पर विचार कर लिया है, और सभी अन्य मामलों, स्थितियों और चीजों तथा संभावित और संभव आकस्मिकताओं और सामान्य तौर पर इससे जुड़े सभी मामलों और सहायक स्थितियों की जांच की है और विचार किया है, जो कार्य के निष्पादन और उसे पूरा करने को प्रभावित कर सकते हैं और जिसने संविदाकार को अपनी निविदा प्रस्तुत करने के लिए प्रेरित किया है।

ग. निविदा दस्तावेज में निविदा आमंत्रण सूचना, संविदा की सामान्य शर्तें, संविदा की विशेष शर्तें, दरों की अनुसूची, सामान्य बाध्यताएं, विशिष्टियां, ड्राइंग, योजनाएं, कार्य को पूरा करने की समय अनुसूची, निविदा स्वीकार करने का पत्र तथा सहमत परिवर्तन के किसी विवरण के साथ इसके अनुलग्नकों की प्रतियां, जो इसमें अलग से निर्धारित इस संविदा के भाग के रूप में संलग्न हैं, और संविदा में, जहां-कहीं भी इनका प्रयोग किया गया है, को शामिल किया जाता है।

और जबकि

नियोक्ता ने कार्य की मात्रा की अनुसूची में उल्लिखित दरों पर उक्त कार्य के प्रावधान और निष्पादन के लिए संविदाकार की निविदा स्वीकार की है और नियोक्ता द्वारा संविदा की निबंधन एवं शर्तों के अनुसार इसे अंतिम रूप से अनुमोदित किया गया है (इसके बाद से इसे "दरों की अनुसूची" कहा गया है)।

अब इस करार को साक्ष्यांकित किया जाता है और इसमें एतद्वारा निम्नानुसार सहमति और घोषणा की जाती है:

1. संविदाकार द्वारा किए जाने वाले कार्य के भुगतान के लिए, संविदाकार एतद्वारा नियोक्ता को वचन देता है कि संविदाकार उक्त कार्य को विधिवत उपलब्ध कराएगा, निष्पादित और पूरा करेगा तथा संविदा में उल्लिखित या वर्णित अन्य सभी कार्यों और चीजों का निष्पादन करेगा या जो उक्त कार्य को पूरा करने के लिए इससे संबंधित हों या तर्कसंगत रूप से आवश्यक हों तथा उक्त समय में और इस प्रकार से तथा संविदा में उल्लिखित निबंधन एवं शर्तों या उल्लिखित अनुबंधों के अनुरूप हों।
2. उक्त कार्य के विधिवत प्रावधान, निष्पादन और कार्य समापन को देखते हुए, नियोक्ता एतद्वारा संविदाकार से सहमत होता है कि नियोक्ता संविदाकार को उसके द्वारा वास्तव में किए गए और नियोक्ता द्वारा अनुमोदित कार्य के लिए दर अनुसूची के अनुसार



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respective amounts for the WORK actually done by him and approved by the EMPLOYER at the Schedule of Rates and such other sum payable to the CONTRACTOR under provision of CONTRACT, such payment to be made at such time in such manner as provided for in the CONTRACT.

AND

3. In consideration of the due provision, execution and completion of the said WORK the CONTRACTOR does hereby agree to pay such sums as may be due to the EMPLOYER for the services rendered by the EMPLOYER to the CONTRACTOR, such as power supply, water supply and others as set for in the said CONTRACT and such other sums as may become payable to the EMPLOYER towards the controlled items of consumable materials or towards loss, damage to the EMPLOYER'S equipment, materials construction plant and machinery, such payments to be made at such time and in such manner as is provided in the CONTRACT.

It is specifically and distinctly understood and agreed between the EMPLOYER and the CONTRACTOR that the CONTRACTOR shall have no right, title or interest in the SITE made available by the EMPLOYER for execution of the works or in the building, structures or work executed on the said SITE by the CONTRACTOR or in the goods, articles, materials etc., brought on the said SITE (unless the same specifically belongs to the CONTRACTOR) and the CONTRACTOR shall not have or deemed to have any lien whatsoever charge for unpaid bills will not be entitled to assume or retain possession or control of the SITE or structures and the EMPLOYER shall have an absolute and unfettered right to take full possession of SITE and to remove the CONTRACTOR, their servants, agents and materials belonging to the CONTRACTOR and lying on the SITE.

Contractor shall be allowed to enter upon the SITE for execution of the WORK only as a licensee simpliciter and shall not have any claim, right, title or interest in the SITE or the structures erected thereon and the EMPLOYER shall be entitled to terminate such license at any time without assigning any reason. The materials including sand, gravel, stone, loose, earth, rock etc., dug

संबंधित राशि तथा संविदाकार को ऐसी किसी अन्य देय राशि का भुगतान करेगा, और ऐसा भुगतान ऐसे समय में और इस ढंग से किया जाएगा जैसाकि संविदा में प्रावधान किया गया है।

और

- उक्त कार्य के विधिवत प्रावधान, निष्पादन और पूर्णता पर विचार करते हुए, संविदाकार एतद्वारा नियोक्ता द्वारा संविदाकार को दी जाने वाली सेवाओं के लिए नियोक्ता को देय ऐसी राशि का भुगतान करने के लिए सहमत होगा जैसे कि बिजली आपूर्ति, जल आपूर्ति तथा उक्त संविदा में निर्धारित अनुसार अन्य भुगतान तथा ऐसी अन्य राशि जैसे कि उपभोज्य सामग्री की नियंत्रित मदों या नियोक्ता के उपकरण, सामग्री निर्माण संयंत्र और मशीनरी को हुई हानि और क्षति के कारण देय राशि, का भुगतान संविदा में उपलब्ध कराए गए अनुसार समय और तरीके से किया जाएगा।

नियोक्ता और संविदाकार के बीच यह विशेष और स्पष्ट रूप से समझौता और सहमति हुई है कि ठेकेदार को कार्यों के निष्पादन के लिए नियोक्ता द्वारा उपलब्ध कराए गए स्थल या संविदाकार द्वारा उक्त स्थल पर भवन, ढांचों या निष्पादित कार्य या उक्त स्थल पर लाया गया माल, वस्तु, सामग्री आदि (जब तक कि यह विशेष रूप से संविदाकार से संबंधित न हो) पर कोई अधिकार, हकदारी या हित नहीं होगा तथा संविदाकार को भुगतान न किए गए बिलों पर प्रभार लेने, जो कोई भी हो, हेतु कोई ग्रहणाधिकार नहीं होगा या माना जाएगा तथा साइट या संरचनाओं पर कब्जा मांगने या बनाए रखने या नियंत्रण करने तथा नियोक्ता को साइट के पूर्ण कब्जे का कोई अधिकार नहीं होगा तथा नियोक्ता को साइट का पूर्ण अधिकार लेने और संविदाकार, उसके सेवक, एजेंट और साइट पर पड़ी संविदाकार की सामग्री को हटाने का अधिकार होगा।

संविदाकार को साइट पर केवल लाइसेंसधारी के रूप में ही कार्य के निष्पादन के लिए प्रवेश करने की अनुमति दी जाएगी तथा उसे साइट में या उस पर खड़े ढांचों पर कोई दावा, अधिकार हित नहीं होगा तथा नियोक्ता को बिना कोई कारण बताए ऐसे लाइसेंस को रद्द करने का अधिकार होगा। उक्त साइट पर पड़ी रेत, रोड़ी, पत्थर, मिट्टी का ढेर, चट्टान आदि, चाहे खोदी गई हो, या उत्खनित हो, जब तक कि अन्यथा इस संविदा में स्पष्ट रूप से सहमति न दी गई हो, विशेष रूप से नियोक्ता की होगी तथा संविदाकार को इन पर दावा करने का कोई अधिकार नहीं होगा और ऐसे उत्खनन और सामग्रियों को नियोक्ता का मानते हुए इंजीनियर प्रभारी द्वारा समय-समय पर जारी लिखित निर्देश के अनुसार निपटान किया जाएगा।



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up or excavated from the said SITE shall, unless otherwise expressly agreed under this CONTRACT, exclusively belong to the EMPLOYER and the CONTRACTOR shall have no right to claim over the same and such excavation and materials should be disposed off on account of the EMPLOYER according to the instruction in writing issued from time to time by the ENGINEER-IN-CHARGE.

In Witness whereof the parties have executed these presents in the day and the year first above written

इसके गवाह के रूप में पक्षकारों ने ऊपर उल्लिखित तारीख और वर्ष को उपस्थित होकर हस्ताक्षर किए हैं:

नियोक्ता के लिए और उसकी ओर से हस्ताक्षरित और प्रदान किया गया Signed and Delivered for and on behalf of EMPLOYER	संविदाकार(रों) के लिए और उसकी ओर से हस्ताक्षरित और प्रदान किया गया Signed and Delivered for and on behalf of the CONTRACTORS
गेल (इंडिया) लिमिटेड/GAIL (INDIA) LIMITED	(संविदाकार का नाम) (NAME OF THE CONTRACTOR)

.....

दिनांक/Date:
 स्थान/ Place:

.....

दिनांक/Date:
 स्थान/Place:

दो गवाहों की उपस्थिति में /IN PRESENCE OF TWO WITNESSES

1.

 2.

1.

 2.



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SECTION-V

SPECIAL CONDITIONS **OF CONTRACT [SCC]**

&

SCOPE OF WORK **[SOW]**



SPECIAL CONDITIONS OF CONTRACT (SCC) FOR PART-A

1. Conditions:

- 1.1. The Special Conditions of Contract shall be read in conjunction with the General Conditions of Contract, Schedule of Rates, Scope of Work and any other document forming part of contract whether context so requires.
- 1.2. Notwithstanding the sub-division of the documents in to separate sections, every part of each shall be deemed to be supplementary of every other part and shall be read with and into the contract so far as it may be practicable to do so.
- 1.3. Where any portion of the Special Conditions of the Contract (SCC) is repugnant to or at variance with any provision of the General Conditions of the Contract (GCC) then unless a different intention be deemed to override the provisions of the General Conditions of Contract (GCC) only to the extent such repugnance or variation if the SCC as are not possible of being reconciled with the provisions of the GCC. In case of any contradiction the decision of Engineer in-charge will be final and binding to the vendor.

2. Site Information:

- 2.1. Supply and related Work shall be executed at **GAIL(India) Limited, GIDC Industrial Estate, Vaghodia, Gujarat- PIN-391760.**
- 2.2. It is understood that before quoting the rates, the vendor has visited the work sites and has acquainted himself fully with the nature and quantum of work to be done. Ignorance of this, after award of contract will not be considered.
- 2.3. The Contactor will be responsible to complete the entire job/work in all respects, including any other work necessary to complete the job satisfactorily though specifically not covered under Scope of Work & Technical Specifications.

3. Scope of Supply & work

- 3.1. This shall majorly cover the Supply, Installation, Testing and commissioning of Battery Charger with Battery Bank along with Buyback of existing Battery charger and Battery Bank. For Details, refer complete Scope of work and Technical Specifications of the tender.

4. Completion Schedule/Period:

- 4.1. The Vendor shall complete the supply of all materials as per the Schedule of Rates within six (06) months from the date of issuance of LOA/Work Order. The date of Lorry Receipt (LR) shall be considered as the date of delivery.
- 4.2. The total completion period for supply, installation, testing, commissioning, and handing over of the complete Battery Charger System and Battery Bank, along with buyback of the existing battery charger and battery bank, shall be **twelve (12) months** from the date of issuance of LOA/Work Order/GeM Contract.



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- 4.3. The above contractual completion period shall be inclusive of all activities required for successful execution of the contract, including engineering and design, preparation and approval of drawings, procurement of raw materials, manufacturing, inspection and testing, packing, transportation, site erection, installation, testing, commissioning, and buyback of old battery charger and battery bank. All activities necessary for complete and successful handing over of the system to the Owner shall be deemed to be included within this period.
- 4.4. The Vendor shall submit drawings and documents for approval within **fifteen (15) days** from the date of placement of Purchase Order. GAIL shall review and provide approval/comments within **one (01) week** from the date of submission.
- 4.5. GAIL reserves the right to extend the contract for a further period of **six (06) months**, if required, on the same rates, terms and conditions. Such extension shall be at the sole discretion of GAIL and shall be binding on the Vendor. No claim for escalation or revision of rates shall be entertained during the extended period.
- 4.6. The **Price Reduction Schedule (PRS)** shall be applicable if the Vendor fails to complete the work within the stipulated contract period due to delays attributable to the Vendor. However, suitable time extension shall be granted in case of delays caused by GAIL, including but not limited to delay in providing site clearance, delay in approval of drawings/documents, or any other reasons attributable to GAIL.

5. Price reduction schedule (PRS):

- 5.1. If the Vendor fails to deliver the goods or complete the services within the time specified in the contract, the GAIL shall deduct an amount from the Contract Price, without affecting any other rights available under the contract. Deductions shall be as follows:

5.2. For delay in supply part:

If there is any delay in supply part, an amount of 0.5% of the value of the delayed goods (i.e supply part excluding services) as per schedule of rate shall be deducted for each week of delay or part of a week. However, the total deduction will be limited to a maximum of 5% of the total contract value (excluding services).

5.3. For delay in Services part (i.e. Installation, Testing, commissioning etc.):

If there is any delay in completion of services, an amount of 0.5% of the value of the services as per schedule of rate shall be deducted for each week of delay or part thereof. However, the total deduction shall be limited to a maximum of 5% of the total value of respective services.

- 5.4. In no case, total PRS shall exceed 5% (five percent) of Total Contract/ Order Value (Supply +Services).

6. Payment Terms (Supply, Installation & Commissioning):

- 6.1. No advance payment shall be admissible under this contract.
- 6.2. **Eighty percent (80%)** of the total Supply Contract Value (as defined under “Supply of Materials” in the BOQ) shall be released within fifteen (15) days from the date of receipt and acceptance of materials at site.
- 6.3. The balance **Twenty percent (20%)** of the Supply Contract Value and **one hundred percent (100%)** of the Service Contract Value (as defined under “Service Part” in the BOQ and payable based on certified actual measurements) shall be released within fifteen (15) days after successful completion



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of installation, testing, and commissioning of the battery charger and battery bank, along with successful buyback of the existing battery charger and battery bank.

- 6.4. Release of final payment shall be subject to successful commissioning and handing over of the complete system in all respects.
- 6.5. Submission of complete documentation shall be mandatory, including commissioning reports, as-built drawings, operation and maintenance manuals, software/licenses (if applicable), and any other documents as specified in the Contract/Tender.
- 6.6. The system and all submitted documents shall be duly accepted by the EIC/SIC.
- 6.7. General:**
- a. "Supply Contract Value" refers to the total value of items covered under "Supply of Materials" in the BOQ.
- b. "Service Contract Value" refers to the total value of all activities covered under "Service Part" in the BOQ.
- c. All payments shall be made subject to statutory deductions, if any, as per applicable laws.

7. Price / Schedule of Rates (SOR) / Bill of Quantities (BOQ):

- 7.1. The prices quoted by the Bidder shall be firm, fixed, and non-escalable for the entire duration of the Contract, including any extended period. No escalation shall be payable on any account whatsoever, including but not limited to increase in cost of materials, labour, statutory levies, or delays in execution, even if the actual completion extends beyond the stipulated completion period.
- 7.2. The Schedule of Rates (SOR) / Price Bid shall be read in conjunction with all sections of the Tender Document. The Bidder shall quote rates after thorough examination of the entire Tender Document, including Scope of Work, Scope of Supply, Technical Specifications, Drawings, General Conditions of Contract (GCC), Special Conditions of Contract (SCC), and all other relevant provisions.
- 7.3. The quoted rates shall be deemed to be inclusive of all costs required for complete and satisfactory execution of the work, whether explicitly mentioned or not. Any activity, service, or item necessary for completion of the work in all respects, but not specifically indicated in the SOR, shall be considered as included in the quoted rates, and no additional payment shall be admissible on this account.
- 7.4. The rates quoted shall include all costs and liabilities, including but not limited to: labour, supervision, wages, overtime, leave, bonus, statutory compliances, insurance, retrenchment compensation, tools and tackles, consumables, overheads, profits, and all incidental, auxiliary, and enabling works required for execution of the Contract as per the directions of the Engineer-in-Charge.
- 7.5. All items of work shall be executed strictly in accordance with the specifications, drawings, and instructions of the Engineer-in-Charge. The quoted rates shall be deemed to cover all such requirements necessary for proper execution and completion of the work.
- 7.6. The Bidder must quote for all items listed in the Schedule of Rates/Price Bid, unless specifically stated otherwise. Any bid with unquoted or blank items shall be treated as non-responsive and is liable for rejection without further reference to the Bidder.
- 7.7. The Contract shall be deemed to be a composite and lump-sum responsibility for complete supply, services, and execution as defined in the Tender Document.
- 7.8. The Bidder/Contractor shall comply with all applicable Government of India / State Government rules, regulations, circulars, and guidelines, as amended from time to time. The same shall be binding on the Contractor, and no additional claim shall be entertained on this account.



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7.9. Any bid that does not comply with the requirements specified above shall be considered non-responsive and shall be rejected without any correspondence.

8. Warranty / Defect Liability Period (DLP)

8.1. The Contractor shall provide a comprehensive Warranty / Defect Liability Period (DLP) for the complete Battery Charger and Battery Bank system for a period of **twelve (12) months** from the date of successful commissioning at site, as certified by the Engineer-in-Charge (EIC), or **eighteen (18) months** from the date of delivery, whichever is earlier. The Warranty and Defect Liability obligations shall be co-terminus and shall run concurrently.

8.2. The Warranty/DLP shall cover all defects arising out of defective design, materials, manufacturing, or workmanship. During this period, the Contractor shall, at no additional cost to GAIL, repair or replace any defective equipment, components, or parts.

8.3. The Contractor shall bear all associated costs including materials, labour, transportation, tools and tackles, and services required for rectification. The system shall be restored to full operational condition within a reasonable time.

9. Responsibility of Contractor:

9.1. All expenses towards mobilizations at site / demobilization equipment, work forces, materials, dismantling the equipment, clearing the site etc, shall be deemed to be included in the prices quoted and no separate payment on account of such expenses shall be entertained.

9.2. All entries and exists of materials and equipment should be done with proper gate passes and records at security gate of GAIL Vaghodia. The contractor shall ensure cotton dangri, safety shoes, etc and other Personal Protective Equipment to his workmen/technician deployed for the works.

10. Supervision of work:

10.1 The contractor shall have one experienced supervisor. He should be able to manage site activities while executing the job at the site and guide his personnel to carry out the work as and when required as per the instructions of the Engineer-in-charge. To complete the job within the contract period, the vendor shall deploy experienced and competent personnel.

11. Safety, Security and Work Permit Requirements

11.1 On mobilization, the contractor shall ensure that all personnel deployed under the contract undergo preliminary safety training at the Fire & Safety Department of GAIL. No personnel shall be permitted to commence work at site without successfully completing the prescribed safety training. Any accident arising due to lack of such training shall be entirely to the contractor's account. It shall be ensured that the contractor's site in-charge/supervisor possesses adequate experience of working in Oil & Gas industry environments.

11.2 The contractor shall provide all necessary Personal Protective Equipment (PPEs) to its personnel, including but not limited to cotton cloth uniform (with specified colour), safety shoes, safety helmets, and hand gloves. Entry into GAIL premises without proper PPE shall be strictly prohibited.



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- 11.3 All jobs shall be executed strictly under the Work Permit System, and work shall be undertaken only after obtaining due authorization/permit from the Engineer-in-Charge (EIC) / Site Engineer.
- 11.4 The contractor shall comply with all applicable safety rules, procedures, and statutory requirements during execution of the work, as per the instructions of the Plant Safety Officer and Engineer-in-Charge. The contractor shall also intimate the concerned Site Engineer/EIC upon completion of each job.
- 11.5 Any guidelines, regulations, amendments, or penalty provisions issued by HR, Fire & Safety Department, or any central authority of GAIL from time to time during the execution of the contract shall be binding on the contractor.
- 11.6 The contractor shall be solely responsible for the security and safekeeping of its office, equipment, machinery, tools & tackles, and materials at site. GAIL shall not be held responsible for any loss, theft, or damage to contractor's property.
- 11.7 All personnel deployed by the contractor shall strictly adhere to the security and safety rules and regulations of GAIL, as may be in force or amended from time to time.

12. Transportation

- 12.1 The contractor's scope shall include complete transportation of all materials, tools & tackles, equipment, and manpower required for execution of the work.
- 12.2 Transportation from contractor's works/any external location to GAIL site and back, including daily commuting of manpower, shall be arranged by the contractor at its own cost. All transportation-related costs shall be deemed included in the quoted price, and no separate payment shall be made by GAIL.

13. General Tools, Tackles, Safety & Execution Requirements

- 13.1 The contractor shall arrange all general tools and tackles required for execution of the work as and when required for completion of job. The contractor shall provide, operate, and maintain all necessary tools, tackles, and equipment.
- 13.2 The normal working hours shall be eight (08) hours per day, excluding Sundays and holidays, with a half-hour lunch break. Working hours may be changed from time to time depending on site requirements and exigencies of work.
- 13.3 All materials, manpower, consumables, transportation, lodging & boarding, loading & unloading, etc., required for completion of the jobs under the scope of work shall be in the contractor's scope.
- 13.4 The contractor shall deploy at least one experienced supervisor having adequate experience in electrical systems and installation of such DEG sets. The supervisor shall be capable of managing site activities and guiding personnel as per the instructions of the Engineer-in-Charge. No extra payment shall be made for deployment of the supervisor. The contractor shall also deploy skilled and experienced personnel to ensure desired workmanship and quality.



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- 13.5 The contractor shall, at their own expense, arrange all safety provisions and measures as required by the Engineer-in-Charge in connection with execution of the work.
- 13.6 The site safety procedures shall serve as guidelines for contractors and personnel involved in the work at GAIL, outlining safe working practices to be followed during execution.
- 13.7 These safety procedures shall be followed in addition to all applicable statutory requirements and regulations in force. All such regulations shall be strictly observed during execution of the work.
- 13.8 All jobs inside the plant premises shall be carried out strictly under a valid work permit system. Types of permits include Hot Work Permit, Cold Work Permit, Vessel Entry Permit, Excavation Permit, Vehicle Entry Permit, Electrical Lockout Permit, and Work at Height Permit, etc.
- 13.9 All personnel shall strictly adhere to fire and safety regulations within the plant premises to prevent fire hazards and accidents.
- 13.10 The contractor/subcontractor shall provide all personnel with appropriate protective clothing and equipment as per job requirements. All PPEs shall be checked and approved by the Fire & Safety Department of GAIL before use.
- 13.11 The contractor shall report all accidents/incidents (whether minor or major) immediately to the Engineer-in-Charge (EIC).
- 13.12 The contractor shall always maintain proper housekeeping. The principle of “A place for everything and everything in its place” shall be strictly followed, ensuring clean and orderly work areas.
- 13.13 Preparation of approaches and working areas for movement and operation of cranes, including levelling for assembly and erection, shall be the responsibility of the contractor. The contractor shall familiarize themselves with site access, facilities, and availability of local resources.
- 13.14 Procurement and timely supply of all materials and consumables under the contractor’s scope shall be entirely the contractor’s responsibility. Materials issued by the owner shall not be used for temporary works or erection aids. Any misuse shall attract penal recovery from the contractor’s bill.
- 13.15 The contractor shall submit a valid ESIC registration code before commencement of work. For workmen not covered under the ESI Act, the contractor shall arrange suitable workmen compensation insurance policy and submit a copy to GAIL (India) Limited.
- 13.16 The contractor shall submit a valid EPF registration code prior to commencement of work.
- 13.17 The contract price shall be deemed to include all expenses related to the above responsibilities, and no additional claims shall be entertained.

14. Gate Pass / Identity Card

- 14.1 All materials, tools, and equipment of the contractor required for execution of the work shall be brought into and taken out of GAIL premises strictly through **valid gate passes**, with proper entries at the security gate. The contractor shall submit necessary details and written confirmation for the same as per security procedures.
- 14.2 All manpower deployed by the contractor shall possess valid **gate passes and identity cards** in accordance with the formalities and requirements of the GAIL Security Department. Entry into the premises without valid authorization shall not be permitted.
- 14.3 The contractor shall arrange issuance and renewal of **gate passes/identity cards** for its personnel at its own cost, as required by GAIL from time to time for security or administrative reasons.
- 14.4 GAIL shall issue/endorse such gate passes and identity cards only based on the contractor’s request and recommendation, subject to compliance with applicable security procedures.



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15. No Damage to Installation:

15.1 Contractor shall ensure that during the progress of the work no damage shall occur to installations due to any reason, if so happens, contractor shall have to repair/replace the same at their own risk and cost. The decision of EIC shall be final and binding on the contractor in this case.

16. Care Of Works:

16.1 From the commencement to completion of the work, the contractor shall take full responsibility for the care for entire installation including all temporary works and in case of damage, losses or injury which may happen to the work or to a part thereof or to any worker from any cause the cost of such loss or damage will be recovered from the contractor's bill

17. Punitive Fines:

17.1 Punitive fines on contractors are imposed for repetitive violation of safety rules & regulations during execution of jobs. Objective of punitive fines is to work as deterrent for contractors in violation of safety rules & regulation and to improve safety atmosphere in general at all site.

17.2 For first time violation of safety rules & regulation by any contractor, HOD (F&S) will issue a warning letter to contractor with intimation to OIC of work centre and EIC.

17.3 In case of second time violation of safety rules & regulations by same contractor, OIC will call contractor in person and will have a meeting to discuss reason for repetitive violation along with EIC and HOD (F&S). A warning letter will also be issued by EIC to contractor.

17.4 In case of further violation, punitive fines will be imposed on contractor. Amount of fine will be decided as per severity of violation of safety. However, minimum fine would be Rs.10,000/- and in multiple of Rs.10,000/-, thereafter. This will be limited to 5% of contract value, as maximum cumulative penalty.

18 Statutory Compliance Under Labour & Industrial Law

18.1 The contractor (which shall include the contracting firm/company) shall be an independent business establishment having its own PF registration number and shall be solely liable to obtain and comply with all necessary licenses/permissions from concerned authorities, including labour license under the Contract Labour (Regulation & Abolition) Act, 1970.

18.2 The contractor shall discharge all obligations under applicable statutory enactments including:

- a. Employees Provident Fund & Miscellaneous Provisions Act, 1952
- b. ESI Act, 1948
- c. Contract Labour (Regulation & Abolition) Act, 1970
- d. Minimum Wages Act, 1948
- e. Payment of Wages Act, 1936
- f. Workmen Compensation Act, 1923
- g. And other applicable Acts, Rules, and Regulations in force from time to time

18.3 The contractor shall be responsible for all statutory contributions such as PF, ESI, and any other payments to Government authorities in respect of personnel deployed for GAIL work. The contractor shall deposit contributions within prescribed due dates, obtain PF registration from the concerned Regional Provident Commissioner, submit proof of deposit of both employee's and employer's contributions, and bear all applicable administrative/inspection charges.



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- 18.4 The contractor shall regularly submit all relevant records/documents to the GAIL representative for verification.
- 18.5 The contractor shall ensure timely payment of wages and all dues to personnel, latest by the 7th of the following month. The contractor shall be solely responsible for all claims, disputes, or liabilities arising out of employment of personnel and shall indemnify GAIL against the same.
- 18.6 The contractor shall indemnify GAIL against all losses or damages caused due to acts or omissions of the personnel deployed by the contractor.
- 18.7 The contractor shall ensure regular and effective supervision of all deployed personnel.
- 18.8 The contractor shall ensure that no labour below the age of 18 years and above the age of 60 years is engaged for the work.
- 18.9 The contractor shall deploy a competent supervisor to monitor and supervise the work, ensuring proper execution and compliance with contractual obligations, and to provide necessary instructions to the workforce.

19 Site Cleaning

- 19.1 The contractor shall clean and maintain the work site from time to time to the satisfaction of the Engineer-in-Charge, ensuring easy access to the work area and safe movement and working conditions.
- 19.2 In case the work involves dismantling of any existing structure, either fully or partially, the contractor shall carry out dismantling strictly up to the specified lines or limits as directed by the Engineer-in-Charge. Any damage caused beyond the specified limits shall be repaired and restored to its original condition by the contractor at their own cost and risk, to the satisfaction of the Engineer-in-Charge, whose decision shall be final and binding.
- 19.3 The contractor shall remain the custodian of all dismantled materials until the same are taken over by the Engineer-in-Charge.
- 19.4 The contractor shall dispose of all unserviceable materials, debris, etc., within the site premises at locations identified and approved by the Engineer-in-Charge.
- 19.5 The contractor shall segregate, clear, and properly stack all serviceable materials obtained from dismantling at locations as directed by the Engineer-in-Charge.
- 19.6 No extra payment shall be made on account of site cleaning, dismantling, handling, or disposal activities, and the same shall be deemed to be included in the quoted price.

20 Right To Get Services Carried Out Through Other Agencies

- 20.1 In case the contractor fails to execute the work in accordance with the scope defined in the tender documents, GAIL reserves the right to get the work carried out through other agencies, at its discretion and risk & cost of the contractor, without prejudice to other contractual rights



SCOPE OF WORK (SOW) FOR PART – A

Supply, Installation, Testing and commissioning of Battery Charger with Ni-Cd Battery Bank along with Buyback of existing Battery charger and Battery Bank.

1. Scope of Supply & Work:

1.1 The scope shall include complete design, engineering, manufacturing, testing, supply, installation, testing, and commissioning of 01 set of 110V DC, 100A, DSP-based, 12-pulse SCR controlled, 2×100% dual redundant Float cum Boost Charger system, along with all associated components such as input transformer, rectifier assembly, control and monitoring units, protection devices, cooling arrangement, and internal wiring.

1.2 The scope shall include the design, engineering, manufacturing, testing, supply, installation, testing, and commissioning of 01 set of Nickel-Cadmium (Ni-Cd) battery bank, suitably designed and sized to cater a continuous DC load of 20 Amperes for a minimum backup duration of 12 hours. The scope shall also include supply of all associated accessories such as inter-cell connectors, terminal links, supporting structures/racks, hardware, and all necessary interconnections. The vendor shall carry out complete installation of the battery bank at site, ensuring proper alignment, termination, and integration with the battery charger and existing system.

1.3 Bidder's scope shall include supply of 01 No. Battery Junction Box (BJB) suitable for the offered battery bank. The BJB shall be installed inside the battery room and shall be equipped with an appropriately rated DC MCCB for battery isolation and protection.

The enclosure shall be suitable for indoor installation and shall have a minimum protection class of IP42.

The scope shall further include dismantling of the existing battery bank, shifting/removal as required, and installation of the new battery bank at the same location. All required site activities including testing, commissioning, and successful operation of the battery bank shall be in the vendor's scope.

1.4 Buy-Back Scope of Existing Battery Charger & Battery Bank

The vendor's scope shall include comprehensive buy-back of the existing battery charger and battery bank on an "as-is-where-is" and "as and when basis", in line with site conditions and instructions of the Engineer-in-Charge.

The details of the existing equipment are as follows:

- i. Battery Charger: 01 No., Dual Float Cum Boost Charger, 110V, 140A, Model No. dFCBC+SWC, Make: Dubas, Year of Manufacture: 2012
- ii. Battery Bank: Lead Acid, Plante type, Make: Exide, Model: P 400P HDP, Capacity: 400 Ah, 55 Cells (YKP-33), ECV: 1.85 V, Float Voltage: 2.25 ± 0.02 V, Year of Manufacture: 2015

The buy-back scope shall include, but not be limited to, the following activities:

- a. Taking over the existing battery charger and battery bank from site in their present condition, without any liability on the purchaser.
- b. Dismantling of the existing battery bank and battery charger, including all associated accessories, cabling, and connections as required.



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- c. Handling, loading, transportation, and complete removal of the equipment from the purchaser's premises.
- d. Deployment of all required manpower, tools, tackles, equipment, and consumables for execution of the job in all respects.
- e. Ensuring that all activities are carried out safely, without causing damage to adjacent equipment, structures, or facilities.
- f. Assessment and safe disposal/recycling of the battery bank in accordance with applicable statutory provisions and environmental regulations.
- g. Strict compliance with State/Central Pollution Control Board regulations and applicable government guidelines, particularly for handling and disposal of lead-acid batteries.
- h. The old battery bank shall be handed over only to an authorized recycler. In case the vendor itself is an authorized recycler or engages a third-party authorized recycler, valid supporting documents/authorization certificates shall be submitted to the purchaser.
- i. The vendor shall ensure timely removal of all buy-back items as per instructions of the Engineer-in-Charge.
- j. The vendor may inspect the existing equipment and site conditions prior to bid submission, and no claims shall be entertained subsequently on this account.

The entire buy-back activity shall be completed in a safe, environmentally compliant, and workmanlike manner, ensuring proper documentation and statutory compliance in all respects.

1.5 Exclusions:

The following activities shall be excluded from the vendor's scope and shall be carried out by the GAIL:

2. It is to be noted that the **battery charger output shall be connected to the existing DCDB**. The supply of a new DCDB is **not envisaged under the vendor's scope**, and the **existing DCDB shall be utilized**.
3. Dismantling and removal of the existing battery charger.
4. Disconnection of existing power cables.
5. Any civil works and structural/fabrication modifications required in the existing base frame or foundation for erection of the new battery charger.
6. Shifting of the new battery charger from store to installation location and its placement at site.
7. Termination, lugging, glanding, and connection of all power cables including:
 - a. Battery charger input cables.
 - b. Charger to battery bank cables through Battery junction Box
 - c. DC output cables to DCDB
8. Reconnection/termination of existing power cables inside the battery charger.
9. However, all activities as mentioned above shall be carried out **under the supervision of the new battery charger vendor**, wherever applicable

2. Technical Specifications:

2.1 Battery charger:

a. General:



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The system is intended to provide 110 V DC control power supply for the 66 kV/6.6 kV substation switchgear. The system shall comprise 2 × 100% dual-redundant Float-cum-Boost Chargers. Each charger may be housed in an individual cabinet, or both chargers may be housed in a common cabinet with two separate compartments, as per the OEM's standard design.

The system shall include a input isolation transformer and a 12-pulse SCR-based rectifier with a DSP-based digital charger, suitable for reliable and satisfactory operation in both Float and Boost modes.

The equipment offered shall be of proven design, highly reliable, and based on the latest upgraded DSP technology for control, monitoring, regulation, and feedback functions.

b. Design & Construction

1. The battery charger cubicle shall be of robust, industrial-grade construction, fabricated from CRCA steel sheets of minimum 2.0 mm thickness for load-bearing members and 1.6 mm for other sections, suitably reinforced with structural members to ensure adequate mechanical strength and rigidity. The panel shall be indoor, floor-mounted, free-standing type, designed for continuous operation under ambient temperature up to 50°C.
2. The charger shall be of forced air-cooled type, equipped with 2 × 100% redundant cooling fans to ensure reliable operation. The enclosure shall conform to a minimum degree of protection of IP-42 as per relevant standards. Adequate ventilation shall be provided through side and top louvers, fitted with wire mesh for effective vermin-proofing, preventing ingress of dust, rodents, and reptiles. The panel shall be finished with epoxy powder coating in shade RAL-7032 / RAL-7035.
3. The internal layout, mounting arrangement, and interconnections shall be designed to ensure that all components, control boards, wiring, and accessories are readily accessible from the front for ease of inspection, maintenance, and replacement. The side covers shall be provided, but it should be specifically seen that there is no need for opening of side covers for replacing components, testing etc.
4. Sufficient connectors and terminals of adequate rating shall be provided to facilitate easy testing, maintenance, and replacement of major components. The panel shall be provided with an internal illumination lamp with ON/OFF switch. All meters, indications, and control switches shall be ergonomically placed, preferably at eye level on the front panel. All fuses, switches, and control devices shall be accessible from the front upon opening of the panel door.
5. The incoming 3-phase, 4-wire AC supply terminals shall be in a segregated and adequately shrouded compartment to ensure operator safety during maintenance, even when the AC supply is energized.
6. All printed circuit boards (PCBs) shall be provided with conformal coating of G3 class transparent epoxy for environmental protection and tropicalization and shall be suitably located away from heat-generating components. All electronic control and monitoring modules shall be of modular design using SMD (Surface Mount Device) technology, ensuring high reliability and ease of replacement.
7. Each PCB shall be provided with dedicated monitoring/test points and shall be firmly secured to prevent loosening due to vibration or prolonged operation. Proper fool-proofing



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arrangement shall be ensured to prevent incorrect insertion/replacement of PCBs. Failure of individual PCBs shall be indicated through visual alarm indications on the front panel.

8. The overall design shall ensure that the maximum noise level does not exceed 70 dBA at 01 meter under rated load conditions with all cooling fans in operation.

c. Operation Philosophy of Battery Charger: -

1. The battery charger system shall comprise **2 × 100% Float Cum Boost Chargers (FCBC)** operating in a redundant configuration. Each charger shall be capable of independently supplying the full DC load and meeting the battery charging requirements under both float and boost modes.
2. Under **normal operating conditions**, both chargers shall operate in **parallel in FLOAT mode**, sharing the DC load and simultaneously providing the charging current to the battery bank. The load sharing between the chargers shall be automatic and balanced.
3. In the event of failure of one charger (say FCBC-1), the other charger (FCBC-2) shall automatically take over the entire DC load as well as battery charging requirements without any interruption to the load. The system shall be governed by a **DSP-based control and interlocking scheme**, which shall continuously monitor the status of both chargers and ensure automatic selection, synchronization, and operation as per system requirements.
4. Both FCBC-1 and FCBC-2 shall be connected to the battery bank and DC load through suitably rated **power contactors**. During normal operation, both chargers shall remain in FLOAT mode, supplying load current as well as maintaining the battery in charged condition.
5. Whenever **boost charging of the battery bank** is required, one of the chargers shall automatically switch to **BOOST mode**, while the other charger continues to operate in FLOAT mode supplying the DC load. During this condition, the respective power contactor arrangement shall ensure **electrical separation of battery and load circuits**, such that the boost voltage is applied only to the battery bank and does not get reflected on the DC load.
6. The changeover between float and boost operation shall be **smooth and without any interruption to the DC load**. The system design shall ensure that under no circumstances shall the **boost voltage appear at the load terminals**.
7. During boost operation, the charger operating in boost mode shall remain isolated from the load, while the healthy float charger shall continue to feed the load uninterrupted.
8. If the float charger fails during boost operation, the charger operating in boost mode shall **automatically revert to FLOAT mode** and take over the DC load as well as battery charging. During this transition, the DC load shall be momentarily supported through a **diode-based path** connected to the battery to ensure uninterrupted supply.
9. Further, the system shall be designed such that if the battery charging current exceeds the preset limit, the charger shall automatically switch to **BOOST mode**, provided the other charger is available in FLOAT mode to support the load.
10. The overall system shall ensure **continuous, reliable, and uninterrupted DC supply**, with automatic mode selection, interlocking, and protection to meet all operational requirements under normal and abnormal conditions.



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d. Design Requirement: -

1. The battery charger shall be suitable for charging a Nickel-Cadmium (Ni-Cd) battery bank comprising 1.2 V cells, designed and sized to cater a continuous DC load of 20 Amperes with a backup duration of 12 hours. The vendor shall submit detailed battery sizing calculations along with the offer for review and approval by the Purchaser/Owner.
2. Charger Voltage: Nominal 110 V DC
3. Float Voltage: - to be specified by vendor
4. Boost Voltage: -to be specified by vendor
5. The DC load voltage under operating conditions shall be maintained within the range of 99 V to 121 V DC.
6. The charger shall be designed to operate from an input supply of **415 V $\pm$ 15%, 3-phase, 4-wire, 50 Hz AC**, with permissible frequency variation of $\pm$ 3%, and voltage and frequency variations may occur simultaneously. The charger shall be complete with **dedicated transformer, rectifier, control circuitry, and filters**. The float section shall provide a **stabilized DC output with regulation within $\pm$ 1% accuracy**. Provision shall be available to set and adjust the output voltage through an **LCD display with keypad interface**, and once set, the output voltage shall remain stable within $\pm$ 1% of the set value. The **ripple content** of the output voltage shall not exceed **$\pm$ 2% with battery connected**.
7. Incoming AC supply shall be converted to DC through 12-Pulse SCR Based controlled rectifiers. The rectifiers shall operate according to the constant voltage current limiting principle and shall incorporate a “Soft Start” feature to gradually accept load on initially energizing.
8. The DC rectifiers shall sense the battery charging current and adjust the DC bus voltage to maintain the charging current to preset level. A separate current limit circuit shall be provided for adjustment of battery current. The rectifiers shall be protected against reverse battery connection at DC link voltage bus. Subsequent to a discharge cycle when battery is connected to rectifier, the battery current shall be monitored, controlled and limited to set value automatically irrespective of the Load current.
9. In Float Mode Charger
Charger shall be fully automatic, and no manual control shall be needed during operation on Auto Mode. However, provision for manual operation through LCD Display keypad for increasing or decreasing D.C. output required during manual mode selection. An Auto/Manual selection through LCD Display unit on front panel with necessary electronic circuit shall be provided. The electronic control module of Auto-control of Float Section



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shall be provided with the facility to adjust DC output voltage. The set DC output voltage should not change, beyond $\pm 1\%$ of set value irrespective of the changes in the input voltage.

10. In Boost Mode Charger

The charger shall be capable of maintaining the required terminal voltage when connected to designed and sized battery Bank. During boost charging, the charger shall be electrically isolated from the load, and the load shall be fed by the other healthy charger operating in float mode. The system shall ensure that boost voltage is not transferred to the load under any condition. During changeover, the load shall be momentarily supported through a battery tapping arrangement (approximately 80% tapping) to ensure uninterrupted supply. Adequate overload protection shall be provided to trip the boost section in case of overload conditions.

11. LED MIMIC Indications

The battery charger shall be provided with a comprehensive LED mimic diagram integrated with the LCD display unit to clearly represent system status, operating conditions, and fault indications. The mimic shall indicate power flow from AC input to DC output, battery, and load.

The mimic representation shall be user-friendly and shall depict the complete operational scheme of the charger system.

The following minimum LED indications shall be provided on the front panel/LCD mimic display:

The following minimum LED indications shall be provided:

- a. AC Mains ON / Healthy /OFF
- b. AC Mains Fail/Tripped
- c. Charger ON / Healthy
- d. Charger Failure / Trip
- e. Float Mode Operation
- f. Boost Mode Operation
- g. Battery Charging / Discharging Status
- h. Battery MCCB ON/OFF/Trip
- i. DC Output ON

All indications shall be **high-intensity LED type**, with standard color coding (Green/Red/Amber etc) for clear differentiation and visibility.

12. Metering (on LCD display)

The charger shall provide digital metering on the LCD display unit for the following parameters:

1. Input Voltage
2. Input Current
3. Input Frequency
4. Output Voltage
5. Load Current



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6. Battery Charging / Discharging Current

13. LCD Display Unit

The charger shall be equipped with a **DSP-based LCD display unit** with keypad interface having the following features:

- LCD screen with **minimum 2 lines × 16 characters (English)**
- Minimum **06-key keypad** for navigation, setting, and operation
- User-friendly menu-driven interface

Audio-Visual Alarms on LCD(Minimum):

- AC Mains Low
- AC Mains High
- Charger Failure
- DC Low Voltage
- DC High Voltage
- DC Earth Fault
- Battery on Float Mode
- Battery on Boost Mode
- Charger Over Temperature

14. Protections

The battery charger system shall be provided with the following minimum protections:

- Input MCCB
- Output MCCB
- AC Input Single Phasing Protection
- AC Input Phase sequence reverse Protection
- AC Input Under/Over Voltage protection
- AC Input Surge Protection
- Battery MCCB/Fuse protection
- Current limiting protection
- Soft start facility
- Short circuit protection
- Battery Reverse polarity protection
- Overload Protection
- Overshoot & Undershoot Protection
- Output under voltage and Over Voltage protection
- DC ground (earth) fault protection
- Control circuit & voltmeter fuses Protections
- Rectifier protection fuse Protection
- Filter capacitor fuse Protection

15. Communication & Connectivity

The charger shall be provided with **RS-485 communication port** supporting **Modbus protocol** for remote monitoring and integration with **DCS/SCADA system**. The system shall



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enable transmission of all relevant parameters, alarms, metering data, and status indications to the control system.

16. Mandatory Design Features

The battery charger shall incorporate the following mandatory features:

- DSP-based digital control system
- LCD display with keypad interface
- Comprehensive LED mimic diagram
- Multiple modes of operation:
 - Auto Float / Boost
 - Manual Float / Boost through LCD
 - Timer-based Boost operation
- Independent current limiting for battery and load
- Event logging with **date and time stamping (minimum 100 events)** stored in non-volatile memory
- Separate current limit control for battery charging and load
- Soft start features to limit inrush current during startup
- Short circuit and overload protection
- Dedicated battery path current limiting to maintain controlled charging current independent of load

- The charger shall be fully equipped with advanced monitoring, protection, communication, and control features to ensure reliable, safe, and maintenance-friendly operation under all operating conditions

Annexure-I

Guarantee Technical Particulars of Battery Charger(To be filled by Bidder)				
Sr. No.	Description	Requirement	Vendor's Submission	Remarks
1. GENERAL				
1.1	Battery charger type & rating	110V DC, 100A FCBC, 2×100% redundant, suitable for Ni-cd battery Bank & DC Load		
1.2	Control Type	DSP-based digital control		
1.3	Rectifier Type	12-Pulse SCR controlled		
1.4	Duty	Continuous operation		
1.5	Charger Make & Model	Vendor to specify		
1.6	Operating Temperature	0-50°C		
2. INPUT PARAMETERS				
2.1	AC Input Voltage	415V ±10%, 3 Phase, 4 Wire		
2.2	Frequency	50 Hz ±5%		
2.3	Power Factor	0.8 Lag		
3. OUTPUT PARAMETERS				
3.1	Nominal Voltage	110 V DC		
3.2	Output Current	100 A		
3.3	Float Voltage	To be specified by Vendor		
3.4	Boost Voltage	To be specified by Vendor		



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3.5	Voltage Regulation	$\pm 1\%$		
3.6	Ripple Content	$\leq 2\%$		
4. BATTERY DETAILS				
4.1	Battery Type	Ni-Cd, 1.2V cells		
4.2	Load Requirement	20A DC continuous		
4.3	Battery Back Up time required	12 Hours		
4.4	Battery Size	To be submitted along with calculation sheet. To be mentioned here: No of cells, AH rating & Type		
4.5	Battery Make & Model	Vendor to specify		
5. DESIGN & CONSTRUCTION				
5.1	Enclosure	Frame Structure – 2mm, All Panels/Covers – 1.6mm, Cable Gland Plate – 3mm		
5.2	Mounting	Indoor, floor mounted		
5.3	Cooling	Forced air, 2×100% fans		
5.4	Input Isolation Transformer	Required		
5.5	Protection Degree	IP-42		
5.6	Panel Paint	RAL 7032/7035		
5.7	Average winding temp. Rise Over ambient	90 Deg. C (above ambient)		
5.8	Insulation class:	F		
5.9	Insulation breaks down Voltage	2KV for 1 Min.		
5.10	Cables	650V/1100V grade PVC insulated, copper, Multistrand. Ferrules will be provided at both ends of each wire for identification a) For Electronics Circuit – 0.5Sqmm. b) For Control Circuit – 1.5Sqmm. c) For Power Circuit – As per system current requirement		
5.11	Cable Entry	Bottom entry with removable gland plate		
5.12	Earthing	Separate earthing bus with external connection provision		
6. OPERATION PHILOSOPHY				
6.1	Redundancy	2×100% chargers		
6.2	Load Sharing	Parallel operation		
6.3	Auto Changeover	Without interruption		
6.4	Float/Boost Operation	Automatic		
6.5	No Boost Voltage to Load	Mandatory		
7. CONTROL & DISPLAY				
7.1	LCD Display	Minimum 2×16 characters		
7.2	Keypad	Minimum 06 keys		
7.3	LED Mimic	Required		
7.4	Event Logging	Minimum 100 events		



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7.5	Display Parameters	AC Input Voltage, Charger DC output Voltage , Charger DC output Current, Battery Voltage, Battery Discharge / Charge Current, Load Voltage, Load Current		
8. METERING				
8.1	Analogue Meters	Analog Meters of size 96x96 Sq. mm. having 90° deflection & Cl.1 accuracy. Input Voltage Meter, Input Current Meter, Output Voltage Meter, Load Current Meter, Battery Current Meter, DC Earth Leakage milliammeter		
9. INDICATIONS & ALARMS				
9.1	Indications	a. AC Mains ON /OFF b. AC Mains Fail/Tripped c. Charger ON / Healthy d. Charger Failure / Trip e. Float Mode Operation f. Boost Mode Operation g. Battery MCCB ON/OFF/Trip h. DC Output ON		
9.2	Alarms	AC Mains Failure AC Mains Low Voltage AC Mains High Voltage AC MCCB Trip Charger Failure Rectifier Fuse Blown Filter Fuse Blown Charger Over Temperature Cooling Fan Failure DC MCCB Trip DC Low Voltage DC High Voltage Battery Under Voltage Battery Earth Fault DC Earth Fault Common Alarm (with potential-free contacts		
10. PROTECTIONS				



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10.10	Protections	The battery charger system shall be provided with the following minimum protections: a. Input MCCB b. Output MCCB c. AC Input Single Phasing Protection d. AC Input Phase sequence reverse Protection e. AC Input Under/Over Voltage protection f. AC Input Surge Protection g. Battery MCCB/Fuse protection h. Current limiting protection i. Soft start facility j. Short circuit protection k. Battery Reverse polarity protection l. Overload Protection m. Overshoot & Undershoot Protection n. Output under voltage and Over Voltage protection o. DC ground (earth) fault protection p. Control circuit & voltmeter fuses Protections q. Rectifier protection fuse Protection r. Filter capacitor fuse Protection		
11. COMMUNICATION				
11.10	Communication Port	RS-485		
11.20	Protocol	Modbus RS 485 interface port for monitoring charger remotely.		
11.30	SCADA/DCS Integration	RS 485 MODBUS slave protocol for SCADA interface.		
12. BATTERY MONITORING SYSTEM				
12.10	Online Monitoring	Required		
12.20	Capacity Test	Required		
12.30	Backup Time Indication	Required		
12.40	Temperature Compensation	Required		
12.50	Life Estimation	Required		

2.2 Battery Bank Specification

1. The battery bank shall consist of stationary industrial grade Nickel-Cadmium (Ni-Cd) cells of pocket plate construction, suitable for float duty operation with continuous DC supply and capable of delivering the required load under power failure conditions. The bidder shall clearly indicate the battery type, make, model, and capacity in the data sheet.
2. The battery bank shall be designed and sized to supply a continuous load of 20 A for a minimum backup duration of 12 hours. Detailed design basis as per IEEE 1115-2014 and battery sizing calculations shall be submitted for Owner's review and approval.
3. The number of cells shall be selected such that the battery output voltage at the end of discharge shall not fall below 90% of the rated system voltage, and individual cell voltage shall not fall below the manufacturer's recommended minimum value. In case of undervoltage, the battery shall be automatically disconnected from the load, and an alarm shall be initiated.



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4. Each cell shall have a nominal voltage of 1.2 V and shall be housed in a robust, alkali-resistant, shock-proof container, preferably transparent, with closed top construction.
5. The battery shall be supplied in dry, uncharged condition, along with unused electrolyte in sealed containers, including at least 10% extra quantity.
6. The cells shall be complete with all internal components such as plates, separators, buffers, lids, plugs, and necessary hardware.
7. The battery bank shall be supplied complete with all required accessories and fittings, including but not limited to battery stands, inter-cell and inter-row connectors, end take-offs, cell and stand insulators, terminal hardware, and identification arrangements.
8. Cell Connectors shall be of nickel-plated copper or fully insulated copper, adequately sized for current carrying capacity and mechanical strength.
9. The battery stand shall be fabricated from mild steel with anti-corrosive epoxy coating (powder coated/PVC coated) and designed to ensure easy access for inspection, maintenance, electrolyte topping, and replacement. Cells shall be arranged preferably without stacking; however, where unavoidable due to space constraints, the arrangement shall ensure adequate accessibility. All cells shall be sequentially numbered from the positive terminal.
10. The battery terminals shall be designed to withstand short circuit currents and specified discharge currents without overheating or damage, and the battery shall be capable of withstanding mechanical stresses during transportation and handling.
11. The float charging voltage shall be in the range of 1.40–1.42 V per cell, and boost charging voltage shall be in the range of 1.47–1.70 V per cell.
12. Each cell shall be permanently marked with manufacturer's name/model, rated capacity (Ah), nominal voltage, month and year of manufacture, polarity, and electrolyte level markings (minimum and maximum).
13. The scope shall include supply of Spare inter-cell connectors, vent plugs, nuts/bolts/washers (minimum 5% of installed quantity), and at least two sets of insulated tools/spanners suitable for maintenance.
14. The battery bank layout shall be designed considering the existing battery room dimensions (7800 × 3700 × 4500 mm approx.), ensuring proper accommodation, ventilation, safety clearances, and ease of maintenance. The vendor is advised to visit the site and verify the layout to ensure proper installation within the available space. No claims shall be entertained later on this account.
15. A battery capacity test at C5 rating shall be carried out after initial charging (first charge) of the battery bank at site, in accordance with relevant standards and manufacturer recommendations, to demonstrate the guaranteed performance.

16. Codes and Standards

The design, manufacture, and testing of the battery bank shall comply with the latest applicable standards, including IS: 10918 (Vented Nickel-Cadmium Batteries) and relevant Indian Standards. Equipment conforming to equivalent IEC standards shall also be acceptable. The equipment shall comply with applicable Indian Electricity Rules, statutory regulations, and safety requirements. In case of any conflict, the most stringent requirement shall prevail, and the decision of GAIL shall be final and binding.



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17. General Requirements

18. The offered equipment shall be brand new, of proven design, and based on established technology, with no prototype equipment permitted. The vendor shall ensure availability of spares and maintenance support for a minimum of 10 years from the date of supply. A minimum of one-year prior notice shall be provided before phasing out any product or spare to enable procurement planning.

3. Documentation Requirements:

3.1 Documents to be Submitted along with Bid

19. The bidder shall submit the following documents as part of the technical bid:
20. Duly filled Guaranteed Technical Particulars (GTP) of the battery charger.
21. Technical datasheets of battery charger and Ni-Cd battery bank.
22. Battery sizing calculation.
23. Preliminary General Arrangement (GA) drawings of battery charger and battery bank (including layout within existing battery room).
24. Details of authorized recycler for buy-back items or an undertaking for compliance, along with confirmation of adherence to applicable Pollution Control Board regulations.

3.2 Documents to be Submitted after Award (for Approval/Review)

The successful vendor shall submit the following documents for review and approval:

- Detailed GA drawings of battery charger and battery bank.
- Final technical datasheets of battery charger and Ni-Cd battery bank.
- Quality Assurance Plan (QAP).
- Power and control schematics of battery charger.
- Battery bank arrangement/layout drawings.
- Bill of Materials (BOM).

3.3 Final Documents (to be submitted after Completion/Commissioning)

The vendor shall submit the following documents after successful installation and commissioning:

- Installation and commissioning report, including test results (battery discharge/C5 test).
- As-built drawings (final GA, schematics, layouts).
- Operation and Maintenance (O&M) manuals.
- Warranty/Guarantee certificates for supplied equipment.

4. Factory Inspection & Quality Assurance Requirements

20.2 The Vendor shall submit a detailed **Quality Assurance Plan (QAP)** covering inspection and testing requirements for manufacturing, assembly, and Factory Acceptance Testing (FAT) of the Battery Charger system.

20.3 The QAP shall define inspection procedures, applicable standards, acceptance criteria, and formats for recording test results. The same shall be submitted to GAIL for review and approval within fifteen (15) days from the date of issuance of the Purchase Order. All inspections and tests shall be carried out strictly in accordance with the approved QAP, relevant specifications, and applicable codes and standards.

20.4 The Vendor shall provide a minimum of fifteen (15) days prior notice to GAIL for conducting inspections



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and tests to enable witnessing by GAIL's representative. The Vendor shall arrange all necessary inspection facilities, instruments, and manpower at their works. Inspection activities and readiness shall be ensured without affecting the delivery schedule. Inspection at Vendor's works shall be carried out by GAIL's representative, and the boarding and lodging of GAIL's representative shall be borne by GAIL.

20.5 The complete Battery Charger system shall be subjected to **Factory Acceptance Testing (FAT)** at the Vendor's works. FAT shall include full load trials, functional checks, and all routine and performance tests as specified in the approved QAP and technical specifications. FAT shall be witnessed by GAIL's representative. Dispatch clearance shall be granted only after successful completion of FAT and submission of all relevant inspection reports, test certificates, and documentation.

20.6 The Vendor shall note that any inspection, approval, waiver, or exemption by GAIL shall not relieve the Vendor of their responsibility to supply, install, and commission a system that fully complies with the contractual requirements, specifications, and scope of work. The Vendor shall remain fully responsible for the performance, reliability, and completeness of the system.

20.7 The Vendor shall further remain responsible for satisfactory operation of the system up to completion of the warranty period. During this period, the Vendor shall, at no additional cost to GAIL, carry out all necessary corrections, modifications, replacements, or upgrades required to meet contractual requirements. This shall include supply, installation, and implementation of any additional or replacement hardware and software necessary to achieve the specified functionality, performance, and reliability.

20.8 Tentative QAP shall be as follows:

S r N o	Compon ent & Operatio n	CHARACTERISTICS/che cks	Type of check	QUAN TUM OF CHEC K	Ref Documents	Acceptance Norms	Scope Inspection of	
							Manufa cturer	GAIL
1	Overall	Dimensions & Sheet Thickness	Physical	100%	Specifications and approved drawings	Specifications and approved drawings	P	W
		General Arrangement & BOM	Visual	100%				
		Aesthetic look, Straightness, Door Alignment, Labels etc.	Visual	100%				
		Provision of Lifting Arrangement	Visual	100%				
		Proper Earthing	Visual	100%				
		Gasketing	Visual	100%				
		Gland Plate Arrangement	Visual	100%				
		Foundation Arrangement	Visual	100%				
		Wiring & Ferrules	Visual	random				
		Paint Shade & Finish	Visual	Sample				
2	Battery charger Acceptance Test	No Load Test	Electric al	100%	As per specification and approved drawings and applicable	As per specification and approved drawings and	P	W
		Full Load Test	Electric al	100%				
		Insulation Resistance	Electric al	100%				



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		High Voltage Test	Electric al	100%	IEC/IS Standards	applicable IEC/IS Standards		
		Ripple Measurement at Full load	Electric al	100%				
		Logic Simulation & general Operation Test	Electric al	100%				
		Control Circuit & Annunciation Test	Electric al	100%				
		Voltage/Current Stability test(Regulation test at variation of specified incoming supply voltage)	Electric al	100%				
		Efficiency Test at full load at AC Normal Voltage	Electric al	100%				
		Current Limiter Test	Electric al	100%				
		Heat Run test- 08 Hours in PR mode	Electric al	100%				



SPECIAL CONDITIONS OF CONTRACT (SCC) FOR PART-B

1. Conditions:

- a. The special conditions of contract shall be read in conjunction with the general conditions of contract, schedule of rates, scope of work and any other document forming part of contract wherever context so requires.
- b. Notwithstanding the sub-division of the documents into three separate sections, every part of each shall be deemed to be supplementary of every other part and shall be read with and into the contract so far as it may be practicable to do so.
- c. Where any portion of the special conditions of the contract (SCC) is repugnant to or at variance with any provision of the general conditions of the contract then unless a different intention be deemed to override the provisions of the general conditions of contract (GCC) only to the extent such repugnance or variation if the SCC as are not possible of being reconciled with the provisions of the GCC.
- d. In case of any contradiction the decision of Engineer in-charge will be final and binding to the contractor.

2. Site Information:

The work site shall be GAIL (India) Ltd, Vaghodia Compressor Station, GIDC Industrial Estate, Vaghodia-391760 Vadodara.

It is understood that before quoting the rates, the contractor has visited the work site and has acquainted himself fully with the nature and quantum of work to be done. Ignorance of this, after award of contract will not be considered.

3. Delivery Period & Contract Period:

Supply of battery banks as mentioned in SOR shall be completed within 04 months from date of intimation from GAIL. Date of LR shall be considered as delivery date.

The contract period for Supply, Installation & Commissioning of Lead Acid battery bank shall be of 12 months from the date of issue of FOA or LOA, whichever is earlier.

4. Payment Terms:

80% payment for supply portion shall be released after supply of material at the site. Remaining 20% payment against supply of Lead Acid battery bank will be released along with installation and commissioning charges after successful installation & commissioning of battery banks and lifting of buyback material.

Necessary recoveries & all statutory deductions shall be made as per relevant rates (as per rules & regulations of Government) from the payments to the contractor.

5. Price / Schedule of Rates (SOR) / Bill of Quantities (BOQ):

- a. The prices quoted by the Bidder shall be firm, fixed, and non-escalable for the entire duration of the Contract, including any extended period. No escalation shall be payable on any account whatsoever, including but not limited to increase in cost of materials, labour, statutory levies, or delays in execution, even if the actual completion extends beyond the stipulated completion period.



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- b. The Schedule of Rates (SOR) / Price Bid shall be read in conjunction with all sections of the Tender Document. The Bidder shall quote rates after thorough examination of the entire Tender Document, including Scope of Work, Scope of Supply, Technical Specifications, Drawings, General Conditions of Contract (GCC), Special Conditions of Contract (SCC), and all other relevant provisions.
- c. The quoted rates shall be deemed to be inclusive of all costs required for complete and satisfactory execution of the work, whether explicitly mentioned or not. Any activity, service, or item necessary for completion of the work in all respects, but not specifically indicated in the SOR, shall be considered as included in the quoted rates, and no additional payment shall be admissible on this account.
- d. The rates quoted shall include all costs and liabilities, including but not limited to: labour, supervision, wages, overtime, leave, bonus, statutory compliances, insurance, retrenchment compensation, tools and tackles, consumables, overheads, profits, and all incidental, auxiliary, and enabling works required for execution of the Contract as per the directions of the Engineer-in-Charge.
- e. All items of work shall be executed strictly in accordance with the specifications, drawings, and instructions of the Engineer-in-Charge. The quoted rates shall be deemed to cover all such requirements necessary for proper execution and completion of the work.
- f. The Bidder must quote for all items listed in the Schedule of Rates/Price Bid, unless specifically stated otherwise. Any bid with unquoted or blank items shall be treated as non-responsive and is liable for rejection without further reference to the Bidder.
- g. The Contract shall be deemed to be a composite and lump-sum responsibility for complete supply, services, and execution as defined in the Tender Document.
- h. The Bidder/Contractor shall comply with all applicable Government of India / State Government rules, regulations, circulars, and guidelines, as amended from time to time. The same shall be binding on the Contractor, and no additional claim shall be entertained on this account.
- i. Any bid that does not comply with the requirements specified above shall be considered non-responsive and shall be rejected without any correspondence.

6. Contractor's responsibilities:

- a. All the necessary manpower, tools & tackles, measuring equipment, charging and discharging kit suitable for battery, standby Battery Backup, Transport vehicle/hydra or any lifting tool etc required for safe and complete execution of job for supplied material is covered under the scope of contractor. Once the materials arrive at GAIL site contractor shall depute commissioning engineer and manpower to complete the installation & commissioning job.
- b. New Batteries discharging shall be carried out thorough suitable rating of Resistance bank load. (Water load is not acceptable).
- c. Contractor needs to arrange its own transportation vehicle for carrying man, machine and materials from and to site.
- d. Man deployed at site must be above the legal age and under 60.
- e. As the job need to be executed in Gas compressor Station hence contractor is required to arrange all its machine cables and material suitable for working in gas and petrochemical plant.



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- f. All the job shall be executed under the experience supervisor. Its contractor duty to ensure the execution of job by following all relevant standard safety practices of OISD/IS and GAIL (GAIL FIRE AND SAFETY POLICY AND HSE MANAGEMENT SYSTEM).
- g. Installation, Testing & Commissioning of battery bank shall be carried out as per manufacturer recommendations and best standard practice.
- h. Capacity Test shall be carried out on battery bank after completion of installation job at site. Material shall be rejected if battery bank failed in Capacity test
- i. All expenses towards mobilizations at site and demobilization equipment, work forces, materials dismantling the equipment, loading unloading of material, clearing the site etc, shall be deemed to be included in the prices quoted and no separate payment on account of such expenses shall be entertained.
- j. It is Contractor responsibility and utmost priority to ensure the safety during execution of any job against this contract; contractor need to provide all the necessary support and material for execution of job as per standard industrial safety practices.
- k. It is understood that the scope of work shall include, alias, the carrying out of any and/ all works and providing any/ all facilities as required for completing the works as per the terms and conditions of contract documents.
- l. The contractor shall be responsible to complete the entire work in all respects and any of the work necessary to complete the job though specifically not covered in the scope of work above.

7. Defect Liability Period:

The contractor shall guarantee the quality of workmanship for a period of 12 months after completion of job. Any change or defect to completed work during this period shall be rectified /replaced by the contractor at no extra cost to Owner. The decision of Engineer-in-Charge shall be final and binding in this regard.

Warranty period for material supply (Batteries & connecting accessories) shall be 12 months from date of commissioning.

8. Electrical Safety and Supervision of work:

Electrical system has various voltage levels 6.6KV, 415 volt etc. at GAIL, Vaghodia plants where installation of new lead Acid battery banks is to be done. Therefore, for ensuring the safety of man & machine, the party must depute a one Experienced supervisor at respective work site. He should be able to manage site activities while executing the job at the site and guide his personnel to carry out the work as and when required as per the instructions of the Engineer In charge.

- 9. Adherence to Safety:** GAIL will not be responsible for any accident /mishap to contractor 's employees during execution of Job at GAIL, Vaghodia. The contractor shall take necessary action for his employees in case of any incidents. GAIL shall not provide any medical/monetary assistance to the contractor personnel engaged for said job.

10. Gate pass/ Identity Card:



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The contractor shall make / renew at his own cost gate pass/ identity cards if so required by GAIL for security or any other reasons. Necessary police verification, health check-up etc for employee to be deputed shall be under the scope of contractor.

11. Recovery:

Cost of any damage/loss of the property of GAIL, by the contractor shall be recovered from the bill/security deposit of the contractor and decision of GAIL/EIC in this regard shall be final, binding and conclusive. Contractor shall be responsible for safe custody of any equipment handed over to him. In case of loss/ theft, the purchase cost of the equipment as per GAIL's record plus 25% overhead charges shall be recovered from the contractor. GAIL's decision in this regard shall be final, binding and conclusive.

12. Buy Back and Safe Disposal of Old Batteries:

Vendor shall compulsorily buy back old Battery banks after successfully commissioning of new battery banks on "As is & where is basis". Rates shall be quoted separately for Buy back of each battery bank. Contractor them self shall handover Old Used Lead Acid Batteries to authorized recycler of the batteries for safe disposal or should do it by themselves. The disposal of batteries shall be done as per guidelines issued by Central Pollution Control Board or any other regulatory authority. Contractor shall submit documentary evidence for the safe disposal of batteries to GAIL whether it is done by contractor or by other authorized recycler and submit necessary documents related. For more details of old batteries please refer Scope of work.

13. DOCUMENTS:

1. Documents required along with bid for evaluation:

- a. Complete Technical data sheets of the offered Battery bank.
- b. Battery Bank general arrangement drawing.

2. Documents required along with the supply of material:

- a. detailed technical literature, O&M Manuals
- b. Routine tests report as per relevant IS/IEC

3. Final Documentation: Following items but not limited to, will comprise the final documentation and shall be submitted by the Vendor to GAIL:

- a. Warranty Certificate for each battery cell mentioning the S No, date of Manufacture, Model, Type etc at location of Installation.
- b. Installation and commissioning reports
- c. Final As-built Drawings
- d. Any other documents/reports necessitated as per site condition.

14. Evaluation of Bids

- a. The bidder shall quote for all items of the Schedule of Rates (SOR)/Bill of Quantities (BOQ) strictly in accordance with the tender requirements. Submission of a complete price bid covering all SOR/BOQ items is mandatory.
- b. Partial quoting shall not be permitted. If any item of the SOR/BOQ is left unquoted, quoted as "Not Applicable (N.A.)", "Nil", "Included Elsewhere", or is otherwise not priced by the bidder, the bid shall be treated as incomplete and shall be rejected outright without seeking any clarification.



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- c. Bidders shall carefully examine the entire tender document, technical specifications, scope of work, drawings, schedules, and all other tender requirements before submission of their bids. Submission of a bid shall be construed as confirmation by the bidder that the complete scope of work has been understood and considered while quoting.
- d. No post-bid modification, addition, deletion, withdrawal, or revision of quoted rates shall be permitted. Requests for exclusion of any item from the quoted scope after bid submission shall not be entertained.
- e. The bidder shall be solely responsible for ensuring that rates are quoted against all SOR/BOQ items. Failure to do so shall render the bid non-responsive and liable for rejection.
- f. No claim on account of omission, misunderstanding, underestimation of quantities, inadequate assessment of scope, or failure to quote any item shall be entertained during the execution of the contract.
- g. Evaluation of price bids shall be carried out on the overall L1 (Lowest Evaluated Bidder) basis considering the total quoted value of all SOR/BOQ items taken together.
- h. Item-wise, group-wise, section-wise, or part-wise evaluation shall not be carried out. The contract shall be awarded to the bidder whose bid is found technically acceptable and whose overall evaluated price is the lowest among all responsive bidders.
- i. GAIL reserves the right to reject any bid that is incomplete, conditional, ambiguous, contains partial pricing, or is otherwise not in strict compliance with the requirements of the tender document.

15. Statutory Compliance under Labour & Industrial Law

- a. The contractor (which shall include the contracting firm/company) shall be an independent business establishment having its own PF registration number and shall be solely liable to obtain and comply with all necessary licenses/permissions from concerned authorities, including labour license under the Contract Labour (Regulation & Abolition) Act, 1970.
- b. The contractor shall discharge all obligations under applicable statutory enactments including:
 - o Employees Provident Fund & Miscellaneous Provisions Act, 1952
 - o ESI Act, 1948
 - o Contract Labour (Regulation & Abolition) Act, 1970
 - o Minimum Wages Act, 1948
 - o Payment of Wages Act, 1936
 - o Workmen Compensation Act, 1923
 - o And other applicable Acts, Rules, and Regulations in force from time to time
- c. The contractor shall be responsible for all statutory contributions such as PF, ESI, and any other payments to Government authorities in respect of personnel deployed for GAIL work. The contractor shall deposit contributions within prescribed due dates, obtain PF registration from the concerned Regional Provident Commissioner, submit proof of deposit of both employee's and employer's contributions, and bear all applicable administrative/inspection charges.
- d. The contractor shall regularly submit all relevant records/documents to the GAIL representative for verification.
- e. The contractor shall ensure timely payment of wages and all dues to personnel, latest by the 7th of the following month. The contractor shall be solely responsible for all claims, disputes, or liabilities arising out of employment of personnel and shall indemnify GAIL against the same.



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- f. The contractor shall indemnify GAIL against all losses or damages caused due to acts or omissions of the personnel deployed by the contractor.
- g. The contractor shall ensure regular and effective supervision of all deployed personnel.
- h. The contractor shall ensure that no labour below the age of 18 years and above the age of 60 years is engaged for the work.
- i. The contractor shall deploy a competent supervisor to monitor and supervise the work, ensuring proper execution and compliance with contractual obligations, and to provide necessary instructions to the workforce.

16. Authorization for Disposal of Buy-Back Lead Acid Batteries

- a. The bidder shall possess and submit a valid authorization/license issued by the concerned Pollution Control Board or other statutory authority for handling, collection, recycling, or disposal of used lead-acid batteries in accordance with the prevailing Battery Waste Management Rules and applicable regulations.
- b. If the bidder does not possess its own authorization/license for disposal of used lead-acid batteries, it shall submit valid documentary evidence of its authorized battery disposal/recycling channel partner, along with the partner's valid authorization/license issued by the competent statutory authority for disposal/recycling of used lead-acid batteries.
- c. Failure to submit the above documents shall render the bid liable for rejection.

“ALL OTHER TERMS & CONDITIONS OF THE CONTRACT SHALL BE AS PER "GENERAL CONDITION OF CONTRACT [GCC]".



SCOPE OF WORK (SOW) FOR PART-B

Technical specifications and scope of work for Supply, Installation and commissioning of Lead Acid Tubular type Battery Bank of 200AH Capacity

A. Scope:

1. This scope covers the design, engineering, manufacture, testing, supply, installation, and commissioning of 01 (One) No. Tubular Lead Acid Battery Bank comprising 110 (One Hundred Ten) Nos. flooded tubular lead acid cells. Each cell shall have a nominal voltage of 2V and shall be suitable for continuous float and boost charging duty in battery charger applications.
The battery bank shall be rated at a 10-hour discharge rate (C10) and shall be capable of delivering the specified capacity up to an end cell voltage of 1.80V per cell at a reference electrolyte temperature of 27°C.
The cells shall conform in all respects to IS: 1651:2013 and shall be designed for high reliability, extended service life, and low maintenance under substation/industrial operating conditions.
The scope shall include supply of all associated accessories, including but not limited to inter-cell connectors, end cell connectors, terminal plates, hardware, electrolyte, battery stands/racks, insulating materials, and any other items required for complete installation and safe, reliable operation of the battery bank.
2. The scope shall also include the buyback of the existing old battery bank. The same shall be dismantled and removed by the contractor on an “as-is, where-is” basis. The contractor shall ensure safe handling, transportation, and disposal of the old batteries in compliance with applicable statutory regulations. The removed batteries shall be handed over only to authorized recyclers or designated collection centre. The contractor shall submit documentary evidence of safe disposal, including acknowledgement receipts from the authorized recycler. Additionally, a valid registration certificate of the authorized battery recycler shall be submitted as proof of compliance with regulatory requirements.
3. The scope shall also include the arrangement and provision of a standby battery bank of suitable voltage and capacity, in healthy, fully charged condition, to ensure uninterrupted DC supply during the replacement activity. The standby battery bank shall be connected and taken into service immediately after isolation and disconnection of the existing battery bank. Upon successful installation, testing, and commissioning of the new battery bank, the load shall be safely transferred from the standby battery bank to the newly installed battery bank. The bidder shall arrange all necessary cables, connectors, protection, and accessories required for temporary connection and operation of the standby battery bank. All switching and changeover activities shall be carried out in accordance with approved procedures and safety practices.

B. Codes and Standards

- The design, manufacture, and testing of the battery shall conform to the latest revisions/amendments of IS 1651:2013 for tubular positive plate type lead-acid batteries.



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- All accessories shall comply with the applicable Indian Standards. Equipment conforming to equivalent IEC standards shall also be acceptable.
- The design and operational features of the offered equipment shall comply with the latest provisions of the Indian Electricity Rules, along with all applicable statutory acts and regulations. The supplier shall make necessary modifications, wherever required, to ensure compliance with these provisions.
- In case of any conflict between the specified requirements, the most stringent requirement shall prevail. However, GAIL's decision in this regard shall be final and binding

C. General requirement:

1. The offered battery and associated equipment shall be brand new, of proven design, and based on state-of-the-art technology. The battery shall have an established and satisfactory field performance record. Prototype or unproven designs shall not be accepted.
2. The battery shall be suitable for continuous float operation with frequent charge/discharge cycles and shall meet the specified duty requirements without deterioration in performance.
3. The vendor shall ensure availability of spare parts, replacement cells, and maintenance support services for the complete battery system for a minimum period of 10 (ten) years from the date of supply.
4. The vendor shall provide a minimum one (1) year prior written notice to GAIL before discontinuation or phasing out of the offered battery type, model, or its spare parts, to enable GAIL to plan procurement of spares and services.
5. The battery shall be designed for safe operation under site environmental conditions and shall comply with all applicable safety, handling, and disposal requirements

D. Technical Particulars:

1. The Tubular type of lead acid cell/battery shall be suitable for float duty operation with a constant voltage permanently applied to its terminals which is sufficient to maintain it in a state close to full charge and shall be designed to supply load in the event of normal power supply failure.
2. Batteries shall be of Lead Acid type. Each cell shall be contained in transparent SAN containers complete with tubular positive plates, pasted negative plate, lids, vent plugs, acid level indication on the containers, separators, nuts & bolts, cell insulators, inter-cell connectors etc.
3. The battery bank shall be complete with all necessary components such as lids, plugs, separators and buffers, inter-cell connectors, lead coated bolts and nuts, cell insulators etc as applicable.
1. Batteries shall be supplied empty, dry and uncharged. Packed unused liquid electrolyte with 10% extra shall be delivered with the battery in suitable non-returnable sealed containers along with the batteries.
2. Each cell/battery shall have a separate container of nominal voltage 2V. The cell container shall be of high strength acid resistant material and designed to withstand mechanical stresses, shocks and vibrations.
3. The Battery terminals shall be suitable for short circuit current and specified discharge current without damage to the cell as a result of terminal heating.
4. Battery shall be designed to withstand the mechanical stresses encountered during normal transportation and handling.



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5. Float charging voltage range: 2.23 to 2.25 V/cell
6. Boost charging voltage range: 2.35–2.40 V/cell
7. The following information shall be indelibly and durably marked on the outside on the cell:
 - a. Nominal voltage
 - b. Name of manufacturer/model reference
 - c. Rated capacity in ampere hours (AH)
 - d. Month and year of manufacture
 - e. Polarity Marking
 - f. Minimum and Maximum level Marking for Electrolyte

E. Battery Bank Accessories

Each set of Battery Bank shall be supplied complete with all accessories required for safe, reliable, and maintenance-friendly operation, including but not limited to the following:

- a. **Battery Stand:** Heavy-duty, corrosion-resistant **FRP (Fiber Reinforced Plastic) battery stand** suitable for the weight and dimensions of the offered battery bank. The FRP stand shall be designed for indoor substation application and shall be resistant to electrolyte fumes, acid spillage, moisture, and corrosion. The stand shall provide adequate mechanical strength and rigidity and shall be designed to ensure easy access to each cell for inspection, maintenance, electrolyte level checking, topping-up, cleaning, and replacement. The stand shall be supplied complete with all necessary fasteners, supports, and accessories required for installation.
- b. **Inter-cell, inter-row, and inter-bank connectors** along with end take-offs. These shall be of nickel-plated copper or completely insulated solid copper connectors having adequate current carrying capacity, mechanical strength, and corrosion resistance.
- c. **FRP stand insulating arrangement/supports** as required by the OEM design to ensure electrical isolation and safe operation of the battery bank.
- d. **Cell number plates/permanent identification stickers**, polarity markings, lugs for cable termination, terminal protective covers, and all other accessories required for complete installation.
- e. Any other accessories, fittings, hardware, or consumables required for complete installation, satisfactory operation, testing, commissioning, and maintenance of the battery bank, whether specifically mentioned herein or not, shall be deemed to be included in the bidder's scope of supply.

The quantity and specifications of all accessories shall be as per OEM standard and shall be suitable for the offered battery bank configuration.

- f. The scope of supply shall also include supply of spares. Detail of spare required along with each battery bank:
 - Inter cell Connectors (5% of installed quantity)
 - Vent plug (5% of installed quantity)



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- Nut bolt and washers (5% of installed quantity)
- Dimension of existing Battery room: (LxWxH) is (460x220x510)cm.
- Battery Bank shall be preferably arranged in such a layout that it should be accommodable in the existing battery room. Vendor is advised to visit the site to assess the layout for new battery banks in accordance with the existing available space in battery room considering easily accessibility of batteries for maintenance job.

F. Buy-Back and Disposal of Existing Battery Bank

Battery Details:

Lead Acid Battery Bank, 108 Cells, 2V, 200Ah OPzS, Make: Exide, Year of Manufacture: 2012.

The contractor shall undertake buy-back of the existing battery bank including dismantling, loading, transportation, and safe disposal/recycling. All manpower, tools, equipment, materials, and resources required for completion of the work shall be in the contractor's scope.

The battery bank shall be disposed of through an authorized recycler in compliance with applicable CPCB/SPCB and Government regulations. The bidder shall submit valid authorization/registration certificates of the recycler. If the bidder is an authorized recycler, its own certificate shall be submitted; otherwise, the certificate of the proposed authorized recycler shall be provided.

G. Packing and Dispatch:

All the batteries shall be divided into several sections for protection and ease of handling during transportation. The equipment may be stored outdoors for long periods before installation. The packing shall be completely suitable for outdoor storage in areas with heavy rains/high ambient temperature.



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SECTION-VI

SCHEDULE

OF RATES

[SOR]

AS ATTACHED IN BUYER UPLOADED ATC



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SECTION – VII

HEALTH, SAFETY ENVIRONMENT [HSE] SPECIFICATIONS



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HEALTH, SAFETY AND ENVIRONMENT [HSE] SPECIFICATIONS

The objective of this document is to assess the HSE hazards and risks associated with the scope of Contractual Work and to provide a set of procedures to ensure safety of the workforce, prevent damage of environment, property and safeguard the company reputation at large. This document covers the guidelines of the HSE Management System for enhancing the safety of the contractor workforce deployed in Construction, Maintenance and Operation Activities in GAIL.

1.0 GENERAL

- 1.1 CONTRACTOR shall adhere to Safe Construction, Operation & Maintenance Practices and shall comply with GAIL's HSE Rules and Regulations as set forth herein. Prior to start of WORK, CONTRACTOR will be provided with a copy of GAIL's "Safety Code - HSE Management System" for information and guidance.
- 1.2 GAIL has the right to stipulate additional HSE Guidelines specific to the work as and when required. Compliance of these guidelines shall be obligatory by the CONTRACTOR at work site.

2.0 TENDER DOCUMENT: HSE INFORMATION

- 2.1 "Contractor Safety" can be ensured to a large extent, if engaged CONTRACTOR is having adequate competency for execution of intended activities, based on the Health, Safety and Environment System as agreed upon by GAIL. It is required to assess the Capabilities and Competencies of CONTRACTOR to perform the work safely. The CONTRACTOR shall furnish the requisite details in the tender document on following aspects to assess his Health, Safety and Environment Management System.
- a) Leadership and Commitment
 - b) HSE Policy and Objectives
 - c) HSE Organization
 - d) Risk Management
 - e) HSE Performances
 - f) Statutory Compliances
- 2.2 Duly filled in questionnaire (Refer Appendix I) shall be submitted by CONTRACTOR along with tender document.
- 2.3 HSE Performances of CONTRACTOR should be reviewed on half yearly (Once in Six Months) basis by ENGINEER IN-CHARGE OR his/her representative (Refer Appendix II).
- 3.0 The CONTRACTOR shall request ENGINEER IN-CHARGE in writing for a meeting immediately after award of contract and before the execution of any work. The meeting shall be participated by Contractor's Management Personnel, ENGINEER IN-CHARGE and GAIL's Fire & Safety / Safety Department. The agenda of the meeting must cover the following aspects:
- a) HSE Management System of GAIL
 - b) Hazards and Risk associated with job awarded to Contractor
 - c) HSE Plan of Contractor



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- d) Personnel Competency who are exposed to Workplace Hazards
- e) HSE Training and Induction Plan
- f) Incident Reporting and Emergency Response Plan
- g) Financial Deterrents for violations of Safety Rules and Regulations

4.0 SAFETY REGULATIONS

4.1 With respect to safety & welfare of all WORKERS engaged by the CONTRACTOR, the CONTRACTOR shall ensure compliance of all the Safety Provisions of The Factory Act & Rules, The Environment Protection Act & Rules, The Petroleum Act & Rules, The Motor Vehicle Act & Rules, The Building and Other Construction Workers Regulation, The Electricity Act, The Mines Act etc. and such applicable other Central and State Acts and Rules, at his own expense.

The CONTRACTOR shall observe and abide by all HSE Rules & Regulation of GAIL. Before starting any work, CONTRACTOR shall consult ENGINEER IN-CHARGE and must make good to the satisfaction of GAIL, to provide adequate safeguard for any loss or damage to any of GAIL's existing property.

5.0 DUTIES & RESPONSIBILITIES OF CONTRACTOR

5.1 The CONTRACTOR shall prepare a comprehensive and HSE plan document and submit to ENGINEER IN-CHARGE for approval. This document should cover:

- a) HSE Policy & Objectives
- b) Site Safety Organization Chart
- c) Roles and Responsibilities
- d) Contractor's HSE Management System including information on deployment of Safety Supervisor, Training & Awareness, Fire Prevention & Protection, Safety Audit, Safety Meeting, Accident/Incident Reporting and Investigation, Housekeeping, availability of Personal Protective Equipment etc.

5.2 The CONTRACTOR shall start the work only after approval HSE Plan by ENGINEER IN-CHARGE.

5.3 The CONTRACTOR shall engage/nominate qualified & trained Safety Engineer(s)/Officer(s)/Supervisor(s) reporting to the Site In-Charge for supervision, coordination and liaison for the implementation of the HSE Plan. Deployment of Safety Supervisor/Officer shall be ensured as follows:

5.3.1 A Safety Supervisor shall be nominated/engaged by the CONTRACTOR for up to 30 workers.

5.3.2 A dedicated Safety Supervisor with recognized degree in Science or diploma in engineering shall be deployed for more than 30 and up to 50 workers. The Safety Supervisor preferably be trained in basic safety and firefighting. Subsequently, for every 50 workers and part thereof, CONTRACTOR shall deploy one dedicated Safety Supervisor.

5.3.3 A fulltime / dedicated qualified Safety Engineer/Officer shall be assigned for every 250 workers are employed at site. The Safety Engineer/Officer shall possess requisite qualification and experience in line with the Central/State Regulations.

5.4 The CONTRACTOR shall ensure that the appliances and equipment used on site by CONTRACTOR/his employees is correctly registered, controlled and maintained in sound working conditions. As a general practice, lifting tools/tackles, machine, accessories etc. shall be inspected, tested and examined by competent person or approved by concerned Central/State Authorities before being used at site. List of such appliances and equipment should be made available to ENGINEER IN-CHARGE prior to execution of job. Subsequent periodical inspection/test report(s) of lifting



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tools/tackles, machine, accessories etc., as and when required is to be submitted to ENGINEER IN-CHARGE for verification.

- 5.5 The CONTRACTOR shall employ only those workers who are qualified, trained and suited by their age, physique, state of health and skill.
- 5.6 The CONTRACTOR should establish scheme for rewards and recognitions to contract workers/employees. The Contract workers/employees should be suitably rewarded with benefits/prizes for timely reporting Unsafe Act/Condition, Near Miss Incidents, Safety Suggestions etc. based on accident potential.
- 5.7 The CONTRACTOR shall arrange facilities at suitable location in liaison with GAIL for drinking water, toilets, lighting, canteen, lunch shelter, crèche etc. as applicable/required in accordance with Laws/ Legislation at site.
- 5.8 The CONTRACTOR shall arrange for firefighting/protection equipment as per the advice of GAIL.

6.0 DUTIES AND RESPONSIBILITIES OF CONTRACTOR'S SAFETY SUPERVISOR/ SAFETY OFFICER

- To ensure that all the preventive measures for identified hazards through Job Safety Analysis (JSA) are in place and communicated to workers.
- To ensure strict compliance with work permit system in line with GAIL's HSE Management System. Work shall be started only after getting permission and after ensuring that all safety precautions/ conditions mentioned in the permit are complied with. The work site shall be cleared of any debris etc. after job completion.
- To ensure that the workers likely to be exposed to hazardous chemicals/ materials have access to and information on the appropriate Material Safety Data Sheets (MSDS) and have knowledge of necessary mitigation measures.
- To ensure that required safety guards and standard Personal Protective Equipment (PPE) are provided, used and properly maintained including Emergency Requirement.
- To ensure inspection, testing, certification and maintenance of all tools and removal of defective tools.
- To plan the workload and assign workers to jobs in commensuration with their competency, qualification, experience and state of health.
- To take immediate corrective action against the violation of safety rules observed or reported.
- To ensure that appropriate warning signboards or tags are displayed.
- To ensure that all workers have proper training for their job assignments, including use of appropriate PPE, first aid and firefighting equipment.
- To ensure that only medically fit persons are engaged in the work. Also, ensure that sick/ or injured workers during course of work revive timely with appropriate first aid and/ or medical attention.
- To report each incident and/or injury in accordance with established procedures and assist in investigation.
 - Maintain HSE Observations and action taken report at site
 - Conduct Tool Box talks along with Site Engineers/ supervisors before commencement of any job.
 - Safety Talk records shall be maintained.



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7.0 DUTIES AND RESPONSIBILITIES

7.1 Duties and Responsibilities of CONTRACT SUPERVISOR

- a) To always ensure safety & security of all workers and materials at sites.
- b) To systematically plan the workload and allocate job responsibilities to employees in accordance with their qualifications, professional experience, and physical condition.
- c) Supervisor must take immediate steps to correct unsafe acts or conditions at workplace and must follow-up to ensure that corrective measures are completed in a timely manner to address the hazard.
- d) To ensure that all tools undergo regular inspection, testing, certification, and maintenance, and that any defective tools are promptly removed from service.
- e) Ensure supply of safety kits to workers and ensure adherence to safety regulations and safe work practices.
- f) To ensure that all workers are adequately trained for their job assignments, including the correct use of Personal Protective Equipment (PPE), as well as first aid and firefighting equipment.
- g) To ensure that only medically fit personnel are assigned to work, and that any worker who becomes sick or injured in the course of duty receives timely and appropriate first aid and/or medical care
- h) To conduct regular Toolbox Talks with workers at the job site, focusing on specific tasks, associated hazards, safe work practices.
- i) Supervisor shall immediately inform the SITE IN-CHARGE /ENGINEER IN-CHARGE in case of any incident or potential risk which could lead to incident.

7.2 Duties and Responsibilities of CONTRACT WORKERS

- a) To understand the hazards and risks associated with the job and their mitigation measures.
- b) To perform work safely as per the job requirement and instructions.
- c) To inform all concerned regarding unsafe conditions/ and unsafe acts.
- d) To wear PPE as stipulated and necessary for the job.
- e) To inform promptly to their supervisor regarding all work-related incidents resulting in personal injury, illness and/ or property damage.
- f) To take all necessary and appropriate safety precautions to protect themselves, other personnel and the environment.

8.0 CONSULTANT (Project Management Consultant) - Not applicable for Services

- 8.1 The activities and responsibilities covered under the scope of GAIL may be delegated to the consultant in some cases as applicable, based on the respective contract conditions.
- 8.2 The responsibility of CONSULTANT is to ensure implementation of agreed HSE plan by the CONTRACTOR.
- 8.3 The CONSULTANT shall observe and abide by all HSE Rules & Regulation of GAIL.
- 8.4 It is the responsibility of the CONSULTANT to submit CONTRACTOR's latest HSE plan and ensure its implementation of the same till the job completion.
- 8.5 The CONSULTANT shall designate/engage adequate number of Safety Officer (s) with necessary skills required for the work to be supervised/performed.
- 8.6 The CONSULTANT shall review the documents submitted by the contractor and advise GAIL on acceptance as well as advise suitably for requirement of number of Contractor's safety officers/supervisors.



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9.0 LAYOUT AND JOB PLANNING

9.1 Before starting the Construction/ Maintenance job at an existing workplace in operation or green field locations, following should be ensured:

- 9.1.1 The location of Site Office, Fabrication Yard, Store, placement of Construction Machinery, Electrical Installation, Medical and Welfare facilities, Lighting etc. should be decided prior to commencement of the work in consultation with GAIL/ CONSULTANT. Layouts should be displayed at strategic locations.
- 9.1.2 The resources required to meet any emergency situations like firefighting, first aid etc. should be planned and mobilized as per the job requirement.
- 9.1.3 Free access to site shall be provided with clear roads, passage, gangways, staircases etc. Access to construction site should be leveled, open and free from any obstructions like construction material or scrap/waste, exposure to hazards such as falling materials, material handling equipment and vehicles. Any pit or ditch shall be covered or barricaded.
- 9.1.4 Arrangements should be made to maintain good housekeeping at site. Scrap and debris generated out of construction work should be removed/disposed of at a regular intervals as directed. Emergency exit should be provided in case of blockade of primary exit.
- 9.1.5 Suitable warning notices and also the routes to and from welfare facilities should be displayed prominently.
- 9.1.6 Pedestrian pathways and routes for vehicular traffic (light/heavy vehicles including material handling equipment) should be earmarked.
- 9.1.7 Artificial lighting to be provided at places where work continues or workers pass by after sunset or in case natural light is insufficient like confined spaces.
- 9.1.8 Keep all equipment /machines under cover to prevent them from dust, rain/flood water, heat etc. and follow storage instructions as applicable for each of them.
- 9.1.9 Temporary combustible structures shall not be built near or around the work-site.
- 9.1.10 General housekeeping shall be carried out by the CONTRACTOR. Proper storage and segregation of materials, equipment, inflammable material, waste and debris at appropriate interval, removal of scrap and appropriate disposal of waste/debris should be ensured.

9.2 The CONTRACTOR shall ensure identification of all Occupational Health, Safety & Environment hazards in the type of work he is going to undertake and enlist mitigation measures. CONTRACTOR shall carry out Job Safety Analysis (JSA) and submit to ENGINEER IN-CHARGE, specifically for high risk jobs/critical jobs like:

- | | |
|------------------------------------|-----------------------------------|
| a) Excavation & Trenching | h) Working at Height |
| b) Scaffolding, Platform & Ladders | i) Handling and Lifting Equipment |
| c) Structural Work | j) Vehicle Movement |
| d) Road Work | k) Demolition |
| e) Cutting/Welding | l) Radiography |
| f) Working in Confined Space | m) Shot Blasting/Spray Painting |
| g) Pressure Testing | n) Demolition |



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Job Safety Analysis (JSA) provides a mechanism by which the CONTRACTOR/ GAIL, SAFETY OFFICER (S) AND JOB SUPERVISOR(S) take a detailed look on how an individual task is to be performed, identification of inherent hazards and preventive measures. This procedure helps in integrating accepted safety and health principles and practices into a particular operation.

- 9.3 Work Permit System shall be followed in accordance with GAIL's HSE Management System and OISD Standard 105.
- 9.4 The minimum Safe Practices to be followed during the implementation Construction Activities are in accordance with OISD-GDN-192.
- 9.5 The CONTRACTOR has to provide Fire Extinguishers, Fire Buckets etc. at worksite as recommended by ENGINEER-IN-CHARGE.
- 9.6 The CONTRACTOR has to ensure all precautionary measures and exercise utmost care in handling the inflammable gas cylinders/inflammable liquid/ paints etc. as advised by ENGINEER-IN-CHARGE.

10.0 SAFETY AWARENESS AND TRAINING

- 10.1 No person should be employed in any work at a workplace unless that person has received the necessary information, instruction and training so as to be able to do work competently and safety.
- 10.2 The CONTRACTOR shall ensure that all his personnel possess appropriate and job specific training on potential hazards to which they may be exposed at workplace and measures for prevention & mitigation, emergency plan etc. to carry out the assigned job safely.
- 10.3 The information, instruction and training should be given in a language understood by the worker and written, oral, visual and participative approaches should be used to ensure that the worker has assimilated the information.
- 10.4 Workers should be adequately and suitably:
- a) Informed of potential hazards to which they may be exposed to at their workplace.
 - b) Instructed and trained in the measures available for the prevention, control and protection against those hazards.
- 10.5 Training Schedule shall be submitted to ENGINEER IN-CHARGE. Records of trainings shall be kept and submitted to GAIL, as and when required.
- 10.6 Safety Talks shall be given to workers prior to commencement of any job/activity and during the work, periodically. Records of such Safety Talks shall be maintained.

11.0 INSPECTION/ AUDIT

Inspection / Audit is a tool to evaluate compliance of all safety requirements. Most of the information could be gathered through site inspection using ready-made check lists to ensure that contractors / agencies abide by the safety rules and norms while working at operating / construction sites.

- 11.1 A mobilization audit/inspection shall be conducted by ENGINEER IN-CHARGE / nominated representative to verify the HSE System and healthiness of equipment & appliances are in place, in accordance with agreement by GAIL and CONTRACTOR during Post Award Meeting.
- 11.2 Before commencement of the work and at periodic intervals CONTRACTOR's SUPERVISOR/SAFETY OFFICER, CONSULTANT SAFETY OFFICER and OWNER'S



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REPRESENTATIVE / ENGINEER-IN CHARGE/ SAFETY OFFICER should inspect the site as per the checklist so prepared to ensure that the work site is ready with all respect and all required safety precautions have been taken for safe execution of the job.

12.0 FINANCIAL DETERRENTS FOR NON-COMPLIANCE OF HSE RULES/ PROCEDURES

12.1 The CONTRACTOR shall adhere consistently to all provisions of HSE requirement as stipulated in Statutes and GAIL HSE Rules & Regulations/HSE Management System. In case of Non-Compliances and also repeated failure in implementation on any HSE provision(s), GAIL may stop the work without any cost & time implication to GAIL and/or impose a suitable penalty. The decision of imposing penalty on CONTRACTOR/CONSULTANT will be made by ENGINEER IN-CHARGE/ SITE IN-CHARGE/SITE ENGINEER.

12.2 The CONTRACTOR/CONSULTANT shall observe and abide by all HSE Rules & Regulation of GAILGAIL. Before starting of any work in Greenfield Projects, Brownfield Projects, Operations, Maintenance etc. CONTRACTOR/CONSULTANT shall consult ENGINEER IN-CHARGE and must make all provisions to the satisfaction of GAIL to provide adequate safeguard for preventing injury to personnel, loss or damage to environment and property. For all critical activities/jobs, written communication must be ensured by contractor prior to starting of job and job supervision by competent person to be ensured in consultation with GAIL/CONSULTANT.

12.3 The amount of penalty to be levied against defaulting CONTRACTOR shall be as follows:

- a) For first time violation of safety rules & regulation by any CONTRACTOR, ENGINEER IN-CHARGE/ SITE IN-CHARGE/SITE ENGINEER will issue a warning letter to CONTRACTOR along with the penalty for subject violations as listed (Refer Clause 12.5) with intimation to PROJECT IN-CHARGE/OFFICER IN-CHARGE.
- b) In case of further violations of safety rules & regulations by the same CONTRACTOR, ENGINEER IN-CHARGE will call CONTRACTOR in person and will have a meeting to discuss reason for repetitive violation along with representative of HEALTH, SAFETY AND ENVIRONMENT/FIRE AND SAFETY department along with HEAD OF DEPARTMENT. Subsequently, a warning letter will also be issued by ENGINEER IN-CHARGE along with the penalty for subject violations as listed (Refer Clause 12.5) to CONTRACTOR with intimation to PROJECT IN-CHARGE/OFFICER IN-CHARGE.
- c) In case of further repetitive violations under Clause a) & b), punitive fines will be imposed on CONTRACTOR by ENGINEER IN-CHARGE based on severity of violation on safety. However, minimum fine would be Rs. 10,000/- and in multiple of Rs. 10,000/- thereafter maximum up to 2% of contract value.

12.4 The cumulative penalty for “c” will be limited to 2% of contract value excluding GST and this will be in addition to PRICE REDUCTION SCHEDULE (PRS) amount maximum 5% of the contract value excluding GST, as maximum. Necessary administrative action(s) will be initiated by ENGINEER IN-CHARGE in accordance with GAILGAIL C&P Procedure.

12.5 Violations of Safety Rules and Regulations by CONTRACTOR not limited to following lead to Financial Deterrents:



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SN	Violation or HSE norms	Penalty Amount
a.	Working without work permit clearance, as applicable	Rs. 5,000/- per occasion
b.	Non-usage of PPEs like safety helmet/safety shoes/safety goggles/welding shield/respiratory protection etc. by the contractor personnel	Rs. 100/- per day / item / person
c.	Non- use of ELCB, using poor joints of cable, using naked wire without top plug into the socket, laying wire/cables on the roads without sleeve	Rs. 1,000/- per item per day
d.	Not providing proper shoring / strutting / proper slope, as applicable and not keeping the excavated earth at least 1.5 meter away from excavated area	Rs. 2,000/- per occasion
e.	Over speeding of vehicles, rash driving, wrong side parking, not using seat belts, vehicles not fitted with reverse warning alarms, parking in front of any fire-fighting equipment etc.	Rs. 500/- per occasion
f.	Riding on material handling vehicles or trolleys or hydra	Rs. 1,000/- per occasion
g.	Failure to deploy Safety Officer/Safety Supervisor/ Supervisor responsible for safety at work site as per HSE plan/HSE condition of contracts	Rs. 1,000/- per day
h.	Failure to maintain HSE record by Contractor Safety Personnel	Rs. 1,000/- per occasion
i.	Failure to report incident and furnish a first information report (FIR) in prescribed format, as per Incident/Accident Reporting System	Rs. 5,000/- per occasion
j.	Failure to keep and maintain proper records of all incidents including near misses occurred at work site	Rs. 1,000/- per occasion
k.	Failure to use of tested and certified pressure vessel and lifting tool/ tackle	Rs. 2,000/- per occasion
l.	Unsafe handling of compressed gas cylinders (Failure to provide trolley, clamps, jubilee clips, double gauge regulator, flash back arrestor on both gas lines & both ends, damaged hose, improper storage/handling, cylinder without cap when not in use) etc.	Rs. 500/- per occasion
m.	Horseplay at work site	Rs. 1,000/- per occasion
n.	Non-provision of basic safety requirement such as 24 V lamp for working in confined space in hydrocarbon atmosphere	Rs. 1,000/- per occasion
o.	Non-usage of the full body safety harness and fall back arrester with life line properly anchored by the workers while working at height, Work at height without health examination	Rs. 2,000/- per occasion
p.	Non-barricading of area while rigging, digging, road cutting, welding, cutting, grinding, pig receiving, hydro testing, radiography, blasting etc.	Rs. 500/- per occasion
q.	Un-authorized road closure/ blockage	Rs. 1,000/- per occasion



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SN	Violation or HSE norms	Penalty Amount
r.	Poor Housekeeping and not clearing the work site on regular basis	Rs. 500/- per occasion
s.	Failure to provide safety sign boards/signage	Rs. 100/- per occasion
t.	Failure to hold tool talks with workers of site	Rs. 500/- per occasion
u.	Using LPG cylinder in O&M for Flame torch for brazing, cutting spot heating, hardening, texturing, cleaning, cutting jobs in place of (Oxy acetylene cylinders)	Rs. 2,000/- per occasion
v.	Absence of Contractor's RCM/SIC of his nominated representative from site HSE meeting whenever called by PMC/GAIL	Rs. 1,000/- per occasion
w.	Any incident/accident at site has been caused because of negligence or violation of safety measures/provision of the part of the Contractor or any of its sub-agencies	Lost Time Incident (Other than Fatality): Rs 2,00,000/- per occasion or 2% of Contract Value, which is lower Fatality: 10,00,000/- per occasion or 2% of Contract Value, which is lower

The amount of penalty to be levied against defaulting CONSULTANT (Project Management Consultant) shall be as follows **(Not applicable for Services)**:

- For first time violation on non-adherence to safety rules & regulations by CONSULTANT or CONTRACTOR(S) working under CONSULTANT, ENGINEER IN-CHARGE/ SITE IN-CHARGE/SITE ENGINEER will issue a warning letter to CONSULTANT along with the penalty for Rs. 10000/- (Rs. Ten Thousand Only) with intimation to PROJECT IN-CHARGE/ OFFICER IN-CHARGE.
- In case of further violation on non-adherence to safety rules & regulations by CONSULTANT or CONTRACTOR(S) working under CONSULTANT, ENGINEER IN-CHARGE will call CONSULTANT in person and will have a meeting to discuss reason for repetitive non-adherence. Subsequently, a warning letter will also be issued by ENGINEER IN-CHARGE along with the penalty of Rs. 50000/- (Rs. Fifty Thousand Only) to CONSULTANT with intimation to PROJECT IN-CHARGE/OFFICER IN-CHARGE.
- In case of further repetitive violations on non-adherence to safety rules & regulations by CONSULTANT or CONTRACTOR(S) working under CONSULTANT, punitive fines will be imposed on CONSULTANT based on severity of violation of safety. However, minimum fine shall be Rs. 100000/- (Rs. One Lakh Only), thereafter maximum up to 2% of contract value.
- The cumulative penalty for “c” will be limited to 2% of contract value excluding GST and this will be in addition to PRICE REDUCTION SCHEDULE (PRS) amount maximum 5% of the contract value excluding GST, as maximum. Necessary administrative action(s) will be initiated by ENGINEER IN-CHARGE in accordance with GAIL C&P Procedure.



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13.0 INCIDENT REPORTING AND INVESTIGATION SYSTEM

- 13.1 All the Incidents including Near Misses should be reported immediately by CONTRACTOR's supervisor to CONTRACTOR and GAIL's Supervisor/ENGINEER IN-CHARGE in the formats developed by GAIL for onward forwarding to appropriate Statutory Bodies.
- 13.2 All Accidents including Near Misses regardless of the extent of injury or damage should be investigated in order to find probable causes, lessons learnt thereof and remedial measures required to prevent its recurrence. Further, investigation of incidents shall be carried out by GAIL, in line with stipulated rules and regulations.
- 13.3 All the recommendations of investigation / Enquiry Report need to be monitored closely for its implementation. A proper record should be maintained to ensure implementation of all the recommendations and same should be reviewed from time to time.

14.0 SAFETY EQUIPMENT / PERSONAL PROTECTIVE EQUIPMENT

- 14.1 The CONTRACTOR shall ensure that all their staff, workers and visitors have been issued and wear appropriate Personal Protective Equipment i.e. Cotton Uniform, Safety Shoes and Safety Helmet with Chin Strip. The Safety Helmet must be provided in accordance with Colour Scheme of GAIL. The name of CONTRACTOR should be written on uniform for identification with fluorescent strip.
- 14.2 The CONTRACTOR shall provide safety kit and liveries such as Cotton Overall/Dangri (or 02 pairs of Cotton Shirts and Trousers if specifically required for the job and approved by EIC), socks and one pair of safety shoes per person every year to all employees including supervisors and shall ensure the distribution of same to contract workers prior to commencement of work. The sample of Personal Protective Equipment should be approved by ENGINEER IN-CHARGE/Representative of GAIL.
- 14.3 In addition to above, Personal Protective Equipment like Safety Belt, Respirator, Hand Gloves etc. shall be provided to staff & workers based on nature of activities which is going to be performed.
- 14.4 All this Personal Protective Equipment shall be IS Marked.
- 14.5 The type of safety equipment to be used is decided based on the Job Safety Analysis and Personal Protective Equipment (PPE Matrix).
- 14.6 The CONTRACTOR shall provide necessary training to each employee regarding proper usage and upkeep of PPE including its suitability.
- 14.7 A register showing stock and issue of PPE should be maintained by the CONTRACTOR at site and must be available for inspection. 20% of PPE in excess of actual requirement to meet contingency requirement should be maintained at site.
- 14.8 The CONTRACTOR should re-issue the mandated Personal Protective Equipment in case of damage or out of order.

15.0 SAFETY COMMITTEE MEETINGS

- 15.1 The Safety Committee should include representatives of GAIL, CONSULTANT, CONTRACTOR(S) and the meeting shall be held at least once in a quarter.
- 15.2 Apart from above, the CONTRACTOR Safety Committee comprising of contract workers' representatives, CONSULTANT and CONTRACTOR shall be formed and meetings should be conducted, at least monthly, to discuss various HSE Aspects.
- 15.3 Record of such Safety Committee Meetings along with action taken report shall be maintained and submitted to EIC.



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16.0 OCCUPATIONAL HEALTH

- 16.1 The CONTRACTOR shall arrange medical health examination by registered medical practitioner of all employees before commencement of work and after illness or injury. The medical health examination report shall be submitted to EIC. Further regular periodic medical health examination shall be carried out by CONTRACTOR, at a periodicity stipulated under Factory Act/Building & Construction Workers Regulation Act etc. GAIL/EIC has right to conduct medical health examination of any contract worker(s), if found necessary in addition to the medical health examination conducted by CONTRACTOR.
- 16.2 The CONTRACTOR shall ensure that an occupational health center mobile or static is provided and maintained in good order at a construction/maintenance site. Services and facilities shall be maintained at health centers as per the scale lay down under Factory Act & Rules/Building & Construction Workers Regulations Act etc.
- 16.3 The CONTRACTOR shall ensure Material Safety Data Sheet (MSDS) of each chemical which is used/handled at site. Preventive measures shall also be taken to avoid exposure of chemical(s) to worker(s).
- 16.4 The CONTRACTOR shall ensure adequate Occupational Health measures for worker(s) during epidemic/ pandemic if any, in accordance with guidelines of Government of India and GAIL.
- 16.5 CONTRACTOR shall maintain and ensure that First Aid Boxes and First Aid trained attendant and other facilities as per requirement of Factory Act & Rules/Building and Construction Workers Regulations Act & other applicable regulations. Periodical inspection of First Aid Boxed shall be carried out to ensure availability of medicines with validity.

17.0 ENVIRONMENT PROTECTION

- 17.1 The CONTRACTOR shall take all necessary precautions to minimize fugitive/dust emissions from operations involving excavation, grading, cleaning, disposal of waste etc.
- 17.2 The CONTRACTOR shall use equipment designed to minimize or control air pollution, water pollution and noise pollution. The CONTRACTOR shall maintain evidence of testing of equipment and make these available for inspection by GAIL.

18.0 REWARDS AND RECOGNITIONS

- 18.1 The contract employees should be suitable rewarded as per a scheme, with benefits / prizes for timely reporting of the Near miss incidents/ Unsafe conditions / Unsafe Acts based on the accident potential.
- 18.2 The best safety conscious worker as recommended by the safety officers of different contractors during short term jobs such as the turnaround maintenance activities should be suitably rewarded for motivating the workers to comply with safety requirements.
- 18.3 The best Safety Officer /Supervisors of the CONTRACTOR shall be recognized and should be suitably rewarded during Safety Week/Fire Services Week Celebrations and Other Occasions.

19 CONTRACTOR CLASSIFICATION TABLE

Based on the Risk Assessment, Works/Services are hereby categorized in High, Moderate and Low, considering the impact or severity of consequences: -

Category	Description	Minimum HSE Requirements
High	Applies to work having high / moderate / low probability of occurrence but impact of Single / Multiple Fatality or	1) Period of Contract is more than 02 Weeks: Clause 1.0 – 18.0 will be applicable



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	Irreversible Disability Injury to One or More Persons (High Risk) such as, but not limited to, as listed below: Hot Work (e.g. welding, cutting, grinding, etc.) Working at Height, Working in Confined Spaces, Excavation Work, Working with Hydrocarbon/ Chemical listed as Hazardous Chemical under MSIHC Rules, Working with Electrical System/ Appliances Use of Load Shifting Equipment and Other Mobile Appliances/ Equipment, Loading and Unloading of Hydrocarbon/ Chemical, Operation of Hazardous Process, Working with Pressure Vessels/ Boilers, Mechanical Repair/ Servicing of Machinery, Vehicles etc., Construction and Demolition Work, Scaffold Erection/ Dismantling, Pressure Testing, Working with High Pressure System, Pigging Operations, Compressed Natural Gas/Liquified Natural Gas Operations & Maintenance, Laying of Piped Natural Gas Pipelines etc.	2) Period of Contract is less than 02 Weeks: Clause 1.0 – 14.0 & 16.0 – 17.0 will be applicable.
Moderate	Applies to work having moderate / low probability of occurrence but impact of Reversible Disability Injury to One or More Persons (Moderate Risk) such as, but not limited to, as listed below: Housekeeping, Gardening, Paving, Ground Painting, Canteen etc.	Applicable Clauses: Clause 1.0 –5.0, 10.0, 12.0, 13.0, 14.0., 17.0 & 18.0
Low	Applies to work having low probability of occurrence and no impact of First Aid Injury such as, but not limited to, as listed below: Desk Side Support through Clerical and Technical Expertise, Auditing of Plant/Pipeline/Premise, Consultancy Services, Workshop/Seminar etc.	Necessary PPEs and Safety Talk/Briefing shall be provided by GAIL for visiting Consultants, Auditors etc.



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Appendix I

HSE Capability and Competency Assessment Questionnaire

HSE Aspects		Remarks
1	Does your Company have HSE Policy Document? If yes, please attach a copy.	
2	Does your Company have structured HSE Organization?	
3	Who has the overall responsibility of HSE in your Company?	
4	How do you promote a Positive HSE Culture in your Company through effective Leadership and Commitment? Please provide evidences.	
5	Does your Company is certified with ISO 45001 & 14001 or any other HSE Certification? If yes, please provide details.	
6	How does your Company identified hazards, assess risk and implement controls and mitigation measures to maintain the residual risk to an acceptable level?	
7	What procedures do your Company have to ensure new and existing employees have knowledge of basic Industrial HSE and to keep the knowledge up to date?	
8	What procedures do your Company have for monitoring the implementation of your HSE Management System?	
9	Please provide the following statistics of Lagging Indicators for each year for last three years: • Number of Lost Time Injuries • Lost Time Injury Frequency (Per Million Man Hours) • Number of Fatalities	
10	Do you have a written procedure of conducting HSE Audits? If yes, please attached a copy.	
11	Has your Company received any statutory notice w.r.t Incident, Occupational Illness, violation safety and environment stipulations in last three years? If yes, please furnish the details.	

Signature of Authorized Personnel



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Appendix - II

Performance Assessment of Contractor

Name of Vendor:

Name of Project/Plant/Facility:

Period Worked: From _____ To _____ Duration _____

Nature of Jobs done:

Average no. of persons deployed:

Total man hours worked:

Format for Performance Assessment

SN	Parameters	Marks (0-8) (0: Worst, 8: Excellent)	Remarks, if any
1	VENDOR had its own HSE Mgmt. System aligned to GAIL requirements (Yes/No)		
2	No. of induction programs conducted/HSE awareness programs done (Nos.)		
3	No. of HSE meetings done (Nos.)		
4	No. of Tool Box meetings done (Nos.)		
5	JSA for critical activities: JSA done/ JSA identified (Nos.)		
6	No. of fatal accidents (Nos.)		
7	No. of non-reportable accidents (Nos)		
8	Percentage Health Checkup of workmen carried out periodically as defined (%)		
9	Near- Misses Nos. investigated/ Nos. reported (Nos.)		
10	Legal compliances like TPI of Lifting Tool Tackles, Fitness of vehicles, other applicable rules/ regulations etc.		
11	No. of occasions on which penalty imposed for safety violations		
12	Housekeeping		
13	Others (4 marks)		

Performance assessment grade

Grade: A (More Than 90); B (More Than 80); C (More Than 65); D (More Than 50); E (Less Than 50);

Overall Remarks about assessment on HSE Performance: -

Signature of EIC
